PART FOUR | A HOUSE DIVIDED AND REBUILT

# UNIT 4
# A HOUSE DIVIDED AND REBUILT

Chapters 13, 14, and 15 · 1830–1877

## Web Article Reader

Scholarly and institutional web articles for History B17A

| | |
|---|---|
| **INCLUDED** | 104 excerpted web articles across Chapters 13–15. |
| **SOURCE TEXT** | Complete-paragraph selections from scholarly and institutional web articles; omissions marked. |
| **CITATIONS** | Chicago Notes and Bibliography with stable original-article links. |

Prepared October 2026 from the linked live web editions.

# Reader's Guide

## What This Volume Is

This volume complements the Primary Source Reader, Scholarly Article Reader, and monograph-based Secondary Source Reader. It gathers focused scholarship and institutional history published on the open web. W-number labels distinguish these readings from the S- and A-numbered sources in the other Unit 4 readers.

## How Selections Were Made

The reader includes 104 distinct articles aligned to the Unit 4 essay prompts and grouped by the textbook chapter they most directly support. An article that serves more than one prompt appears once; its metadata panel lists every assigned prompt section and whether the source supports, challenges, or qualifies that line of argument.

## Reading the Excerpts

Each excerpt reproduces complete published paragraphs, normally 600–1,200 words; a shorter article is reproduced in full. A bracketed notice marks a move between noncontiguous portions of an article; no bridging language has been invented. All text under Excerpt comes from the linked article.

## Citing These Readings

Use the full footnote citation the first time you cite an article and the shortened form thereafter. Every entry supplies Chicago Notes and Bibliography models and a direct original-article link. Cite the web article, not the reader page number, and include only works you actually use in your bibliography.

## Access

The original-article links were checked when the reader was prepared. Web pages can move or change, so retain the access date shown in the citation and use the excerpt in this reader if a live page later becomes unavailable.

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CHAPTER 13 · WEB ARTICLE W13.1

# The Dragoon Expeditions

**National Park Service, Fort Scott National Historic Site**

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|---|---|
| **AUTHOR** | National Park Service, Fort Scott National Historic Site |
| **WEBSITE** | National Park Service |
| **PUBLICATION** | Last updated April 23, 2020 |
| **CHAPTER / PROMPTS** | Chapter 13 \| 13.1 |
| **ARGUMENT ROLES** | 13.1.1 Support; 13.1.3 Support |

## Excerpt · 1,055 words

Dragoon soldiers from Fort Scott participated in many activities that contributed to westward expansion. They provided armed escorts for parties on the Santa Fe and Oregon Trails, surveyed unmapped country, and maintained contact with Plains Indians. Each summer, from 1843-45, several companies of dragoons, including Company A, 1st U.S. Dragoons, from Fort Scott, participated in military expeditions along the overland trails. The purpose of these expeditions was to protect travel and trade along the trails and to keep the Plains Indians at peace.

### Trouble with Texans

The first of these expeditions took place along the Santa Fe Trail - a trade route between Missouri and Santa Fe - then part of Mexico. The United States Dragoons, organized in 1833, had been charged with protecting the traders along the trail from Indian attacks.

In 1843, trouble erupted along the Santa Fe Trail, not from Indian attacks but from Texans. Ill will existed between Texas and Mexico even before the Texan Revolution of 1836. Prejudice and hatred on both sides, border squabbles and violence continued into the 1840s. In 1843, Texas "freebooters" began attacking Mexican caravans along the trail.

One group of Missouri men who had plans to join the Texan freebooters murdered Antonio Chavez, a Mexican trader, on American soil. The army apprehended and punished the killers but traders were fearful of further attacks and asked the War Department to furnish a military escort that year from Missouri to Santa Fe.

"We are not on American soil"

Captain Philip St. George Cooke led five companies of dragoons along the Santa Fe Trail to protect the trade. In route, the dragoons encountered Jacob Snively, who held a commission from Texas to raid Mexican caravans on Mexican soil. Two days prior to their meeting with Cooke, Snively's men had attacked Mexican soldiers, killing several of them and taking their weapons.

Upon their initial encounter, Snively's men and the dragoons were across the Arkansas River from each other. The land north of the river clearly belonged to the United States, but south of the river, U.S. territory only extended west to the 100th meridian.

Snively claimed that he was forty miles west of the boundary, but Cooke contended that Snively was on American soil. Therefore, he ordered Fort Scott's dragoons under Captain Terrett, to cross the river and disarm the freebooters. The dragoons left the freebooters only ten guns for defense on their way back to Texas. A rumor persists that the Texans had hidden their own guns and surrendered the previously confiscated Mexican weapons to the dragoons.

The 1843 expedition earned Captain Cooke the undying hatred of the Texans but was successful because it discouraged any further attacks along the Santa Fe Trail that year.

### Dragoons on Patrol

The year 1843 also saw the first significant migration over the Oregon Trail. To protect the emigrant traffic, the dragoons again went out on expeditions in 1844 and 1845. To strengthen security in the area and to end the fighting between the Pawnee and the Sioux, five companies of dragoons (including Company A from Fort Scott) traveled to Pawnee country in August of 1844. The next year, 1845, the dragoons met with the Sioux and other tribes during what is known as the South Pass expedition.

One of the purposes of the expeditions was to impress the Pawnee and Sioux with the strength of the dragoons. The soldiers came armed with sabers, breech-loading Hall's carbines, pistols and two howitzers or cannons. The dragoons requested the Pawnee to make a truce with the Sioux and to refrain from horse stealing. The Pawnee, at first refused to comply. The dragoons left the Pawnee camp, but as they did so they fired their howitzers as a demonstration. The Pawnee were impressed. They remained peaceful for the next four years.

The Sioux met with the dragoons near Fort Laramie in 1845. They were equally awed by the firepower of the howitzers. They thought that the dragoons were "a new and superior kind of white people." They agreed to leave the emigrant traffic alone, if the emigrants behaved themselves.

"54° 40" or Fight"

Colonel Stephen Kearney commanded the South Pass expedition. He led the soldiers along the Oregon Trail to Fort Laramie and then to South Pass, which they reached in June of 1845. This was the first time that an active U.S. military force traveled west of the Continental Divide.

An unstated purpose of the expedition was to place a military force near Oregon in the event of war. The United States and Great Britain both laid claim to all of the Oregon Territory and were unwilling to relinquish. 54° 40" was the line of latitude that marked the northern boundary of Oregon Territory.

The war cry "54° 40" or Fight", heard during President Polk's presidential campaign, reflected the desire of some Americans to control all of Oregon or go to war.r

The threat of war with Great Britain must have loomed large in Colonel Kearny's mind as he awaited further instruction at South Pass. He waited one day and with no word of war, he and his troops began their return journey.

Compromise had staved off conflict. The problem was solved by extending the existing boundary between the U.S. and Canada-the 49th parallel-to the Pacific Coast, which divided the Oregon Territory in two.

"A straight forward, simple and well-meaning people"

While patrolling the Oregon Trail, the soldiers encountered several wagon trains heading west. This was of some concern to the dragoons because the teams and herds of the wagon trains consumed the grasses as effectively as a prairie fire, leaving little for the dragoons' horses.

One dragoon officer praised the Oregon emigrants as a "straight forward, simple and well-meaning people." He reflected that the trip to Oregon would take a great deal of courage and perseverance. For the most part, the relationship between the emigrants and the dragoons was mutually beneficial. The emigrants enjoyed the dragoons' protection, while the dragoons enjoyed the attention that the emigrant girls lavished on them.

Other pleasures of the trail included the scenery, the buffalo hunts and the welcome break from the daily routine of garrison life. The dragoons experienced the adventures of two trails in 1845. They returned via the Santa Fe Trail in order to escort the wagons heading east that year, completing a march of 2200 miles in just 99 days!

## Original Article

https://www.nps.gov/fosc/learn/historyculture/manifestdestiny.htm

## Chicago Citations

**BIBLIOGRAPHY ENTRY**

National Park Service, Fort Scott National Historic Site. "The Dragoon Expeditions." National Park Service. Last modified April 23, 2020. https://www.nps.gov/fosc/learn/historyculture/manifestdestiny.htm.

**FULL FOOTNOTE**

"The Dragoon Expeditions," National Park Service, last modified April 23, 2020, https://www.nps.gov/fosc/learn/historyculture/manifestdestiny.htm.

**SHORTENED FOOTNOTE**

"The Dragoon Expeditions."

CHAPTER 13 · WEB ARTICLE W13.2

# Permanent Indian Frontier

**National Park Service, Fort Scott National Historic Site**

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|---|---|
| **AUTHOR** | National Park Service, Fort Scott National Historic Site |
| **WEBSITE** | National Park Service |
| **PUBLICATION** | Last updated February 14, 2025 |
| **CHAPTER / PROMPTS** | Chapter 13 \| 13.1 |
| **ARGUMENT ROLES** | 13.1.1 Support; 13.1.2 Support |

## Excerpt · 683 words

From the time that Europeans first landed on the Atlantic shores of North America, their eyes looked west toward the land and its resources. This brought them into direct conflict with the native inhabitants here. Many white settlers tried to make peace and coexist with Native Americans, but in the end, the quest for land, power, and wealth was too great and the Native Americans were forced to leave their homes.

### Indian Removal

One of the proposed solutions to the "Indian problem" was to create a separate homeland or territory for Native Americans. By the 1820s, Presidents Jefferson and Monroe had both proposed that the Eastern tribes should trade their ancestral lands for land west of the Mississippi. They felt that to survive, Native Americans must become "civilized" and learn the ways of the white man. The southern tribes had been moving toward "civilization" for years. They had developed prosperous farming societies. The Cherokees even had a written language and had declared themselves an independent nation with an adopted Constitution.

In 1829, Andrew Jackson became president. He felt Native Americans did not have absolute title to the land, and they could not establish an independent political sovereignty within the United States. On May 28, 1830, Jackson signed the Indian Removal Act. It authorized him to give land west of the Mississippi to native tribes in exchange for their holdings in the East. The United States would "forever secure and guarantee" this land to them and their "heirs or successors," provide compensation for the improvements upon their Eastern lands and aid in their emigration to the West. President Jackson signed into law nearly 70 removal treaties. As a result, 46,000 Native Americans moved west and as many more were under treaty to do so.

### Where to Relocate

The Removal Act of 1830 only addressed the removal, not exact locations or methods to be used. The Intercourse Act of 1834 attempted to control the removal and gave a location for the Indian lands, "that part of the United States west of the Mississippi, and not within the states of Missouri, Louisiana, or the Territory of Arkansas." Due to the cultural acclimation of the Cherokee and other Southern tribes, the government tried to provide them with land acceptable to them. One incentive offered was that the Indian Territory would have representation in Congress. This representation never materialized. Despite attempts to present the removal of Native Americans from their lands as a choice, many tribes resisted, and tribes such as the Cherokee and the Seminole had to be removed by force. The Cherokee suffered a forced march-the "Trail of Tears"- from Georgia to the Indian Territory. US army estimates place the number of Cherokee who died along the route at 1,000, but of the 15,000 individuals involved in the forced removal, 4,000 died in either the stockades awaiting removal, along the trail itself, or during the resettlement process. The Seminole tribe only complied after the U.S. Army fought two costly wars to get them out of Florida.

### Protection of the Frontier

Many of the removal treaties contained the provision that the United States would protect the relocated tribes from hostile whites and other native tribes indigenous to the area. As the removed tribes began to arrive, the white settlers in Missouri and Arkansas in turn demanded protection from the relocated tribes.

This situation led to the development of a series of forts running north and south along the edge of the frontier. Colonel Zachary Taylor favored temporary posts while General Winfield Scott preferred building a few large posts and Secretary of War John Bell wanted more numerous small forts. A compromise was reached, and a combination of large and small forts were manned, from Fort Snelling in Minnesota to Fort Jesup in Louisiana. Fort Scott fell right about in the middle of this line of forts. The purpose of Fort Scott's establishment was twofold. One was to maintain peace between the native tribes and the white settlers by providing a military presence along the military road between Osage land and the state of Missouri. The other reason was to keep peace between the various native tribes.

## Original Article

https://www.nps.gov/articles/pifront.htm

## Chicago Citations

### BIBLIOGRAPHY ENTRY

National Park Service, Fort Scott National Historic Site. "Permanent Indian Frontier." National Park Service. Last modified February 14, 2025. https://www.nps.gov/articles/pifront.htm.

### FULL FOOTNOTE

"Permanent Indian Frontier," National Park Service, last modified February 14, 2025, https://www.nps.gov/articles/pifront.htm.

### SHORTENED FOOTNOTE

"Permanent Indian Frontier."

CHAPTER 13 · WEB ARTICLE W13.3

# The Oregon Territory, 1846

**Office of the Historian, U.S. Department of State**

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|---|---|
| **AUTHOR** | Office of the Historian, U.S. Department of State |
| **WEBSITE** | Office of the Historian, U.S. Department of State |
| **PUBLICATION** | n.d. (retired series) |
| **CHAPTER / PROMPTS** | Chapter 13 \| 13.1 |
| **ARGUMENT ROLES** | 13.1.1 Support; 13.1.3 Support |

## Excerpt · 517 words (complete article)

Along with territorial disputes with Spain and Mexico over the Southwest, the fate of the Oregon Territory was one of the major diplomatic issues of the first half of the 19th century.

The territory became a focus of those who believed that it was the United States' obligation and right to extend its rule and liberties across the North American continent. The Oregon Territory stretched from the Pacific coast to the Rocky Mountains, encompassing the area including present-day Oregon, Washington, and most of British Columbia.

Originally Spain, Great Britain, Russia, and the United States claimed the territory. In 1819, under terms of the Transcontinental Treaty, Spain ceded its claims to the territory to the United States. Shortly thereafter the United States contested a unilateral Russian move to grant its citizens a fishing, whaling, and commercial monopoly from the Bering Straits to the 51st parallel. In 1823 President Monroe promulgated his doctrine, which put Russia on notice that the United States did not accept Russian attempts at monopoly. The U.S. claim was based on the explorations of Lewis and Clark and on the establishment of trading posts set up by John Jacob Astor's Pacific Fur Company, such as Astoria at the mouth of the Columbia River. Great Britain based its claim, in part, on James Cook's exploration of the Columbia River.

As early as 1818 British and American Commissioners had fixed the border between the United States and Canada at the 49th parallel from the Lake of the Woods (Minnesota Territory) west to the Rocky Mountains. The United States had proposed to extend the border along the same parallel to the Pacific Ocean, but Great Britain insisted that the northern border be drawn west to the Columbia River and then follow that river to the ocean. Neither side then budged, but they did agree to postpone the decision for 10 years. In 1827 Washington and London agreed to postpone the issue indefinitely subject to one year's notice by either party. There the matter remained until the Webster-Ashburton Treaty of 1842 partially delineated the northeastern U.S.-Canada border, but left the border of the Oregon Territory unsettled.

By 1843, increased American immigration on the Oregon Trail to the Territory made the border issue a burning one in Congress, where jingoists raised the slogan of “54 degrees 40 minutes or fight.” President James Polk, a supporter of Manifest Destiny with an eye also on the Mexican Southwest and California, was eager to settle the boundary of the Oregon Territory and proposed a settlement on the 49 degree line to Great Britain. British Minister to Washington, Richard Pakenham, and Secretary of State James Buchanan, supported and encouraged by British Foreign Secretary Lord Aberdeen and Senator John C. Calhoun of South Carolina, worked out a compromise. With some minor modifications, which reserved the whole of Vancouver Island to Canada, Great Britain agreed to Polk’s suggestion. The Senate ratified the treaty by a vote of 41-14 on June 18, 1846. A later controversy over the precise boundaries in the Juan de Fuca Strait was resolved by international arbitration in favor of the United States.

## Original Article

https://history.state.gov/milestones/1830-1860/oregon-territory

## Chicago Citations

### BIBLIOGRAPHY ENTRY

Office of the Historian, U.S. Department of State. "The Oregon Territory, 1846." Office of the Historian, U.S. Department of State. Accessed October 20, 2026. https://history.state.gov/milestones/1830-1860/oregon-territory.

### FULL FOOTNOTE

"The Oregon Territory, 1846," Office of the Historian, U.S. Department of State, accessed October 20, 2026, https://history.state.gov/milestones/1830-1860/oregon-territory.

### SHORTENED FOOTNOTE

"The Oregon Territory, 1846."

CHAPTER 13 · WEB ARTICLE W13.4

# Oregon Trail

**William L. Lang**

| | |
|---|---|
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| **WEBSITE** | The Oregon Encyclopedia, Oregon Historical Society |
| **PUBLICATION** | June 2, 2014; updated September 25, 2024 |
| **CHAPTER / PROMPTS** | Chapter 13 \| 13.1 |
| **ARGUMENT ROLES** | 13.1.1 Support |

## Excerpt · 1,043 words

In popular culture, the Oregon Trail is perhaps the most iconic subject in the larger history of Oregon. It adorns a recent Oregon highway license plate, is an obligatory reference in the resettlement of Oregon, and has long attracted study, commemoration, and celebration as a foundational event in the state's past. The Oregon Trail was first written about by an American historian in 1849, while it was in active use by migrants, and it subsequently was the subject of thousands of books, articles, movies, plays, poems, and songs. The trail continues as the principal interest of a modern-day organization—the Oregon-California Trails Association—and of major museums in Oregon, Idaho, and Nebraska.

The Oregon Trail has attracted such interest because it is the central feature of one of the largest mass migrations of people in American history. Between 1840 and 1860, from 300,000 to 400,000 travelers used the 2,000-mile overland route to reach Willamette Valley, Puget Sound, Utah, and California destinations. The journey took up to six months, with wagons making between ten and twenty miles per day of travel. The trail followed the Missouri and Platte Rivers west through present-day Nebraska to South Pass on the Continental Divide in Wyoming, then west along the Snake River to Fort Hall in eastern Idaho, where travelers typically chose to continue due west to Oregon or to head southwest to Utah and California.

In Oregon, the trail passed through the Powder River and Grande Ronde Valleys, over the Blue Mountains, and down the Columbia River to The Dalles, where many rafted their wagons and belongings to the lower Columbia River Valley. After 1846, travelers could make their way overland on the Barlow Road from The Dalles, around Mount Hood, and directly to Oregon City on the Willamette River.

Families and individuals on the trail typically traveled in companies that had twenty-five or more wagons, with one or more individuals providing general leadership. When smaller groups combined, leaders shared duties and the authority for keeping order. Travelers generally walked alongside wagons full of their belongings and foodstuffs. Most used farm wagons that had been modified for long-distance travel, including strengthened axle trees and wagon tongues and wooden bows that arched over the wagon box to support canvas or other heavy cloth covering.

The wagons were ten to twelve feet long, four feet wide, and two to three feet deep, with fifty-inch diameter rear wheels and forty-four-inch front wheels made of oak with iron tire rims. The wagons weighed from 1,000 to 1,400 pounds and carried loads between 1,500 and 2,500 pounds. They had sturdy hardwood box frames that were made as watertight as possible to facilitate stream and river crossings. Most overlanders used two or four yoked oxen to pull their wagons, because they had more endurance and were less expensive than horses or mules and they were less likely to be stolen by Indians. Prudent travelers carried spare parts, grease for axle bearings, heavy rope, chains, and pulleys to keep wagons repaired and to aid in rescue from predicaments.

### Background

From the earliest decades of the Republic, groups of migrants headed west from the established states to stake out homesteads on the western periphery of institutional society. They traveled first across the Appalachian Mountains into the Old Northwest—today's states of Ohio, Indiana, Illinois, and Michigan—then from the South to populate Alabama, Mississippi, Arkansas, Missouri, and Iowa. By the 1820s, some politicians called for resettlement in the Oregon Country, a relatively un-resettled region over which the United States and Great Britain jointly claimed sovereignty by treaty in 1818. The penetration of the fur trade into the region during the 1820s and 1830s, especially on the Upper Missouri and the Columbia river basins, exposed both the natural wealth of the region and the presence of Native populations. During most of this westward movement, overland trails and river passages were essential conduits of people, trade, and institutional expansion.

Long-distance wagon travel had long moved Americans west and south on such trails as the Great Wagon Road in the 1720s, the Wilderness Road in the 1770s, the Natchez Trace in the 1810s, and the Santa Fe Trail in the 1820s. But the Oregon Trail is foremost as the longest and most heavily used route in the nation's resettlement of western North America.

The Oregon Trail developed from the discovery in 1812 of a wagon-safe route over the Continental Divide at South Pass in present-day Wyoming by Robert Stuart, a Pacific Fur Company man returning from Fort Astor. Stuart had gone east from the Columbia, traversing the Blue Mountains, ascending the Snake River in present-day Idaho, and veering south to South Pass and down the Platte River to the Missouri. His route meant, as the *Missouri Gazette* predicted in 1813, that "a journey to the Western Sea will not be considered (within a few years) of much greater importance than a trip to New York."

Fur trader William Sublette made one of the first widely reported wagon trips from South Pass to St. Louis in 1830, and missionaries trekked over western sections of the future Oregon Trail several years later on their way to the Columbia and Willamette Valleys. In the late 1830s, the Oregon Provisional Emigration Society, a Methodist group based in Massachusetts, promoted missionary expeditions to Oregon. Some missionaries, who had been sent west by the American Board of Foreign Missions, praised the Oregon Country's climate and fertile landscape in letters published in eastern newspapers.

Hall Kelley's *General Circular* for prospective emigrants (1831), Thomas Farnham's *Travels in the Western Prairies* (1843), poor economic conditions in the Mississippi Valley, and episodic outbreaks of disease prompted thousands to take a chance on emigration to Oregon. By the early 1840s, the willing and determined, captured by the idea of Oregon, decided to ignore the naysayers and embrace the adventure. They took the risks, as the saying went, "to see the elephant," a nineteenth-century phrase that meant enduring hardships to experience the unbelievable.

By the mid-1840s, emigrants could use trail guides to plan their journey and avoid common mistakes. Lansford Hastings's *Emigrant Guide to Oregon and California* (1845), Overton Johnson's *Route Across the Rocky Mountains* (1846), and Joel Palmer's *Journal of Travels* (1847) were popular and widely distributed accounts of travel on the Oregon Trail.

## Original Article

https://www.oregonencyclopedia.org/articles/oregon_trail/

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#### SHORTENED FOOTNOTE

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CHAPTER 13 · WEB ARTICLE W13.5

# The Religious Origins of Manifest Destiny

**Donald M. Scott**

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| **CHAPTER / PROMPTS** | Chapter 13 \| 13.1 |
| **ARGUMENT ROLES** | 13.1.2 Support |

## Excerpt · 974 words

In 1845, an unsigned article in a popular American journal, a long standing Jacksonian publication, the *Democratic Review*, issued an unmistakable call for American expansionism. Focusing mainly on bringing the Republic of Texas into the union, it declared that expansion represented "the fulfillment of our manifest destiny to overspread the continent allotted by Providence for the free development of our yearly multiplying millions." Thus a powerful American slogan was born. "Manifest Destiny" became first and foremost a call and justification for an American form of imperialism, and neatly summarized the goals of the Mexican War. It claimed that America had a destiny, manifest, i.e., self-evident, from God to occupy the North American continent south of Canada (it also claimed the right to the Oregon territory including the Canadian portion). "Manifest Destiny" was also clearly a racial doctrine of white supremacy that granted no native American or nonwhite claims to any permanent possession of the lands on the North American continent and justified white American expropriation of Indian lands. ("Manifest Destiny" was also a key slogan deployed in the United States' imperial ventures in the 1890s and early years of the twentieth century that led to U.S. possession or control of Hawaii and the Philippine Islands.)

But Manifest Destiny was not simply a cloak for American imperialism and a justification for America's territorial ambitions. It also was firmly anchored in a long standing and deep sense of a special and unique American Destiny, the belief that in the words of historian Conrad Cherry, "America is a nation called to a special destiny by God." The notion that there was some providential purpose to the European discovery and eventual conquest of the land masses "discovered" by Christopher Columbus was present from the beginning. Both the Spanish and the French monarchs authorized and financed exploration of the "New World" because, among other things, they considered it their divinely appointed mission to spread Christianity to the New World by converting the natives to Christianity. Coming later to the venture, the British and especially the New England Puritans carried with them a demanding sense of Providential purpose.

John Winthrop, Governor of the Massachusetts Bay Colony, gave the clearest and most far-reaching statement of the idea that God had charged the English settlers in New England with a special and unique Providential mission. "On Boarde the Arrabella, on the Attlantick Ocean, Anno 1630," Winthrop delivered the blueprint for what Perry Miller has dubbed an "errand into the wilderness" which set the framework for most of the later versions of the idea that "America had been providentially chosen for a special destiny." Winthrop delivered his lay sermon just before he and his fellow passengers disembarked on the shore of Boston harbor, the place, Winthrop proposed, to which God had called them to build up a model Bible commonwealth for Protestants in England and elsewhere to emulate. "Thus stands the cause between God and us. We are entered into Covenant with him for this work, we have taken out a commission," he declared, adding "if the Lord shall please to hear us and bring us in peace to the place we desire, then hath he ratified this Covenant and sealed our Commission and will expect a strict performance of the Articles contained in it." He went on to specify more full what fidelity to this commission entailed: the people of New England must "follow the counsel of Micah, to do justly, to love mercy, to walk humbly with our God. For this end, we must be knit together in this work as one man, we must entertain each other in brotherly affection, we must be willing to abridge ourselves of our superfluities for the supply of others necessities." But it is near the close of the speech that he coined the phrase that has been invoked again and again (most recently by President Ronald Reagan) to express the idea of America's providential uniqueness and destiny. If we are faithful to our mission, "we shall find that the God of Israel is among us, when tens of us shall be able to resist a thousand of our enemies, when he shall make us a praise and a glory, that men shall say of succeeding plantations: the lord make it like New England, for we must consider that we shall be as a City upon a Hill, the eyes of all people upon us."

In the decades following Winthrop's speech most New England divines preached less about New England's divine mission, than issue deep, laments—Jeremiads, subsequent historians have called them—about how far New Englanders had fallen from fulfilling the requirements of their Covenant with God and how all the woes and turmoil that had befallen them—Prince Phillip's war, the loss of New England's charter, the witchcraft phenomenon, droughts and dreadful winters, etc.—were the signs and result of God's wrath over their failings. However, in the midst of what subsequently came to be referred to as "the Great Awakening" (but at the time was considered an extra-ordinary outpouring of God's saving grace) that spread across New England and the other British colonies in the 1740s, the idea that God had chosen America for a special destiny was resurrected in a new form. In the midst of the Awakening, the great New England theologian and revivalist, Jonathan Edwards wrote that "the latter day glory" in short, the Millennium, the "end times" that would bring the second coming of Christ to earth and spread of the King of God across the world, would begin in America. "It is not likely that this work of God's spirit [the revivals] so extraordinary and wonderful," Edwards asserted, "is the dawning, or at least a prelude of that glorious work of God, so often foretold in scripture, which in the progress and issue of it, shall renew the world of mankind."

## Original Article

https://nationalhumanitiescenter.org/tserve/nineteen/nkeyinfo/mandestiny.htm

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### SHORTENED FOOTNOTE

Scott, "Religious Origins of Manifest."

CHAPTER 13 · WEB ARTICLE W13.6

# Imperialism and Migration

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| **CHAPTER / PROMPTS** | Chapter 13 \| 13.1 |
| **ARGUMENT ROLES** | 13.1.3 Support; 13.1.2 Support |

## Excerpt · 915 words

The United States was conceived in imperialism. The origins of U.S. imperial history date back to the expansion of Europeans in their search for Asia and their wars against Asians, beginning with the ancient Greeks and continuing through Portugal and Spain's 15th century voyages of "exploration." That spread engulfed the planet in a world-system within which flowed capital, labor, and culture. The U.S. was a consequence of that world-system in its origin as an extractive colony of shareholders in London.

After gaining independence, the U.S. came to dominate that global, imperial network. The U.S. postcolonial nation-state continued Europe's thrust toward Asia across the American continent, conquering American Indian lands and peoples and territory held by Mexico. The U.S. extended its reach beyond the continent to Puerto Rico, Hawai'i, Guam, Sāmoa, and, for a time, the Philippines. In that way, all of Indian country, a substantial part of Mexico, and entire islands in the Caribbean and Pacific became U.S. territories and its peoples, U.S. subjects. Imperialism, thus, is a central feature of U.S. history.

By *imperialism*, I mean powers over peoples and, often, occupation of their lands and waters outside the borders of a nation-state.[1] Those extra-territorial influences include economic, political, and cultural impositions. Unlike most standard U.S. histories that depict imperialism as largely confined to the 19th century and as an aberration, this chapter maintains that imperialism, as discourses and material relations, is a crucial aspect of the republic's constitution. The U.S. was made in the idea and act of accumulation.

### Seeking Asia

Asia's wealth drew Europeans to Asia. America was an accident of that ancient, imperial pursuit. Christopher Columbus, sponsored by Spain, sailed westward for Asia but instead found America in 1492. Spain retained most of the initiative in colonizing America, a continent named for a human trafficker, Amerigo Vespucci, who, like Columbus, captured and sold American Indians as plunder. Spaniards called the people "indios," or "Indians," because Columbus believed them to be natives of India. In their global expansions, the Spaniards used "indios" to designate native peoples wherever they encountered them in America, Asia, and the Pacific.

The Spaniards soon learned that their lands were not a part of Asia but a "new world," as was described by Pietro Martir de Anghiera in his 1493 account of Columbus's achievement, *De Orbe Novo* (Of the New World). Spanish conquerors captured Mexico with the aid of native allies in 1521 and Peru in 1533. From Mexico City, the representative of the Spanish crown ruled "New Spain," which covered much of the American continent and the islands of the Caribbean. Through violence, enslavement, and disease, in Mesoamerica alone, the pre-Spanish population numbered an estimated 25 million, but by 1650, it fell to 1.5 million.

Extracting gold and silver from the Earth's veins drove the Spaniards' brutal mission of expansion and conquest in America, which built a great empire. Over a 150-year period beginning in 1503, gold from Colombia alone increased the entire European supply by about 20 percent. Silver, however, was the bullion that sustained the Spanish empire, and during the period of 1503 to 1660, more than 7 million pounds of silver from America reached Spain. Besides flowing from New Spain to Spain, silver found its way from Acapulco, Mexico, to Manila in the Philippines.

The Manila galleon trade, begun in 1565, finally connected Spain with Asia. It was American silver extracted by Indians that purchased the goods so coveted by the Spaniards. In the Philippines, American silver bought Chinese silks, satins, and porcelain along with Southeast Asian spices that were transported back to New Spain and from there to Spain and Europe. The trade drew Chinese and Spanish merchants to Manila, which grew into an urban trade hub supported by the agricultural production of Filipino farmers in the rural hinterland.

In 1597, more American silver went to Manila than to Seville, Spain, and from 1570 to 1780, an estimated 4,000 to 5,000 tons of silver were delivered into Asian hands. The Manila-Acapulco galleon trade was so lucrative that merchants in Spain, whose businesses suffered at the hands of merchants in New Spain, petitioned the King to limit the number of ships to two each year. The galleon trade ended in 1815 during the Mexican War of Independence.

Asians, mainly Filipinos and Chinese, moved from Asia to America on board Spanish galleons among the stash of textiles, spices, porcelain, and furniture. Those Asians worked on board the galleons, and Spanish masters enslaved some of them for sale in New Spain until 1700. Spaniards also took Filipina concubines to America, where they produced mestizos who, along with galleon-deserting Asian seamen, blended into Mexico's Indian population. Called "indios" by their Spaniard colonizers, Asians and American Indians alike were of the subject class, and a century later, in 1810 to 1821, when Mexico rose up in rebellion against Spain, hundreds of Mexican Filipinos, including Ramon Fabie, joined the struggle for freedom as soldiers and military commanders.

As early as 1635, Spanish barbers in Mexico City expressed displeasure with their Chinese competitors. In a petition to the viceroy, they asked that he impose a limit of 12 Chinese barbers in the city and expel the rest to outside districts. Like Mexico City, the seaport of Acapulco, called "city of the Chinese," flourished and teemed with American Indians, Chinese, Filipinos, and mestizos. From New Spain, some Filipinos and possibly Mexicans sailed into the Gulf and fished Louisiana's southeastern coast as early as 1765, before the United States declared its independence from England.

## Original Article

https://www.nps.gov/articles/upload/01-Essay-1-Imperialism-and-Migration.pdf

## Chicago Citations

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### SHORTENED FOOTNOTE

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CHAPTER 13 · WEB ARTICLE W13.7

# Invention of Mexico and Mexicans

**María Daniela Thurber, editor and Emmanuel Ortega Rodríguez, contributor**

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| **CHAPTER / PROMPTS** | Chapter 13 \| 13.1, 13.3 |
| **ARGUMENT ROLES** | 13.1.2 Support; 13.3.1 Support |

## Excerpt · 604 words

The history surrounding the ever-fluctuating borders of the U.S. empire has always depended on two concepts: land and race—two concepts complementing and reinforcing each other through the certainty that the supremacy of those with the "visionary" mind to explore, exploit, and expand the empires' lands must reign supreme. In the expansion of the land, the unknown *wilderness* was transformed into the *frontier* and later reconstituted as *The West* to rectify the puritan and entrepreneurial spirit of the nation in its violent nineteenth-century expansion. Art historian Kirsten Pai Buick elaborates:

> "The concept of "wilderness" did not travel with the Puritans from England but was instead born out of the American wild itself... The wilderness was the home of Indians, witches, as well as the devil. It was disorienting – literally be-"wild"-ering – a space that could turn men of God into the very entities that they were born to contest. Moreover, westward expansion was antithetical to New England conceptions of society as an organism rather than an aggregate made up of individuals whose movement threatened the integrity of the organism. Therefore, Puritans developed the concept of the West to distinguish wilderness (a place where moral and spiritual exercises take place) from frontier (movement away from society for primarily commercial purposes)." [1]

By the 1830's, the frontier was inhabited, not only by Native Americans, but also by "Mexicans" effectively solidifying Anglo-Americans as the race divinely chosen to civilize, and develop the West. More specifically, the period surrounding the so-called Mexican American War, or as it is known in Mexico, The North American Invasion, saw the development of Mexicans as an inferior race. This also constitutes a continuation from the Enlightenment-era rendering of Catholic Spanish peoples as inferior to the Protestant British. Rendering those in the way of colonial expansion as inferior is a tactic of empires. Fueled by the desire to expand the U.S. territories from the Atlantic to the Pacific, and in spite of three hundred years of countless broken treaties with Native Americans, U.S. authorities aimed to expand the concept and territorial boundaries of "The West," rendering Mexicans as savages and obstacles to the God-sanctioned expansion of the country. In *Race and Manifest Destiny*, historian Reginald Horsman asserts that:

> "In confronting the Mexicans the Americans clearly formulated the idea of themselves as an Anglo-Saxon race....In the 1830s and 1840s, when it became obvious that American and Mexican interests were incompatible and that the Mexicans would suffer, innate weaknesses were found in the Mexicans. Americans, it was argued, were not to be blamed for forcibly taking the northern provinces of Mexico, for Mexicans, like Indians, were unable to make proper use of the land." [2]

As such, this guide was created to expand the entanglement of how U.S. and Mexican histories and conflicts engendered the concept of "The Mexican." From maps before, during and after the North American Invasion; to expedition journals, and illustrations portraying the newly conquered territories of what today constitutes the Southwest, these sources aim to nuance the concepts of the *frontier* and *border* in conjunction with the invention of "the Mexican" as a political category that authorized expansion and colonization.

The following resources contextualize the U.S. Government inventions of "The Mexican" as America expands West. With the intent of nuancing the ever-expanding boundaries of the empire from ideas of wilderness toward the ideological articulation of

our present political borders.

### Prelude to the Mexican American War

This section looks at documents that give context to the events leading to the invasion of Mexico. These documents map the ways in which people from Mexico began to be viewed as the enemy during the U.S. initial attempts to push West.

## Original Article

https://guides.loc.gov/border-geographies/invention-mexico-mexicans

## Chicago Citations

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**SHORTENED FOOTNOTE**

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CHAPTER 13 · WEB ARTICLE W13.8

# The Latino Crucible: Its Origins in 19th-Century Wars, Revolutions, and Empire

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| **CHAPTER / PROMPTS** | Chapter 13 \| 13.1, 13.2, 13.3 |
| **ARGUMENT ROLES** | 13.1.2 Support; 13.2.2 Support; 13.2.3 Support; 13.3.1 Support; 13.3.3 Support |

## Excerpt · 811 words

The people who now reside in the U.S. and call themselves Latinos have long and complex historical genealogies in this country. Many of them entered the U.S. willingly as immigrants in the 20th century, but just as many were territorially incorporated through America's wars of imperial expansion in the 19th century. As many ethnic Mexican residents of the Southwest correctly explain, "We did not cross a border; the border crossed us." Or as others oft remark, "We are here because you were there." To understand how and why Mexicans, Cubans, and Puerto Ricans, the three groups that today constitute the bulk of American Latinos, first entered the U.S., let us imagine two very separate zones of imperial concentration in the Americas that were born in 1492 with the voyages of Christopher Columbus.

The first area of Spanish imperial settlement in the Americas was in the Caribbean, with Cuba, Puerto Rico, and Hispaniola as its principle sites. The native inhabitants of these islands were few in number at contact, were quickly decimated by European diseases, and labor demands and their labor was just as rapidly replaced by African slaves. This is why the Spanish Caribbean has long had such a strong African cultural tradition and such a distinct racial legacy around issues of blackness. Cuba is by far the largest Caribbean island, almost eleven times bigger than Puerto Rico. For four centuries, Cuba was one of the most productive and prosperous of Spain's colonies. It was the staging point for the early Spanish expeditions of exploration and conquest in the Americas, and it was through the port of Havana that most trade flowed between Europe and Spanish America. Florida and Louisiana by virtue of their geographic proximity and trade were closely tied to Cuba in the colonial period and have remained in its cultural orbit ever since. Of the 50.5 million Latinos now living in the U.S., 12 percent or 6.3 million trace their ancestry back to these initial Spanish settlements in Cuba and Puerto Rico.

The largest group of Latinos in the U.S. is from Mexico, representing about 63 percent of the group's total and numbering 31.7 million by the 2010 census count. In the early 16th century, expeditions of exploration originating in Cuba learned of the wealthy Aztec Empire in the Valley of Mexico with its immense population of some 20 million and its streets putatively paved in gems, silver, and gold. The Spanish conquest of the Aztecs followed in 1521, and when that was completed expeditions of conquest radiated out from Mexico, eventually subjugating the Inca Empire in Peru in 1532. This zone of Hispanic presence in the New World was centered in Mexico City and had a dense indigenous population that supplied its labor needs under both Aztec and Spanish rule. Since relatively few African slaves were ever imported into this colony, its racial politics have focused on mestizaje, or racial mixing between whites and Indians, while largely ignoring its African heritage.

Mexico was tied to Europe through established trade routes between Havana and Veracruz, and connected to Asian markets by the convoys that regularly sailed between Mexico's Pacific port at Acapulco and Manila Bay in the Philippines. For our story about the devolution of Spain's American colonial empire and the genesis of Latinos, we focus only on Mexico's attempts to settle its far north, what became the states of California, Arizona, New Mexico, and Texas. In the 18th century, the mines of northern Mexico were producing the bulk of the world's silver. The settlement of New Mexico, Texas, and California became an imperative for Spain as a way of protecting these operations and thwarting English, French, American, and Comanche threats.

Many Latinos date their origin as subjects or citizens of the U.S. to the period between 1800 and 1900. This essay roughly takes these dates as its temporal beginning and end. The U.S. began 1800 as 16 states with no major territorial possessions. It ended 1900 having fulfilled a continental ambition, with sovereignty over Louisiana, Texas, New Mexico, Arizona, California, Colorado, Utah, Nevada, Oregon, and Alaska, and with an overseas empire that included Cuba, Puerto Rico, the Philippines, Guam, and Hawaii. This rapid expansion gave rise to a legitimating nationalist myth of empire that became popularly known as Manifest Destiny. In its most elemental form, Manifest Destiny asserted that God providentially had chosen the Anglo-Saxon race of the U.S. to bring civilization to inferior, dark peoples, to sweep away monarchy and replace it with democracy, to establish republican forms of government premised on Protestantism, and to generously help benighted pioneers and people who occupied the spaces America coveted. Manifest Destiny was a complex time/space matrix of ideas variously inflected, but unitarily evolutionary and racialist, explaining America's need for new lands, ports, and markets, for secure national borders, and most of all, for its God-ordained destiny to greatness.

## Original Article

https://www.nps.gov/articles/latinothemeempires.htm

## Chicago Citations

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### SHORTENED FOOTNOTE

Gutiérrez, "The Latino Crucible."

CHAPTER 13 · WEB ARTICLE W13.9

# United States Maritime Expansion across the Pacific during the 19th Century

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| **PUBLICATION** | n.d. (retired series) |
| **CHAPTER / PROMPTS** | Chapter 13 \| 13.1 |
| **ARGUMENT ROLES** | 13.1.3 Support |

## Excerpt · 683 words (complete article)

The westward expansion of the United States during the 19th century was not limited to North America, but rather included an ongoing push to establish a stronger U.S. presence in and across the Pacific Ocean. This maritime expansion, driven mostly by commerce, had important implications for U.S. foreign policy.

The appeal of profits to be earned from the China trade served as the initial impetus to motivate U.S. citizens and officials to enter into the Pacific region. China was the source of some of the world's most sought after commodities—tea, porcelain, and silk—and Western merchants had sought access to this highly lucrative trade since at least the 17th century. Following U.S. independence, U.S.-based merchants continued to seek opportunity in China. In February 1784 the Empress of China became the first ship to sail from the United States to China, and in its wake came a steady flow of merchants in search of wealth. During the first decades of the 19th century, U.S. merchants amassed sizable fortunes that they subsequently invested in the development of their homeland. As this trade grew, U.S. traders built a small outpost in China and their interactions with Chinese subjects became more complex and occasionally contentious. The U.S. Government realized that it had to establish formal diplomatic ties in order to protect the interests of its citizens. In the wake of war between Britain and China, and the subsequent opening of diplomatic relations between those two countries, the United States moved to negotiate its own treaty with the Chinese Government. The resulting agreement, the Treaty of Wangxia, was ratified in 1844, and soon thereafter U.S. ministers and consuls took up residence in China's capital and port cities.

Making the journey to China and maintaining the U.S. presence there also required a network of ports extending across the Pacific Ocean, and as such, the China trade soon drove the United States to expand its presence throughout the Pacific region. Perhaps most significantly, when Commodore Matthew Perry sailed his ships to Japan in 1853, his primary motivation was to establish a foothold that would strengthen the U.S. position for trade and diplomacy in the region. In other words, the United States opened relations with Japan in large part to enhance its status in China. On a smaller scale, as U.S. merchants began to stop at many of the Pacific Islands to replenish supplies and acquire goods to trade with Chinese merchants, the U.S. Government appointed consuls to several of these places. For example, consulates were established in Fiji in 1844, Samoa in 1856, and the Marshall Islands in 1881. The U.S. presence in Hawai'i grew out of the need for a substantial base of operations in the Pacific to support U.S. interests in China. Ultimately this need became so great, and the U.S. presence so large, that the United States annexed the islands in 1898.

The process of U.S. maritime expansion in the Pacific eventually became a goal in and of itself, culminating in the acquisition of the Philippines from Spain in 1898. The Spanish-American War began with a dispute over Cuba, but a rising tide of interest in overseas empire among U.S. leaders, such as President William McKinley and future President Theodore Roosevelt, helped expand the conflict to Spanish possessions in Asia. After a swift victory over Spain, the United States set up a temporary military administration to govern the islands and promote their political, economic, and social development. The United States established full colonial rule over the Philippines in 1900 during the Philippine-American War.

U.S. expansion across the Pacific fundamentally changed the global position of the United States. In 1800, the United States held closely to George Washington's advice to avoid "entangling alliances" while pursuing foreign relations based upon trade. By 1900, the United States was a recognized world power with substantial commercial, political, and military interests and territorial holdings throughout the Pacific region. Maritime expansion led to the proclamation of an Open Door policy for China in 1899–1900, and set the stage for much greater involvement in local and regional politics and trade during the early 20th century.

## Original Article

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### SHORTENED FOOTNOTE

"United States Maritime Expansion."

CHAPTER 13 · WEB ARTICLE W13.10

# Mexican Texas

**Arnoldo De León, revised by Jesús F. de la Teja**

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| **WEBSITE** | Handbook of Texas Online, Texas State Historical Association |
| **PUBLICATION** | 1995; revised August 25, 2023 |
| **CHAPTER / PROMPTS** | Chapter 13 \| 13.2 |
| **ARGUMENT ROLES** | 13.2.1 Support; 13.2.2 Support; 13.2.3 Support |

## Excerpt · 1,125 words

The Mexican war of independence (1810–21), one of the rebellions that erupted throughout Latin America to overthrow Spanish colonial rule (*see* SPANISH TEXAS), left Mexico with an array of problems that touched upon events in the far northern Mexican province of Texas. Economically, the country faced devastation in 1821. It stood in marked contrast to the rich colony that had promised great potential towards the end of the colonial era. Money barely circulated. Once-rich mines struggled to regain their former efficiency. Ranches and farms were no longer productive. Entire areas experienced depopulation as people sought out a livelihood elsewhere. Moreover, while social distinctions persisted, as the military and church officials sought the preservation of the colonial order, emerging commercial and local landed interests attempted to introduce liberal modes of governance based on United States and European models.

Unlike the United States, which evolved out of the confederation of individual colonies, each with its own legislative, executive, and judicial systems, and which gave way to the union of states under the constitution of 1787, Mexico had no history of even limited provincial autonomy. Before 1810 all administrative officers beyond the municipal level were royal appointees, there was no separation of powers, and the only representative political institutions were the *cabildos* (municipal councils also called *ayuntamientos*), some of which contained aldermen who had purchased their posts for life and others of whom were elected. Also elected were the magistrates (*alcaldes*) who combined executive and judicial functions at the municipal level. Even the Catholic Church was an arm of the government and responsive to royal interests. Between 1810 and 1821, at the same time that the country experienced rebellion and Spain suffered through the upheavals of the Napoleonic intervention and the reestablishment of Bourbon rule afterwards, the viceregal government was caught between reform and reaction. Ultimately, it was the revolt of a Spanish expeditionary force assembling in Cadiz and the re-imposition of the Constitution of 1812, which made Spain a constitutional monarchy, that created an opening for Mexico to declare its independence. Despite, or perhaps precisely because of its frontier situation, Texas was profoundly influenced by the events of the decade (*see* TEXAS IN THE AGE OF MEXICAN INDEPENDENCE), its circumstances giving it an outsized role in the first decade of independence.

Following a brief period of uncertaintity, Agustín Iturbide engineered his election as emperor of a Mexican empire that conformed to the jurisdiction of the Viceroyalty of New Spain in today's Mexico, Central America, and the southwestern United States. The failure of the monarchical experiment (1822–23) nevertheless left a lasting influence in Texas, which through the efforts of Moses and Stephen F. Austin was opened to foreign settlement through the Imperial Colonization Law. Growing interest in Texas land by American, Mexican, and European speculators led the constituent congress that replaced Iturbide's regime to issue a new colonization law in 1824 that left most matters regarding settlement and immigration in the hands of the states. A year later, the state of Coahuila and Texas passed its own colonization law, which became the basis for all land colonization contracts after Austin's initial agreement (*see* MEXICAN COLONIZATION LAWS). Ultimately, disagreements between state and national authorities and between Texans and Coahuilans over land matters became an important contributor to the Texas Revolution.

Equally important to the development of the independence movement in Texas a decade later was the adoption of the Constitution of 1824, which transformed Mexico into a federal republic. With the failure of the monarchists, the political interests of provincial elites gained the upper hand in the constituent congress of 1823–24, where men such as Lorenzo de

Zavala advocated a national compact similar in the relationship between the national and state governments to what the United States had experimented with under the Articles of Confederation. Unlike the United States, where the previously autonomous colonies joined together to create the union, in Mexico the process was much more complex, with the congress itself giving birth to some states. In the case of the sparsely-settled northern frontier provinces, their status would hinge on negotiations among bordering jurisdictions. Eventually, both California and New Mexico obtained only territorial status, which, as in the case of the United States, meant that they were under the direct supervision of the national government.

Under the old regime, Texas had been part of a collective known as the Eastern Interior Provinces, which included Tamaulipas, Nuevo León, Coahuila, and Texas. Even though Texas sent representatives to the first and second constituent congresses—Father Refugio de la Garza and Erasmo Seguín respectively—the expectation was that the province would form part of a larger super state. As Tamaulipas and Nuevo León demanded and were granted separate statehood, Texas became reconciled to joining Coahuila in forming the territorially largest but also the poorest and most sparsely-settled state in the Mexican union. As Anglo-American immigration increased and Mexican national politics remained unstable and often violent, the union between Texas and Coahuila became increasingly unstable and became yet another important factor in the independence movement.

The Constitution of 1824 affected the development of Texas in other ways. Under its terms, Mexico remained a Catholic nation, and, although there was freedom of conscience, public worship was restricted to Catholicism. Also, while slavery and the slave trade were debated in the congress, neither the colonization law nor the constitution addressed the issue, which left the legality of slavery ambiguous. Both Miguel Hidalgo and José María Morelos had decreed abolition during the 1810s, but the status of those declarations was unsettled. The Baron de Bastrop succeeded in keeping things ambiguous by ensuring that the state colonization law of 1825 merely stated that “the new settlers as regards the introduction of slaves shall subject themselves to the existing laws, and those which may hereafter be established on the subject” (art. 46). Lastly, congress reserved to itself the authority to create states out of territories or allow new states to be carved from existing ones but did not specify the process by which such changes would be made. In matters of citizenship and electoral processes, the Constitution of 1824 left matters in the hands of the states, except for declaring that the president and vice president would be elected by the legislatures of the states rather than by the people directly and that it had the authority to create a uniform process of naturalization. With regard to the public domain, the national government retained control only over federal territories and made the national government’s permission necessary for the distribution to foreigners of land along the border with the United States and along the coast. In one way or another all these issues would become points of contention as the population of Texas swelled with immigrants from the United States.

## Original Article

https://www.tshaonline.org/handbook/entries/mexican-texas

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### SHORTENED FOOTNOTE

De León, "Mexican Texas."

CHAPTER 13 · WEB ARTICLE W13.11

# Law of April 6, 1830

**Curtis Bishop**

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| **PUBLICATION** | 1952; revised May 4, 2016 |
| **CHAPTER / PROMPTS** | Chapter 13 \| 13.2 |
| **ARGUMENT ROLES** | 13.2.1 Support; 13.2.3 Support |

## Excerpt · 375 words (complete article)

The Law of April 6, 1830, said to be the same type of stimulus to the Texas Revolution that the Stamp Act was to the American Revolution, was initiated by Lucas Alamán y Escalada, Mexican minister of foreign relations, and was designed to stop the flood of immigration from the United States to Texas. The law came as a result of the warning and communications of Manuel de Mier y Terán, who made fourteen recommendations directed toward stimulating counter-colonization of Texas by Mexicans and Europeans, encouraging military occupation, and stimulating coastal trade. The law, reasonable from the Mexican point of view, authorized a loan to finance the cost of transporting colonists to Texas, opened the coastal trade to foreigners for four years, provided for a federal commissioner of colonization to supervise empresario contracts in conformity with the general colonization law, forbade the further introduction of slaves into Mexico, and apparently was intended to suspend existing empresario contracts. Article 11, the one most objectionable from the Texan viewpoint, not proposed by Mier y Terán but by Alamán, was intended to prohibit or limit immigration from the United States. Mier y Terán became federal commissioner of colonization despite his doubts concerning the wisdom of Article 11 and of the articles concerning slavery and passports. Texas colonists were greatly disturbed by news of the law; Stephen F. Austin tried to allay popular excitement but protested the law to Mier y Terán and to President Anastasio Bustamante. By his manipulation of the interpretation of articles 10 and 11, Austin secured exemption from the operation of the law for his contract and for that of Green DeWitt, but the measure shook his belief in the good will of the Mexican government. Subsequently he was able to secure the repeal of Article 11. Application of the law slowed immigration, voided contracts that had been awarded but not carried toward fulfillment, and suspended two active enterprises: the Nashville or Robertson's colony and the Galveston Bay and Texas Land Company. Enforcement of the provisions of the law concerning establishment of customhouses resulted directly in the Anahuac Disturbances of 1832 and indirectly in the battle of Velasco, the Convention of 1832 and 1833, and the accumulation of grievances that helped lead to the revolution.

## Original Article

https://www.tshaonline.org/handbook/entries/law-of-april-6-1830

## Chicago Citations

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**SHORTENED FOOTNOTE**

Bishop, "Law of April 6."

CHAPTER 13 · WEB ARTICLE W13.12

# Texas Revolution

**Eugene C. Barker and James W. Pohl, revised by Mary L. Scheer**

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| **WEBSITE** | Handbook of Texas Online, Texas State Historical Association |
| **PUBLICATION** | 1952; revised May 21, 2025 |
| **CHAPTER / PROMPTS** | Chapter 13 \| 13.2 |
| **ARGUMENT ROLES** | 13.2.1 Support; 13.2.2 Challenge; 13.2.3 Challenge |

## Excerpt · 1,168 words

The Texas Revolution began in October 1835 with the battle of Gonzales and ended on April 21, 1836, with the battle of San Jacinto, but earlier clashes between government forces and frontier colonists make it impossible to set dogmatic limits in terms of military battles, cultural misunderstandings, and political differences that were a part of the revolution. The seeds of the conflict were planted during the last years of Spanish rule (1815–21) when Anglo Americans drifted across the Neutral Ground and the eastern bank of the Red River into Spanish territory, squatted on the land, and populated Spanish Texas. More alarming than these illegal residents, who only wanted to "settle and stay," were filibusters such as Philip Nolan, who commandeered portions of Spanish lands for personal gain and political capital. During the fading years of New Spain, its ruling council, the Cortes, worried about securing their far northern frontier and began to encourage foreign immigration to Texas, including Anglo American colonization. One who was eager to take advantage of a change in Spanish policy was Moses Austin, who received a commission from the Spanish governor of Texas to bring 300 families and establish a colony, thereby rebuilding some of his lost fortune associated with the Panic of 1819. Upon his death in 1821, his son and heir Stephen Fuller Austin fulfilled his father's vision and became the first empresario of Texas.

During this time the political situation in New Spain was unsettled due to nationalist movements and Napoleonic disturbances in Europe, ultimately resulting in the end of Spanish rule and the beginning of independence for Mexico. Amid the political chaos, changes by the new Mexican congress concerning immigration reflected their belief that colonization was essential to frontier defense and immigration by Europeans and Anglo Americans should be encouraged. The passage of the Imperial Colonization Law of 1823, although voided after the collapse of Augustin de Iturbíde's empire, left Austin's grant intact--the only one granted under this law. The Baron de Bastrop then began to issue land grants to Austin’s “Old Three Hundred” families as they became known.

The next year, on October 4, 1824, the Mexican congress formulated a new Mexican Constitution that emphasized a federal government, which appealed to the Texans, rather than a centralist one. The new legislature joined the two former Spanish provinces of Coahuila and Texas into one until the population of Texas was sufficient for a separate state. On March 24, 1825, the new state legislature of Coahuila and Texas passed the Colonization Act of 1825, providing generous terms to prospective colonists, setting off an immediate “Texas land rush." The majority of immigrants arrived into Mexican Texas largely from the southern United States, many with their slaves in tow. Most established farming communities and were peaceful, law-abiding citizens. As Anglo influence steadily increased during the 1820s, however, Mexican leaders held the conviction that the expansionist United States government was not above making use of the colonists to cause trouble in the hope of acquiring Texas by purchase or revolution. The recent Fredonian Rebellion in 1826 served as evidence for their growing suspicions of Anglo Americans. Led by Haden Edwards and Benjamin W. Edwards in East Texas, the rebels attempted to inaugurate a war for independence, proclaiming the Republic of Fredonia. The ill-fated movement disintegrated when faced with an overwhelming Mexican force. The next year suspicions aroused by the Fredonian Rebellion led to Manuel de Mier y Terán’s inspection of the province. He issued an alarming report, which asserted that Mexico’s hold on Texas was precarious. He found that Anglos heavily outnumbered Mexicans in areas east of San Antonio and were only nominally loyal to Mexico. Terán presciently concluded that Mexico must act immediately or “Texas could throw the whole nation into revolution.” As a result, the Mexican government acted by passing the Law of April 6, 1830. One provision was to forbid Anglo-American immigration and another

was to prohibit the further introduction of slaves. Although the law angered most colonists, it only slowed immigration and the Peculiar Institution, but did not curb them.

Other provisions of the law, however, led to early disturbances in 1831–32 over issues of custom duties, land titles, and military authority over civilians. Confrontations between Mexican troops and Anglo colonists erupted at Anahuac and Velasco over these concerns, as well as the status of runaway slaves. In the Anahuac disturbances, the Anglo-American attack was led by John Austin and was precipitated by indiscretions by the commander, John (Juan) Davis Bradburn. Fighting also broke out at Velasco, where Col. Domingo de Ugartechea attempted to prevent reinforcements and artillery from sailing to Anahuac. Both he and the insurgents suffered severely (*see* VELASCO, BATTLE OF). The battle of Nacogdoches resulted in the Mexican garrison's evacuation after only nominal resistance; and Col. José Francisco Ruiz, a native of San Antonio, abandoned Fort Tenoxtitlán without being attacked.

During the revolutionary period Native American groups populated and controlled portions of Texas. Amounting to approximately 20,000, they far outnumbered the Anglo settlers and Tejanos—native-born Mexicans living in Texas. Pressure from Anglo settlements during the 1820s and 1830s led to encroachments on tribal lands and frequent raids by the Comanche and other bands. Some groups, such as the Cherokees, were active diplomatically with both Mexico and Anglo settlers and played both sides during the Texas Revolution. Rumors and evidence of collusion between the Cherokees and their Mexican allies led Texans to fear an Indian uprising or an alliance with Mexico. The Tonkawas, living along the Brazos and Colorado rivers, allied themselves with the Texans and served as guides and fighters against more hostile Indian groups. Other tribes, such as the Wichita, however, tried just to avoid entanglements with the developing crisis.

Amid disturbances in Texas, Antonio López de Santa Anna was leading a liberal revolution in Mexico against centralist President Anastacio Bustamante. The colonists who participated in these early events opposed violations of the Constitution of 1824 and declared that they were merely cooperating by expelling Bustamante's garrisons from Texas. Actually, the great mass of the colonists had no quarrel with Mexico or Mexicans. As a gesture of loyalty, they offered the Turtle Bayou Resolutions as explanation of their position, assuring authorities of their support of Federalist Santa Anna and the Constitution of 1824. They wanted no war with Mexico. Tranquility seemed restored when Federalist general José Antonio Mexía, learning of the troubles in Texas, arrived at the Brazos River with a regiment of 400 soldiers. With him was Stephen F. Austin, who had been in Mexico meeting with the state legislature in Saltillo. The empresario spent numerous hours en route, assuring Mexía that the colonists were not intent on rebellion. After enjoying appropriate hospitalities, Mexía sailed away without any bloodshed. One result of his visit was serious. It had compelled Austin to abandon his policy of aloofness from national party contests. The summer of 1832 closed with Santa Anna’s success in Mexico and all Mexican garrisons expelled from Texas except those at San Antonio and Goliad.

## Original Article

https://www.tshaonline.org/handbook/entries/texas-revolution

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### SHORTENED FOOTNOTE

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CHAPTER 13 · WEB ARTICLE W13.13

# Slavery

**Randolph B. Campbell**

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| **PUBLICATION** | 1996; revised July 27, 2023 |
| **CHAPTER / PROMPTS** | Chapter 13 \| 13.2 |
| **ARGUMENT ROLES** | 13.2.2 Qualify; 13.2.1 Support |

## Excerpt · 1,063 words

Texas was the last frontier of chattel slavery in the United States. In the fewer than fifty years between 1821 and 1865, the "Peculiar Institution," as Southerners called it, spread over the eastern two-fifths of the state, an area nearly as large as Alabama and Mississippi combined. Slavery thus linked Texas inextricably with the Old South.

There were a few slaves in Texas while it was a Spanish province, but slavery did not really become an institution of significance in the region until the arrival of Anglo□American settlers. The original empresario commission given Moses Austin by Spanish authorities in 1821 did not mention slaves, but when Stephen F. Austin was recognized as heir to his father's contract later that year, it was agreed that settlers could receive eighty acres of l*and* for each enslaved person they brought to the colony. The motivation for bringing slaves to Texas was primarily economic – using their labor to grow cotton, which was by 1820 the most valuable commodity in the Atlantic world. To Anglo-American slave owners slavery was a practical necessity in Texas – the only way to grow cotton profitably on its vast areas of fertile land. Stephen F. Austin made this clear in 1824: “The principal product that will elevate us from poverty is cotton,” he wrote, “and we cannot do this without the help of slaves.” (*see* BLACKS IN COLONIAL SPANISH TEXAS and ANGLO-AMERICAN COLONIZATION)

Most of the early slaveholders owned only a few enslaved people, but a few brought enough to build plantations immediately. For example, Jared Groce arrived from Alabama in 1822 with ninety slaves and set up a cotton plantation on the Brazos River. The first census in Austin's colony in 1825 showed 443 slaves in a total population of 1,800.

Even as Austin’s colonists began to establish slavery on the lower Brazos and Colorado rivers, the independence of Mexico cast doubt on the future of the institution in Texas. Leaders of the Mexican nation tended to oppose slavery, in part from revolutionary idealism and in part because slavery was not essential to the new nation’s economy, and therefore regularly threatened to limit or abolish the institution. The Federal Constitution of 1824 did not mention slavery, but the 1827 Constitution of the State of Coahuila and Texas prohibited the further introduction of slaves and declared all children born thereafter to slaves already in the state to be free at birth. Anglo□American settlers were very alarmed, but within a year the State Congress of Coahuila and Texas, some of its Tejano leaders impressed by the pleas of Austin's colonists concerning the need for labor and others distracted by debates over different issues, passed a law that used the familiar practice of indentured servitude to permit the bringing in of slaves under a different name. Before being brought to Texas, enslaved persons signed contracts with their masters by which they technically became free but, in return for their "freedom," agreed that they and their children would, in effect, be indentured to the master for life. In 1829, President Vicente Guerrero issued a decree abolishing slavery in all of Mexico, but within months he exempted Texas from that order. In short, from 1821 to 1836, the national government in Mexico City and the state government of Coahuila and Texas often threatened to restrict or destroy African American servitude, but always allowed settlers in Texas a loophole or an exemption.

Although Mexican governments did not adopt any consistent or effective policy to prevent slavery in Texas, their threats worried slaveholders and possibly retarded the immigration of planters from the Old South. In 1836 Texas had approximately 5,000 enslaved persons in a total population estimated at 38,470. The number likely would have been larger but for the attitude of the Mexican federal and state governments.

Disputes over slavery did not constitute an immediate cause of the Texas Revolution, but the institution was always in the background as what the noted Texas historian Eugene C. Barker called a "dull, organic ache." In other words, it was an underlying cause of the struggle in 1835□1836. Moreover, once the revolution came, slavery was very much on the minds of those involved. Texans worried constantly that the Mexicans were going to free their slaves or at least cause servile insurrection. And when they declared independence and wrote a constitution for their new republic, they made every effort, in the words of a later Texas Supreme Court justice, to "remove all doubt and uneasiness among the citizens of Texas in regard to the tenure by which they held dominion over their slaves." Section 9 of Constitution of the Republic of Texas read in part as follows:

All persons of color who were slaves for life previous to their emigration to Texas, and who are now held in bondage, shall remain in the like state of servitude... Congress shall pass no laws to prohibit emigrants from bringing their slaves into the republic with them, and holding them by the same tenure by which such slaves were held in the United States; nor shall congress have the power to emancipate slaves; nor shall any slave holder be allowed to emancipate his or her slave without the consent of congress, unless he or she shall send his or her slave or slaves without the limits of the republic.

Thus, slavery was not the immediate cause of the revolution, but the institution was always there as an issue, and the revolution made it more secure than ever in Texas.

Slavery expanded rapidly during the period of the republic. By the end of 1845, when Texas joined the United States, the state was home to at least 30,000 enslaved people. After statehood, in antebellum Texas, slavery grew even more rapidly. The census of 1850 reported 58,161 slaves, 27.4 percent of the 212,592 people in Texas, and the census of 1860 enumerated 182,566 slaves, 30.2 percent of the total population. Slaves were increasing faster than the population as a whole.

The great majority of slaves in Texas came with their owners from the older slave states. Sizable numbers, however, came through the domestic slave trade. New Orleans was the center of this trade in the Deep South, but there were slave dealers in Galveston and Houston, too. A relatively few slaves, perhaps as many as 2,000 between 1835 and 1865, came through the illegal African trade.

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https://www.tshaonline.org/handbook/entries/slavery

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### SHORTENED FOOTNOTE

Campbell, "Slavery."

CHAPTER 13 · WEB ARTICLE W13.14

# James K. Polk: Foreign Affairs

John C. Pinheiro

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|---|---|
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| PUBLICATION | n.d. |
| CHAPTER / PROMPTS | Chapter 13 \| 13.3, 13.1 |
| ARGUMENT ROLES | 13.3.1 Challenge; 13.3.2 Support; 13.1.3 Challenge |

## Excerpt · 1,052 words

During James K. Polk's presidency, foreign policy revolved around the U.S. desire for additional territory in North America. Even before the Revolutionary War, Americans had looked westward, and in the early years of the republic the United States had expanded its borders toward and then beyond the Mississippi River. Whether through a congressional joint resolution, negotiations, purchase, or war, President Polk by the end of his term intended for the United States to stretch from coast to coast, firmly in possession of the Oregon Territory and California.

### Annexation of Texas

President Tyler, in the last months of his term, boldly sent a joint resolution to Congress for the annexation of Texas. A resolution required only a simple majority vote in both houses rather than the two-thirds majority in the Senate that is normally required for a treaty. Tyler sent Congress a resolution because he knew that the two-thirds vote in the Senate was not to be had. Congress passed the joint resolution a few days before Polk's inauguration in March 1845. This allowed Texas to bypass the territorial stage and come into the union as the fifteenth slave state in December 1845. Although Mexico had promised war against the United States if it annexed Texas, no war followed. But when Texas moved its militia into disputed territory west of the Nueces River, thereby staking a claim to the Rio Grande as its southern border, Mexico responded by breaking off diplomatic relations with the United States.

### Oregon

During the 1844 campaign, Polk had pledged to settle the boundary of the Oregon Territory with Britain, and once in office, he moved quickly to acquire sole title to Oregon. His supporters in the 1844 campaign had promoted the occupation of the entire territory, as encapsulated in their slogan (which Polk did not disavow), "54°40' or Fight." Both Great Britain and the United States had jointly occupied this region since 1818, and it was clear that Polk wanted the west coast of North America for the United States, possibly even including Mexican-controlled California. In the beginnings of negotiations, Polk bluffed to Britain that he wanted all the territory up to 54°40'. In the end, the President's shrewd but unseemly bluster earned him a compromise rather than a war with the British. In spite of his own supporters' more extreme demands, Polk agreed to a boundary at the 49th parallel, giving the United States present-day Oregon, Idaho, and Washington, as well as control of the Columbia River.

### War with Mexico

Polk now turned the entirety of his attention toward Mexico. Much was at stake in the area. Great Britain had been discussing with Mexico for months the possibility of buying California. The British previously had offered to support the independence of Texas in return for the abolition of slavery in the area. Even before settling the Oregon question, Polk had moved troops into the disputed territory just north of the Rio Grande and sent a special envoy, John Slidell, to Mexico. Slidell carried with him a U.S. offer to buy California as well as plenipotentiary powers to settle disputed border claims. Slidell's arrival in Mexico triggered a revolt against the Mexican president—who had indicated a willingness to deal with Slidell—by army officers who pledged to recover the "stolen province of Mexico."

In late April 1846, Mexican troops crossed the Rio Grande and killed eleven U.S. soldiers. In response, Polk requested a declaration of war from Congress, arguing that Mexicans had "shed the blood of our fellow-citizens on our own soil." By May 13, 1846, both nations officially were at war. Most Whigs opposed the war, as did Calhoun, but all remembered how the nation had

turned on the Federalists following their opposition to the War of 1812. Hence, only fourteen members of the House and two senators voted against the declaration. Abraham Lincoln, a first-term Whig congressman from Illinois, condemned the war as an "unconstitutional" and aggressive act, even challenging Polk to take him to Texas and show him "the spot" on which Mexicans had shed American blood. This position proved unpopular with his western constituents and figured into his decision not to run for a second term.

Within seven months, the U.S. Army completely defeated the much larger Mexican Army on its own soil in three triumphant military campaigns. The first phase was conducted by General Zachary Taylor's four-thousand-man army in northern Mexico. Engaging much larger forces, Taylor earned the nickname "Old Rough and Ready" for his victories at Palo Alto and Resaca de la Palma and, after being reinforced by several thousand volunteers, his capture of Monterrey in September 1846.

Phase Two commenced under General Stephen Watts Kearny, who meanwhile led an army of fifteen hundred regulars and fighting frontiersmen west from Fort Leavenworth to Santa Fe in New Mexico, occupying it on August 18, 1846. Half of Kearny's army then fought their way through the Mexican province of Chihuahua, marching three thousand miles to link up with Taylor's army at Monterrey in the spring of 1847. The other half of Kearny's forces joined American settlers in California under the command of Captain John C. Fremont, who had captured Sonoma and declared California an independent republic. Their flag, displaying the picture of a grizzly bear, gave rise to the term "bear-flag revolt."

The third phase of the war had all the markings of a comic opera. In July 1846, Polk provided safe passage into Mexico for a former Mexican army officer who had been overthrown in a palace coup in 1844 and exiled to Cuba—the infamous General Antonio López de Santa Anna. Commander of Mexican forces at the Battle of the Alamo, Santa Anna was a man hated by Texans and distrusted by his own countrymen. He promised Polk that he would make peace on American terms in return for a payoff of $30 million. When Santa Anna arrived in Mexico City, however, the new government named him supreme commander of the army and president of the republic. He immediately raised a new army and marched north in early 1847 to attack Taylor's force at Monterrey. In the meantime, Polk was growing increasingly worried about Taylor's popularity. Angry with the general for having declared an armistice without his approval after capturing Monterey, Polk transferred half of Taylor's army to General-in-Chief Winfield Scott, whom Polk ordered to lead an invasion of central Mexico.

## Original Article

https://millercenter.org/president/polk/foreign-affairs

## Chicago Citations

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### SHORTENED FOOTNOTE

Pinheiro, "James K. Polk."

CHAPTER 13 · WEB ARTICLE W13.15

# A Brief Overview of the Mexican-American War, 1846-1848

**American Battlefield Trust**

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| **AUTHOR** | American Battlefield Trust |
| **WEBSITE** | American Battlefield Trust |
| **PUBLICATION** | May 14, 2020; updated January 12, 2026 |
| **CHAPTER / PROMPTS** | Chapter 13 \| 13.3 |
| **ARGUMENT ROLES** | 13.3.1 Support |

## Excerpt · 664 words (complete article)

Two long years had passed after the initial shots were fired, sparking the Mexican American War in 1846. After United States forces under General Winfield Scott captured and occupied Mexico City in 1848, Mexican President Antonio López de Santa Anna surrendered. Thus, ending the war which began as a border dispute.

The peace treaty between the two nations was deliberated and signed in the town of Guadalupe-Hidalgo, located in Mexico City today. The treaty sought to end the war with the peaceful transfer of disputed lands and the formal recognition of the United States' annexation of Texas by the Mexican government. The recognition of Texas as American soil was crucial to the treaty deliberation as the war began over the military presence of Mexican forces within the Texas region. As such, the American people believed that the Mexican army was attempting to retake Texas after the state's successful revolution against Mexico.

However, despite Mexican President Santa Anna having signed a treaty with the Republic of Texas, the federal government of Mexico refused to acknowledge the treaty as valid and still considered Texas a state in the Mexican Republic. The subsequent pleas for annexation by the Texans to the United States prompted fears of sparking war, which it inevitably did. Furthermore, the proliferation of slavery in Texas worried abolitionists who feared that the annexation of Texas was going to upset the balance of "Free" and "Slave" states set forth in the Missouri Compromise. As a result, Whigs and the northern American population were opposed to war with Mexico while the southern slave states advocated for annexation and even war.

Initially, United States President James Polk wanted to first purchase land from Mexico that later became parts of California, New Mexico, Arizona, Nevada, Colorado, Utah, Wyoming, and Oklahoma. Additionally, Polk hoped to also establish the Texan border along the Rio Grande. However, the Mexican government rejected this offer. As a result, President Polk ordered American General Zachary Taylor to establish a military camp beyond the Nueces River, which was considered by the Mexican government as the southern-most border of Texas. When the Mexican military finally attacked Taylor's army, war was declared, and Polk forced westward expansion through conflict with Mexico.

Even though the war was opposed by many Americans, Americans rushed to volunteer and fight. As a result, many soldiers of the United States Army and later Confederate Army gained combat experience, in part due to their practical experience in the Mexican American War. Furthermore, many military officers that had graduated West Point fought side-by-side with their future adversaries during the war in Mexico.

After two years of fighting, Mexico finally capitulated. The Mexican government sought to make peace with the United States who still wished to purchase the land outlined before the war began. Although, this time, the asking price for the land was considerably less than before. At almost $15 million, the price for the land known as the "Mexican Cession" almost decreased by 50%. Additionally, the treaty stipulated that the Rio Grande was to be the southern-most border between the United States and Mexico. However, once the treaty arrived at the United States Senate for ratification, Jefferson Davis and other Southern Democrats began advocating for further territorial expansion into Mexico across the Rio Grande. Nevertheless, the small contingent of expansionist Southern Democrats was overruled by the rest of the Senators who made minor changes to the treaty before ratifying it. Ultimately, the treaty brokered by Nicholas Trist was ratified in the United States Senate 38-14 on March 10, 1848, with the treaty becoming effective May 30, 1848.

While the Treaty of Guadalupe-Hidalgo did not end the purchase of land between the United States and Mexico, it solidified the American ideals of Manifest Destiny. Once the treaty was effective, the United States of America and its people had the ability to migrate and live on both coasts of the continent. Thus, formalizing the American ability to live and prosper “from sea to shining sea."

## Original Article

https://www.battlefields.org/learn/articles/mexican-war-overview

## Chicago Citations

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### SHORTENED FOOTNOTE

"Brief Overview."

CHAPTER 13 · WEB ARTICLE W13.16

# The Mexican-American War

**National Park Service**

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| **AUTHOR** | National Park Service |
| **WEBSITE** | National Park Service |
| **PUBLICATION** | Last updated August 4, 2022 |
| **CHAPTER / PROMPTS** | Chapter 13 \| 13.3 |
| **ARGUMENT ROLES** | 13.3.1 Support |

## Excerpt · 838 words (complete article)

On May 13, 1846, the United States declared war on Mexico, beginning the Mexican-American War. The Mexican-American War is one of the least known pivotal moments in US History. It paved the way for so many other important events, from the expansion and dispossession of indigenous people, the California Gold Rush, and American Civil War. It added the states of California, Texas, New Mexico, Utah, Arizona, Nevada, and parts of Colorado and Wyoming to the United States. American success in the war solidified belief in the concept of Manifest Destiny, confirming the idea that the United States had been destined by divine entities to expand into a continental empire resembling the present-day nation. For proponents of slavery and abolition, the new territory provided a source of conflict over whether slavery would expand and continue in the West. For the major military leaders of the Civil War on both the Confederate and Union sides, including such Pig War figures as Winfield Scott, George Pickett, and William Harney, it was a crucible in which their skills were tested, their tactics were formed, and they built the bonds of camaraderie that they relied on during the Civil War.

The immediate cause of the Mexican-American War was a disputed boundary between the United States and Texas on the Nueces Strip. Mexico did not recognize Texas as legitimate American territory and Texas admission to the United States antagonized Mexican officials and citizens. Rather than ameliorate this problem, President Polk intentionally worked to aggravate Mexico and provoke a war. On January 13, 1846, Polk ordered American forces into deeply disputed territory. In April, an army of approximately 4,000 men lead by General Zachary Taylor entered the Nueces Strip, a contested territory that Mexico and many Americans regarded as never having been a part of Texas. Polk knew this action would antagonize Mexican military forces stationed within sight of Taylor's army at Matamoros. Colonel Hitchcock, who served with Zachary Taylor's army, could see the real intention of his deployment from his vantage point on the front lines: "We have not one particle of right to be here. It looks as if the government sent a small force on purpose to bring on a war, so as to have a pretext for taking California and as much of this country as it chooses."

On April 9, Taylor's army deployed the bulk of its artillery within striking distance of the 16,000 person city of Matamoros, Mexico. The US Navy then cut Matamoros off from the Gulf of Mexico, creating a blockade by land and water of the Mexican civilians and soldiers just across the Nueces River from Taylor's forces. On April 24, Mexican forces crossed the Matamoros River to break the blockade; Taylor sent a small force to respond, and the Mexican Army opened fire, killing 11 American soldiers. The site of this battlefield is now preserved as Palo Alto Battlefield National Historical Park.

When word reached Washington, D.C., two weeks later, President James K. Polk informed congress that: "The cup of forbearance had been exhausted even before the recent information from the frontier of the Del Norte [Rio Grande]. But now, after reiterated menaces, Mexico has passed the boundary of the United States, has invaded our territory and shed American blood upon the American soil. She has proclaimed that hostilities have commenced, and that the two nations are now at war.

Prior to these actions, America was deeply divided about the prospect of war with Mexico. Abraham Lincoln, then a US Congressman tried to challenge the war by demanding proof that the spot where the war began was on US soil. Transcendentalist Henry David Thoreau engaged in civil disobedience, going to jail because he refused to pay federal taxes that supported the war."

Most Americans, however rallied around the flag. Many individuals enlisted in the army, swelling the small US army with new recruits. These recruits were motivated by more than just patriotic feelings. As American forces rapidly defeated Mexican forces,

sexual assaults, looting, and violence toward civilians and surrendered Mexican forces were common. At the highest level, Commanding General Winfield Scott forced Mexican authorities to pay massive ransoms that supported underfunded American troops in the field. Historian Amy Greenberg has also shown how racist attitudes that saw Mexicans as racial inferiors and anti-Catholic bigotry enabled American soldiers and leaders to justify extreme violence and what we would now regard as war crimes against Mexican forces and civilians.

The US military was wildly successful and used a combination of innovative strategy, competent officership, luck, and brutality to achieve victory. American forces captured Mexico City within 16 months of the war's beginning and expeditionary forces also fought battles in California and New Mexico that enabled the seizure of vast tracts of territory. As the Mexican-American War came to an end, gold was discovered in California, causing a massive population surge on the West Coast that ensured continued American sovereignty over the entire West Coast and paved the way for the boundary conflict in the San Juan Islands.

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https://www.nps.gov/places/the-mexican-american-war.htm

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### SHORTENED FOOTNOTE

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CHAPTER 13 · WEB ARTICLE W13.17

# A Fight for Texas

**National Park Service, Palo Alto Battlefield National Historical Park**

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| **AUTHOR** | National Park Service, Palo Alto Battlefield National Historical Park |
| **WEBSITE** | National Park Service |
| **PUBLICATION** | Last updated May 18, 2023 |
| **CHAPTER / PROMPTS** | Chapter 13 \| 13.3 |
| **ARGUMENT ROLES** | 13.3.2 Support; 13.3.1 Support |

## Excerpt · 543 words

In the spring of 1846, disputes over the ownership and boundaries of Texas pushed the U.S. and Mexico towards war. On December 29, 1845, President James K. Polk fulfilled a long-standing campaign promise by welcoming the former Republic of Texas into the Union. But Mexicans insisted Texas was rightfully part of their country. Although Texans had claimed independence from Mexico in 1836, Mexican leaders never recognized Texas sovereignty. The Mexican government still held faint hopes of regaining control of their rebellious state. They denounced U.S. annexation of Texas as an act of aggression against Mexico.

### Boundary Questions

Tensions intensified when President Polk announced the Rio Grande formed the southern boundary of Texas. While Texans maintained this river as their boundary, Mexico mapped Texas as a much smaller region bordered in part by the Nueces River. The differing views on the boundary left in dispute a huge stretch of land between the two rivers. In July of 1845, Polk sent an army led by General Zachary Taylor to Corpus Christi, located on the banks of the Nueces River. Troops were officially deployed to help defend Texas from a potential Mexican attack on Texas. But they also presented a show of force, just as a U.S. negotiator headed to Mexico City.

### Tensions Mount

The advance of U.S. troops and Polk's new demand that Mexico sell its New Mexico and California territories infuriated Mexican President Joaquin Herrera. President Herrera refused to meet with the American envoy when he arrived but his willingness to allow him into the country brought about his ruin. In December of 1845, General Mariano Paredes y Arrillaga overthrew Herrera and installed himself as President. The new president vowed to discuss nothing but the return of Texas. Polk continued to apply pressure. In January 1846, he ordered General Taylor to claim the Rio Grande as the U.S. boundary. In March, Taylor led 4,000 troops to the river's edge. Taylor's army set up camp across from the city of Matamoros and began construction of Fort Texas, the earthen fieldwork that would serve as a U.S. base.

### Show of Force

General Paredes was not swayed by this show of force. He expelled the U.S. envoy from Mexico, declared his willingness to fight, and sent thousands of troops to the city of Matamoros. In April 1846, he appointed General Mariano Arista as the commander of this growing force. Polk hesitated to respond with hostilities against Mexico. Many political foes within the U.S. questioned his claims to the Rio Grande boundary. Polk realized crossing the Rio Grande or firing the first shots might sway public opinion against his cause. Instead, he waited for Mexican forces to initiate fighting north of the river so he could portray the conflict as one of national defense.

### War is Declared

Mexican military leaders viewed U.S. occupation of the Rio Grande as an invasion of their territory and did not hesitate to cross the river. On April 25, 1846, Mexican troops overwhelmed a U.S. scout party on the north bank of the river, at Rancho de Carricitos. Word of this clash reached Washington D.C. on May 10. The news caused President Polk to announce Mexico had "spilled American blood upon the American territory". Polk demanded a response and on May 13, 1846, amid a spirit of nationalism, Congress complied and declared war.

## Original Article

https://www.nps.gov/paal/learn/historyculture/fight_tx_overview.htm

## Chicago Citations

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**SHORTENED FOOTNOTE**

"A Fight for Texas."

CHAPTER 13 · WEB ARTICLE W13.18

# The Annexation of Texas, the Mexican-American War, and the Treaty of Guadalupe-Hidalgo, 1845-1848

**Office of the Historian, U.S. Department of State**

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| **AUTHOR** | Office of the Historian, U.S. Department of State |
| **WEBSITE** | Office of the Historian, U.S. Department of State |
| **PUBLICATION** | n.d. (retired series) |
| **CHAPTER / PROMPTS** | Chapter 13 \| 13.3 |
| **ARGUMENT ROLES** | 13.3.1 Support; 13.3.2 Support |

## Excerpt · 798 words (complete article)

During his tenure, U.S. President James K. Polk oversaw the greatest territorial expansion of the United States to date. Polk accomplished this through the annexation of Texas in 1845, the negotiation of the Oregon Treaty with Great Britain in 1846, and the conclusion of the Mexican-American War in 1848, which ended with the signing and ratification of the Treaty of Guadalupe-Hidalgo in 1848.

These events brought within the control of the United States the future states of Texas, California, Nevada, New Mexico, Arizona, Utah, Washington, and Oregon, as well as portions of what would later become Oklahoma, Colorado, Kansas, Wyoming, and Montana.

Following Texas' successful war of independence against Mexico in 1836, President Martin van Buren refrained from annexing Texas after the Mexicans threatened war. Accordingly, while the United States extended diplomatic recognition to Texas, it took no further action concerning annexation until 1844, when President John Tyler restarted negotiations with the Republic of Texas. His efforts culminated on April 12 in a Treaty of Annexation, an event that caused Mexico to sever diplomatic relations with United States. Tyler, however, lacked the votes in the Senate to ratify the treaty, and it was defeated by a wide margin in June. Shortly before he left office, Tyler tried again, this time through a joint resolution of both houses of Congress. With the support of President-elect Polk, Tyler managed to get the joint resolution passed on March 1, 1845, and Texas was admitted into the United States on December 29.

While Mexico did not follow through with its threat to declare war if the United States annexed Texas, relations between the two nations remained tense due to Mexico's disputed border with Texas. According to the Texans, their state included significant portions of what is today New Mexico and Colorado, and the western and southern portions of Texas itself, which they claimed extended to the Rio Grande River. The Mexicans, however, argued that the border only extended to the Nueces River, north of the Rio Grande.

In July, 1845, Polk, who had been elected on a platform of expansionism, ordered the commander of the U.S. Army in Texas, Zachary Taylor, to move his forces into the disputed lands that lay between the Nueces and Rio Grande rivers. In November, Polk dispatched Congressman John Slidell to Mexico with instructions to negotiate the purchase of the disputed areas along the Texas-Mexican border, and the territory comprising the present-day states of New Mexico and California.

Following the failure of Slidell's mission in May 1846, Polk used news of skirmishes inside disputed territory between Mexican troops and Taylor's army to gain Congressional support for a declaration of war against Mexico. On May 13, 1846, the United States declared war on Mexico.

Following the capture of Mexico City in September 1847, Nicholas Trist, chief clerk of the Department of State and Polk's peace emissary, began negotiations for a peace treaty with the Mexican Government under terms similar to those pursued by Slidell the previous year. Polk soon grew concerned by Trist's conduct, however, believing that he would not press for strong enough terms from the Mexicans, and because Trist became a close friend of General Winfield Scott, a Whig who was thought to be a

strong contender for his party's presidential nomination for the 1848 election. Furthermore, the war had encouraged expansionist Democrats to call for a complete annexation of Mexico. Polk recalled Trist in October.

Believing that he was on the cusp of an agreement with the Mexicans, Trist ignored the recall order and presented Polk with the Treaty of Guadalupe-Hidalgo, which was signed in Mexico City on February 2, 1848. Under the terms of the treaty, Mexico ceded to the United States approximately 525,000 square miles (55% of its prewar territory) in exchange for a $15 million lump sum payment, and the assumption by the U.S. Government of up to $3.25 million worth of debts owed by Mexico to U.S. citizens.

While Polk would have preferred a more extensive annexation of Mexican territory, he realized that prolonging the war would have disastrous political consequences and decided to submit the treaty to the Senate for ratification. Although there was substantial opposition to the treaty within the Senate, on March 10, 1848, it passed by a razor-thin margin of 38 to 14.

The war had another significant outcome. On August 8, 1846, Congressman David Wilmot introduced a rider to an appropriations bill that stipulated that "neither slavery nor involuntary servitude shall ever exist" in any territory acquired by the United States in the war against Mexico. While Southern senators managed to block adoption of the so-called "Wilmot Proviso," it nonetheless provoked a political firestorm. The question of whether slavery could expand throughout the United States continue to fester until the defeat of the Confederacy in 1865.

## Original Article

https://history.state.gov/milestones/1830-1860/texas-annexation

## Chicago Citations

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### SHORTENED FOOTNOTE

"Annexation of Texas."

CHAPTER 13 · WEB ARTICLE W13.19

# The Mexican-American War

**PBS American Experience**

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|---|---|
| **AUTHOR** | PBS American Experience |
| **WEBSITE** | PBS American Experience |
| **PUBLICATION** | n.d. |
| **CHAPTER / PROMPTS** | Chapter 13 \| 13.3 |
| **ARGUMENT ROLES** | 13.3.1 Support |

## Excerpt · 499 words (complete article)

In 1844, President James K. Polk ran on a Democratic platform that supported manifest destiny, the idea that Americans were predestined to occupy the entire North American continent. The last act of Polk's predecessor, John Tyler, had been to annex the Republic of Texas in 1845. Polk wanted to lay claim to California, New Mexico, and land near the disputed southern border of Texas. Mexico, however, was not so eager to let go of these territories.

Polk started out by trying to buy the land. He sent an American diplomat, John Slidell, to Mexico City to offer $30 million for it. But the Mexican government refused to even meet with Slidell. Polk grew frustrated. Determined to acquire the land, he sent American troops to Texas in January of 1846 to provoke the Mexicans into war.

When the Mexicans fired on American troops in April 25, 1846, Polk had the excuse he needed. He declared, "[Mexico] has invaded our territory and shed American blood upon American soil," and sent the order for war to Congress on May 11.

The act was a questionable one. Many Northerners believed that Polk, a Southerner, was trying to gain land for the slaveholding South. Other Americans simply thought it was wrong to use war to take land from Mexico. Among those was Second Lieutenant Ulysses S. Grant. Although during the war he expressed no reservations about it, he would later call the war "one of the most unjust ever waged by a stronger against a weaker nation. It was an instance of a republic following the bad example of European monarchies, in not considering justice in their desire to acquire additional territory."

Despite arguments over whether the war was right, Americans had tremendous success on the battlefield. Young officers like Grant and Robert E. Lee, who would later lead armies against one another in the Civil War, had their first combat experiences in Mexico. Generals Zachary Taylor and Winfield Scott won a series of remarkable victories against the Mexican armies. This success was in spite of the fact that Mexican troops outnumbered the Americans in most cases. In September of 1847, after a masterful overland campaign, American troops under Scott captured Mexico's capital, Mexico City, and the fighting ended.

The Treaty of Guadalupe Hidalgo sealed the American victory in 1848. In return for $15 million and the assumption of Mexican debts to Americans, Mexico gave up its hold over New Mexico and California. The enormous territory included present-day California, Nevada, Utah, and parts of Arizona, New Mexico, Oklahoma, Colorado and Wyoming. Mexico also agreed to finally relinquish all of Texas, including the disputed area along the border. The U.S. Congress approved the treaty on March 10.

Although the Mexican War had been won, the conflict over what to do with the vast amounts of territory gained from the war sparked further controversy in the U.S. The question over whether slavery would spread to these new territories would drive North and South even further apart.

## Original Article

https://www.pbs.org/wgbh/americanexperience/features/grant-mexican-american-war/

## Chicago Citations

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### SHORTENED FOOTNOTE

"The Mexican-American War."

CHAPTER 13 · WEB ARTICLE W13.20

# Comanche Indians

Carol A. Lipscomb

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| **WEBSITE** | Handbook of Texas Online, Texas State Historical Association |
| **PUBLICATION** | 1952; revised October 9, 2020 |
| **CHAPTER / PROMPTS** | Chapter 13 \| 13.3 |
| **ARGUMENT ROLES** | 13.3.3 Support |

## Excerpt · 1,150 words

The Comanches, exceptional horsemen who dominated the Southern Plains, played a prominent role in Texas frontier history throughout much of the eighteenth and nineteenth centuries. Anthropological evidence indicates that they were originally a mountain tribe, a branch of the Northern Shoshones, who roamed the Great Basin region of the western United States as crudely equipped hunters and gatherers. Both cultural and linguistic similarities confirm the Comanches' Shoshone origins. The Comanche language is derived from the Uto-Aztecan linguistic family and is virtually identical to the language of the Northern Shoshones. Sometime during the late seventeenth century, the Comanches acquired horses, and that acquisition drastically altered their culture. The life of the pedestrian tribe was revolutionized as they rapidly evolved into a mounted, well-equipped, and powerful people. Their new mobility allowed them to leave their mountain home and their Shoshone neighbors and move onto the plains of eastern Colorado and western Kansas, where game was plentiful.

After their arrival on the Great Plains, the Comanches began a southern migration that was encouraged by a combination of factors. By moving south, they had greater access to the mustangs of the Southwest. The warm climate and abundant buffalo were additional incentives for the southern migration. The move also facilitated the acquisition of French trade goods, including firearms, through barter with the Wichita Indians on the Red River. Pressure from more powerful and better-armed tribes to their north and east, principally the Blackfoot and Crow Indians, also encouraged their migration. A vast area of the South Plains, including much of North, Central, and West Texas, soon became Comanche country, or Comanchería. Only after their arrival on the Southern Plains did the tribe come to be known as Comanches, a name derived from the Ute word Komántcia, meaning "enemy," or, literally, "anyone who wants to fight me all the time." The Spaniards in New Mexico, who came into contact with the Comanches in the early eighteenth century, gave the tribe the name by which they were later known to Spaniards and Americans alike. Although the tribe came to be known historically as Comanches, they called themselves Nermernuh, or "the People."

The Comanches did not arrive on the South Plains as a unified body but rather in numerous family groups or bands. The band structure of Comanche society was not rigid, and bands coalesced and broke apart, depending on the needs and goals of their members. As many as thirteen different Comanche bands were identified during the historic period, and most probably there were others that were never identified. However, five major bands played important roles in recorded Comanche history. The southernmost band was called Penateka, or "Honey Eaters." Their range extended from the Edwards Plateau to the headwaters of the Central Texas rivers. Because of their location, the Penatekas played the most prominent role in Texas history. North of Penateka country was the habitat of the band called Nokoni, or "Those Who Turn Back." The Nokonis roamed from the Cross Timbers region of North Texas to the mountains of New Mexico. Two smaller bands, the Tanima ("Liver-Eaters") and the Tenawa ("Those Who Stay Downstream"), shared the range of the Nokonis. These three divisions are sometimes referred to collectively as Middle Comanches. Still farther north was the range of the Kotsotekas, or "Buffalo-Eaters." Their territory covered what is now western Oklahoma, where they often camped along the Canadian River. The northernmost band was known as the Yamparikas, or "Yap-Eaters," a name derived from that of an edible root. Their range extended north to the Arkansas River. The fifth major band, known as Quahadis ("Antelopes"), roamed the high plains of the Llano Estacado.

The Comanches remained a nomadic people throughout their free existence. Buffalo, their lifeblood, provided food, clothing, and shelter. Their predominantly meat diet was supplemented with wild roots, fruits, and nuts, or with produce obtained by trade with neighboring agricultural tribes, principally the Wichita and Caddo groups to the east and the Pueblo tribes to the

west. Because of their skills as traders, the Comanches controlled much of the commerce of the Southern Plains. They bartered buffalo products, horses, and captives for manufactured items and foodstuffs. The familiar Plains-type tepee constructed of tanned buffalo hide stretched over sixteen to eighteen lodge poles provided portable shelter for the Comanches. Their clothing, made of bison hide or buckskin, consisted of breechclout, leggings, and moccasins for men, and fringed skirt, poncho-style blouse, leggings, and moccasins for women. Buffalo robes provided protection from cold weather.

But it was the horse that most clearly defined the Comanche way of life. It gave them mobility to follow the buffalo herds and the advantage of hunting and conducting warfare from horseback. Horses also became a measure of Comanche wealth and a valuable trade commodity. In horsemanship the Comanches had no equal. Children learned to ride at an early age, and both men and women developed exceptional equestrian skills.

Democratic principle was strongly implanted in Comanche political organization. Each tribal division had both civil or peace chiefs and war chiefs, but traditionally the head civil chief was most influential. Leaders gained their positions through special abilities or prowess, and retained their power only so long as they maintained the confidence of band members, who chose their leaders by common consent. Tribal decisions were made by a council of chiefs presided over by the head civil chief, but individuals were not bound to accept council decisions. Comanche society permitted great individual freedom, and that autonomy greatly complicated relations with European cultures.

By the early eighteenth century, Comanche bands had migrated into what is now North Texas. In 1706 Spanish officials in New Mexico documented the presence of numerous Comanches on the northeastern frontier of that province. As the Comanches moved south, they came into conflict with tribes already living on the South Plains, particularly the Apaches, who had dominated the region before the arrival of the Comanches. The Apaches were forced south by the Comanche onslaught and became their mortal enemies. The first documented evidence of Comanches in Texas occurred in 1743, when a small band, probably a scouting party, appeared at the Spanish settlement of San Antonio seeking their enemies, the Lipan Apaches. No hostilities occurred, but it was obvious that the Comanches believed that the Spanish and Apaches were allies. However, fifteen years passed before the Spanish learned the true strength of Comanche presence in Texas. In 1758 a force of some 2,000 Comanches and allied tribes attacked a Spanish mission built for the Apaches on the San Saba River near present Menard. Santa Cruz de San Sabá Mission was sacked and burned, and eight of its inhabitants, including two priests, were killed. A year later, a Spanish punitive expedition led by Col. Diego Ortiz Parrilla also met defeat at the hands of the Comanches and their allies in a daylong battle on the Red River near the site of present Spanish Fort.

## Original Article

https://www.tshaonline.org/handbook/entries/comanche-indians

## Chicago Citations

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### SHORTENED FOOTNOTE

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CHAPTER 13 · WEB ARTICLE W13.21

# 1850: One Hundred and Fifty Years Ago

**American Heritage**

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|---|---|
| **AUTHOR** | American Heritage |
| **WEBSITE** | American Heritage |
| **PUBLICATION** | n.d. (2000 anniversary feature) |
| **CHAPTER / PROMPTS** | Chapter 13 \| 13.4, 13.5 |
| **ARGUMENT ROLES** | 13.4.1 Support; 13.5.3 Support |

## Excerpt · 550 words (complete article)

On November 11, delegates from the Southern states assembled in Nashville, Tennessee, to discuss the recent congressional acts regarding slavery. Assorted speakers advocated responses that ranged from sullen acquiescence to a commercial boycott to outright secession. Resolutions bristled with Southern defiance against Northern encroachments on the region's rights, institutions, and very way of life. Yet for all the delegates' bluster, very few Southerners paid any attention to the convention, and those who did generally mocked it. The failure of the South to rally behind the Nashville rhetoric revealed how effective the Compromise of 1850 had been in defusing, or at least deferring, the nation's sectional tensions.

Those tensions had already been mounting for two years when Mississippi's legislature proposed a Southern convention in October 1849. By June 1850, when the convention first met in Nashville, disunion seemed a real and imminent possibility. Even so, only nine states sent delegates, and many of them were chosen by informal or irregular means.

The June session passed a number of resolutions, the most important of which proclaimed the right of Southerners to settle in any territory with their slaves. In what some delegates considered a betrayal of this sacred principle, however, the convention offered to accept an extension of the Missouri Compromise line to the Pacific. This would have split California into two states, one slave and one free, and made New Mexico (including present-day Arizona) a slave territory. Expecting congressional action on this issue, the delegates agreed to meet again six weeks after Congress adjourned.

By the time they reconvened in November, things had changed dramatically. The death of President Zachary Taylor had removed the biggest roadblock to the compromise's passage, and California was admitted as a free state, with a strengthened fugitive slave law thrown in to placate the South. Outside of hard-line South Carolina, where secession fever was strong, most Southerners reluctantly decided to accept the compromise, though with a firm determination to make no more concessions, and only if the North made genuine efforts to enforce the new law on fugitive slaves.

By fall, only extremists saw any need to reassemble the Nashville Convention. Just seven states showed up this time, including a single delegate from Virginia. Very few leading politicians chose to attend. Instead of attracting a cross section of parties and views, November's Nashville meeting turned out to be a rump of a rump.

Supporters of the Nashville meeting compared it to the Continental Congress, with oppressed citizens bypassing the established government to safeguard their liberty. Critics found it more similar to the infamous Hartford Convention, at which New Englanders opposed to the War of 1812 had set forth their grievances to an uninterested nation. Still, despite the derision with which it was met, the Nashville Convention was not a complete failure.

One of its accomplishments was to give members of the emerging secessionist movement a chance to meet like-minded men from across the region. Even more important, though, Southern fire-eaters learned that any attempt to build consensus on a radical course was likely to end in failure. Ten years later, when the sectional crisis came to a head again with the election of Abraham Lincoln, South Carolina would not pause for consultation but would boldly take the lead and defy the other states to follow it.

## Original Article

https://www.americanheritage.com/1850-one-hundred-and-fifty-years-ago

## Chicago Citations

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### SHORTENED FOOTNOTE

"1850."

CHAPTER 13 · WEB ARTICLE W13.22

# 'America's Great Debate' Saved Union From War

**Fergus M. Bordewich (interviewed by Neal Conan)**

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| **AUTHOR** | Fergus M. Bordewich (interviewed by Neal Conan) (Historian and author of America's Great Debate: Henry Clay, Stephen A. Douglas, and the Compromise That Preserved the Union (2012)) |
| **WEBSITE** | NPR |
| **PUBLICATION** | April 24, 2012 |
| **CHAPTER / PROMPTS** | Chapter 13 \| 13.4 |
| **ARGUMENT ROLES** | 13.4.1 Support; 13.4.2 Support |

## Excerpt · 824 words

In 1850, California's application to join the Union threatened to unhinge the delicate balance of pro- and anti-slavery forces. The flood of European immigration had shifted power in the House of Representatives decisively to the North. Another free state would tilt the U.S. Senate.

The issue went beyond California to the status of all the other territories conquered in the war with Mexico and to the shape of a nation many believed would inevitably absorb Canada, the Caribbean and maybe Central America, as well. It forced the country to confront the central issue — slavery.

In a new book, *America's Great Debate: Henry Clay, Stephen A. Douglas and the Compromise That Preserved the Union*, Fergus Bordewich examines the longest debate in the history of the U.S. Senate and how bitter partisans reached across the divide to craft a compromise that both staved off a civil war and made one inevitable.

"In 1850," Bordewich tells NPR's Neal Conan, "the North wasn't ready to fight a civil war." By and large, Northerners "didn't even believe that secession was going to occur." But Southerners, he says, "not all but a great many, had already mentally and I feel like even spiritually seceded from the United States. They were ready to go." And had Southerners gotten what they were looking for in 1850, "the North would have lost the Civil War."

### Interview Highlights

On what the country would have looked like, had secession occurred in 1850

"It seemed obvious to the people of 1850 that if secession took place in one part of the country, it was probably going to be replicated by precedent in other parts of the country, and that most likely California, rich with gold, would go its own way along with the rest of the West Coast, Oregon and what later became Washington, very viable as an independent country.

"And again, if secession were established as a precedent in North America, it was believed by many that New England might go its own way at some point, the Upper Midwest might go its own way, and that the entire United States at the time, the entire continent would fragment."

On "the great triumvirate": John J. Calhoun, Henry Clay and Daniel Webster

"These were the great aging lions of the Senate, all of them very old, at the outer end of their life spans. And all of them would soon be dead. ...

"Calhoun drops dead right in the middle of the debate, not on the floor of the Senate but during the debate. Here's Calhoun, the fierce, enraged voice of the slave-holding South, defends slavery at any cost, secession before relinquishing a slave. A bit of an odd man out initially.

"Clay, the great compromiser from Kentucky, a slave owner himself but absolutely against the extension of slavery to the West. And he's the man who's called on to somehow find a path out of this wilderness of anger and suspicion and warmongering.

"And Daniel Webster, severely alcoholic by this point, sometimes barely steady on his feet, sonorous, spectacular orator, throws his weight behind Clay and compromise. One of the great acts of political courage in American history in that he committed

political suicide by doing that. ... He'd been a great voice of anti-slavery for decades, and he threw that great sonorous voice behind the Fugitive Slave Law.

"So you have Clay and Webster aligned, working together toward compromise, Calhoun somewhat on the outside but with a whole new contingent of young, angry pro-slavery men led by Jefferson Davis primarily coming up after him."

On why the Compromise of 1850 matters, even though the Civil War eventually happened

"The most important thing about the Compromise of 1850 was that it prevented war in 1850. The country was on the brink of war. It was much closer to a shooting war than I think most people realize today, although it was quite manifest to Americans South and North in 1850. Had those first shots been fired, it wouldn't have been in Charleston Harbor. Those shots were going to be fired in Santa Fe, New Mexico.

"Why is that? Because Texas was organizing an army to march on the New Mexico Territory, to incorporate it into Texas as part of an ambitious plan to carry slavery further Westward, eventually to the Pacific Ocean. This was not far-fetched to the people of the time.

"Zachary Taylor, one of the most interesting, mostly forgotten presidents in American history, war hero of the Mexican War, a tough, tough man, a slave-owner but dead against the extension of slavery, said publicly that he would lead an army himself to New Mexico to fend off the Texans if it came to that.

"War was about to happen, and, yes, the compromise unraveled, but basically it bought a decade for the rest of the country. It took the North another 10 years to become ready to fight a war that it eventually won."

## Original Article

https://www.npr.org/2012/04/24/151296996/americas-great-debate-saved-union-from-war

## Chicago Citations

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### SHORTENED FOOTNOTE

Bordewich, "'America's Great Debate' Saved."

CHAPTER 13 · WEB ARTICLE W13.23

# Clay's Last Compromise

**Senate Historical Office**

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|---|---|
| **AUTHOR** | Senate Historical Office |
| **WEBSITE** | United States Senate, Art and History |
| **PUBLICATION** | n.d. |
| **CHAPTER / PROMPTS** | Chapter 13 \| 13.4 |
| **ARGUMENT ROLES** | 13.4.1 Support; 13.4.2 Support |

## Excerpt · 515 words (complete article)

On January 29, 1850, Henry Clay rose in the Old Senate Chamber to begin the most important debate of his career and to forge one last compromise. A Whig from Kentucky, the "Great Compromiser" entered the Senate in 1806, served intermittently over four decades, and became a leading voice in the Senate. He resigned in 1842 to run for president but returned in 1849 to seek a compromise solution to the nation's growing sectional strife—to avoid civil war.

Showing the effects of age and tuberculosis, the 72-year-old statesman proposed eight resolutions to settle the dispute over territories acquired from the Mexican War. The key issue, of course, was whether states carved out of those territories would allow or prohibit slavery. As Clay explained, he proposed an "amicable arrangement of all questions in controversy between the free and slave States." Adding drama to the occasion, Clay produced an unusual prop. He had recently called for the federal government to buy George Washington's Mount Vernon estate. In gratitude, a supporter had presented Clay with a fragment of wood from Washington's coffin. Was it portentous that this object had been presented to him, Clay asked? Was it a sign that the nation founded by Washington was dying? "No, sir, no," thundered Clay, holding up the relic. "It was a warning voice, coming from the grave to the Congress … to beware, to pause, to reflect before they lend themselves to any purposes which shall destroy the Union."

For six long months, Clay led the contentious debate. Mississippi senator Henry Foote suggested combining the resolutions into a single bill, which Clay referred to as a "sort of omnibus" into which Foote introduced "all sorts of things and every kind of passenger." The idea took hold, and Clay endorsed the Senate's first "omnibus bill." He proclaimed it to be "neither southern nor northern. It is equal; it is fair; it is a compromise." On July 22, Clay delivered his last major speech in the Senate, calling for passage of the omnibus bill. If passed, the North would gain California as a free state and an end to the slave trade in Washington, D.C., while the South would get a stronger fugitive slave law and the possibility of western slavery through popular sovereignty. This compromise, Clay insisted, represented the "reunion of [the] Union."

One week later, the Senate rejected Clay's proposal. "The omnibus is overturned," cried opponents. The omnibus strategy had failed—rather than solidifying support, it unified opposition. Southerners protested any restriction on slavery, and Northerners fumed at the idea of returning fugitive slaves. A disheartened Henry Clay headed north to restore his failing health.

The omnibus bill died, but Clay's Compromise of 1850 survived. The cause was adopted by Stephen Douglas of Illinois, who disassembled the omnibus and repackaged it into five separate bills, winning enactment of each major provision. Clay's last compromise helped to stave off civil war for another decade, but only by allowing for the continuation of slavery. When the Old Kentuckian died in 1852, he went to his grave believing his compromise had saved the Union.

## Original Article

https://www.senate.gov/artandhistory/history/minute/Clays_Last_Compromise.htm

## Chicago Citations

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### SHORTENED FOOTNOTE

"Clay's Last Compromise."

CHAPTER 13 · WEB ARTICLE W13.24

# Nashville Convention

Thelma Jennings

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|---|---|
| AUTHOR | Thelma Jennings (Historian; author of The Nashville Convention: Southern Movement for Unity, 1848-1850 (1980)) |
| WEBSITE | Tennessee Encyclopedia, Tennessee Historical Society |
| PUBLICATION | October 8, 2017; updated March 1, 2018 |
| CHAPTER / PROMPTS | Chapter 13 \| 13.4, 13.5 |
| ARGUMENT ROLES | 13.4.1 Support; 13.5.3 Qualify |

## Excerpt · 505 words (complete article)

On June 3, 1850, delegates from nine southern states met at McKendree Methodist Church in Nashville to discuss common grievances in the great sectional crisis that had developed with the territorial acquisitions following the Mexican War. The South demanded equality in the territories in an alarming atmosphere of increased northern resistance to proslavery measures. Senator John C. Calhoun of South Carolina played a major role in the convention call to promote southern unity, but he did not originate the idea of such an assemblage.

Because of South Carolina's radical stance on slavery, it seemed desirable that the movement for a cooperative endeavor should come from another state. A bipartisan convention at Jackson, Mississippi, in October 1849 issued the call for the Nashville Convention. The proposal defined the purpose of the convention "to devise and adopt some mode of resistance to northern aggression."

The call for a southern convention initially produced a favorable response, especially among the Lower South states. Democrats took the lead, while the Whigs remained less inclined to approve the convention. No standard method of selecting candidates prevailed; when the Tennessee General Assembly failed to appoint delegates, the counties selected delegates in county meetings. The southern movement for unity reached a peak around February 1850; thereafter the introduction of compromise resolutions in the Senate and the prospect of a satisfactory adjustment somewhat lessened support for a southern convention in most states, except South Carolina.

One hundred 76 delegates attended the first session of the nine-day convention. The Tennessee delegation of 101 was the largest group from any state. The delegates adopted twenty-eight resolutions asserting the South's constitutional rights in the territories and the rights and interests of Texas in the boundary dispute. The convention recommended, as an extreme concession, an alternative division of the territories by an extension of the 36°30' line to the Pacific–an ironic position antithetical to the platform of noninterference. In addition, it adopted a more radical "Address to the People" of the southern states, written by the South Carolina fire-eater, Robert Barnwell Rhett. However, the moderates gained control of the convention and adopted a wait-and-see attitude. The convention also resolved that it would reassemble in Nashville on the sixth Monday after congressional adjournment.

After President Millard Fillmore signed the five bills that constituted the Compromise of 1850, interest in the second session of the convention declined considerably. Nevertheless, more than 50 delegates from seven southern states met at Nashville in November. Although they rejected united secession, delegates approved measures affirming the right of secession, denouncing the Compromise, and recommending a southern congress. Secession had been averted, and the Union was saved.

Though the Nashville Convention recorded little concrete accomplishment, it was by no means insignificant. It failed to unite the South, but it brought national attention to the South's grievances and undoubtedly influenced the passage of the Compromise of 1850. The convention revealed the loyalty of the South in 1850 to the concept of national unity and the willingness of southerners to compromise in order to save the Union.

## Original Article

https://tennesseeencyclopedia.net/entries/nashville-convention/

## Chicago Citations

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### SHORTENED FOOTNOTE

Jennings, "Nashville Convention."

CHAPTER 13 · WEB ARTICLE W13.25

# Compromise of 1850: A Temporary Peace

**American Battlefield Trust**

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|---|---|
| **AUTHOR** | American Battlefield Trust |
| **WEBSITE** | American Battlefield Trust |
| **PUBLICATION** | n.d. |
| **CHAPTER / PROMPTS** | Chapter 13 \| 13.4 |
| **ARGUMENT ROLES** | 13.4.2 Support; 13.4.3 Support |

## Excerpt · 1,116 words

By the 1840s America was quickly becoming a "house divided." The issue of slavery and its expansion into the western territories had largely separated political parties and the North and South. Many Americans feared the nation would become so broken that states may secede, after the Nullification Crisis a decade earlier, it was clear, many within the United States felt it their right to secede. Congress faced with the large acquisition of territory from the Mexican American War needed a drastic compromise. The Compromise of 1850 was Henry Clay and later Congress's solution to the problem. The Compromise sought to end sectional tensions plaguing the country, however, it may have only delayed the inevitable.

When James K. Polk became president in 1845, he set his sights on expanding the United States. The first act of his presidency was approving the offer of annexation sent to Texas by the Tyler Administration. In exchange for becoming a part of the United States, the American government would defend Texas's southern border fixed at the Rio Grande River, while Mexico claimed that the border lie farther north on the Nueces River. By December 1845, Texas had agreed to the deal, and Polk signed a resolution accepting Texas as the 28th state. As the US and Texas negotiated, Mexico broke diplomatic ties with the United States. Mexico had never federally acknowledged Texas independence and saw this action as an act of war.

Polk sent troops to the disputed border of Texas and offered a deal to buy the land Mexico claimed in Texas, and additionally in what is now California and New Mexico, from the Mexican government for 25 to 30 million dollars. In the year leading up to the conflict, Mexico's government was not in a position to negotiate. Mexico had four different presidents in that one year, the final government holding power was nationalistic and claimed Texas was still a part of Mexico's territory. In April 1846 Mexican soldiers attacked a small number of American soldiers, sparking a war over the disputed border. The Mexican-American War lasted only two years, and concluded with the American army capturing Mexico City. Yet, the war had a long lasting impact on both countries. The United States and Mexico signed the Treaty of Guadalupe Hidalgo concluding the war establishing Texas's southern border as the Rio Grande and giving America the New Mexico Territory and California for 15 million dollars. The land the US acquired became known as the Mexican Cession. The Treaty of Guadalupe Hidalgo radically expanded the United States, and completed the goals of Polk's Manifest Destiny, while also forcing the nation to confront questions about slavery and self-determination in the new American territory.

Having completed all his campaign promises, Polk did not run for a second term. However, his acquisition of the Mexican Cession created tension his successor would have to calm. Texas was a state committed to slavery and claimed a large portion of New Mexico, which they never truly controlled or governed. Citizens of New Mexico, in contrast to Texas, had long prohibited slavery within the territory. California also required immediate action, after the war military leaders governed the state, and as early as 1848, Americans started to immigrate to California in search of gold. These new citizens voted unanimously in 1849 to outlaw slavery within the territory. Southerners who had supported the expansion of slavery west saw these events as a crossroads for the future of slavery. Additionally, Northern states had recently passed "Liberty Laws" rendering the Fugitive Slave Act of 1793 largely ineffective, Southerners began to fear that the Federal Government would soon end the practice of slavery throughout the nation.

Mexican-American War hero Zachary Taylor was elected the new president in 1848. Taylor had been a confusing choice for president. He had been a mostly unpolitical figure before 1848, never voting or even revealing political positions before running for president. He initially did not even declare for a party during the election, until Whig leaders pressured him into committing

to the Whigs, in order to gain enough support to be elected president. Because many of his policy positions were nebulous, Americans across parties and borders supported him, impressing their own beliefs onto him. Southerners, knowing Taylor owned slaves, believed he would support the westward expansion of slavery. Whig leaders like Abraham Lincoln and William Seward reminiscent of the only successful Whig presidential candidate, William Henry Harrison, saw a lot of Harrison within Taylor—both were war heroes and famous throughout the country. Division among Democrats also aided Taylor's campaign. Southern Democrats supported the expansion of slavery, while in the North, many Democrats, led by former president Martin Van Buren, had broken away to create the Free-Soil Party, a stated anti-slavery party. Taylor won the election of 1848 and inherited the new land and the regional tension that came with it.

Taylor's actual beliefs only stoked sectional tensions. Despite owning slaves, Taylor believed it impractical to expand slavery into New Mexico and California, as the cash crops that slavery cultivated in the South could not be grown in the new territories. Further angering the many Southerners who voted for him, Taylor said he would not veto the Wilmot Proviso, which sought to make all lands west of Texas free territories. Taylor's solution to the question of slavery in New Mexico and California was simply for them to both become free states immediately, a solution which did not please either side. Taylor ran as a candidate dedicated to saving the Union, but his policy positions pushed the Union further into crisis.

In 1849. Senator Henry Clay dedicated himself to solving the sectional crisis by cultivating compromise between Northern Whigs and Southern Democrats in the Senate. He proposed an omnibus bill which included a multi-part plan to address the sectional tensions. The bill included California entering the Union as a free state, defining Texas's border in return for debt relief, establishing New Mexico and Utah as official territories, and finally banning the slave trade in the District of Columbia in exchange for a new fugitive slave law. Henry Clay's proposition was met with radical opposition. John C. Calhoun and other pro-slavery Southerners were angered by introducing California as a free state, while many Whigs saw this as a reasonable compromise allowing slavery to continue. Future Secretary of State William Seward famously gave his "Higher Law" speech in rebuttal saying, "Shall we, who are founding institutions, social and political, for countless millions; shall we, who know by experience the wise and the just, and are free to choose them, and to reject the erroneous and the unjust; shall we establish human bondage, or permit it by our sufferance to be established?"

## Original Article

https://www.battlefields.org/learn/articles/compromise-1850

## Chicago Citations

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### SHORTENED FOOTNOTE

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CHAPTER 13 · WEB ARTICLE W13.26

# Road to Secession, Part 2

**National Park Service, Antietam National Battlefield**

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|---|---|
| **AUTHOR** | National Park Service, Antietam National Battlefield |
| **WEBSITE** | National Park Service |
| **PUBLICATION** | Last updated September 15, 2023 |
| **CHAPTER / PROMPTS** | Chapter 13 \| 13.4, 13.5 |
| **ARGUMENT ROLES** | 13.4.2 Support; 13.4.3 Support; 13.5.1 Support |

## Excerpt · 704 words

The acquisition of new territory from the Mexican-American War continued to incite tensions along sectional lines. The more territory the United States acquired, the more intense and complicated the debate over the expansion of slavery became. The 1849 gold rush, meant that new settlers flocked to California, and it quickly reached the population requirement to apply for statehood. Settlers in California wanted it to be admitted as a free state. However, if California was admitted as a free state it would upset the balance of power in Congress. Congressmen turned to the Great Compromiser, Henry Clay, to propose a solution. He offered an omnibus bill to, "adjust amicably all existing questions of controversy . . . arising out of the institution of slavery." Along with the question of slavery in California, his proposal addressed other slavery-related disputes including the Texas border and the continuation of slavery and the slave trade in Washington, D.C. His series of bills included the following provisions: the admission of California as a free state, a clear definition of Texas's border, the establishment of territorial governments in Utah and New Mexico, the abolition of the slave trade in Washington, D.C., and changes to the Fugitive Slave Act. It took nearly seven months of debate and the assistance of Stephen A. Douglas for the Compromise of 1850 to get the support it needed to become law.

The Compromise of 1850, which left the balance of power in Congress intact, meant that the dilemma of the expansion of slavery into the territories had been deferred. However, the strengthened Fugitive Slave Act raised tensions. The Fugitive Slave Act now required citizens and federal officials in all states, slave and free, to assist slave owners in finding and returning their runaway slaves. Likewise, a trial was not required for suspected runaway slaves and the commissioner was paid more if the findings were in favor of the slave owner rather than the enslaved. The changes to the Fugitive Slave Act meant that free African Americans in the North could now be easily captured and sold into slavery. The terror this act caused further deepened abolitionists' commitment to their cause. The Underground Railroad reached its peak in the years after the Compromise of 1850, and abolitionists used first-hand accounts of the horrors of runaway slaves and free African Americans who were captured and returned or placed in bondage to encourage others to join their cause. In addition, relations between white northerners and southerners continued to deteriorate as northerners bristled at what they saw as an incursion on their liberties. They objected to being forced to cooperate with southern slaveholders in their own free states. Now northerners, who had previously turned a blind eye to slavery, were forced, by law, to be personally complicit in the system.

### Uncle Tom's Cabin, Published 1852

Prompted by the passage of the Fugitive Slave Act, Harriet Beecher Stowe wrote her best-selling novel. Uncle Tom's Cabin, which became the second highest grossing book of the late nineteenth century, second only to the Bible. The book inspired many northerners to align themselves with the abolitionist movement and pushed southerners to intensify their defense of slavery. Uncle Tom's Cabin was a sentimental novel that highlighted the horrors of slavery for a national audience. Focused on provoking emotion in the reader, the narrative centers on the story of Tom, a "good" and religious slave who was sold down river to a cruel master. Tom's owner abuses him and ultimately orders his overseer to kill him while Uncle Tom attempts to save the lives of other slaves. The numerous religious allusions and dramatic events of the novel captured the hearts of many. For the first time, many northerners were exposed to the horrors of slavery on a personal level, which pushed them towards abolitionism. Outraged by Stowe's damming portrayal of slavery and slaveholders, white southerners began to publish their own pro-slavery literature. Slaves owners and proslavery writers, threatened by abolitionist works likes Stowe's, began to move away from defending slavery as a necessary evil to praising it as a mutually beneficial system, a view which had been gaining popularity since the 1830s, thanks, especially, to John C. Calhoun. Uncle Tom's Cabin further polarized northerners and southerners over the issue of slavery.

## Original Article

https://www.nps.gov/anti/learn/historyculture/roadtoseccession2.htm

## Chicago Citations

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#### FULL FOOTNOTE

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#### SHORTENED FOOTNOTE

"Road to Secession, Part."

CHAPTER 13 · WEB ARTICLE W13.27

# The Civil War: The Senate's Story

Senate Historical Office

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|---|---|
| **AUTHOR** | Senate Historical Office |
| **WEBSITE** | United States Senate, Art and History |
| **PUBLICATION** | 2011 (web adaptation) |
| **CHAPTER / PROMPTS** | Chapter 13 \| 13.4, 13.5 |
| **ARGUMENT ROLES** | 13.4.2 Support; 13.5.1 Support |

## Excerpt · 766 words

Sectional disputes dominated debate during the period between the Missouri Compromise of 1820 and the Compromise of 1850 and brought to the Chamber a group of talented legislators and powerful orators. In the Senate, where the Constitution established an equality of states, there existed a delicate balance between North and South, slave and free states. For many years, senators crafted legislation designed to resolve sectional conflicts and avoid secession and civil war. In the 1850s, however, further efforts at compromise failed. The Senate endured a violent and turbulent decade that propelled the nation to the brink of war.

The rapid expansion of the nation, as settlers moved west and new territories applied for statehood, repeatedly raised the issue of slavery. The Constitution allowed slavery to exist in the states but left Congress to decide its status in the territories. The Northern states, having abolished slavery, sought to prevent its spread, while the Southern states, having grown more dependent on slave labor, asserted the rights of Southerners to transport their way of life into the new territories. In 1820 the Missouri Compromise drew a line across the nation at the 36th parallel, above which slavery would be prohibited, and below which it could expand. When the war with Mexico, from 1846 to 1848, resulted in vast new territories in the southwest, the debate over expansion of slavery was renewed.

In 1850 Senator Henry Clay of Kentucky introduced a package of compromise measures to relieve the sectional tensions created by territorial expansion. Aware of the controversial nature of his proposals, Clay urged his colleagues to “beware, to pause, to reflect before they lend themselves to any purposes which shall destroy that Union.” On March 7, 1850, Senator Daniel Webster of Massachusetts rose from his Senate seat and declared: “I wish to speak today, not as a Massachusetts man, nor as a Northern man, but as an American . . . I speak today for the preservation of the Union.” Other senators, most notably John Calhoun of South Carolina, opposed Clay’s plan. With Webster’s support, and with the assistance of Senator Stephen Douglas of Illinois, Congress passed revised versions of Clay’s bills, which became law in September 1850. The Compromise of 1850 admitted California as a free state, left open the possibility of slavery in the territories of New Mexico and Utah, abolished the slave trade in the District of Columbia, and created a stronger fugitive slave law.

Anxious to build a transcontinental railroad from Chicago to the West Coast, Senator Douglas introduced the Kansas-Nebraska Act of 1854 to organize those territories for statehood. To meet the objections of Southerners who were promoting a southern route for the railroad, the act opened the territories for settlement, but provided that the settlers, through “popular sovereignty,” could allow or prohibit slavery. This undermined the 1820 Missouri Compromise and further inflamed the passions in the North and the South. Both slaveholders and abolitionists flooded into the new territories to influence votes on state constitutions. Communities erupted into violence in what became known as “Bleeding Kansas.” Intended to settle sectional disputes, the Kansas-Nebraska Act instead brought the nation closer to civil war.

In May 1856 Senator Charles Sumner, a fiery abolitionist from Massachusetts, delivered a five-hour oration in the Senate Chamber entitled “The Crime Against Kansas.” Sumner’s inflammatory speech was a harsh indictment of those who supported the spread of slavery and attacked several senators by name, including Andrew Butler of South Carolina. On May 22, 1856, Preston Brooks—a member of the House of Representatives and Senator Butler’s relative—retaliated. After the Senate had adjourned for the day, Brooks approached Sumner at his desk in the Senate Chamber and repeatedly struck him on the head with his heavy walking stick, breaking the wooden cane into pieces. Badly injured by the attack, Sumner was able to appear in

the Senate only intermittently over the next three years, as he slowly recovered. His empty desk became visible evidence that legislative compromise could no longer settle the emotional and divisive issue of slavery in the territories.

An era in Senate history ended when the Senate held its last session in its venerable old Chamber. The rush of states entering the Union had doubled the number of senators and forced them to authorize construction of a new, larger Chamber. On January 4, 1859, senators marched in procession from the old Chamber—so associated with the Great Triumvirate of Henry Clay, Daniel Webster, and John Calhoun—to the new Chamber in the Capitol's north wing. In that procession walked men who would soon be leaders of the Union and the Confederacy.

## Original Article

https://www.senate.gov/artandhistory/history/common/civil_war/RoadtoWar.htm

## Chicago Citations

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### SHORTENED FOOTNOTE

"The Civil War."

CHAPTER 13 · WEB ARTICLE W13.28

# Fugitive Slave Laws

Earl M. Maltz

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|---|---|
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| PUBLICATION | December 7, 2020; updated August 26, 2024 |
| CHAPTER / PROMPTS | Chapter 13 \| 13.4 |
| ARGUMENT ROLES | 13.4.3 Support |

## Excerpt · 879 words

Fugitive slave laws provided slaveowners with the legal right to reclaim runaways from other states. Those states were required to deliver the fugitives. As early as 1643, the United Colonies of New England had required the return of runaways. After the American Revolution (1775–1783), the Northwest Ordinance of 1787 contained similar protections for slaveowners. The U.S. Constitution included a Fugitive Slave Clause, which was agreed to without dissent at the Constitutional Convention. Following a dispute between Pennsylvania and Virginia, Congress passed the Fugitive Slave Act of 1793. It clarified the processes by which slaveowners could claim their property and was designed to balance the competing interests of free and slave states. In 1823, the law was upheld by Massachusetts in a case regarding a Virginia runaway. It was upheld again by the U.S. Supreme Court in 1842. The Fugitive Slave Act of 1850 expanded the number of federal officials empowered to act in fugitive-slave cases. By this time, public opinion, at least in antislavery hotbeds such as Boston, had turned against such laws. Thus a captured Virginia enslaved man named Shadrach Minkins was rescued in 1851 and taken north to Canada. In 1854, authorities thwarted an attempted rescue of the Virginia runaway slave Anthony Burns. Compromise soon became impossible, and enforcement of the law effectively ended with the onset of the American Civil War (1861–1865).

### Early Laws and the U.S. Constitution

Before the ratification of the Constitution, the problems with the treatment of escaped slaves had been recognized. For example, the Articles of Confederation of the United Colonies of New England required that any runaway servant be returned. It stated that any runaway “shalbe delivered either to his Master or any other that pursues and brings such Certificate or proofe.” The Northwest Ordinance banned slavery in much of the territory west of the Appalachians. However, it also provided for the return of fugitives who escaped into those territories.

The Constitutional Convention of 1787 first considered the issue of fugitive slaves. They had already agreed to a provision in which states would return fugitives. South Carolina representatives moved to require “fugitive slaves and servants to be delivered up like criminals.” Later discussions included a complaint about the public cost of such a measure. Nonetheless, the following day the delegates unanimously adopted a Fugitive Slave Clause. An amended version of the clause was also approved without objection on September 15.

Article 4, section 2 of the U.S. Constitution forbade free states from emancipating slaves who escaped from states where slavery was legal. It also mandated that escaped slaves “shall be delivered up on the claim of the [the slaveowner].” The delegates understood that disputes over fugitive slaves might create tensions that could threaten the stability of the union. The Fugitive Slave Clause was apparently designed to prevent that possibility.

The Fugitive Slave Clause was modeled on the Extradition Clause. This made state governments responsible when dealing with runaways. The state in which the runaway was captured was forced to deliver the slave to their home state. In fugitive-slave cases, slaveowners stood to lose valuable property. This made these situations both more legally complex and ripe for abuse. Southerners potentially could make false claims, while free-state governments might be motivated to avoid their constitutional obligations to protect free Blacks from kidnapping.

### Fugitive Slave Act of 1793

Not long after the Constitution was ratified, Congress passed the Fugitive Slave Act of 1793. Inspiration for the law came from a case involving an enslaved man named John Davis. Davis's Virginia owner found himself living in Pennsylvania when the states' boundaries were finalized in 1779. The next year Pennsylvania passed the Gradual Emancipation Act. It required that men such as Davis's owner register their slaves by a certain date. If they did not, the slaves would become immediately free. Davis was never registered, making him free according to Pennsylvania law, if not in practice.

In 1788, Davis was hired out to a Mr. Miller in Virginia. Davis was found by a group of antislavery Pennsylvanians and returned to that state. Miller then hired three Virginia men to capture his enslaved man, which they did in May 1788. Soon after, Davis was sold to a man in eastern Virginia. In November 1788 a Pennsylvania court indicted the three Virginians for kidnapping. Virginia governor Beverley Randolph, in July 1791, refused a request for their extradition.

Congress wanted to establish procedures for a slaveowner to defend his right to reclaim a fugitive. Under the 1793 statute, a slaveowner or his agent was "empowered to seize or arrest [the] fugitive" and bring him before a federal judge. Proof could be provided by documentation or oral testimony. The official was required to issue a certificate to remove the alleged fugitive from the state in which they were found. Anyone convicted of concealing a runaway or interfering in his capture was subject to a $500 fine. This fine was payable not to the state or federal government but to the slave's owner.

Neither side was completely satisfied with the legislation. Some southerners worried that the rights of enslavers were insufficiently protected. Some northerners believed that the law still left free Blacks vulnerable to kidnapping. As a result, many free states adopted so-called personal liberty laws. These required enslavers to follow a variety of procedures before removing any alleged fugitive from the state.

## Original Article

https://encyclopediavirginia.org/entries/fugitive-slave-laws/

## Chicago Citations

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#### SHORTENED FOOTNOTE

Maltz, "Fugitive Slave Laws."

CHAPTER 13 · WEB ARTICLE W13.29

# Introduction

**Matthew Pinsker**

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| **PUBLICATION** | c. 2021 |
| **CHAPTER / PROMPTS** | Chapter 13 \| 13.4 |
| **ARGUMENT ROLES** | 13.4.3 Support |

## Excerpt · 841 words

Driving through Lancaster County in Pennsylvania can sometimes feel like time traveling. US Route 30 offers a thoroughly twenty-first century experience, with SUVs and other automobiles darting past a cluttered roadside full of chain restaurants, strip malls, and motels. Things get quieter along Route 41, a multi-lane state road cutting through sprawling farms and warehouse complexes on the way toward the port of Baltimore. But just south of the small town of Christiana (population 1,165), if you venture onto the local roads, the nineteenth century suddenly emerges. One can even hear the clatter of horse-drawn buggies on winding country lanes. This is Amish country. But not too long ago, it was the ground zero of Black resistance to American slavery.

Christiana marker (Aiden Pinsker)

Right after a particularly sharp turn on Lower Valley Road, there is a state historical marker, perched on the edge of private farmland, which takes somber note of what it labels, “The Christiana Riot.” This sign commemorates the killing of a Maryland slaveholder on Thursday morning, September 11, 1851, by a group of enslaved freedom seekers and their allies who were desperately trying to stop a federal posse from enforcing the Fugitive Slave Law. “This incident did much to polarize the national debate over the slavery issue,” concludes the terse description. Probably no more than a couple dozen people pass by the sign each week.

Admittedly, no roadside marker could ever do justice to such a revolutionary act of resistance. The statement does not identify the four “runaways” while naming their enslaver, Edward Gorsuch, as the “Maryland farmer” who convinced federal agents to help him track down the fugitives. The text describes the site as “the Christiana home of William Parker, an African American who was giving them refuge,” without mentioning Eliza Parker, his wife, who was a co-organizer of this protective operation or that both of them had once been freedom seekers themselves. The marker also gets noticeably vague when narrating what happened next. “Neighbors gathered, fighting ensued, and Gorsuch was killed.” The phrase “Underground Railroad” does not appear. Nor does the marker spell out consequences for Black participants in this so-called “riot.” Yet the 1851 confrontation was a major victory for them and the larger antislavery movement. Today, it also represents a gateway for understanding the complex operations of the Underground Railroad and its struggle to destroy slavery in America.

### Defining the Term: Underground Railroad

By the time of the resistance at Christiana, the phrase Underground Railroad was only about ten years old. It was metaphor born in the 1840s and popularized by abolitionist newspapers as part of a sweeping propaganda strategy designed to embarrass Southern enslavers. The point of the comparison was to highlight the growing traffic of enslaved people fleeing bondage. The metaphor also glorified the vast network of fugitive supporters who seemed more than willing to break state and federal laws to help liberate them.

Since those early days, however, the phrase has taken on wider meaning. For modern interpreters, the Underground Railroad can refer more broadly to the history of resistance against slavery whenever conducted through escape and flight. From this perspective, well before abolitionists employed the specific phrase in their newspapers, even as early as the colonial era, there were notable examples of an “underground railroad” that helped freedom seekers. Some interpreters then like to emphasize how this developing network to freedom expanded across the continent and continued through the Civil War until the abolition of

chattel slavery in 1865.

One of the earliest public references to the “underground railroad” from the *Albany Tocsin of Liberty* in 1842, reprinted widely by other abolitionist newspapers that autumn (Chronicling America)

But whether the interpretive focus lies with the origins of the term or its evolving essence, popular misconceptions have abounded. People often take the memorable phrase too literally. Confused children sometimes visualize a type of subway train or metro moving runaway slaves under the ground. Grownups can also get stuck on the wording, depicting the Underground Railroad as a secret national organization with fixed leadership roles, such as stationmaster or conductor, operating regular escape routes which connected safe houses from the Deep South to Canada.

To be sure, there were heroic “conductors” and covert “stations” involved with quests for freedom, but the original metaphor was never intended as the centerpiece for an elaborate nationwide escape code. Frederick Douglass, who had fled from enslavement in Maryland in 1838, even worried about the disregard for secrecy among his underground allies. “I have never approved of the very public manner in which some of our western friends have conducted what they call the *underground railroad*,” he wrote in 1845, “but which I think, by their open declarations, has been made most emphatically the *upperground railroad*.”[1] Douglass’s warning to abolitionists in Ohio and elsewhere across the Old Northwest certainly highlights the movement’s decentralized nature. Various types of antislavery committees and communities worked on their own and in tandem to support freedom seekers. Yet despite occasional disagreements over tactics, these activists were always striving for what one leader shrewdly called, “practical abolition.”[2]

## Original Article

https://housedivided.dickinson.edu/sites/ugrr/overview-essays/introduction-pinsker/

## Chicago Citations

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### SHORTENED FOOTNOTE

Pinsker, "Introduction."

CHAPTER 13 · WEB ARTICLE W13.30

# The Fugitive Slave Laws and Boston

**National Park Service, Boston African American National Historic Site**

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|---|---|
| **AUTHOR** | National Park Service, Boston African American National Historic Site |
| **WEBSITE** | National Park Service |
| **PUBLICATION** | Last updated January 5, 2026 |
| **CHAPTER / PROMPTS** | Chapter 13 \| 13.4 |
| **ARGUMENT ROLES** | 13.4.3 Support |

## Excerpt · 914 words

Signed into law on September 18, 1850, by President Millard Fillmore, the Fugitive Slave Law had dramatic ramifications across the country, including here in Boston. Decades earlier, lawmakers attempted to address the issue of runaways in both the Constitution and the Fugitive Slave Law of 1793, but gaps remained. The new law, part of the legislative package known as the Compromise of 1850, provided far more tools to enslavers to recapture freedom seekers[1] with the full backing and support of the federal government. In Boston, the enforcement of the 1850 law galvanized the local community, spurred an increase in Underground Railroad activity, and led to open confrontations between anti-slavery activists and enslavers, their agents, the federal government, and other authorities.

### The Fugitive Slave Clause and the Fugitive Slave Law of 1793

Prior to the Fugitive Slave Law of 1850, the federal government dealt with the issue of freedom seekers both in the Constitution and in the Fugitive Slave Law of 1793. Article IV, section 2, clause 3, also known as the Fugitive Slave Clause of the United States Constitution states:

> No Person held to Service or Labour in one State, under the Laws thereof, escaping into another, shall, in Consequence of any Law or Regulation therein, be discharged from such Service or Labour, but shall be delivered up on Claim of the Party to whom such Service or Labour may be due.[2]

Following American Independence, northern states began gradually abolishing slavery and freedom seekers sought refuge in these newly free states. In response, many pro-slavery leaders demanded Congress enforce this Fugitive Slave Clause. This directly led to the passage of the Fugitive Slave Law of 1793. The law called for the arrest of "persons escaping from the service of their masters," allowed any judge or "any magistrate of a county, city, or town corporate" to rule on the matter, and imposed up to a $500 fine and a year in prison to anyone who helped a freedom seeker.[3]

Here in Boston, several cases involved the Fugitive Slave Law of 1793, including the arrest of Eliza Small and Polly Ann Bates in 1836, and George Latimer in 1842. Small and Bates' arrest led to a successful courthouse rescue known as the Abolition Riot. Latimer's arrest, on the other hand, led to his freedom being purchased by Bostonians. Additionally, the Latimer case sparked the passage of a Personal Liberty Law which aimed to limit the enforcement of the federal fugitive slave law in Massachusetts.[4]

### The Fugitive Slave Law of 1850

To ease ongoing tensions between northern and southern states, Congress passed a series of laws collectively known as the Compromise of 1850. In a concession to pro-slavery interests, legislators included a new and far more stringent Fugitive Slave Law as part of this legislative package. The new law mandated that freedom seekers be returned to their enslavers without due process. Cases would be determined by newly appointed federal commissioners who received twice as much money if they ruled that a suspected freedom seeker should be returned to their enslaver rather than released. The law empowered federal marshals to enforce it and mandated the compliance and assistance of state and local authorities. Even the public could be deputized to uphold this law. The law also imposed stiff fines and sentences, $1000 and up to six months in prison, to anyone "who shall knowingly and willingly obstruct, hinder, or prevent" the capture of a freedom seekers.[5]

### Boston Responds

This law had an immediate impact in Boston. Massachusetts Senator Charles Sumner declared the Fugitive Slave Law of 1850 "a flagrant violation of the Constitution, and of the most cherished of human rights—shocking to Christian sentiments, insulting to humanity, and impudent in all its pretentions."[6] The Massachusetts Anti-Slavery Society insisted that the law:

> be denounced, resisted, disobeyed, at all hazards. Its enforcement on Massachusetts soil must be rendered impossible. The testimony against it must be so emphatic and universal, that no slave hunter will dare make his appearance among us, and no officer or the government presume to give any heed to it. The religious or political journal that refuses to record its protest against the law must be unmasked, exposed, and held up to popular abhorrence.[7]

In early October 1850, Black Bostonians met in the African Meeting House in protest of this new law and called upon their White allies to gather with them at Faneuil Hall to plan their collective response.[8] At this meeting in the Great Hall, together they formed the third and final iteration of the Boston Vigilance Committee to assist freedom seekers coming to and through Boston on the Underground Railroad.

By October 1850, slave hunters came to Boston in search of Ellen and William Craft, only to be thwarted at every turn. In February 1851, Bostonians, under the leadership of Black abolitionist Lewis Hayden, successfully rescued freedom seeker Shadrach Minkins. Later that spring, despite the best efforts of the abolitionists, slave catchers brought Thomas Sims back to slavery. And in 1854, authorities arrested Anthony Burns in the city's most infamous and last major Fugitive Slave Law case. The Burns case and changing public opinion led the passage of another Personal Liberty Law in Massachusetts, making it nearly impossible to enforce the Fugitive Slave Law in the state.

Though part of a legislative compromise designed to appease both northern and southern interests, the Fugitive Slave Law divided the nation further. It also united many in the North from across the political spectrum against its enforcement. Though intended to stave off disunion, the Fugitive Slave Law, in fact, helped drive the nation to civil war.

## Original Article

https://www.nps.gov/articles/000/fugitive-slave-laws-boston.htm

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#### SHORTENED FOOTNOTE

"Fugitive Slave Laws."

CHAPTER 13 · WEB ARTICLE W13.31

# Secession

Anthony Gene Carey

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|---|---|
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| **WEBSITE** | New Georgia Encyclopedia, Georgia Humanities / University of Georgia Press |
| **PUBLICATION** | December 15, 2003; edited September 29, 2020 |
| **CHAPTER / PROMPTS** | Chapter 13 \| 13.5 |
| **ARGUMENT ROLES** | 13.5.1 Support; 13.5.2 Support; 13.5.3 Support |

## Excerpt · 1,045 words

Georgia's secession from the Union followed nearly two decades of increasingly intense sectional conflict over the status of slavery in western territories and over the future of slavery in the United States. The secession of southern states hastened the outbreak of the Civil War (1861-65).

Secession had been seriously mentioned as a political option at least as far back as the Missouri crisis of 1819-21, and threats to disrupt the Union occurred in every sectional crisis from the nullification era (1828-33) onward. White Georgians, along with other white southerners, disagreed over whether secession was a constitutional right (embodied in the national compact that grew out of the 1787 Constitutional Convention) or a natural right of revolution (arising from the inherent power of the people to form and abolish governments). But in a practical sense this distinction mattered less than the fact that secession was widely recognized as a legitimate remedy for southern grievances. As sectional strife over slavery intensified in the mid-nineteenth century, some southern agitators pressed for immediate secession.

The Georgia Platform, a response to the Compromise of 1850, accepted the terms of the unpopular Compromise but also satisfied secessionists by declaring that further assaults on slavery in the South or in future states would be unacceptable. The writers warned that northern contempt of the Platform would make secession inevitable. Thus, when Abraham Lincoln, the candidate of the antislavery, northern Republican Party, won the 1860 presidential election, states in the lower South moved quickly to call state conventions to consider secession. Georgia's state legislature set January 2, 1861, as the election date for a state convention, which was to meet on January 16.

Opposing camps formed rapidly in the campaign for the election of county delegates to the state convention. Immediate secessionists, mostly former Democrats headed by Howell Cobb, Thomas R. R. Cobb, Joseph E. Brown, Henry Rootes Jackson, Robert Toombs, and others, believed that Lincoln's election violated the spirit of the U.S. Constitution and provided clear evidence that a tyrannical northern majority intended to trample on southern rights and ultimately abolish slavery. Honor and safety depended, immediate secessionists argued, on severing ties with the Union as quickly and completely as possible, to protect the South from its enemies and promote southern unity. Immediate secessionists had the advantage of a decisive plan of action and a strong set of allies in neighboring Deep South states—South Carolina, Mississippi, Florida, and Alabama would secede before Georgia's state convention even met.

Cooperationists, a varied collection of former Whigs and conservative Democrats, were led by Alexander Stephens, Herschel Johnson, and Benjamin Hill. Cooperationists agreed that the South faced great dangers and that Republicans must provide strong guarantees to protect slavery and southern rights if Georgia were to remain in the Union. In other words, cooperationists differed from immediate secessionists more in tactics than in underlying principles. Cooperationist plans for delay and deliberation typically involved holding a convention of southern states to frame ultimatums that would extract concessions from the Republican Party. The secession of nearby states, however, made the logic of cooperationist proposals suspect and weakened their resolve; they were far less active during the campaign than their immediate secessionist counterparts.

White Georgians spoke very clearly on the issues at stake in 1860-61. A series of debates was held in the state capital of Milledgeville, and county conventions denounced northern aggression; reiterated familiar claims regarding southern rights to expand slavery into the territories; vigorously defended southern honor; conjured up the horrors of abolitionism, race war, and

racial amalgamation; and insisted upon security for the South's peculiar institution. Liberty and freedom, for the white male voters of Georgia, meant preserving their right to enslave people and to rule their family households without interference from outside forces, most especially from the federal government, which in their view had fallen into the hands of abolitionist fanatics. Republican and northern hostility to slavery was cited as the sole compelling reason for contemplating secession, and white Georgians agreed that what they interpreted as repeated and unprovoked assaults upon slavery must cease or the Union must be dissolved.

The exact results of the January 2 election, in terms of total votes cast for each side statewide, will probably never be known: there were voting irregularities, and some of the candidates held ambiguous positions. Although the unofficial count released—not until April—by Governor Joseph E. Brown showed a lopsided victory for the immediate secessionists, the best evidence indicates that they won, at best, a tiny majority of the ballots cast, 44,152 to 41,632. Outside of the mountain counties (strongly cooperationist) and the coastal counties (overwhelmingly for immediate secession), voting patterns were mixed. Black Belt counties—those characterized by large plantations and large enslaved populations—that had supported the Whig Party in the 1830s and 1840s and had voted against southern Democrat John C. Breckinridge in the 1860 presidential election tended toward cooperationism, while Democratic counties in the Black Belt that had supported Breckinridge generally favored immediate secession. Although only about 40 percent of white families in Georgia enslaved African Americans (a considerably higher percentage than in the South as a whole), no clear-cut divisions along slaveholder/nonslaveholder lines appeared at the polls.

The Georgia state convention opened on January 16, 1861. It was an impressive assemblage, including Alexander Stephens, Robert Toombs, Eugenius A. Nisbet, Herschel Johnson, and Benjamin Hill; former governor George W. Crawford presided. Despite the closeness of the election, immediate secessionists had a controlling majority. The crucial vote occurred on January 18, when Nisbet offered resolutions for immediate secession and Johnson countered with a proposal for a convention of the southern states. Johnson's plan embodied the cooperationist formula of seeking redress for grievances in the Union, while reserving secession as the ultimate remedy. Georgia's conditions for remaining in the Union, as outlined by Johnson, included constitutional amendments opening all territories to slavery and providing for the unrestricted admission of new slave states, along with the repeal of personal liberty laws (laws that impaired the ability of slave owners to recover fugitives from slavery) in the northern states. After debate, the convention passed Nisbet's resolutions by a 166-130 vote. The next day, January 19, the delegates voted 208-89 to adopt an ordinance of secession. On January 21 the ordinance of secession was publicly signed in a lengthy ceremony.

## Original Article

https://www.georgiaencyclopedia.org/articles/history-archaeology/secession/

## Chicago Citations

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### SHORTENED FOOTNOTE

Carey, "Secession."

CHAPTER 13 · WEB ARTICLE W13.32

# Secession

**Essential Civil War Curriculum**

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|---|---|
| **AUTHOR** | Essential Civil War Curriculum |
| **WEBSITE** | Essential Civil War Curriculum |
| **PUBLICATION** | n.d. |
| **CHAPTER / PROMPTS** | Chapter 13 \| 13.5 |
| **ARGUMENT ROLES** | 13.5.1 Qualify; 13.5.2 Qualify; 13.5.3 Qualify |

## Excerpt · 1,028 words

On December 20, 1860, the South Carolina convention unanimously adopted an ordinance of secession, the result of tensions beginning in 1787 with how the Constitution handled the slavery issue. From then until December 1860 a series of events and crises aggravated sectional conflict and tensions. The Missouri Compromise of 1821 arising from the Louisiana Purchase in 1803, the Compromise of 1850 arising from the Mexican-American War of 1846-1848, John Brown's Raid in 1859 and finally the election of Abraham Lincoln in 1860 were among the developments and events that led to the secession crisis of 1860-1861. Following South Carolina's lead, six deep south states adopted secession ordinances in January and February 1861—Mississippi, Florida, Alabama, Georgia, Louisiana, and Texas. Another eight slaveholding states moved more cautiously. These states were controlled by moderate unionists. Four of them seceded after the start of military hostilities in April 1861with the attack on Fort Sumter and Lincoln's call for 75,000 volunteers to suppress the rebellion—Virginia, Arkansas, North Carolina, and Tennessee. Four other slaveholding states never left the union— Kentucky, Maryland, Delaware, and Missouri. Maryland spent the war under Federal occupation. Kentucky remained deeply divided raising regiments for both the Union and Confederate armies. Similarly, Missouri supplied regiments to both side but also suffered brutal guerrilla warfare throughout the war. The Confederacy began to take shape well before Fort Sumter. In February 1861, a convention was held electing Jefferson Davis President and Alexander Hamilton Vice President of the new Confederacy and producing a provisional constitution for the new state. In his inaugural address, President Davis justified the right of secession in order to resist an oppressive national government. He set out the objective of the new state as having no interest in invading the rights of others, but a determination to defend the new nation from invasion if necessary.

Secession Exploded Lithograph by William Wiswell Cincinnati, Ohio Copyright June 18, 1861.

Secession—the most serious challenge to the American Republic in its history—reflected a tension that existed between nationhood and the rights of slaveholders. As early as 1787, when Americans pondered ways to construct a new federal Union, there were differences about the appropriateness and extent of protections that should exist for slaveholders. How much political power should slaveholders exert? What was the responsibility of the new nation to protect the property rights of masters? To what extent could the nation regulate slavery? One of the "primary objects" of the new constitution, as James Madison declared at the 1787 constitutional convention, was the "guardianship of property, according to the whole number, including slaves." [1] These tensions, punctuating newly realized sectional divisions, provided for a constitutional system that excluded federal intervention in slavery while extending the system of slaveholder protection existing in the South to the new Union. [2]

The inherent tensions—one might say contradictions—in how the Constitution protected slaveholders became exposed and aggravated after 1787. The Louisiana Purchase of 1803 eventually forced Americans to consider a fundamental question: could Congress limit the growth of slavery into new territories? During the Missouri crisis, when the new state of Missouri—created out of a portion of the Louisiana Purchase—petitioned Congress to join the Union, a political crisis erupted when some congressmen attempt to ban slavery in the new state. Though admitting Missouri as a slave state, the resulting Missouri Compromise of 1821 permitted the growth of slavery, but only below the 36-30 line.

### Origins of Crisis

The US-Mexican War, which added huge new territories in the American Southwest, engendered a bitter dispute about the nature—and future—of the American Union. Texas was already a slave state, but what about territories that sought to become states in former Mexican provinces? Could they permit slavery? The Compromise of 1850 attempted to solve the dispute by providing for a formula of popular sovereignty, in which the matter would be decided by the voters of the new territories attempting to form states. The Compromise greatly inflamed sectional conflict. Northern antislavery advocates became mobilized against the new fugitive slave act, part of the compromise, that required strong new federal intervention in apprehending slaves who had escaped to northern free states. The doctrine of popular sovereignty proved a disaster in Kansas, where pro- and anti-slavery forces waged a war against each other regarding the issue of whether the new state would permit slavery.

The post-1850 sectionalization of national politics created an environment in which compromise became impossible. Southern extremists believed that the system of slavery needed to expand beyond the South in order to survive; without expansion, they warned, the southern social system would wither and decline. Efforts by Congress to limit slavery's boundaries, they argued, were part of a larger plan to circumscribe the white South and to reduce it to second-class status within the Union. The debate about slavery's extension, extremists believed, really addressed whether slavery could be choked off and the basis of southern prosperity eroded, with Congress limiting slavery and abolitionists encouraging slave insurrection. Mostly, this fear reflected a common slaveholder fiction. Although there was little evidence of abolitionists operating secretly in the South, slaveholders worried that slaves would somehow join forces with abolitionists, become emboldened by antislavery appeals, and rise up against their masters. These fears, reasonable or unreasonable, found themselves fulfilled in John Brown's futile attempt at Harpers Ferry, Virginia, in October 1859.

An antislavery guerrilla fighter of some renown, Brown planned a daring invasion of the slaveholder heartland. Raising funds across the abolitionist North between 1857 and 1859—including from the Secret Six, a group of prominent abolitionists [3]—Brown assembled a military band and rented a farm in Maryland. On October 16, 1859, his band of twenty-two men attacked the federal armory and rifle works at Harpers Ferry, in Virginia. Brown hoped to ignite a slave revolt and then use the nearby hill country to mount an antislavery guerrilla war. After the local militia surrounded him, US marines under the command of Colonel Robert E. Lee assaulted the armory, capturing Brown and seven of his collaborators. Brown was tried in Charles Town, Virginia, nine days after his capture—for treason to the Commonwealth of Virginia, not the United States—and convicted on November 2, 1859. A month later, he was hanged in Charles Town.

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**FULL FOOTNOTE**

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**SHORTENED FOOTNOTE**

"Secession."

CHAPTER 13 · WEB ARTICLE W13.33

# Georgia Secession Convention of 1861

George Justice

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| CHAPTER / PROMPTS | Chapter 13 \| 13.5 |
| ARGUMENT ROLES | 13.5.3 Support; 13.5.1 Support |

## Excerpt · 706 words

The Georgia Secession Convention of 1861 represents the pinnacle of the state's political sovereignty. With periodic interruptions, the convention met in Milledgeville from January 16 to March 23, 1861, and not only voted to secede the state from the Union but also created Georgia's first new constitution since 1798. Politically the convention was a watershed event that hastened the Civil War (1861-65) and dramatically changed the course of Georgia history.

The idea of state secession emerged in the late eighteenth century as tensions developed over the interpretations of state versus federal powers as enumerated by the U.S. Constitution. Earlier conventions, including various nullification conventions in the 1830s and the southern conventions surrounding the crisis over slavery in 1850, considered the act of leaving the Union. Still, none adopted an official proclamation until the South Carolina Secession Convention in December 1860.

The escalating sectional crises over slavery in the 1850s contributed to the volatile tensions that arose during the 1860 presidential campaign. Abraham Lincoln's election in November of that year caused a fiery backlash in the southern states, which feared the abolitionist policies of the Republican Party. The result was a series of state conventions across the South, beginning with South Carolina's in December. The fifth such convention occurred in Georgia, a pivotal state in the debate due to its geographic importance to the region, the stature of its congressional delegation as leading voices for southern grievances, and its economic value as a major cotton producer.

On January 2, 1861, a miserably rainy day, Georgia voters went to the polls and selected delegates to a convention that would decide the state's response to Lincoln's election. In many counties the candidates divided along two divergent views. Immediate secessionists advocated leaving the Union without further consideration. Cooperationists, however, tended to be more conciliatory. Their opinions ranged from maintaining a devout Unionism, to desiring a scheme in which the South acted in unison, to advocating a delay of the act of secession. Low voter turnout due to the poor weather may have affected the election's outcome, but the immediate secessionists finished with a slight majority of delegates. Political speeches, newspapers, and the contentiousness of state leaders reveal the deep divisions over the issue of secession at that time.

Once the delegates convened in Milledgeville on January 16, they wasted little time in testing the mood of the convention. After the rules and procedures for the meeting were established on the first day, countering proposals alternated between such immediate secessionists as Eugenius A. Nisbet and cooperationists like Herschel Johnson. Early votes indicated that there might be a close contest: one resolution demonstrated that the split between the immediate secessionists and the cooperationists was as close as 166 to 130 respectively. In the end, however, the final vote on January 19 revealed a major shift in the convention for immediate secession, when the cooperationists failed by a tally of 208 to 89. With this vote at two o'clock in the afternoon, the convention president, George W. Crawford, proclaimed Georgia officially seceded from the Union. Celebrations across the state drowned any lingering dissent from cooperationists or Union loyalists.

The delegates reconvened on January 21 to begin a new phase of the convention—that of writing a new constitution for the state. In many aspects the Georgia Constitution of 1861 resembled that of the Constitution of 1798. There were, nevertheless, some notable differences. The 1861 document made specific provisions for the protection of slavery in the state. The new constitution also took away the amending power of the assembly and gave it solely to a constitutional convention chosen by the people of Georgia specifically for that purpose.

The convention adjourned temporarily to allow a committee time to write the new constitution and to await the outcome of the Confederate Convention at Montgomery, Alabama, in February 1861. Reconvened in March, the Georgia Secession Convention, now a constitutional convention, ratified the new Confederate Constitution and voted to submit the new Georgia constitution to the people by ballot in July. The delegates adjourned for the last time on March 23, 1861. Nearly three weeks later, on April 12, Confederate batteries fired on federal troops at Fort Sumter, in South Carolina, and thus began hostilities in the Civil War.

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https://www.georgiaencyclopedia.org/articles/government-politics/georgia-secession-convention-of-1861/

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### SHORTENED FOOTNOTE

Justice, "Georgia Secession Convention."

CHAPTER 13 · WEB ARTICLE W13.34

# Why Non-Slaveholding Southerners Fought

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| **CHAPTER / PROMPTS** | Chapter 13 \| 13.5, 14.3 |
| **ARGUMENT ROLES** | 13.5.1 Support; 13.5.2 Support; 14.3.1 Support |

## Excerpt · 790 words

This year initiates the commemoration of the Sesquicentennial of the Civil War. This is an occasion for serious reflection on a war that killed some 600,000 of our citizens and left many hundreds of thousands emotionally and physically scarred. Translated into today's terms – our country is ten times more populous than it was then -- the dead would number some 6 million, with tens of millions more wounded, maimed, and psychologically damaged. The price was indeed catastrophic.

As a Southerner with ancestors who fought for the Confederacy, I have been intrigued with the question of why my ancestors felt compelled to leave the United States and set up their own country. What brought the American experiment to that extreme juncture?

The short answer, of course, is Abraham Lincoln's election as president of the United States. What concerned Southerners most about Lincoln's election was his opposition to the expansion of slavery into the territories; Southern politicians were clear about that. If new states could not be slave states, went the argument, then it was only a matter of time before the South's clout in Congress would fade, abolitionists would be ascendant, and the South's "peculiar institution" – the right to own human beings as property – would be in peril.

It is easy to understand why slave owners would be concerned about the threat, real or imagined, that Lincoln posed to slavery. But what about those Southerners who did not own slaves? Why would they risk their livelihoods by leaving the United States and pledging allegiance to a new nation grounded in the proposition that all men are not created equal, a nation established to preserve a type of property that they did not own?

In order to find an answer to this question, please travel back with me to the South of 1860. Let's put ourselves into the skin of Southerners who lived there then. That's what being an historian is about: putting yourself into the minds of people who lived in another time to understand things from their perspective, from their point of view. Let's set aside what people said and wrote later, after the dust had settled. Let's wipe the historic slate clean and visit the South of 150 years ago through the documents that survive from that time. What were Southerners saying to other Southerners about why they had to secede?

There is, of course, a historical backdrop that formed the foundation of experience for Southerners in 1860. More than 4 million enslaved human beings lived in the south, and they touched every aspect of the region's social, political, and economic life. Slaves did not just work on plantations. In cities such as Charleston, they cleaned the streets, toiled as bricklayers, carpenters, blacksmiths, bakers, and laborers. They worked as dockhands and stevedores, grew and sold produce, purchased goods and carted them back to their masters' homes where they cooked the meals, cleaned, raised the children, and tended to the daily chores. "Charleston looks more like a Negro country than a country settled by white people," a visitor remarked.

Fear of a slave rebellion was palpable. The establishment of a black republic in Haiti and the insurrections, threatened and real, of Gabriel Prosser, Denmark Vesey, and Nat Turner stoked the fires. John Brown's raid at Harper's Ferry sent shock waves through the south. Throughout the decades leading up to 1860, slavery was a burning national issue, and political battles raged over the admission of new states as slave or free. Compromises were struck – the Missouri Compromise, the Compromise of 1850 – but the controversy could not be laid to rest.

The South felt increasingly beleaguered as the North increased its criticism of slavery. Abolitionist societies sprang up, Northern publications demanded the immediate end of slavery, politicians waxed shrill about the immorality of human bondage, and overseas, the British parliament terminated slavery in the British West Indies. A prominent historian accurately noted that "by the late 1850's most white Southerners viewed themselves as prisoners in their own country, condemned by what they saw as a hysterical abolition movement."

As Southerners became increasingly isolated, they reacted by becoming more strident in defending slavery. The institution was not just a necessary evil: it was a positive good, a practical and moral necessity. Controlling the slave population was a matter of concern for all Whites, whether they owned slaves or not. Curfews governed the movement of slaves at night, and vigilante committees patrolled the roads, dispensing summary justice to wayward slaves and whites suspected of harboring abolitionist views. Laws were passed against the dissemination of abolitionist literature, and the South increasingly resembled a police state. A prominent Charleston lawyer described the city's citizens as living under a "reign of terror."

## Original Article

https://www.battlefields.org/learn/articles/why-non-slaveholding-southerners-fought

## Chicago Citations

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### SHORTENED FOOTNOTE

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CHAPTER 13 · WEB ARTICLE W13.35

# Secession

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| CHAPTER / PROMPTS | Chapter 13 \| 13.5 |
| ARGUMENT ROLES | 13.5.1 Support; 13.5.2 Support; 13.5.3 Support |

## Excerpt · 1,017 words

Secession is the doctrine that the people of each state, having voluntarily entered the Union, have the right to withdraw from it whenever they come to believe that continued membership represents a threat to their liberties. This prerogative was declared to be unconstitutional by the U.S. Supreme Court in 1869 in the case of *Texas v. White*, but earlier in the nineteenth century it had been widely discussed. As northern attacks on the institution of slavery began to mount, beginning with the controversy over the admission of Missouri as a slave state in 1819-20, pro-slavery extremists in Alabama and other southern states increasingly referred to secession as their ultimate defense to protect their region's society and economy.

During the nullification crisis of 1828-33 in South Carolina, a small group of Alabamians who admired South Carolina senator John C. Calhoun's radical states' rights principles coalesced under the leadership of congressman and future senator Dixon Hall Lewis of Lowndes County. These Calhounites, as they became known, accepted Calhoun's warning that national parties inevitably caused their members to compromise their principles in pursuit of political victory, and therefore that, for southerners, party membership would always mean making concessions to the northern opponents of southern interests. They consequently attempted to remain aloof from the developing two-party system. But as the Democratic and Whig parties began to take final form in 1839, in preparation for the presidential election of 1840, the Calhounites reluctantly cast their lot with the Democrats. Although the Calhounites were deeply hostile to the Whigs' desire for a vigorous national program of economic development, they were never really in sympathy with the anti-planter, anti-corporate beliefs of the Democrats' overwhelming Jacksonian majority.

Following Dixon Lewis's death in 1848, the leadership of the Calhounite faction passed to Montgomery attorney William Lowndes Yancey. In the developing crisis over the admission of California as a free state during 1848-50, Yancey and his allies attempted to push the state's Democrats into adopting an extreme southern rights stance. But with the passage of the Compromise of 1850, which balanced California's admission with a number of other provisions including a law facilitating the recovery of slaves who had fled into the free states, pro-Compromise Democrats formed a coalition with the Whigs and trounced Yancey's southern rights candidates in the state elections of 1851. In the presidential election of 1852, the Yanceyites ran their own candidates for president and vice-president—George M. Troup of Georgia and John A. Quitman of Mississippi, respectively—against both the Democratic and the Whig nominees. They received just 4.6 percent of the poll and carried only Barbour and Lowndes Counties. It is clear, in short, that as late as the early 1850s, the Yanceyites still had the backing of only a tiny handful of Alabama voters. The developments that would lead the state to secession turned on the dissolution of the Whig Party and the rise of Yancey's faction among the Democrats following the passage of the Kansas-Nebraska Act of 1854.

The Kansas-Nebraska Act allowed voters in these new territories to decide for themselves whether slavery would be legal in them, an arrangement known as popular sovereignty. The opening of these territories to the possibility of slavery, which had been prohibited there by the Missouri Compromise of 1820, was widely seen by anti-slavery northerners as a part of a southern plot to extend slavery throughout the nation, the so-called Slave Power Conspiracy. Anti-slavery northern Whigs, believing that their membership in an intersectional party had prevented them from taking a sufficiently strong stand against slavery's expansion, withdrew from the party and formed the new Republican Party, dedicated to prohibiting the introduction of slavery into every territory. The Whig Party as a national institution then disintegrated. Most southern Whigs, including Alabama's, initially took refuge in the Know-Nothing Party. But that party's virulently anti-Catholic doctrines alienated more moderate

Whigs in Alabama as elsewhere. The Know-Nothing presidential candidate in 1856, Millard Fillmore, took only 38 percent of Alabama's vote, and the movement in the state then collapsed. The banner of the opposition, now a mere shadow of itself, passed to an extreme southern rights faction led by Montgomery attorney Thomas J. Judge and humorist and editor Johnson J. Hooper, who argued that pro-slavery southern Democrats were unreliable defenders of their section because their desire for national victory would inevitably lead them to soften their defense of the institution.

In the meantime, the increasing success of the new Republican Party in the north, with its adamant opposition to the extension of slavery into the western territories, seemed proof to more and more Alabamians of the northern intention to reduce southerners to second-class citizenship in the union. Essentially all Alabama voters, across the entire political spectrum, believed that the territories were the common property of all Americans, and therefore that all Americans should be able to go there and take their personal property, including slaves, with them. Therefore, as Republicans won more and more northern offices, Yancey's strident condemnation of Republicans' exclusionary doctrines increasingly made him seem to be a defender of southerners' equal rights as American citizens. And then, the U.S. Supreme Court's decision in the case of *Dred Scott v. Sandford* in 1857, holding that under the Fifth Amendment, no citizen could be prohibited from taking any property, including slave property, to any territory, gave the Yanceyites' claims clear constitutional authority and made the Republicans seem sectionalist aggressors. More moderate politicians who urged compromise now appeared to be weak appeasers, willing to sacrifice southerners' liberties.

As Yancey's inflexible defense of southern rights gained popularity, a host of young Democratic politicians flocked to his leadership, thrusting aside the old Calhounites who had earlier been his constituency. Men such as J. L. M. Curry of Talladega, Edward C. Bullock and the brothers Eli Sims Shorter and John Gill Shorter of Eufaula, Cullen A. Battle of Tuskegee, Hilary A. Herbert of Greenville, and William C. Oates of Abbeville embraced Yancey's cause. These young and ambitious attorneys were eager to prove to the voters that they were firm defenders of the rights of Alabamians, and thus to advance their nascent political careers.

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https://encyclopediaofalabama.org/article/secession/

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### SHORTENED FOOTNOTE

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CHAPTER 13 · WEB ARTICLE W13.36

# Reasons for Secession

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| PUBLICATION | December 9, 2013; updated October 3, 2023 |
| CHAPTER / PROMPTS | Chapter 13 \| 13.5 |
| ARGUMENT ROLES | 13.5.1 Support; 13.5.2 Support |

## Excerpt · 1,034 words

The root cause of the American Civil War is perhaps the most controversial topic in American history. Even before the war was over, scholars in the North and South began to analyze and interpret the reasons behind the bloodshed.

The scholars immediately disagreed over the causes of the war and disagreement persists today. Many maintain that the primary cause of the war was the Southern states' desire to preserve the institution of slavery. Others minimize slavery and point to other factors, such as taxation or the principle of States' Rights.

In 2011, at the outset of the sesquicentennial, a Pew Research Center poll found that Americans were significantly divided on the issue, with 48% saying the war was "mainly about states' rights," 38% saying the war was "mainly about slavery," with the remainder answering "both equally" or "neither/don't know."

One method by which to analyze this historical conflict is to focus on primary sources. Every state in the Confederacy issued an "Article of Secession" declaring their break from the Union. Four states went further. Texas, Mississippi, Georgia and South Carolina all issued additional documents, usually referred to as the "Declarations of Causes," which explain their decision to leave the Union.

Two major themes emerge in these documents: slavery and states' rights. All four states strongly defend slavery while making varying claims related to states' rights. Other grievances, such as economic exploitation and the role of the military, receive limited attention in some of the documents. This article will present, in detail, everything that was said in the Declarations of Causes pertaining to these topics.

### Slavery

1) Each declaration makes the defense of slavery a clear objective.

Mississippi: *Our position is thoroughly identified with the institution of slavery-- the greatest material interest of the world. Its labor supplies the product which constitutes by far the largest and most important portions of commerce of the earth... These products have become necessities of the world, and a blow at slavery is a blow at commerce and civilization. That blow has been long aimed at the institution, and was at the point of reaching its consummation. There was no choice left us but submission to the mandates of abolition, or a dissolution of the Union, whose principles had been subverted to work out our ruin.*

Texas: *The servitude of the African race, as existing in these States, is mutually beneficial to both bond and free, and is abundantly authorized and justified by the experience of mankind, and the revealed will of the Almighty Creator, as recognized by all Christian nations.*

South Carolina: *Those [Union] States have assumed the right of deciding upon the propriety of our domestic institutions; and have denied the rights of property established in fifteen of the States and recognized by the Constitution; they have denounced as sinful the institution of slavery; they have permitted open establishment among them of societies, whose avowed object is to disturb the peace and to eloign the property of the citizens of other States.*

Georgia: *That reason was [the North's] fixed purpose to limit, restrain, and finally abolish slavery in the States where it exists. The South with great unanimity declared her purpose to resist the principle of prohibition to the last extremity.*

2) Some states argue that slavery should be expanded.

Georgia: *We had acquired a large territory by successful war with Mexico; Congress had to govern it; how, in relation to slavery, was the question then demanding solution. Northern anti-slavery men of all parties asserted the right to exclude slavery from the territory by Congressional legislation and demanded the prompt and efficient exercise of this power to that end. This insulting and unconstitutional demand was met with great moderation and firmness by the South. We had shed our blood and paid our money for its acquisition; we demanded a division of it... or an equal participation in the whole of it. The price of the acquisition was the blood and treasure of both sections-- of all, and, therefore, it belonged to all upon the principles of equity and justice.*

Texas: *The controlling majority of the Federal Government, under various pretenses and disguises, has so administered the same as to exclude the citizens of the Southern States, unless under odious and unconstitutional restrictions, from all the immense territory owned in common by all the States on the Pacific Ocean, for the avowed purpose of acquiring sufficient power in the common government to use it as a means of destroying the institutions of Texas and her sister slaveholding States.*

3) Abolitionism is attacked as a method of inciting violent uprisings.

Georgia: *For twenty years past the abolitionists and their allies in the Northern States have been engaged in constant efforts to subvert our institutions and to excite insurrection and servile war among us. ... These efforts have in one instance led to the actual invasion of one of the slave-holding States, and those of the murderers and incendiaries who escaped public justice by flight have found fraternal protection among our Northern confederates.*

Mississippi: *[Abolitionism] advocates negro equality, socially and politically, and promotes insurrection and incendiarism in our midst. It has enlisted its press, its pulpit and its schools against us, until the whole popular mind of the North is excited and inflamed with prejudice.*

Texas: *The people [of non-slave holding states] have formed themselves into a great sectional party, now strong enough in numbers to control the affairs of each of those States, based upon an unnatural feeling of hostility to these Southern States and their beneficent and patriarchal system of African slavery, proclaiming the debasing doctrine of equality of all men, irrespective of race or color-- a doctrine at war with nature, in opposition to the experience of mankind, and in violation of the plainest revelations of Divine Law. They demand the abolition of negro slavery throughout the confederacy, the recognition of political equality between the white and negro races, and avow their determination to press on their crusade against us, so long as a negro slave remains in these States... They have, through the mails and hired emissaries, sent seditious pamphlets and papers among us to stir up servile insurrection and bring blood and carnage to our firesides.*

## Original Article

https://www.battlefields.org/learn/articles/reasons-secession

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### SHORTENED FOOTNOTE

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CHAPTER 13 · WEB ARTICLE W13.37

# States' Rights

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| PUBLICATION | December 7, 2020; updated February 18, 2025 |
| CHAPTER / PROMPTS | Chapter 13 \| 13.5, 14.1 |
| ARGUMENT ROLES | 13.5.1 Support; 13.5.2 Support; 14.1.2 Support |

## Excerpt · 1,093 words

The idea of states' rights dates back to Thomas Jefferson, who himself drew on the "social contract" theories of the British philosophers Thomas Hobbes (1588–1679) and John Locke (1632–1704). Jefferson maintained that the United States was formed through a social contract between the individual states rather than the people as a whole. In other words, because these states had united voluntarily to form a union—in Jefferson's language, a "compact"—the U.S. government derived its power only from them. This understanding of American government soon found expression in the U.S. Constitution. In 1791, the Ninth and Tenth amendments were ratified, reserving all powers not expressly granted to the federal government to the states and/or the people.

The nature of these rights and powers was hotly disputed just a few years later. In 1798, the Federalist-controlled U.S. Congress passed and the Federalist U.S. president John Adams signed the Alien and Sedition Acts. The Federalist Party favored a strong national government, and, according to the Alien and Sedition Acts, that government was now authorized to place restrictions on immigration and penalize certain kinds of speech, in particular the kind of speech coming from newspapers supporting the opposition Democratic-Republican Party. Some editors were even jailed.

In response, Jefferson, then Adams's vice president, secretly participated in drafting the Virginia and Kentucky Resolutions, passed by Virginia in 1798 and Kentucky in 1799. The separate resolutions provided an early articulation of a state's right to nullify—or declare null and void—a federal law it deemed to be contrary to its own rights and interests. While the New England states officially rejected the resolutions, they were nevertheless seduced by the principles.

### The Hartford Convention and the Nullification Crisis

The issue came up again during the War of 1812. A few New England Federalists who opposed the war and the administration of U.S. president James Madison, a Democratic-Republican, broke with their party and embraced states' rights. Delegations from Massachusetts, Connecticut, and Rhode Island met in Hartford, Connecticut, from December 1814 until January 1815 to air their complaints and even to discuss secession. Although historians disagree about how serious any of the Hartford Convention's twenty-six delegates were about secession, the public took a dim view of such talk either way. Ultimately, the United States concluded its war against Great Britain, and the Federalists met resounding defeat at the polls in 1816. The party eventually collapsed.

The Nullification Crisis was the last outbreak of states' rights fever before the sectional crises of the 1850s. The Tariff of 1828 placed a tax on European imports in order to protect New England industry, a policy that hurt some southern businessmen. When, after taking office, U.S. president Andrew Jackson did nothing to mollify tariff opponents, the South Carolina legislature took matters into its own hands and declared the tax null and void within the state.

Jackson was even challenged within his own administration. His independent-minded vice president, John C. Calhoun of South Carolina, used the crisis to articulate a constitutional framework for states' rights, forming the Nullifier Party to represent his ideas. (Not surprisingly, he resigned his office in 1832.) Jackson responded in force, asserting the power of the federal government by dispatching warships to Charleston Harbor, South Carolina. Only the Compromise Tariff of 1833, proposed by U.S. senator Henry Clay of Kentucky, managed to relieve tensions. The Whig Party was founded that same year in opposition to Jackson.

### Slavery and Secession

The sectional crises of the 1850s came in the wake of the Mexican War (1846–1848). The United States had won from Mexico about 500,000 square miles of land—in addition to Texas, the current states of California, Nevada, and Utah, and parts of Colorado, Arizona, New Mexico, and Wyoming—and now hoped to absorb it into the Union without upsetting the delicate balance of power between slave and free states. At issue was whether and how slavery would spread to these new territories. After years of angry negotiations, the Whig and Democratic parties agreed on the Compromise of 1850. The deal admitted California into the Union as a free state, abolished the slave trade in Washington, D.C., passed a new Fugitive Slave Act, and made provisions for "popular sovereignty"—wherein the people of the remaining territories would decide for themselves the issue of slavery.

Crisis was averted, but not for long. Two actions of the federal government enflamed the sectional crisis even further, angering abolitionists and sparking defensive reactions in the South. The Fugitive Slave Act required free states to cooperate in the capture of escaped enslaved people within their borders. And in *Dred Scott v. Sandford* (1857), the United States Supreme Court ruled, in part, that slavery could not be restricted in the territories. These actions represented the work of a strong federal government but, ironically, were hailed by Southerners, who abandoned their commitment to states' rights when it served their interests as enslavers. Slavery, ultimately, was more important than states' rights. In the meantime, the sectional crisis contributed to a gradual political realignment.

The Second Party System (1837–1852), a period in which political allegiances were fairly evenly divided between the Whig and Democratic parties, was coming to an end. Instead of identifying with their party, Americans were beginning to identify more strongly with their section. They were either Northerners or Southerners. (The Whig Party dissolved as a result, not long after its candidate, Virginian Winfield Scott, was thumped in the presidential election of 1852.) Indeed, the sections, at least on the surface, had developed distinctive economies and cultures. Historians disagree on the degree to which these differences were real, but certainly many Northern cities had been transformed by the Industrial Revolution into manufacturing centers. The Southern economy, meanwhile, had become increasingly tied to slavery and its expansion.

Southern leaders, and especially "fire-eating" Democrats of the Deep South, worried about protecting slavery. If the federal government was seen to side against them, their response was at the ready: states' rights. Still, states' rights was only a means to an end. Slavery was always most important, a fact illustrated by the debate over popular sovereignty. The right of people in a state or territory to determine for themselves whether to allow slavery was most famously championed by U.S. senator Stephen A. Douglas of Illinois as part of the Kansas-Nebraska Act (1854). Because it took power away from the federal government and gave it to the people, popular sovereignty seemed to jibe with the principles of states' rights, yet the fire-eaters still opposed it. They were unwilling to risk the possibility that popular sovereignty would limit the spread of slavery, preferring instead to rely on the power of the federal government.

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CHAPTER 13 · WEB ARTICLE W13.38

# Mississippi Secession

**National Park Service, Gulf Islands National Seashore**

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| **WEBSITE** | National Park Service |
| **PUBLICATION** | Last updated December 11, 2019 |
| **CHAPTER / PROMPTS** | Chapter 13 \| 13.5 |
| **ARGUMENT ROLES** | 13.5.1 Support; 13.5.2 Support |

## Excerpt · 518 words

Mississippi seceded from the United States on January 9, 1861. In doing so, members of the state's secession convention felt it their duty to tell the world why. "Our position is thoroughly identified with the institution of slavery--the greatest material interest of the world," members declared. Most members saw secession as necessary to protect and continue slavery, the source of white wealth, identity, and values.

### Prelude to Secession

National unity had been eroding in the United States long before Mississippi seceded from the Union. The one central topic that divided the nation was the practice of enslaving people of African descent.

Abraham Lincoln's 1860 presidential victory was the final act that thrust the United States into chaos. Politically defeated, a bloc of southern states chose to take action. States like Mississippi considered secession the answer to keeping slavery and black submission alive.

Seven days after Lincoln's victory, Mississippi Governor John J. Pettus called the state's legislature into special session. The governor encouraged lawmakers to hold a secession convention. "The existence or abolition of African Slavery in the Southern States is now up for final settlement . . ." Pettus wrote. He asked, "Can the lives, liberty, and property of the people of Mississippi be safely entrusted to the keeping of that sectional majority which must hereafter administer the Federal Government?"

The legislature did not think so. Lawmakers voted to hold a secession convention in the House of Representatives in Jackson, the state capitol. They would determine Mississippi's future on January 7.

### Secession Convention

When the secession convention met, Jackson came alive with energy. South Carolina had recently seceded, which animated those Mississippians who favored immediate separation. Two days into the convention, Mississippi voted in favor of secession by a vote of 83-15 with one in absentia. Mississippi became the second state to vote to leave the Union.

News of the vote caused a mixture of reactions across the state. In Jackson, "The result was received with the most vociferous cheering," one reporter wrote. "Oxford is brilliantly illuminated," another report said, and "bells are ringing, and guns are being fired. Three cheers for our gallant State!!" Not everyone celebrated, however. Natchez, according to another newspaper, did not rejoice at the news of disunion.

The members of the convention embraced the spirit of the Declaration of Independence by writing and publishing A Declaration of the immediate causes which induces and justify the secession of the State of Mississippi from the Federal Union. In Mississippi's announcement, the convention listed various abuses they felt the North had inflicted on the South. Each abuse tied back to slavery.

For Mississippi, secession was "not a matter of choice, but of necessity." The ordinance declared, "Our decision is made . . . We embrace the alternative of separation; and for the reasons here stated, we resolve to maintain our rights with the full consciousness of the justice of our course, and the undoubting belief of our ability to maintain it." Slavery was the fountain of Mississippi's wealth, identity, and values. Sensing the end of slavery was near, Mississippi seceded from the Union and helped lead the nation into civil war.

## Original Article

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### SHORTENED FOOTNOTE

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CHAPTER 13 · WEB ARTICLE W13.39

# Secession

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| **PUBLICATION** | 1952; revised February 24, 2021 |
| **CHAPTER / PROMPTS** | Chapter 13 \| 13.5 |
| **ARGUMENT ROLES** | 13.5.1 Qualify; 13.5.3 Qualify |

## Excerpt · 1,160 words

Like other cotton-growing and slaveholding states, Texas seceded from the Union in early 1861 and joined the Confederate States of America. Texas was the seventh state to secede and the last to secede before the firing at Fort Sumter signaled the start of the Civil War and forced citizens of the upper South to choose between fighting against or with their Southern brethren. The election of a Republican, Abraham Lincoln, to the presidency of the United States and fears that Republican control of the executive branch would threaten slavery and the traditional rights and liberties of Americans precipitated the secession crisis in Texas and elsewhere. South Carolina's decision to secede in December 1860 further encouraged Texas secessionists. Some Texans were slow to accept secession, however, or never accepted it. They did not simply react to the election of Lincoln and emulate South Carolina. Indeed, the timing of the secession of Texas and the motivation behind it are of continued interest because they open up a series of questions about the nature of the Texas economy, the population, political parties, local needs, the role of such Unionists as Sam Houston, and the effects of public pressure to conform. Running through all of these questions is the role of slavery.

Many Texans believed in the 1850s that slavery was vital to the Texas economy and to its future growth. Indeed, slavery had grown rapidly in Texas after annexation in 1845. By 1860 slaves constituted roughly 30 percent of the population. Limited means of transportation, however, concentrated plantations along the river valleys of eastern Texas and in the coastal counties just below Houston and Galveston. Only cotton grown in these places could easily reach a market. In other settled regions of Texas slavery was virtually absent, and the economy depended upon livestock, corn, or wheat and not on slavery and cotton. In 1860 Texas was divided between a region dependent on slavery region and a largely slave-free region.

Most of those who lived in the slaveholding region in eastern and southeastern Texas had come to the state from the lower South. The population of the rest of the state had more diverse origins. Settlement extended little more than 100 miles west of Austin in 1860. Along the frontier were nonslaveholders from the upper South or from Germany. In north central Texas were wheat growers from the upper South. In the southwest and also on the Rio Grande were Mexicans and Germans, as well as British Americans. The major Texas cities, San Antonio, Houston, and Galveston, which all had populations just under 10,000, had significant German or Mexican populations. Population and economic characteristics greatly influenced secession. The diversity of the state slowed the secession process and helped to produce pockets of resistance to it. On the other hand, the recent immigration of many Texans from the lower South and their dependence on cotton and slavery influenced many to follow the lead of South Carolina and the rest of the lower South. Groups of Germans or upper Southerners who lived close to lower Southerners and in areas in which slavery and cotton were feasible were beginning to be assimilated into a lower South culture by 1860 and largely supported secession. Ties to political parties and ideology could in some cases determine attitudes toward secession. In general, Democrats were inclined to support the right of individuals to own slaves even at the expense of the Union. Whigs and other opposition groups were less inclined to sacrifice the Union for the sake of slavery. Regardless of their personal stake in slavery, groups were often influenced by party ties to support or oppose secession. Germans who did not hold slaves supported secession in Comal County out of loyalty to the Democratic party. Slaveholding former Whigs opposed secession in Galveston and Harrison counties.

Local needs also influenced attitudes toward secession. Slaveholding Whigs in Galveston were often involved in extensive commercial dealings with merchants in England and New York. Any disruption of the Union would disrupt their business.

Comal County Germans had learned during the nativist controversies of the 1850s that it was best to go along with other White Americans on the slavery issue. Along the frontier the ability or inability of the United States Army to protect the citizens often influenced attitudes toward secession. Well-protected areas, where the army garrisons were also the best market for local goods and services, opposed secession. Poorly protected areas supported secession. Closely related to local needs and political parties was the role of individuals, particularly individual Unionists. In Comal County, Ferdinand J. Lindheimer, a longtime Texan and the editor of the local German-language newspaper, helped sway the Germans to support secession. Usually, however, secession was popular enough without the help of community leaders. Prominent Unionists, on the other hand, were a major reason that Texas did not secede before March 1861. The most important of these was Sam Houston, the governor of the state from 1859 to 1861. He slowed the calling of a convention until January 1861, helped force the holding of a public referendum on secession (February 23, 1861), and opposed joining the Confederacy. Along with other outspoken and well-placed Unionists such as state senator James W. Throckmorton, who was one of only eight members of the Secession Convention to vote against leaving the Union, Houston slowed but could not stop the secession movement.

Secession could not be halted because public pressure became too great. Whether it was because the danger to slavery that Texans associated with the Republican party threatened the economy or because White Texans could not tolerate any move toward racial equality with Black Texans, secession became an exceptionally charged issue. The emotion came to a head in late January and early February 1861, when a convention met in Austin and voted to secede. Pressure to call a convention to consider the issue began in October 1860, when it became apparent that Abraham Lincoln would be elected to the presidency. In Texas only the governor could call the legislature into special session, however, and only the legislature could call a convention. Houston refused to act and hoped that with time the ardor for secession would cool. Realizing that the governor would not act, Oran M. Roberts, chief justice of the Texas Supreme Court, John S. Ford, and several other prominent Texans took the law into their own hands. Starting around December 3, before South Carolina officially seceded, they printed calls in several Texas newspapers for the election, on January 8, 1861, of delegates to a convention to consider secession. The elections were to be supervised by the county judges of the state, and the convention was to meet on January 28. Once it was clear that some sort of secession convention would meet, Houston convened the legislature in mid-January, with the hope that it would declare the convention illegal. Instead, legislators validated the calling of a convention, turned over the House chambers to the convention, and adjourned.

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https://www.tshaonline.org/handbook/entries/secession

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CHAPTER 13 · WEB ARTICLE W13.40

# Civil War in Alabama

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| PUBLICATION | January 10, 2008; updated 2026 |
| CHAPTER / PROMPTS | Chapter 13 \| 13.5, 14.1 |
| ARGUMENT ROLES | 13.5.3 Support; 14.1.1 Support; 14.1.3 Support |

## Excerpt · 1,110 words

The American Civil War remains the most significant event in Alabama's history. The war pitted Unionists, as those who remained loyal to the United States were called, against Secessionists. The war ended slavery. The war encouraged industrialization. Alabamians came to identify themselves not as Americans but as southerners, fiercely loyal to their Lost Cause. All of this was purchased with the lives of 600,000 Americans.

Tensions had been building for years when Abraham Lincoln was elected to the presidency in November 1860. Many politically powerful Alabamians viewed the election as an opening wedge that threatened to destroy slavery and begin a race war. Across the state came cries for unity in the face of this challenge. In Mobile, citizens passed a series of resolutions calling Lincoln's election "a virtual overthrow of the Constitution and the equal rights of the States" and demanding that Alabama "withdraw from the Federal Union without any further delay." Residents in small towns followed suit by passing their own resolutions. Gov. Andrew B. Moore called a December 24 election for delegates to a constitutional convention. Assembling on January 7, 1861, the delegates four days later voted to declare Alabama's immediate independence from the United States. Guns blared and Montgomery women presented to the secession convention a flag bearing a single star, thus announcing that Alabama had withdrawn its star from the U.S. flag and was now flying it alone. Those present understood that soon Alabama would add its star to a new confederacy of states, three of which had already seceded from the United States.

The convention produced a vote of 61 to 39 in favor of secession, but this result cannot be taken as an easy and exact method of gauging either the citizenry's support for, or resistance to, the Union. Some delegates certainly voted against the measure because they opposed secession altogether. Others voted against the measure because they opposed immediate withdrawal in favor of cooperation with other states. Still others voted one way or the other for personal reasons that will never be known. And, of course, these delegates were themselves elected without any votes by women or by the 45 percent of Alabamians who were enslaved. At any rate, the delegates' less-than-unanimous vote for immediate secession was masked by loud and unceasing calls for a unified citizenry.

One month later, delegates from six other seceded states met in Montgomery to create the new government of the Confederate States of America. Alabama quickly offered Montgomery to serve as the new government's capital. The new president, Jefferson Davis, arrived on February 16. He was welcomed by rabid secessionist William Lowndes Yancey. "The man and the hour have met," Yancey proclaimed. Two days later on the statehouse portico, Davis took the oath as president of the Confederate States of America and set about to run a new American nation founded on the perpetuation of slavery, as his vice president, Alexander Stephens, explicitly stated.

In anticipation of the state's secession, Gov. Moore had months earlier ordered the state's militiamen to seize the federal forts Morgan and Gaines at the entrance to Mobile Bay and the Mount Vernon arsenal north of Mobile. Their bloodless accomplishment on January 4 encouraged the belief that conflict with the North, if indeed there were to be a conflict, would not amount to much. Alabamians went on with their daily lives. But not all federal properties fell as easily as those in Alabama, and Confederate batteries opened fire on troops in Union-occupied Fort Sumter in Charleston harbor on April 12.

Young men immediately joined existing military companies or formed new ones and began drilling. Here was an opportunity—for glory, for an adventure, for a future—that young men could not resist. Eventually more than 82,500 Alabamians would serve, but in 1861 a soldier's greatest concern was that the war would end before he had a chance to get to the

front. The companies quickly began assembling in Montgomery, where they were grouped into regiments and sent to the eastern and western battlefronts. The illusion of a short war did not last long. At the First Battle of Manassas in northern Virginia (where Gen. Barnard Bee, commanding the Fourth Alabama, would give Thomas Jackson his nickname "Stonewall"), the Confederates pursued U.S. forces back to Washington. But they did not give up. Despite a series of Confederate victories in the East that lasted into the summer of 1863, the United States continued fighting.

Although Alabama's relative geographic isolation shielded it from the fiercest fighting, the Union forces did not take long to reach the state. On February 6, 1862, a mere six months after Manassas, three federal gunboats steamed up the Tennessee River to Florence. North Alabama was controlled for the most part by the Union from that time, because the river was an important route into the Confederate heartland. The railroads through north Alabama were also strategic objectives; and Huntsville, which lay along the Memphis & Charleston Railroad, was occupied two months later, on April 11.

The occupation of north Alabama remained an important objective for the U.S. military throughout the war and not merely because of its transportation routes. Many Northern politicians, and President Lincoln in particular, believed that they could undermine the Confederacy from within by courting the isolated Unionists in north Alabama and east Tennessee. They had been encouraged by the geographical distribution of votes during the 1861 convention, in which the Alabama highlands opposed secession and later sent troops to fight for the United States, most conspicuously the First Alabama U.S. Cavalry. But clearly Lincoln overestimated the Southern Unionists' ability to affect the course of the war, and just as clearly Confederate politicians underestimated the extent of genuine and principled dissatisfaction with Alabama's leaving the Union. Evaluating the motives and views of the Alabama Unionists confounded the politicians at the time and has confounded historians of our own time.

Federal strongholds in north Alabama gave Col. Abel Streight a base from which to launch his raid on the railroad between Chattanooga and Atlanta, then supplying the Army of Tennessee. His 1,700 troops, forced through lack of other options to ride on mules, left Tuscumbia in April 1863. Only four days into the raid, Confederate cavalrymen under Gen. Nathan Bedford Forrest met them on Sand Mountain and began harassing the federal raiders. A local girl, Emma Sansom, led Forrest's men across Black Creek after the raiders had burned the bridge, for which the legislature awarded her a gold medal. A few days later near Rome, Georgia, Streight's by-then exhausted forces surrendered and were sent to Libby Prison in Richmond. Although patently unsuccessful, this would not be the last raid into Alabama.

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### SHORTENED FOOTNOTE

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CHAPTER 14 · WEB ARTICLE W14.1

# Ulysses S. Grant (1822–1885)

A. Wilson Greene

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| **PUBLICATION** | December 7, 2020; updated December 22, 2021 |
| **CHAPTER / PROMPTS** | Chapter 14 \| 14.1 |
| **ARGUMENT ROLES** | 14.1.3 Support; 14.1.1 Support |

## Excerpt · 1,008 words

Hiram Ulysses Grant was born in Point Pleasant, Ohio, on April 27, 1822, into a successful middle-class family. He attended the United States Military Academy at West Point, where he accumulated an average academic record and finished in 1843 ranked twenty-first in a class of thirty-nine. Due to a mistake in his nomination papers, Grant also left the academy with the name by which he would be known for the rest of his life.

Grant served with distinction in the Mexican War (1846–1848), in contrast to his record during the rest of his antebellum military career. Assigned to isolated posts, he languished, missing his wife and growing family. (In 1848, he married Julia Boggs Dent, the daughter of a Missouri slave owner and a distant relative of Confederate general James Longstreet.) Like most other military officers, Grant sought solace in the bottle, although his ability to handle alcohol proved far below the norm. He resigned his commission in 1854 and repaired to Missouri. For the next seven years Grant pursued a variety of professional endeavors, none of which brought him notable success, though his reputation as an abject failure has been magnified.

At the outbreak of the Civil War, Grant was living in Galena, Illinois, where he clerked in his father's store. The need for trained officers, coupled with the patronage of the local congressman, secured him the colonelcy of the 21st Illinois Infantry, a rough-and-tumble outfit that Grant polished into efficiency. His success at this humble level of command launched an unprecedented rise in military responsibility.

### In the Western Theater

Grant received promotion to brigadier general in August 1861 and took command at Cairo, Illinois, at the southern tip of his adopted state. In February 1862, he captured two Confederate strongholds, Fort Henry on the Tennessee River and Fort Donelson on the Cumberland River, opening vast stretches of the Confederacy to Union occupation and giving the North its first significant battlefield victory. (That victory came at the expense of the Confederate commander, former Virginia governor John B. Floyd, who fled before receiving Grant's famous demand for unconditional surrender.) Two months later, Grant endured a catastrophic surprise attack along the Tennessee River near Shiloh Church, only to redeem his defeat the next day in what was the bloodiest battle in American history up to that point. Grant suffered severe criticism for his lapse at Shiloh, the jealousy of his superior officer, Major General Henry W. Halleck, and renewed whispers about excess drinking. Under pressure to remove Grant, U.S. president Abraham Lincoln demurred, stating, "I can't spare this man; he fights."

Lincoln's judgment proved sound, as Grant survived his critics and orchestrated a classic campaign in the spring of 1863 that resulted in the capture of Vicksburg, Mississippi, the Confederates' bastion on the Mississippi River. Transferred to Chattanooga, Tennessee, that autumn, Grant reversed Union defeat by lifting the siege of Chattanooga and then driving the Confederate army into retreat at the Battles of Lookout Mountain and Missionary Ridge. By then, Grant had become the single-most-successful Union general in the field, and Lincoln and the U.S. Congress rewarded him with a promotion to lieutenant general and supreme command of all the Union armies.

### In Virginia

Unlike his predecessor, the man from Galena opted not to remain in the capital and repaired to the Army of the Potomac's winter encampments near Culpeper, Virginia. That army's commander, Major General George G. Meade, fully expected to be replaced following questions about his slow pursuit of the Confederate army after the Battle of Gettysburg (1863). His fears were reasonable—Irvin McDowell was replaced after the First Battle of Manassas (1861), George B. McClellan after the Peninsula Campaign (1862), John Pope after the Second Battle of Manassas (1862), McClellan again after Antietam (1862), Ambrose E. Burnside after Fredericksburg (1862), and Joseph Hooker after Chancellorsville (1863)—but Grant kept Meade on. As the spring campaign unfolded, however, Grant quickly reduced Meade's authority to administrative and tactical control of the army. In all but name, the Army of the Potomac became Grant's own.

That is not to say that Grant ignored other theaters of the war. In fact, his unique contribution to the Union war effort became his ability to launch simultaneous offensives in multiple areas in order to keep the pressure on the Confederate armies across the map. His plan to attack Mobile, Alabama, foundered but his successor in the West, Major General William Tecumseh Sherman, focused unrelenting attention on the Confederate army defending northern Georgia, resulting eventually in the capture of Atlanta in September 1864.

In Virginia, Grant ordered Meade to concentrate on pursuing and attacking Confederate general Robert E. Lee's Army of Northern Virginia, rejecting the traditional focus on capturing the Confederate capital at Richmond. Meade would receive help from two smaller armies. Major General Franz Sigel would move up the Shenandoah Valley, threatening Lee's strategic left flank with an eye toward severing the rail connections between the Valley and Richmond. Major General Benjamin F. Butler, meanwhile, would lead his new Army of the James up the James River to City Point and Bermuda Hundred, twenty miles below Richmond, to pressure the capital's back door while Meade pounded on the front. Grant set his campaigns in motion during the first week of May 1864.

The next eleven months would bring an unprecedented brand of warfare to Virginia. Rather than fighting a brief battle and then separating to lick their wounds, the armies commenced a series of engagements that followed one on the other without interruption. Grant dictated this style of warfare and it earned him mixed reviews. Following tactical draws at the Wilderness (May 5–6), Spotsylvania (May 8–21), and North Anna (May 23–26), Grant suffered a lopsided defeat at Cold Harbor (June 3). This series of engagements, known collectively as the Overland Campaign, resulted in more casualties for Grant than Lee had soldiers in his entire army. Critics labeled the Union commander a butcher and pointed out that his military acumen amounted to playing a grim game of human arithmetic, counting on raw attrition to accomplish what superior generalship could not.

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https://encyclopediavirginia.org/entries/grant-ulysses-s-1822-1885/

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#### SHORTENED FOOTNOTE

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CHAPTER 14 · WEB ARTICLE W14.2

# Causes of Confederate Defeat in the Civil War

Aaron Sheehan-Dean

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| **CHAPTER / PROMPTS** | Chapter 14 \| 14.1 |
| **ARGUMENT ROLES** | 14.1.1 Challenge; 14.1.2 Support; 14.1.3 Support |

## Excerpt · 809 words

Although from today's perspective, Union advantages in manpower (a five-to-two edge), draft animals, and industrial capacity suggest that Union victory was inevitable, few Confederates believed that at the war's start. In fact, most Confederates assessed the size of their new nation (750,000 square miles), the length of their coastline (more than 3,000 miles), and their assumed martial superiority and concluded that Union victory was impossible. They used the American Revolution (1775–1783) as their historical guide, when an outnumbered and underequipped force defeated a larger enemy through effective strategy, valuable alliances, and a willingness to absorb punishment. Although the much-desired European help never arrived, Confederates effectively used all their society's resources to resist the Union through four brutal years of warfare. The effectiveness of Confederate resistance can be seen in the fact that the North was forced to modify its initially conciliatory strategy and adopt a much-harder war policy toward South. This so-called hard war, felt particularly in Central Virginia and Central Tennessee, created great difficulties for Southern families. In addition, the Confederate government imposed a variety of policies—including the draft, impressment, and tax-in-kind—that drove up the cost of goods and created greater scarcity. Confederate civilians disliked these policies, sometimes on the grounds of states' rights, even though they understood that their purpose was to give the state the tools it needed to prosecute the war successfully.

Some historians interpret the criticism that Confederate civilians directed at Confederate president Jefferson Davis and other leaders as evidence that they rejected the war effort itself. The criticism of Confederate leaders impeded their ability to lead effectively and, among a smaller group, probably represented a true shift in allegiances back to the Union. But a majority of recent studies of Virginia and other Southern states demonstrates that even when Confederate civilians disparaged the policies of their government they rarely supported reconciliation with the North. In some cases, these Confederates accepted the things they did not like as the price of winning the war; others blamed hardships on what they regarded as their ultimate source—the "Yankees." Without ignoring Confederate dissent, these historians emphasize the degree to which white Southerners supported the Confederacy. In their accounting, the end of the war came not because of internal divisions but because Union forces eroded the ability of Confederates to fight.

Union military successes began outside of Virginia and gradually encircled the state. These included securing control of the Mississippi River (attained with the capture of Vicksburg in July 1863), blockading the Confederate coastline (a process mostly complete by early in 1864), and steadily penetrating the Confederate interior. Union control of western Virginia actually began in 1861 and led, by 1863, to the creation of the Unionist state of West Virginia. The success of Union armies in the trans-Appalachian region of the state buoyed the hopes and secured the lives of Unionists. These individuals, mostly located in counties that bordered the Ohio River, stayed loyal to the Union throughout the conflict and, in doing so, denied Virginia resources (both human and natural) that they had counted on to sustain the Confederate cause. In addition, Union control of this region was a strategic gain because it allowed the North to launch repeated forays into the Shenandoah Valley and beyond.

In eastern Virginia, Lee and his men kept Union forces at bay through mid-1864. With the success of the Overland Campaign, Union general-in-chief Ulysses S. Grant pinned Lee's army down inside its defenses around Petersburg and the end of the war became a question of time. Once he had Lee confined, Grant could exploit the Union's significant advantages in matériel and manpower. Although the siege of Petersburg lasted for almost ten months, even Lee anticipated the eventual outcome. Previous Union commanders in Virginia (especially George B. McClellan, Ambrose E. Burnside, and Joseph Hooker) had failed to exploit

the Union's manpower advantage. Grant did not idly waste his soldiers' lives (as some wartime critics complained and Lost Cause arguments continue to maintain) but he did use the larger size of his army to great advantage. Similarly, Grant destroyed the means of sustenance in Confederate Virginia in effort to further reduce Lee's fighting effectiveness. The desperation of Lee's men in April 1865, when hundreds collapsed from hunger along the road to Appomattox, revealed the effectiveness of this strategy.

The question of exactly what weight to ascribe to the various elements—both internal and external—can never be fully resolved. What did emerge clearly in the aftermath of the war was that regardless of which factors compelled the Confederates to lay down their arms, only a small minority of white Virginians celebrated their return to the Union. A significant number of them refused to concede the most basic accomplishment of the war—emancipation—for many years. Black Virginians, for their part, rejoiced in the end of the war and the terms on which it had been concluded.

## Original Article

https://encyclopediavirginia.org/entries/causes-of-confederate-defeat-in-the-civil-war/

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### SHORTENED FOOTNOTE

Sheehan-Dean, "Causes of Confederate Defeat."

CHAPTER 14 · WEB ARTICLE W14.3

# Anaconda Plan

**Brendan Wolfe**

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| **CHAPTER / PROMPTS** | Chapter 14 \| 14.1 |
| **ARGUMENT ROLES** | 14.1.1 Support |

## Excerpt · 678 words

In 1861, Scott, a native of Dinwiddie County, Virginia, had been general-in-chief of the U.S. Army for twenty years. A hero of the War of 1812 and the Mexican War (1846–1848), and the Whig Party candidate for president in 1852, he was one of the most famous men in America and, despite age and infirmity, one of its best military minds. Recognizing that the Confederacy had no real navy at the war's start, he called for a blockade of all Southern ports along the Atlantic and Gulf coasts. The idea was to isolate the Confederacy both diplomatically and economically, preventing it from exporting cotton and tobacco to Europe and importing weapons, foodstuffs, and other necessities. A massive invasion along the Mississippi River, meanwhile, would cut off vital transportation and communication routes for the Confederates and open them up for Union troops.

Scott's war strategy anticipated realities that other military men and politicians were either unable to see or face. Scott predicted a two-year war when most were preparing for a single, decisive battle. Even though the Regular Army numbered only 16,000 men in 1861, he understood that as many as 300,000 Union soldiers would be necessary to defeat the Confederacy, and he braced the president for casualties numbering as many as a third of that. That he underestimated all of these figures hardly diminishes the plan's prescience. The blockade, which Lincoln instituted beginning in April 1861, had much the effect that Scott intended. And when David G. Farragut captured New Orleans, Louisiana, in April 1862, and Ulysses S. Grant claimed Vicksburg, Mississippi, in July 1863, the Mississippi River belonged to the Union, creating logistical chaos for the Confederacy. What remained was, to some extent, a war of attrition in which Union men and matériel slowly overwhelmed the South.

Still, the Anaconda Plan had problems. Scott's military and political approach was essentially conciliatory. He assumed that the military only needed to create the right circumstances for Unionism to reemerge in the South. As such, he did not consider an approach that, by 1864, Grant and his generals deemed a necessity—a hard, or total, war attacking the Confederacy's agricultural base and its will to fight. He did not plan for a long-term occupation of the South, and he failed to see at least one important effect of the blockade. Deprived of its cotton, Great Britain was, for a time, tempted to intervene on the Confederacy's behalf, a development that might have been devastating for the Lincoln administration.

The Southern press understood this immediately and happily ridiculed the plan. Northern editors, meanwhile, sarcastically dubbed it the Anaconda Plan, after the snake that slowly squeezes its prey to death. The imperative of 1861 was action, and any plan that *did* not immediately strike at Richmond was unwelcome. Of course, Scott did call for a massive attack on the Confederacy, with anywhere from 60,000 to 80,000 men in the Mississippi River Valley. But he recognized how critical it was to train those men, while Washington politicians preferred to fight sooner and closer to home. (The same was true in Richmond. The Confederacy's third secretary of war, George Wythe Randolph of Virginia, advocated a focus on the Western Theater and was overruled by Jefferson Davis.) The cry of the day was "On to Richmond" and not "On to Natchez." The Democratic *Chicago Tribune*, on July 15, 1861, sang a typically impatient refrain under the headline, "The Torpid Anaconda": We are told that the "plan" is bold, vigorous and comprehensive, and cannot fail in its noble results to give great joy to the hearts of patriots, and spread consternation among the rebel host. Night after night has this comforting assurance been carried us on the wings of lightnings, until people have lost faith in electricity, and pronounce its statements unmitigated falsehoods. Hope deferred makes the heart sick, and the country impatiently demands to know the reason for the procrastination.

In the end, Lincoln approved the Union strike that led to the First Battle of Manassas on July 21. It was a disaster for the Union.

## Original Article

https://encyclopediavirginia.org/entries/anaconda-plan/

## Chicago Citations

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### SHORTENED FOOTNOTE

Wolfe, "Anaconda Plan."

CHAPTER 14 · WEB ARTICLE W14.4

# The Economics of the Civil War

Roger L. Ransom

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| CHAPTER / PROMPTS | Chapter 14 \| 14.1, 15.3, 14.4 |
| ARGUMENT ROLES | 14.1.1 Support; 15.3.3 Support; 14.4.3 Support |

## Excerpt · 938 words

The Civil War has been something of an enigma for scholars studying American history. During the first half of the twentieth century, historians viewed the war as a major turning point in American economic history. Charles Beard labeled it "Second American Revolution," claiming that "at bottom the so-called Civil War – was a social war, ending in the unquestioned establishment of a new power in the government, making vast changes – in the course of industrial development, and in the constitution inherited from the Fathers" (Beard and Beard 1927: 53). By the time of the Second World War, Louis Hacker could sum up Beard's position by simply stating that the war's "striking achievement was the triumph of industrial capitalism" (Hacker 1940: 373). The "Beard-Hacker Thesis" had become the most widely accepted interpretation of the economic impact of the Civil War. Harold Faulkner devoted two chapters to a discussion of the causes and consequences of the war in his 1943 textbook *American Economic History* (which was then in its fifth edition), claiming that "its effects upon our industrial, financial, and commercial history were profound" (1943: 340).

In the years after World War II, a new group of economic historians — many of them trained in economics departments — focused their energies on the explanation of economic growth and development in the United States. As they looked for the keys to American growth in the nineteenth century, these economic historians questioned whether the Civil War — with its enormous destruction and disruption of society — could have been a *stimulus* to industrialization. In his 1955 textbook on American economic history, Ross Robertson mirrored a new view of the Civil War and economic growth when he argued that "persistent, fundamental forces were at work to forge the economic system and not even the catastrophe of internecine strife could greatly affect the outcome" (1955: 249). "Except for those with a particular interest in the economics of war," claimed Robertson, "the four year period of conflict [1861-65] has had little attraction for economic historians" (1955: 247). Over the next two decades, this became the dominant view of the Civil War's role industrialization of the United States.

Historical research has a way of returning to the same problems over and over. The efforts to explain regional patterns of economic growth and the timing of the United States' "take-off" into industrialization, together with extensive research into the "economics" of the slave system of the South and the impact of emancipation, brought economic historians back to questions dealing with the Civil War. By the 1990s a new generation of economic history textbooks once again examined the "economics" of the Civil War (Atack and Passell 1994; Hughes and Cain 1998; Walton and Rockoff 1998). This reconsideration of the Civil War by economic historians can be loosely grouped into four broad issues: the "economic" causes of the war; the "costs" of the war; the problem of financing the War; and a re-examination of the Hacker-Beard thesis that the War was a turning point in American economic history.

### Economic Causes of the War

No one seriously doubts that the enormous economic stake the South had in its slave labor force was a major factor in the sectional disputes that erupted in the middle of the nineteenth century. Figure 1 plots the total value of all slaves in the United States from 1805 to 1860. In 1805 there were just over one million slaves worth about $300 million; fifty-five years later there were four million slaves worth close to $3 billion. In the 11 states that eventually formed the Confederacy, four out of ten people were slaves in 1860, and these people accounted for more than half the agricultural labor in those states. In the cotton regions the importance of slave labor was even greater. The value of capital invested in slaves roughly equaled the total value of all farmland and farm buildings in the South. Though the value of slaves fluctuated from year to year, there was no prolonged period during which the value of the slaves owned in the United States did not increase markedly. Looking at Figure 1, it is hardly surprising that Southern slaveowners in 1860 were optimistic about the economic future of their region. They were, after all, in the midst of an unparalleled rise in the value of their slave assets.

A major finding of the research into the economic dynamics of the slave system was to demonstrate that the rise in the value of slaves was not based upon unfounded speculation. Slave labor was the foundation of a prosperous economic system in the South. To illustrate just how important slaves were to that prosperity, Gerald Gunderson (1974) estimated what fraction of the income of a white person living in the South of 1860 was derived from the earnings of slaves. Table 1 presents Gunderson's estimates. In the seven states where most of the cotton was grown, almost one-half the population were slaves, and they accounted for 31 percent of white people's income; for all 11 Confederate States, slaves represented 38 percent of the population and contributed 23 percent of whites' income. Small wonder that Southerners — even those who did not own slaves — viewed any attempt by the federal government to limit the rights of slaveowners over their property as a potentially catastrophic threat to their entire economic system. By itself, the South's economic investment in slavery could easily explain the willingness of Southerners to risk war when faced with what they viewed as a serious threat to their "peculiar institution" after the electoral victories of the Republican Party and President Abraham Lincoln the fall of 1860.

## Original Article

https://eh.net/encyclopedia/the-economics-of-the-civil-war/

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#### SHORTENED FOOTNOTE

Ransom, "Economics of the Civil."

CHAPTER 14 · WEB ARTICLE W14.5

# Confederate Morale during the Civil War

Aaron Sheehan-Dean

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| CHAPTER / PROMPTS | Chapter 14 \| 14.1 |
| ARGUMENT ROLES | 14.1.3 Support; 14.1.2 Support |

## Excerpt · 770 words

The key division in the state before the war was between westerners and easterners. Residents of the two regions disagreed over taxes, state internal improvements policy, universal manhood suffrage, slavery, and other issues. During the Civil War, this divide did not replicate itself perfectly—many westerners fought in Confederate units—but the trans-Appalachian region held many more Unionists than other parts of the state. These Virginians opposed the Confederacy and so their morale generally followed the fortunes of Union armies invading the state. As Union troops made their way into western Virginia and the Shenandoah Valley in 1861, the hopes of Virginia's Unionists rose. Union forces retained control of much of Virginia west of the Valley for the remainder of the war but they exercised loose control and the result was persistent guerrilla conflict and violence among residents of the region. As a result, morale in the West (among both Unionists and Confederates) hardened into a bitterness that sustained them through the conflict but did little to bring them together.

Black Virginians expressed strong support for the Union, and their morale, like that of white Unionists, followed the success of Union armies. As the Union seized the counties of the Eastern Shore, the peninsula below Richmond, and the area around Norfolk, black residents welcomed Union troops. Whenever they fell back, black morale plummeted but many thousands of enslaved African Americans fled to freedom in Union contraband camps in southeastern Virginia and northeastern North Carolina. Their strong support for the Union war effort, and the intelligence they provided Union troops on the march throughout the state, proved crucial to advancing the Union cause in Virginia.

### Confederates

The attitudes of Confederate civilians fluctuated in opposition to those of Unionists in the state. For Confederates, Union military advances spurred anger and soul-searching while each Confederate victory deepened their faith in ultimate victory and spurred enthusiasm for sustaining the war. The experiences in Winchester illustrate the dynamic nature of morale in the state. The northern Shenandoah Valley town was divided between Unionists and Confederates who traded civilian control whenever military control of the region changed hands. Having suffered under Union occupation since late in 1861, Confederates in the town were jubilant when Confederate general Thomas J. "Stonewall" Jackson's troops liberated the area. "Thanks be to the Lord, we are free!!!!!!!!!!!!!!!!!!" declared one eager young Confederate.

Because Confederate troops had more success in keeping Union troops at bay in the state, Confederate morale stayed reasonably high into mid-1864. Until that point, the Rappahannock–Rapidan River line had served as a de facto boundary, in eastern Virginia, between Union and Confederate control. Ulysses S. Grant's successful Overland Campaign (1864) against Robert E. Lee pushed Confederate troops south to Petersburg and demonstrated to Virginia Confederates that their soldiers were not invincible. After this, the steady advance of Union troops—up the Peninsula toward Richmond, up the Shenandoah Valley, and into the southwestern corner of Virginia, all depressed Confederate spirits in the state.

Confederate morale also responded to the policies of the Richmond government. At the start of the war, Confederate leaders worked hard to inspire a strong sense of national loyalty to the new government. A national seal, motto, and new flag were designed, all harkening back to American traditions to which Confederates had long been attached. As writers and government leaders emphasized the spirit of shared sacrifice that bound the Confederacy together, cultural elements continued to play an important role in boosting morale among both civilians and soldiers. Against this positive force, Confederate policies—especially the draft, impressment, and tax-in-kind—often worked to depress morale. Although citizens understood that these policies were

designed to give the state the tools it needed to repel Union forces, they often resented what they saw as excessive centralization of authority in Richmond and unwarranted intrusions on state and personal property. Impressment, which allowed the Confederate government to seize supplies from citizens with only the increasingly worthless national currency as compensation, was particularly galling because the high prices of goods made foodstuffs the most precious commodity.

Angry Confederate civilians complained to their state and national representatives, including Confederate president Jefferson Davis himself, and while their letters often reflect dissatisfaction with government policies, they also reflect a faith that the Confederate government would be able to remedy the problem. Those letters, and that faith, were running out early in 1865 as Union forces tightened their hold on Petersburg and Richmond. Confederate morale had clearly dropped from the early optimism of 1861 and the steely resolve and confidence of early in 1863, but, in large measure, that drop in morale came because of battlefield losses, not the other way around.

## Original Article

https://encyclopediavirginia.org/entries/confederate-morale-during-the-civil-war/

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### SHORTENED FOOTNOTE

Sheehan-Dean, "Confederate Morale."

CHAPTER 14 · WEB ARTICLE W14.6

# Desertion (Confederate) during the Civil War

Aaron Sheehan-Dean

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| **CHAPTER / PROMPTS** | Chapter 14 \| 14.1, 14.3 |
| **ARGUMENT ROLES** | 14.1.2 Support; 14.3.2 Support; 14.3.3 Support |

## Excerpt · 940 words

Historians have argued over the proper way to interpret the act of desertion—whether it should be regarded as a protest against the state or a reaction to the specific and immediate problems that soldiers faced (such as inadequate rations, excessively strict officers, etc.). Consensus has been made more difficult by the lack of reliable quantitative evidence demonstrating both the volume and timing of desertion. Patterns in Virginia suggest that Virginia's Confederate soldiers deserted for a variety of reasons. A careful study of the 44th Virginia Infantry Regiment revealed a shockingly high desertion rate of nearly 30 percent, but it persuasively attributed this to a range of quotidian factors faced by soldiers in the regiment, including faulty equipment, spoiled food, and unresponsive officers. In other words, the complex set of factors that shaped Virginians' decisions to abandon the army cannot be reduced to a simple expression of discontent over the Confederate war effort. Without a doubt, Confederate soldiers disliked many of their government's policies, but most pursued other ways of expressing those concerns.

Desertion was common from the beginning of the war, but, until early in 1862, it was not always defined as such. When the war unexpectedly lasted past the first summer and fall, Virginia recruits began taking what many called "French leave" by absenting themselves for a few days or longer in order to visit friends and family (the term comes from an eighteenth-century French custom of leaving a reception without saying a formal good bye to the host or hostess). Officers pursued these men with varying degrees of diligence, but because most returned in time for the spring campaigns, few were formally charged with and punished for desertion.

This changed with the first Conscription Act, passed by the Confederate Congress on April 16, 1862, which required all males between the ages of 18 and 35 to serve in the military. In so doing, the legislation more carefully defined the legal parameters of loyalty and duty while also setting up rigorous enforcement provisions. Desertion, like avoiding the draft, would come to be seen, legally at least, as an act of disloyalty sometimes punishable by death. In addition, the Conscription Act also automatically reenlisted one-year volunteers for three years, causing an uproar of protest among soldiers. The Northern draft, passed in March 1863, caused rioting in New York and yet did not automatically reenlist soldiers who were already serving. Thinking the law unfair, Confederate soldiers deserted at their highest rates during 1862.

During both of Robert E. Lee's invasions of the North—the Maryland Campaign during the fall of 1862 and the Gettysburg Campaign the following summer—the Army of Northern Virginia suffered serious attrition from "straggling" and desertion. Lee himself estimated that a third of his force was absent at the Battle of Antietam on September 17, 1862. Some of these men were too weak to maintain the year's punishing schedule of marching, especially after the grueling campaigns from the Seven Days through Second Manassas. Men suffered from a critical lack of shoes, clothing, and food, and, following the campaign, Lee quickly moved to fix problems in the Confederate quartermaster department. Other soldiers deserted not for lack of supplies but because they opposed on principle Lee's decision to take the war north. Still others probably deserted with no intention of returning, even when the army returned to Virginia.

Soldiers and civilians alike soon became fed up with the lack of discipline in the army, leading the Confederate military to undertake harsher methods of enforcement. Lee believed that military executions were sometimes necessary, particularly in the cases of habitual deserters. Just prior to the Second Battle of Manassas, Confederate general Thomas J. "Stonewall" Jackson ordered three such men publicly executed. On August 19, 1862, they were marched in front of open graves and shot in the presence of thousands of witnesses, provoking a variety of responses. While some soldiers expressed anger and revulsion at the

incident, others respected the level of discipline it represented. In general, soldiers believed that executions were sometimes necessary, but felt that in this case the sudden decision to enforce the letter of the law was unfair.

The government and military also used methods other than execution to battle desertion. Detachments of troops scoured the countryside in an effort to find stragglers and deserters and return them to the ranks. In the mountains of southwestern Virginia, bands of deserters resisted capture by the government, and by late in 1864 they posed a serious enough threat that the Confederate government sent regular soldiers to Floyd County to restore order. In that region, at least, desertion did in fact represent a rejection of the Confederacy.

As in the early days of the war, few of the thousands who “fell away” during marches were charged with desertion. In fact, as the Army of Northern Virginia returned to Virginia after its northern campaigns, many of those who had fallen out of the ranks due to fatigue and injury returned. In August 1863, following defeat at Gettysburg, Confederate president Jefferson Davis offered a full amnesty for deserters in order to replenish the army’s depleted ranks. French leaves, meanwhile, were authorized on the company level in order to help ward off longer-term desertions.

Desertions escalated substantially in the final months of the war, as Union general-in-chief Ulysses S. Grant finally broke through Lee’s defense of Richmond and Petersburg, on April 2, 1865, and sent the Confederate army west in retreat. As many as several hundred men per night fled the army even before Richmond fell. On the march toward Appomattox, thousands more also deserted—mostly Virginians and North Carolinians, whose homes were already temptingly close.

## Original Article

https://encyclopediavirginia.org/entries/desertion-confederate-during-the-civil-war/

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### SHORTENED FOOTNOTE

Sheehan-Dean, "Desertion (Confederate)."

CHAPTER 14 · WEB ARTICLE W14.7

# Unionism

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| **CHAPTER / PROMPTS** | Chapter 14 \| 14.1, 14.3 |
| **ARGUMENT ROLES** | 14.1.2 Support; 14.3.2 Support |

## Excerpt · 1,114 words

The significance of Unionism in Alabama during the Civil War and Reconstruction has long been a subject of study among scholars. Largely centered in northern Alabama and to a lesser degree in the southeast region and in Montgomery and Mobile, *Unionist*s were important both militarily and politically. Until the twenty-first century, however, these people were not well studied, and the details of this phenomenon remained less well known, largely because the term Unionist (both then and now) has been used to refer to a range of different individuals and positions.

In the broadest sense, *Unionist* has meant any white person who opposed secession (including those who later supported the Confederacy) and those who came to support the Union during the war despite having originally supported the Confederacy. This broad definition includes a very wide range of Alabamians—from the most well-to-do planters who ultimately became officers in the Confederate Army to the subsistence farmer who deserted the southern cause midway through the war. It is also possible to define Unionism more narrowly, confining the label to those individuals who opposed both secession and the Confederacy during the war. Such unconditional loyalists probably represented no more than 15 percent of Alabama's adult white population. They were mostly nonslaveholding farmers (though a small minority owned slaves) living in the northern third of the state. A few Unionists also lived in the piney woods and coastal plain further south. In many respects, these men and women were very much like their neighbors who supported the Confederate cause. The reasons they remained loyal to the Union were also quite diverse. Many saw secession as illegal, whereas others felt that it would dishonor the American Revolution and their own ancestors. Still others were certain that secession would end in political or military disaster. Many were influenced by the respected figures in their families or neighborhoods.

Unionism in Alabama arose under the pressures of the presidential election of 1860. Nine months before, the state legislature had directed that, in the event of a Republican's election, a state secession convention would be called. By directly linking the presidential election to secession, the legislature fostered a political atmosphere that was particularly hostile to Unionists. Newspaper editorials and participants at community meetings condemned as traitors those who canvassed for Illinois senator Stephen Douglas, the nominee of the regular Democratic Party, rather than the southern-rights Democratic nominee, John Breckinridge. In the election, fully 80 percent of Alabama's eligible voters participated, giving Breckinridge a substantial victory, with 54 percent of the vote. John Bell, the Constitutional Union candidate who was supported by a number of Alabamians hostile to secession, received 31 percent of the vote. Douglas, the candidate most associated with a strongly Unionist position, polled slightly more than 15 percent. Republican Abraham Lincoln was not even on the ballot in Alabama.

As promised, Alabama secessionists called a convention in the wake of Lincoln's election. The campaign for convention delegates provoked heated and sometimes violent debates among neighbors, forcing many to defend their positions in public. Of the 100 delegates elected, 53 were secessionists and 47 were cooperationists, a term that refers to the delegates' desire to secede only in "cooperation" with other southern states. In fact, the men elected on this platform represented a wide range of ideas about if, when, and under what circumstances to cooperate with secession and included a minority faction—probably less than one-third (the vast majority of them from the northern third of the state)—of unconditional Unionists who opposed secession outright.

These delegates convened in Montgomery on January 7, 1861, and debated secession for four days. On January 11, 1861, the convention passed Alabama's Ordinance of Secession by a vote of 61 to 39. Many of those who voted against the ordinance, however, ultimately did support secession, and four immediately reversed themselves and signed with the majority. Among the

opposition, 33 delegates subsequently signed the "Address to the People of Alabama," in which they pledged to consult with their supporters and then act on their wishes. Ten signatories of the address signed the ordinance to satisfy their constituents. Other delegates who rejected the ordinance eventually took active part in the war. Only three signers—Henry C. Sanford of Cherokee County, Elliot P. Jones of Fayette County, and Robert Guttery of Walker County—never signed the ordinance and maintained their Unionism throughout the war. Only two wartime Unionists—R. S. Watkins of Franklin County and Christopher C. Sheats of Winston County—signed neither the "Address" nor the Ordinance of Secession.

Most of the men and women who supported the Union after Alabama's secession faced great difficulties. Many were ostracized and ridiculed by neighbors, called before community vigilance committees for questioning and intimidation, or actually harmed for endorsing the Union. Such treatment was most commonly meted out to those who publicly asserted their views; those who kept quiet and did not interfere with volunteering were often left alone during the first year of the war. After Confederate conscription began in April 1862, however, community tolerance of Unionists waned. Individuals who resisted the draft, for whatever reason, were subject to arrest and imprisonment. Family members who supported resisters were frequently threatened with violence or exile by conscript cavalry who hoped to pressure men to come in from the woods or mountains and surrender. In addition, it was not at all uncommon for the families of Unionists to be targeted for punitive foraging or arson by Confederate forces or local conscript cavalry.

After the Union Army invaded Alabama in early 1862, Unionists had more opportunities to flee behind Union lines for safety and the possibility of employment as soldiers, spies, or laborers. Most well known of Alabama's Union troops was the First Alabama U.S. Cavalry Regiment, organized in late 1862 by Brig. Gen. Grenville M. Dodge, stationed at Corinth, Mississippi. The U.S. Army regiment served mostly in northern Alabama, western Tennessee, and northeastern Mississippi, though it marched with Gen. William Tecumseh Sherman to Savannah in 1864. Alabama Unionists also joined other federal regiments, particularly those from Tennessee, Indiana, Illinois, and Ohio. Those who remained at home, both within Union-occupied territory and behind Confederate lines, also actively assisted federal forces as spies and guides. In some cases, they collaborated with local African Americans (most often their own slaves) to aid and abet the U.S. Army or pro-Union men in their neighborhoods. Moreover, African Americans from Alabama also crossed the Union lines to serve as laborers and soldiers, and after the Emancipation Proclamation went into effect in 1863, many were inducted into United States Colored Troops regiments. Almost 5,000 African Americans, or 6 percent of Alabama's black male population between the ages of 18 and 45, volunteered in the Union ranks.

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https://encyclopediaofalabama.org/article/unionism/

## Chicago Citations

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### SHORTENED FOOTNOTE

Storey, "Unionism."

CHAPTER 14 · WEB ARTICLE W14.8

# Confederate Impressment During the Civil War

Mary A. DeCredico

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| **CHAPTER / PROMPTS** | Chapter 14 \| 14.1 |
| **ARGUMENT ROLES** | 14.1.2 Support |

## Excerpt · 802 words

Confederate officials had pursued impressment as early as 1861, when the government published lists of prices and attempted to buy staples from farmers and other businessmen. The ongoing need for a regular source of supply, however, prompted the Confederate Congress to pass an impressment law on March 26, 1863. The act directed military officials, with the assistance of state boards of impressments, to buy food, fuel, and other needed commodities. Appointed by governors and Confederate president Jefferson Davis, the commissioners met with local farmers and merchants in order to set fair prices. If no agreement could be reached, the issue went to an "umpire," who was the final arbiter. The schedule of prices was to be adjusted every two months and published in local newspapers.

A few months after impressment became law, Confederate losses at Gettysburg and Vicksburg, combined with high inflation, created a chorus of popular protest. Government price schedules hovered at almost 50 percent below the market rate, outraging farmers and merchants. Adding to their frustration was the uneven way in which goods were impressed. Areas near military campaigns and encamped armies were picked clean, while in other areas impressed goods rotted for lack of transportation. Moreover, it was not uncommon for Southerners to impersonate impressment agents in order to obtain food and fuel to support their own needy families.

Impressment merely exacerbated the disillusionment and discontent behind the lines. War Department clerk Robert Hill Garlick Kean noted the disastrous effect impressment was having on supplies in the Richmond markets: "Farmers … resent the Secretary [of War]'s schedule prices which are often 50% below the market or neighborhood price." Kean went on to observe that "the instant impressment of flour, corn, and meat as soon as they are brought to any of the inland towns … is causing universal withholding of surplus … The Army will be starved and famine will ensue in the cities unless the Secretary changes his policy."

The Richmond press also commented on the negative impact impressment policies were having on the Confederate cause. The acerbic editor of the *Richmond Examiner* wrote, "These arbitrary impressments of Government touch the people's pride and sense of justice." He concluded, "It behooves Congress to redress the present wrongful practice and establish a proper system of impressment without delay." Despite such entreaties, the War Department did not change the policy. As a result, the Confederate government estimated that by March 1865 it had issued $500 million certificates of indebtedness and unpaid invoices.

Enacted in April 1863, tax-in-kind operated similarly to the Impressment Act. Farmers were required to donate 10 percent of certain crops, such as corn, wheat, and sweet potatoes, to tax-in-kind collectors operating under the auspices of the War and Treasury departments. As with impressments, the collectors and farmers negotiated how to calculate 10 percent. Also as with impressments, fake agents stole crops and the government enforced the law haphazardly, causing some Confederate citizens to ask which was the worse scourge, the Union army or Confederate impressment and "TIK-men," as the tax-in-kind agents were derisively called. Still, at least one scholar has estimated that tax-in-kind generated $62 million for the Confederacy between 1863 and 1865.

Since the beginning and throughout the war, local, state, and federal officials advertised for slave labor to build fortifications, to work in the nation's growing war industries, and to serve as teamsters, nurses, cooks, and gravediggers. That informal practice was codified in the March 1863 Impressment Act, which allowed the government to impress slave labor as needed. For instance,

the Confederate government sought the labor of 20,000 slaves in 1864, reserving the right to impress them if slave owners refused to hire them out. By law, the government paid the owners and provided the slaves with room and board and the opportunity to earn overtime pay.

Still, reimbursement was often slow in coming if it came at all. Government bureaus also regularly impressed slaves at the height of the harvest season and kept them beyond their contracted term of service. Because of poor living and working conditions, many slaves returned to their masters in poor health. Despite protests from slave owners, slave impressments proved critical in allowing the Confederate government to shore up fortifications and keep the war machine churning out arms and ammunition until the very end.

Impressment was a necessity for the Confederate government that nevertheless came at a terrible cost. State governors and advocates of states' rights protested the power of the central government to seize private property; the state of Georgia went so far as to declare impressment unconstitutional. Hoarding, speculation, and a continued decline in morale combined to hamper the war effort. By the last months of the war, the Confederacy's economic policies, and in particular impressment, succeeded in reinforcing state loyalties at the expense of the Confederate nation.

## Original Article

https://encyclopediavirginia.org/entries/confederate-impressment-during-the-civil-war/

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### SHORTENED FOOTNOTE

DeCredico, "Confederate Impressment."

CHAPTER 14 · WEB ARTICLE W14.9

# Poverty and Poor Relief during the Civil War

Paul D. Escott

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| **CHAPTER / PROMPTS** | Chapter 14 \| 14.1, 14.5, 14.3 |
| **ARGUMENT ROLES** | 14.1.2 Support; 14.5.3 Support; 14.3.2 Support |

## Excerpt · 767 words

Multiple factors caused the widespread hunger and privation in Virginia. A fundamental problem for non-slaveholding families was the loss of agricultural laborers when husbands and sons went off to join the Confederate army. Single women or elderly parents could not cope on their own, as one Virginian testified when he wrote to the governor, John L. Letcher, and said of his son, "If you dount [*sic*] send him home I am bound to louse my crop and cum to suffer." The fact that Virginia was a major battleground exacerbated the problem. In addition to the destruction caused by battles, soldiers on both sides slaughtered animals, seized property and provisions, ruined crops, and tore down fences or outbuildings to obtain firewood. A Virginian named William R. Ashton complained to Confederate president Jefferson Davis that his "whole place [was] perfectly desolated" by Confederate troops, and the *Richmond Enquirer* noted in August 1862, that "We often hear persons say, 'The *Yankees cannot do us any more harm than our own soldiers have done*.'"

In 1862 Union policy became harsher, as Union general John Pope ordered his men to subsist from Confederate households and punish guerrilla activity. Constant fighting in the state caused British observer Arthur Fremantle to remark that in the area of Sperryville, near the Blue Ridge Mountains, lands were "almost uncultivated, and no animals are grazing … All fences have been destroyed, and numberless farms burnt." Fremantle also noted that northeastern Virginia had "supported two large armies for two years." As a result, the land was "now completely cleaned out. It is almost uncultivated, and no animals are grazing where there used to be hundreds."

Other problems added to the difficulties, as did some Confederate policies. Rampant, uncontrolled inflation brought frustration and despair to many Virginians. By the autumn of 1863 flour in Lynchburg was selling for $30 or $40 per barrel, but by December the price had more than doubled, and by the following spring it had soared to $275 per barrel. Rents in Richmond and other suddenly overcrowded cities rose meteorically. A resident of Charlottesville found that his cobbler had increased the price of repairing his shoes by 50 percent in just one day.

Impressment, on which the Confederacy relied heavily to feed its armies, took many goods from farms and markets, and the likelihood that the government would seize farmers' products discouraged them from offering food for sale. Soaring prices convinced many that greedy merchants were abusing the poor and profiting from speculation. For all these reasons, the deteriorating situation convinced R. G. H. Kean, chief of the Confederate Bureau of War, that "the most alarming feature of our condition is the failure of the means of subsistence." A group of widows from Clarksville told Letcher that "the stuff of life is being fast taken from us … famine in all its horrors must soon be upon us if the Government comes not to our rescue."

### Discontent

The most dramatic sign of suffering and discontent was the famous bread riot in Richmond on April 2, 1863. Among the 1,000 protesting women were many wives of men who worked at the Tredegar ironworks and other women who worked in Confederate factories. As their protest turned violent, with stores being ransacked for food and other goods, some complained, "We are starving." Mayor Joseph Mayo, Governor John Letcher, and President Jefferson Davis all appealed to the rioters, but in vain. Only Davis's threat that soldiers would shoot into the mob dispersed the crowd.

Yet other effects of hunger and privation were more important, if less visible. The most important was desertion from the armies. As men left their posts, their officers and colleagues recognized that many deserted in order to aid their loved ones:

“Their wives and families in the majority of cases are helpless & destitute of the absolute necessities of life.” As one Virginian put it, “What man is there that would stay in the armey and no that his family is sufring at home?” The privations of civilian life had a direct, undeniable, and negative impact on military strength.

Such suffering also undermined morale and encouraged criticism of government policies. Workers went on strike in Lynchburg and elsewhere to demand better remuneration for their services. Public meetings were held to cry out for solutions or to press the government for change. An assemblage in Albemarle County called on the Confederate government to negotiate with Union states in the northwest to try to bring about peace. These events were evidence that the painful difficulties of life on the home front threatened the internal cohesion of the Confederacy.

## Original Article

https://encyclopediavirginia.org/entries/poverty-and-poor-relief-during-the-civil-war/

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### SHORTENED FOOTNOTE

Escott, "Poverty and Poor Relief."

CHAPTER 14 · WEB ARTICLE W14.10

# The Abolition of Slavery in Virginia

Brent Tarter

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| CHAPTER / PROMPTS | Chapter 14 \| 14.2 |
| ARGUMENT ROLES | 14.2.2 Support; 14.2.3 Support; 14.2.1 Challenge |

## Excerpt · 1,025 words

Thousands of enslaved people in effect freed themselves during the Civil War by escaping into areas where the Union army permitted them to live as if free. That began soon after the start of the war, when people living near Hampton sought refuge in the army camp at Fort Monroe. As more and more men, women, and children entered the camps, the army eventually adopted policies that protected the liberty of people who escaped from slavery. Other sites in Virginia became safe places for people seeking freedom, including the grounds of Robert E. Lee's mansion, Arlington, across the Potomac River from Washington, D.C. It is likely that more men than women or children found or made opportunities to free themselves during the war. Tabulations of the numbers of enslaved men subject to being forced to labor for the Confederacy suggest that a significant number of them escaped or failed to return home and that they gained their freedom even as Confederate authorities relied on them to support the Confederate military effort.

### Emancipation Proclamation

The Emancipation Proclamation that President Abraham Lincoln issued on January 1, 1863, declared free the enslaved people who resided in the states that were "in rebellion against the United States." In reality, the proclamation freed only the enslaved people where the Union army could enforce the proclamation. It also exempted several parishes in Louisiana, the Virginia counties that were soon to become the state of West Virginia, and a small number of other Virginia counties.

By the time Lincoln issued the proclamation it was clear that the western portion of Virginia would soon be a separate state with a new name. Before admitting West Virginia to the Union as of June 20, 1863, Congress required that its proposed constitution be amended to abolish slavery. The gradual emancipation provision added to the West Virginia Constitution specified that every person born after July 4 of that year would be born free, that enslaved children younger than ten on that date would become free at age twenty-one, and that enslaved people between the ages of ten and twenty-one on that date would become free at age twenty-five. The West Virginia Constitution of 1863 left in lifetime slavery all of the enslaved people in western Virginia who were then older than twenty-five. But when the West Virginia legislature ratified the Thirteenth Amendment on February 3, 1865, it also passed a bill immediately abolishing slavery in the state.

The exemptions in the Emancipation Proclamation allowed slavery to continue under the laws of Virginia in the upper Potomac River Valley county of Berkeley (which with Jefferson County later voted to join West Virginia), in the two Eastern Shore counties of Accomack and Northampton, and in the Hampton Roads counties of Elizabeth City, Norfolk, Princess Anne, and York, and in the cities of Norfolk and Portsmouth. In those areas the established presence of the Union army had already allowed people who ran away from slavery to live in virtual freedom. In the remainder of Virginia, the Union army when it was present, or perhaps in a few instances the United States Navy, attempted to enforce the terms of the Emancipation Proclamation, which freed an un-tabulated number of enslaved Virginians.

### Constitution of 1864

The Emancipation Proclamation directly influenced how slavery ended in Virginia but not by freeing all of the enslaved people in the state. Instead, it created unusual legal problems for one of the two governments of the Commonwealth of Virginia. Some Virginians who remained loyal to the United States had created a new state government in the summer of 1861 and restored part of Virginia to the Union. During the Civil War, there were two states of Virginia, each with its own government. One state was part of the Confederate States of America and had its capital in Richmond. The other remained part of the United States of America and had its capital in Wheeling until June 1863 and thereafter in Alexandria. Senators and representatives from Virginia served in the U.S. Congress during the first years of the Civil War.

Admission of West Virginia to the Union confined the effective jurisdiction of the Restored government of Virginia to the eastern areas of the state where the Union army and navy were in control of the countryside: on the Eastern Shore, in the Hampton Roads area, and in several counties bordering the Potomac River. The governor and General Assembly of the Restored government continued to function under the Virginia Constitution of 1851 that prohibited them from doing anything significant about slavery. That placed the state government and the army in potential conflict with respect to enslaved people who were within the state's jurisdiction and also in areas where the army was in control. In December 1863, Governor Francis H. Pierpont asked the General Assembly to provide for a constitutional convention to abolish slavery. On March 10, 1864, members of the Constitutional Convention that met in Alexandria voted 15 to 1 in favor of abolishing slavery. Article IV, Section 19, of the Virginia Constitution of 1864 proclaimed that "Slavery and involuntary servitude (except for crime) is hereby abolished and prohibited in the State forever." Article IV, Section 20, permitted courts to apprentice African American children on the same conditions that courts imposed for apprenticing white children. Article IV, Section 21, stated, "the General Assembly shall make no law establishing slavery or recognizing property in human beings."

The provision of the new Virginia constitution that prohibited slavery could be enforced only in the relatively small portion of the whole state. As a result, it almost certainly did not free all of the enslaved people or end slavery even in the counties and cities represented in the convention or in the General Assembly of the Restored government. In the rest of what remained Virginia, the Emancipation Proclamation could be enforced only where the United States Army could make it stick. In most of Virginia a majority of the men, women, and children who had lived in slavery when the Civil War began continued to live in slavery until the war ended in April 1865. At that time, the army began to enforce the Emancipation Proclamation throughout Virginia.

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https://encyclopediavirginia.org/entries/the-abolition-of-slavery-in-virginia/

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#### SHORTENED FOOTNOTE

Tarter, "Abolition of Slavery."

CHAPTER 14 · WEB ARTICLE W14.11

# The Thirteenth Amendment to the U.S. Constitution

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|---|---|
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| **CHAPTER / PROMPTS** | Chapter 14 \| 14.2 |
| **ARGUMENT ROLES** | 14.2.3 Support; 14.2.1 Support |

## Excerpt · 462 words (complete article)

The Thirteenth Amendment did not free any of the approximately half a million Virginia men, women, and children who had lived in slavery when the American Civil War (1861–1865) began because they had all become free before the ratification of the amendment. The Virginia Constitution of 1864, which went into effect on April 7, abolished slavery in the parts of the state that the Restored government of Virginia administered during the war. With the collapse and disappearance of the government of the Confederate State of Virginia in April 1865, that constitution legally terminated the enslavement of all Virginians. That same month, the Union army enforced the Emancipation Proclamation throughout the state.

On April 8, 1864, the U.S. Senate approved the proposed amendment by the required two-thirds majority and sent it to the House of Representatives. Protracted negotiations in which the president participated eventually convinced two-thirds of the members to vote for the amendment. It passed the House of Representatives on January 31, 1865, and went to the states for ratification. No Virginians voted either for or against the Thirteenth Amendment in Congress. The three men who won election to the House of Representatives for the Thirty-Eighth Congress arrived to take their seats after Congress had approved the amendment, but the House refused to seat them. The General Assembly never elected a successor to Senator Lemuel J. Bowden, who died early in January 1864. Senator John S. Carlile, who had represented Virginia since before West Virginia statehood, opposed abolishing slavery but was not present on the day the Senate approved the amendment.

Many state legislatures were in session when Congress submitted the proposed amendment to the states, and several of them speedily adopted ratification resolutions. The assembly of the Restored government of Virginia was one of them. On February 8, 1865, the six-member Senate, with one member absent, voted 5 to 0 to ratify the amendment. The following day, February 9, the thirteen-member House of Delegates voted 9 to 2 to ratify the amendment. Both houses adopted resolutions at the time of ratification to allow the absent members to record their votes on the amendment. Both delegates recorded their votes in favor on March 1, but the absent senator did not return for the remainder of the session and during the special session in June of that year did not take advantage of the opportunity to record his vote. It is possible that he did not know about the resolution that permitted him to do so. Secretary of State William H. Seward officially counted Virginia's ratification as the twelfth of the requisite twenty-seven state legislative ratifications required to make the amendment part of the Constitution as of December 6, 1865.

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## Original Article

https://encyclopediavirginia.org/entries/thirteenth-amendment-to-the-u-s-constitution-the/

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#### SHORTENED FOOTNOTE

Tarter, "Thirteenth Amendment."

CHAPTER 14 · WEB ARTICLE W14.12

# The Road to Emancipation

Hari Jones

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| PUBLICATION | September 5, 2012; updated November 12, 2025 |
| CHAPTER / PROMPTS | Chapter 14 \| 14.2 |
| ARGUMENT ROLES | 14.2.1 Challenge; 14.2.2 Challenge; 14.2.3 Challenge |

## Excerpt · 1,126 words

*"We are happy to believe - indeed, we have very good evidence to the fact - the Administration in Washington notwithstanding appearances, stand ready to inaugurate and carry out a policy towards slavery which will most certainly eventuate in breaking down slavery in all the rebel States, just as soon as the people require it."*

**Frederick Douglass, August 1861**

There was a profound divide in the abolitionist movement on the interpretation of the United States Constitution. William Lloyd Garrison argued that the Constitution was proslavery while James Birney argued that the Constitution was antislavery. America's African descent abolitionists were also engaged in such a debate. In the State Convention of the Colored Citizens of Ohio held in Columbus in January 1851, African Americans debated and voted on a resolution concerning this subject. Hezekiah Ford Douglas argued that they should renounce the Constitution as proslavery because it was "a guilty compromise with Slavery in order to form the Union." William Howard Day contended that if the Constitution "was framed to 'establish justice,' it, of course, is opposed to injustice; if it says plainly no person shall be deprived of 'life, liberty, or property, without due process of law' – I suppose it means it," Day proclaimed, "and I shall avail myself to benefit of it." Day argued that instead renouncing the Constitution they should work in league with the Constitution. He declared, "I consider the Constitution the foundation of American liberties, and wrapping myself in the flag of the nation, I would plant myself upon that Constitution, and using the weapons they have given me, I would appeal to the American people for the rights thus guaranteed." At a vote of 28 to 2, the Convention resolved to work in league with the Constitution to gain equal rights as citizens and to abolish slavery.

In a New York convention held in September 1858, African descent New Yorkers stated that they regarded the Republican Party as the party "most likely than any other" to assist them in securing equity in "the elective franchise." Identifying themselves as "Radical Abolitionists," these New Yorkers expressed their support for the Republican Party. Like-minded African Americans across the country also expressed support for the young party. The Republican candidate in the 1856 Presidential election, the party's first presidential candidate, John C. Fremont was publicly more anti-slavery than Abraham Lincoln the Republicans' 1860 candidate. Fremont and his running mate William Dayton ran as the "Champions of Freedom." African Americans believed that in spite of Lincoln's more moderate public stance that he and his running mate, Hannibal Hamlin, were also "Champions of Freedom." Frederick Douglass called Lincoln "a radical Republican" who was "fully committed to the doctrine of the 'irrepressible conflict.'" New York Senator William Seward had articulated that doctrine as a conflict between slavery and freedom which the nation's founders intended freedom to win.

Many Southerners shared Douglass's opinion of Lincoln. This opinion of Lincoln and his party exacerbated regional tensions fostered by slavery. Thomas Jefferson wrote in 1820 that such tensions established along "a geographical line, coinciding with a marked principle, moral and political," especially as it pertained to the disposition of new territories as either slave or free, would lead regional leaders to an "act of suicide on themselves and of treason against the hopes of the world." On December 20, 1860, South Carolina seceded from the Union declaring: "A geographical line has been drawn across the Union, and all the states north of that line have united in the election of a man to the high office of President of the United States, whose opinions and purposes are hostile to slavery." Like the secessionists of South Carolina, many African Americans believed that Lincoln's Republican administration would seek to abolish slavery throughout the republic. Douglass wrote that in Lincoln the nation had elected, "if not an Abolitionists, at least an anti-slavery reputation to the Presidency of the United States." Lincoln, the secessionist declared, was "entrusted with the administration of the common Government, because he has declared that

‘Government cannot endure permanently half slave, half free,’ and that the public mind must rest in the belief that slavery is in the course of ultimate extinction.” Indeed what South Carolina’s secessionists asserted in their “Declaration of the Immediate Causes Which Induce and Justify the Secession of South Carolina from the Federal Union” as the goal of Lincoln’s party was what African Americans hoped was the ultimate objective of the Republican Party, to make the Republic all free.

The 1860 Republican platform was an anti-slavery platform. Declaration number 8 read: “That the normal condition of all the territory of the United States is that of freedom; that as our republican fathers, when they had abolished slavery in all our national territory, ordained that no ‘person should be deprived of life, liberty or property, without due process of law,’ it becomes our duty, by legislation, whenever such legislation is necessary, to maintain this provision of the constitution against all attempts to violate it; and we deny the authority of congress, of a territorial legislature, or of any individuals, to give legal existence to slavery in any territory of the United States.” This declaration was a direct assault on the Kansas-Nebraska Act which left the decision of whether a territory would allow slavery within its borders to the voters of that territory. The declaration also stated clearly that the Republicans viewed it as their duty “by legislation” to ensure that “no ‘person should be deprived of life, liberty or property, without due process of law,’” not by executive order but “by legislation.” Southern secessionists were concerned about the Republican President-elect and the Republicans in Congress.

Congress was not in session when open hostilities began on April 12, 1861, with the firing on Fort Sumter, Charleston Harbor, South Carolina. President Lincoln responded to the national emergency by issuing a proclamation calling for a special secession of Congress to convene on July 4, 1861. In his proclamation, Lincoln also called for 75,000 volunteers from the states “in order to suppress said combinations,” which meant suppress the newly formed Confederate States of America. Maryland was the only slaveholding state that promised troops. Kentucky refused to send volunteers declaring, “Your dispatch is received. In answer, I say emphatically that Kentucky will furnish no troops for the wicked purpose of subduing her sister Southern States.” Missouri’s governor claimed that the call for volunteers was “illegal, unconstitutional, and revolutionary.” He declared, “Not one man will, of the State of Missouri, furnish or carry on such an unholy crusade.” However, the Northern response was enthusiastic with Pennsylvania promising “100,000 men if necessary.” Harper’s Weekly pronounced Lincoln’s proclamation to be “an absolute declaration of war,” and thousands of volunteers were mobilized within a week after Lincoln’s call for volunteers.

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https://www.battlefields.org/learn/articles/road-emancipation

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### SHORTENED FOOTNOTE

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CHAPTER 14 · WEB ARTICLE W14.13

# Slavery during the Civil War

Jaime Amanda Martinez

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| PUBLICATION | December 7, 2020; updated February 18, 2025 |
| CHAPTER / PROMPTS | Chapter 14 \| 14.2 |
| ARGUMENT ROLES | 14.2.1 Support; 14.2.2 Support; 14.2.3 Support |

## Excerpt · 907 words

Slavery was, as Confederate vice president Alexander H. Stephens of Georgia noted, the ideological "corner-stone" of the Confederate government. Equally important, slave labor provided the physical cornerstone for the Confederate war effort. Civilian and military employers in Virginia hired slaves in increasing numbers over the course of the war. Most of Virginia's slaves worked as agricultural laborers, and their wartime production helped feed both civilians and soldiers, particularly after the Confederate Congress passed legislation allowing for the impressment of wheat, corn, and other foodstuffs. Because the Confederacy's military and industrial employers typically only hired male slaves, much of the wartime agricultural work in Virginia fell to female slaves.

The Confederacy's use of hired slave laborers extended one of the key developments in Virginia's economy during the late antebellum era. Slave hiring was already an established facet of Virginia's antebellum industries, and male slaves comprised a large portion of the workforces in iron factories and on railroad lines. During the war, private employers like the Tredegar ironworks of Richmond, railroad lines, salt works, and iron forges, all of which sustained the Confederate war effort, hired increasing numbers of slave laborers as their white employees left for the army. Owners also leased their slaves to individual officers within the Confederate army or larger departments like the Confederate Medical Department, which hired hundreds of male and female slaves to work as nurses, cooks, and laundresses in army hospitals. The war increased the importance of slaves with industrial skills in the upper South's hiring market; the demand for hired field hands also increased as white men joined the Confederate army.

In addition to the slaves hired to work for private industries or various military departments, thousands of slaves endured harsh working and living conditions while impressed to build fortifications under the Confederate Engineer Bureau. Slaves built the walls and trenches that defended Richmond, Petersburg, Saltville, and Lynchburg until the last weeks and months of the war. While these slaves were forced to work for the benefit of the Confederacy—and thus for their continued enslavement—others found that the war brought them new opportunities to assert their independence.

Slaveholders in Virginia and across the South anticipated that a slave uprising would accompany the start of the war and, accordingly, tightened plantation discipline in the spring and summer of 1861. As increasing numbers of white men left home for the Confederate army, however, and the dreaded slave rebellion never materialized, white Virginians loosened their grip on their slaves. Slave patrols dwindled out of existence in some areas. Plantation discipline relaxed considerably as slaves sensed and exploited their mistresses' weakness in the absence of male authority figures. While few slaves stopped working entirely, many refused to grow cash crops without new incentives.

While plantation workers enjoyed new freedoms, slaves in Virginia's urban areas often experienced the exact opposite. In Richmond, slaves working for the Confederate government lost many of the privileges accorded hired slaves in the 1850s, in particular their ability to choose their own employers, negotiate rates of pay, and receive direct cash payments, all of which had been hallmarks of Richmond's industrial slave-hiring system. In Lynchburg, while slaves did take advantage of wartime dislocations to begin asserting their independence, whites responded with random acts of violence designed to terrorize the city's black population back into submission.

Some of Virginia's Protestant churches severely constricted slaves' freedom of worship, denying slaves the right to join churches without their masters' permission, meet independently to hear slave preachers, or discipline their own congregations. Other churches, after an initial period of heightened alarm, expanded their enslaved congregants' freedom of worship. In April 1863, for example, the First Baptist Church of Charlottesville voted to grant its black members partial independence, allowing them to worship separately in the church basement (before eventually moving to a separate building) and choose their own pastor and deacons. Black congregants in some of Virginia's other churches gained more limited versions of this independence over the course of the war. White church leaders who granted their black members this freedom had no intention, however, of undermining the institution of slavery itself.

Instead, as the war progressed, many Southern ministers extended the antebellum policy of ameliorative reform into a proslavery, pro–Confederate Christian message that still afforded some rights to their slaves. Advocates of ameliorative reform argued that masters had a responsibility to expose their slaves to Christianity but also allow slaves to make their own choices about religious behavior; upholding this responsibility would ultimately strengthen the institution of slavery. During the Civil War, some Southern ministers argued that enacting ameliorative reform policies, and thus bringing slavery into a closer accord with God's will, would increase the likelihood of a Confederate victory. When Southern Protestant churches extended religious independence to their slaves, therefore, they did so under the expectation that slavery would continue to thrive after the war ended.

Finally, the wartime increase in slave hiring brought numerous disruptions to slaves' family lives. Enslaved men impressed to work on fortifications or hired to Confederate officers and industrial employers usually left their wives and children behind, placing a heavier work burden on enslaved women. Climbing prices for slaves in both the hiring and long-distance sale markets increased the likelihood that families would be separated. Other aspects of the war brought additional disruptions of family life. In particular, slaves forced to abandon their homes with refugee masters and mistresses left behind friends and relatives who lived on neighboring plantations.

## Original Article

https://encyclopediavirginia.org/entries/slavery-during-the-civil-war/

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### SHORTENED FOOTNOTE

Martinez, "Slavery during the Civil."

CHAPTER 14 · WEB ARTICLE W14.14

# Fort Monroe during the Civil War

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| **CHAPTER / PROMPTS** | Chapter 14 \| 14.2 |
| **ARGUMENT ROLES** | 14.2.2 Support; 14.2.3 Support |

## Excerpt · 790 words

Designed by the French military engineer Brigadier General Simon Bernard, Fort Monroe (sometimes called Fortress Monroe) was conceived as an element of the Third System of coastal defenses outlined by Congress in the aftermath of the War of 1812. Construction on the massive stone and brick walls of the moated, hexagonal fort began in 1819 and continued for the next twenty-five years. It was garrisoned in 1823 and became a prime training and assembly point for artillerymen before the Civil War, including future Confederate generals Robert E. Lee and Joseph E. Johnston.

When Virginia's Ordinance of Secession was approved by the Virginia Convention on April 17, 1861, Union forces attempted to secure all Union installations within the state. The fort did not share the fate of the smoldering Gosport Navy Yard in neighboring Norfolk, which fell into Confederate hands. Instead, Union reinforcements strengthened the garrison at Fort Monroe, and by the end of May 1861, nearly 4,500 officers and men under the command of Major General Benjamin F. Butler were assigned to its defense.

On May 23, 1861, Butler ordered troops from the fort to disrupt local citizens voting on the ratification of the state secession ordinance. In the ensuing encounter, three enslaved people escaped to the Union lines. Butler, cognizant that the Confederates were using enslaved laborers to construct nearby fortifications, determined that Virginia's secession nullified his obligation to return the enslaved individuals under the Fugitive Slave Act of 1850. He declared the three fugitives "contraband of war" and assigned them to support the Union army at Fort Monroe.

Butler received the approbation of Congress with the passage of the First Confiscation Act on August 6, 1861, which announced that any enslaved person used for a military purpose against the United States could be confiscated. The result was a surge of African American refugees seeking out what they called "Freedom's Fortress." Eventually, the Union army established a policy of providing wages, food, and clothing to formerly enslaved people in contraband camps throughout the Confederacy. Thus, Fort Monroe was in many ways a staging ground for emancipation.

The fort was also a staging ground for several military campaigns and combined operations. In March 1862, seeking to avoid an overland route to the Confederate capital of Richmond, McClellan loaded his Army of the Potomac onto steamers in Washington bound for Fort Monroe. Using the fort as a base, the army then crept up the narrow peninsula between the York and James rivers, aiming to enter Richmond through its "back door." The failure of the Peninsula Campaign to achieve any definitive outcome convinced a distressed U.S. president Abraham Lincoln to review McClellan's operations from Fort Monroe. While there on May 9, 1862, Lincoln received the news that Union troops led by the fort's new commander, Major General John Ellis Wool, had wrested nearby Norfolk from Confederate control. The Confederate naval war for the James River was effectively over.

Butler returned to Fort Monroe in 1864, when the new Union general-in-chief, Lieutenant General Ulysses S. Grant, devised his series of spring offensive operations against the Confederacy. Butler commanded the newly formed Army of the James, headquartered at Fort Monroe. The two corps under his command, including some twenty-five regiments of United States Colored Troops, were assigned to push against Richmond and Petersburg. Although Butler displayed no tactical brilliance in the ensuing engagements, his presence south of Richmond forced Lee to dispatch troops from the Army of Northern Virginia to meet the threat.

The shield of Hampton Roads commanded national attention once more during the Civil War era. Nine days after his capture near Irwinville, Georgia, on May 10, 1865, fugitive Confederate president Jefferson Davis was incarcerated in a provisional cell in Fort Monroe's Casemate No. 2. Public demand for more accommodating conditions prompted his relocation in October to Carroll Hall, an officer's barracks on the premises. After two years of imprisonment, a bail bond in the amount of $100,000, underwritten by the likes of Horace Greeley, Cornelius Vanderbilt, and even Gerrit Smith, a former radical abolitionist, secured Davis's release.

The former president had never been a popular hero like Robert E. Lee or Thomas J. "Stonewall" Jackson, and he had many fierce enemies. E. A. Pollard, editor of the *Richmond Examiner*, famously charged that the war had been "lost by the perfidy of Jefferson Davis." Davis's stay at Fort Monroe, however, perceived as being unnecessarily harsh, forever changed that image and gradually he became a martyr to the Lost Cause who (in the words of a Confederate general, quoted in the *Hartford Courant* in 1886) "had borne our burdens with grace, and it is but fitting … that the Southern people whom he represented, should pay a tribute to his devotion and sacrifice."

## Original Article

https://encyclopediavirginia.org/entries/fort-monroe-during-the-civil-war/

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### SHORTENED FOOTNOTE

Jordan, "Fort Monroe."

CHAPTER 14 · WEB ARTICLE W14.15

# Self-Emancipation: The Act of Freeing Oneself from Slavery

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| **CHAPTER / PROMPTS** | Chapter 14 \| 14.2 |
| **ARGUMENT ROLES** | 14.2.2 Support |

## Excerpt · 954 words

Self-emancipation was the act of an enslaved person freeing him or herself from the bondage of slavery. If allowed, the easiest way of self-emancipation was to pay your slaveholder for your freedom, which many tradesmen and urban slaves were able to do. There are several other stories of the various ways to escape enslavement but the most extreme was by death.

In the 19 century, the problems with slavery or the "peculiar institution," as it was known in the South, led to a growing divide in this country. The result was the American Civil War. The states of the South listed in their secession documents that the protection and expansion of slavery was the reason for them leaving the United States. The many enslaved people escaping from slavery to the North and the Northern disregard of the Fugitive Slave Act of 1850 was a major disappointment to the southern states. The John Brown Harper's Ferry Raid in October 1859 caused concern for all of the South because Brown wanted to initiate slave rebellions across the South. Since the Nat Turner slave rebellion in 1831, plantation owners were terrified of another large rebellion, especially one where a Northern white man was leading the revolt. Self- emancipation could add many angry formerly enslaved people to the ranks of those who would want to violently emancipate the remaining enslaved.

A few examples of self-emancipation would give you a much better explanation of the escape of a slave. Frederick Douglass, Harriet Tubman, Robert Smalls, and John Washington all escaped enslavement, three are very famous and one was an escaped enslaved man, who took advantage of a fortunate situation. First of all, the slave must have in his or her own mind that he wants to escape. Many had not been out of their plantation or region before and to escape meant traveling a long way to an unfamiliar place with unfamiliar people. It can be a very harrowing cultural experience for those who may not be literate or knowing the customs of where they were going.

Frederick Douglass had been both a rural and an urban slave. He was taught to read and write, and he loved to read books about oratory or public speaking. While an urban slave in Baltimore, Maryland, he worked in a shipyard and had friends who were sailors. He acquired a friend's papers and proceeded to escape. In September 1838, he dressed like a sailor and got on a train to Delaware, took a steamer to Philadelphia, and a train to New York. Although he had the help of acquaintances, he still had to endure the scrutiny of proving that he was a free man in his travels through the South into the North. He had to be extremely careful to everyone he talked with, one error and he could be taken by a slave trader. He could not fail this time as he did the first time that he tried to escape, he would have either been sold to the deep south or imprisoned or maybe killed. Douglass became the most important African American man in the 19 century and one of the greatest orators of his time.

Harriet Tubman, a sickly slave after she was injured by an overseer, when he threw a metal weight at someone else, but struck her head. She was about to be sold when she had planned an escape. Two of her brothers started with her in September 1849, however, they decided not to continue their escape. Harriet saw them safely home and then she proceeded to escape again, this time with the assistance of the Underground Railroad and made it to Philadelphia, Pennsylvania approximately 90 miles from her home in Dorchester County, Maryland. She made several trips back to the South and rescued her relatives and other enslaved people who wanted to be free. During the Civil War, she worked for the Union army as a cook, nurse and armed scout and spy. She was the first woman to lead an armed raid, the Combahee River Raid, and rescued over 700 enslaved people. She was called "Moses" by many of her people. She and Douglass met, and he helped her lead her escaped enslaved people from his

house into Canada after the Fugitive Slave Act of 1850 was enacted.

Robert Smalls, an enslaved man who was related to his white slaveholder, made a daring escape to emancipate himself, his Black crew, and their families. At the beginning of the Civil War, he was hired as a crewman on the Confederate supply ship, the *Planter*. Both the United States and the Confederate States employed Black sailors—free and enslaved—from the very beginning of the war. Smalls learned everything he could about piloting the ship. On May 13, 1862, while the white officers and crew slept in Charleston, he and the other Black crew members brought their families on board the Planter. In the predawn hours, they took the ship through the harbor and navigated through all of the checkpoints – using the correct coded signals – and sailed to the Union blockade. They raised a white sheet to signal that he was surrendering the ship. He was awarded a cash prize for capturing the ship and went on a speaking tour recruiting African American men for the Union army. The remainder of his time was used as a Union Navy captain piloting the Planter and subsequently the ironclad USS *Keokuk*. After the war, he bought the McKee home, the home of his former slaveholder, and took in some of the McKee family who was destitute. He became a U.S. Representative to Congress from the State of South Carolina, as well as a state senator and state representative.

## Original Article

https://www.battlefields.org/learn/articles/self-emancipation-act-freeing-oneself-slavery

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### SHORTENED FOOTNOTE

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CHAPTER 14 · WEB ARTICLE W14.16

# Refugees during the Civil War

Susanna Michele Lee

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| **CHAPTER / PROMPTS** | Chapter 14 \| 14.2 |
| **ARGUMENT ROLES** | 14.2.2 Support |

## Excerpt · 837 words

Following the controversial lead of Benjamin F. Butler at Fort Monroe, Virginia, in 1861, Union officials designated slaves who escaped to Union lines as "contraband," refusing to return them to their owners despite the provisions of the Fugitive Slave Act of 1850. The term "contraband" was a mere political convenience, however. These African Americans are more properly understood as a class of refugees.

Take, for instance, the case of John M. Washington, a slave from Fredericksburg, Virginia. Hired out in the Confederate capital of Richmond, Washington heard rumors of slaves using the war as a means to freedom. In his 1872 memoir, *Memorys of the Past*, he wrote that by late in 1861 it had "become a well known fact that slaves was daily making their Escape into the union lines."

Washington kept abreast of war news and plotted to place himself closer to, or in the path of, the Army of the Potomac. Washington's employer in Richmond allowed him to travel home to Fredericksburg in December 1861 and expected him back after the Christmas holiday. Once in Fredericksburg, Washington hired himself out as a steward and bartender, and his employer planned to take him farther into the Confederate interior. "I made them believe I was most anxious to go," Washington wrote. "In fact I made them believe that I was tereblely afred of the Yankees, any way. My Master was well satisfied at my appearant disposition and told me I was quite Right, for if the Yankees were to catch me they would send me to Cuba or cut my hands off or otherwise maltreat me. I of course pretended to beleive all they said but knew they were lieing all the while."

Washington secretly resolved to remain in Fredericksburg until his employer prepared to leave, then conceal himself and await the arrival of the Union army. Washington's calculations paid off when Union troops arrived in April 1862. After serving as an army guide, he eventually found freedom in Washington, D.C. Blacks who escaped to Union lines also found employment with the Union army as carpenters, masons, teamsters, blacksmiths, laborers, nurses, and washers.

When white Northerners objected to the influx of black refugees, military officials relocated thousands to so-called contraband camps in occupied Virginia, including the abandoned Arlington estate of Confederate general Robert E. Lee and his wife, Mary Custis Lee. Black refugees in these camps had difficulty securing adequate housing, food, clothing, and medicine, which sometimes resulted in starvation, disease, and death. Low wages and poor treatment led to disputes between black refugees and military officials. In these camps, however, refugees found education and freedom. Northern missionaries attempted to inculcate their notions of proper work, health, and religious values to a population they presumed to be lazy, unhygienic, and licentious. But the camps also served as political schools as blacks learned about issues like emancipation and equal rights. Military authorities attempted to relieve overcrowding by resettling refugees on government farms, like those near Hampton and Norfolk, but thousands remained dependent upon government aid and unable to secure an independent livelihood.

### White Dissidents

Southern Unionists, often Northern-born, fled to the North to escape Confederate persecution during the war. Vigilance committees warned prominent Unionists to cease their "treasonous" speeches and activities or face expulsion from the community. In addition to general harassment, including violence and imprisonment, Unionists faced confiscation of their property under the Confederate Sequestration Act passed on August 30, 1861. The act permitted authorities to confiscate all property owned by alien enemies residing in the Confederacy.

Harassment prompted many white Unionists to sell their property and relocate to the North early in the war. George R. Herrick of Alexandria had moved from New England to Virginia in 1858. He fled to the North after the First Battle of Manassas in July 1861 to escape persecution he endured as a result of his vote against secession. He settled in Washington, D.C., where he secured a position on the police force.

In the latter years of the war, whites became refugees to evade Confederate conscription. Edwin K. Kane of Caroline County evaded the conscript guard until December 1863. Confederate authorities finally captured him and forced him into the army. Kane shot himself in the foot to avoid Confederate service, but the conscript guard arrested him anyway and, “carrying one boot which I was unable to wear,” Kane was sent to the front nevertheless. He deserted the Confederate army and secured transportation north from the Union army. Kane’s wife, Mary, sold all their perishable property. They settled in a refugee community in Washington, D.C.

Refugees like Kane did not necessarily support the Union cause; they primarily did not want to support the Confederate cause by risking their lives on the battlefield. As refugees in the North, white dissidents often fared better than blacks. While blacks were often confined to “contraband camps,” white Northern-born refugees could capitalize upon family connections to secure livelihoods throughout the North. White Northerners were often more sympathetic to and accommodating of white refugees than black refugees.

## Original Article

https://encyclopediavirginia.org/entries/refugees-during-the-civil-war/

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### SHORTENED FOOTNOTE

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CHAPTER 14 · WEB ARTICLE W14.17

# Benjamin F. Butler (1818–1893)

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| PUBLICATION | December 7, 2020; updated May 23, 2024 |
| CHAPTER / PROMPTS | Chapter 14 \| 14.2 |
| ARGUMENT ROLES | 14.2.3 Support |

## Excerpt · 1,015 words

Benjamin Franklin Butler was born in Deerfield, New Hampshire, on November 5, 1818. He was raised in Lowell, Massachusetts, where his mother kept a boardinghouse, and although his hope as a young man was to attend the United States Military Academy at West Point, New York, he instead graduated from Waterville College (now Colby College) in Waterville, Maine, in 1838. After founding a successful law practice in Lowell, he entered local Democratic Party politics, championing working-class issues. He also campaigned for Southern Rights Democratic candidate John C. Breckinridge during the U.S. presidential election of 1860 after briefly supporting the failed nomination of the pro-slavery U.S. senator from Mississippi, Jefferson Davis. Butler's political connections and shameless self-promotion helped him attain a senior position in the Massachusetts state militia, and on the outbreak of the Civil War in 1861 he was assigned field command of the first brigade sent into Union service from the Bay State.

Leading troops in the border state of Maryland, Butler threatened to arrest the state's legislators if they voted to secede and even confiscated the state seal lest they attempt to make such an action official. On April 25, 1861, Union general-in-chief Winfield Scott placed Butler in command of the Department of Annapolis, and on May 13, without Scott's knowledge, Butler seized Baltimore, an action that ultimately helped to secure Washington, D.C. Scott ordered Butler to Fort Monroe, Virginia, while Lincoln made him a major general of volunteers.

In Virginia, Butler successfully confronted an issue that had been bedeviling the administration and the military alike: slavery. Abolitionists ranging from the Virginian Moncure Daniel Conway to the former slave Frederick Douglass were attempting to persuade Lincoln to make emancipation a war aim, and their arguments were not only moral, some also focused on the practical, military advantages of freeing the South's enslaved people. "The very stomach of this rebellion is the negro in the form of a slave," Douglass wrote in 1861. "Arrest that hoe in the hands of the negro, and you smite the rebellion in the very seat of its life."

Union troops in the field, meanwhile, were unsure what to do with African Americans who escaped slavery by crossing into Union lines. The Fugitive Slave Law of 1850 required that they be returned to their owners, and this is exactly what a Confederate colonel demanded when three of his enslaved laborers fled to Fort Monroe in May 1861. Butler ordered that because Virginia had seceded from the Union, its citizens could no longer claim the protection of U.S. laws. Furthermore, he argued, because these particular enslaved people had been helping to construct fieldworks, they should be considered "contraband of war" and defined as property with military value. Lincoln approved, and in August, Congress passed the First Confiscation Act. It declared free all enslaved people being used directly in the Confederate war effort. When another Union general, John C. Frémont, attempted to go further than that—on August 30, he ordered emancipated all Missouri enslaved owned by active Confederates—he was overruled.

Butler, meanwhile, actively sought glory on the field. When he attempted to take the Confederate capital at Richmond via the James River, however, his forces were roundly defeated at the Battle of Big Bethel on June 10, 1861. The relatively minor engagement provided a glimpse of Butler's legendary tactical incompetence, and he was relieved of command at Fort Monroe.

### New Orleans

After the Union capture of New Orleans, Louisiana, in the spring of 1862 by naval forces under the command of David G. Farragut, Butler was appointed the city's military governor. His short time in the Crescent City proved to be one of the most controversial periods of Butler's contentious career. He feuded with foreign consuls and city officials, allegedly looted gold and other valuables from city banks and mansions, profited from the illegal trade in cotton between the lines, and hanged a local gambler, William Mumford, for hauling down the U.S. flag. (Butler later helped Mumford's widow find employment.) He also instituted poor relief and public works programs, as well as port regulations, that many observers credited for making the city more healthy and orderly. For instance, a yellow fever outbreak that was feared by many never happened.

The most incendiary moment of Butler's tenure in New Orleans came on May 15, 1862, when he issued General Orders No. 28, his famed "woman order." Any woman who insulted Union military personnel—for instance, by emptying her chamber pot onto the head of Farragut, as one woman did—"shall be regarded and held liable to be treated as a woman of the town plying her avocation," or, in other words, a prostitute. In response to this remarkable order, which earned Butler the nickname "the Beast," Confederate president Jefferson Davis declared him an outlaw. British prime minister Lord Palmerston officially protested to the U.S. minister to the Court of St. James's and denounced the order in the House of Commons as "infamous." Even some Northern newspapers and journals criticized Butler, though others accepted the general's explanation that the furor was overblown and he only intended that unladylike New Orleans women receive the nominal punishment of one night in jail and a small fine. (Other more serious consequences, including a possible invitation to rape, had been widely assumed.) Apparently the "woman order" was never enforced, although by some accounts at least it had the intended effect of intimidating the local population.

Lincoln replaced Butler with Nathaniel Banks late in 1862, and Butler returned to Lowell. In the meantime, U.S. senator Charles Sumner of Massachusetts privately informed him that the reason for his removal was not the "woman order" but rather his feud with subordinate John W. Phelps over the latter's innovative plan to enlist and arm African Americans. The Lincoln administration and Republicans in Congress were concerned that Butler was not sufficiently sympathetic to the recently issued Emancipation Proclamation. Sensing a political opportunity, the general soon after reversed his position, announcing support for emancipation and the arming of African American troops. He even switched parties, a remarkable conversion for an old pro-slavery Democrat and Jefferson Davis supporter.

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https://encyclopediavirginia.org/entries/butler-benjamin-f-1818-1893/

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#### SHORTENED FOOTNOTE

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CHAPTER 14 · WEB ARTICLE W14.18

# Virginia Soldiers (Confederate) during the Civil War

Aaron Sheehan-Dean

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| **PUBLICATION** | December 7, 2020; updated February 5, 2021 |
| **CHAPTER / PROMPTS** | Chapter 14 \| 14.3 |
| **ARGUMENT ROLES** | 14.3.1 Support; 14.3.2 Challenge; 14.3.3 Support |

## Excerpt · 750 words

Historians have only recently gained a detailed and reliable picture of who actually fought for the state during the war. Rather than the eighteen-year-old second sons long thought to have filled the ranks of the Civil War armies, Virginia soldiers were, on average, twenty-six years old; 55 percent of them were the heads of their respective households. The broad transfer of men from civilian to soldier life put huge new burdens on wives, mothers, and sisters, who were left to do the work that male heads of household had previously done in addition to all of their regular work. Most important, from the perspective of correcting old and inaccurate assumptions, the Civil War in Virginia was a rich man's fight. Several recent studies have used quantitative evidence to demonstrate that wealthy men were overrepresented in the armed forces. Contrary to the notion that poor men did all the fighting, both aggregate data and individual sampling reveal that wealthy counties sent more men than poor counties did and that wealthy individuals were found at all levels of the service in greater proportion than within the population.

These same studies have also revealed that slave owners were also overrepresented in the armies. While one school of thought argues that slaveholders used their positions and wealth to avoid service, the evidence from Virginia shows that these men conceptualized the war as a threat to their property and future security and acted to protect both. The necessity of protecting slavery apparently extended beyond even the slaveholders themselves. When considering aggregate enlistment figures for Virginia, the best predictor of whether a county would enlist a high proportion of its men was not slaveholding itself, but the percent of the population enslaved. The more people held as slaves, the higher the enlistment figures. Counties in which more than 50 percent of the population was enslaved had very high enlistment rates, most well over 75 percent.

### Experiences of War

Regardless of wealth or social status, enlisted men in Confederate armies shared a set of experiences. In Virginia, more than one-quarter of all soldiers were captured at some point during the war, some more than once. Many of these men were paroled at the end of a battle or campaign, but many others spent time in Union prisoner-of-war camps. A quarter of the men could expect to be wounded severely enough to have the incident reported. Ten percent died from disease and another five percent were killed outright during battles. Casualty figures for junior officers—lieutenants and captains—were even higher.

For all men, campaigns and battles meant constant hunger, dirt, and sickness. During the first year of the war, the low immunities nurtured in small Virginia communities before the war generated very high illness rates. Units assigned to the cold western reaches of the state were hit the hardest, with some reporting hundreds of men sick in single regiments. Perhaps the most difficult adjustment was psychological. Despite the diversity of cultural backgrounds from which soldiers came, most found the necessity to engage in violence and killing morally repugnant. For all soldiers, but especially for those reared in the Christian tradition, the aversion to killing manifested itself in a perpetual repugnance over what soldiers were called to do. Although Confederates wanted separation from the Union and, over time, they grew to resent and even hate Northerners, very few took any pleasure from the prospect of killing other men.

Similarly, nearly all soldiers shared an antipathy for the discipline necessary to keep the army organized. Historians have made much of the autonomous lives that most Virginia men lived prior to the war and drawn the assumption that they could not be reconciled to the demands of the army. Confederate soldiers may have seen the curtailment of their liberties that came with soldier life more sharply in comparison to the enslaved people among whom they lived, but there is little evidence that they resisted the discipline of the army any more than their Northern peers. What did distinguish Confederate soldiers was a closer initial attachment to their home communities. While most Union forces immediately left their homes to fight hundreds or thousands of miles away, Virginians usually fought within a day's walk of their home regions. They visited, frequently exchanged letters, and generally kept open lines of communication with family members, which helped them remain attached to their homes. This changed significantly in 1864, when the siege of Petersburg forced on Confederates a grim and remorseless style of warfare that alienated them from civilian life.

## Original Article

https://encyclopediavirginia.org/entries/virginia-soldiers-confederate-during-the-civil-war/

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### SHORTENED FOOTNOTE

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CHAPTER 14 · WEB ARTICLE W14.19

# Alternative Histories: Integrating Drafted Men into the Military Narrative

James Marten

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| PUBLICATION | April 7, 2025 |
| CHAPTER / PROMPTS | Chapter 14 \| 14.3 |
| ARGUMENT ROLES | 14.3.2 Challenge |

## Excerpt · 1,162 words

"How I hate the whole thing," wrote a decidedly unhappy new recruit to the Sixth Wisconsin late in 1864, "from beginning to end."[1] That was Joshua B. Ingalls, a Richfield County blacksmith in his late thirties with a wife and six children. He had managed to avoid earlier drafts, but his name was finally called in fall 1864. Also drafted into the Sixth at about the same time were three German immigrant brothers from Sheboygan: Gottlieg, Wilhelm, and Gottfried Torke. Gottlieb was about thirty with a farm, a wife, and several children.[2]

There is no reason to think that Ingalls and Torke ever met—they served in different companies—but they both provide rare, if quite different, accounts of the last few months of the Civil War through conscripts' eyes.

The Sixth was part of the famous Iron Brigade, which had fought in almost all of the major battles in the eastern theater. But by late 1864 both the brigade and the regiment were shells of their former selves. Indeed, only a few dozen original members were still with the regiment. As I argue in *The Sixth Wisconsin and the Long Civil War: The Biography of a Regiment*, heavy casualties and sickness had caused a constant turnover of officers and men, meaning that there wasn't a single "Sixth Wisconsin," but an ever-changing roster of men with different motivations and experiences.

Ingalls and Torke, along with over 470 other draftees, comprised the bulk of the version of the Sixth Wisconsin that actually finished the war. Their experiences and reflections are necessarily very different from the more familiar narratives created by men who had volunteered earlier in the war and fought at Antietam and Gettysburg. They help us appreciate the evolving nature of Civil War regiments and the wildly varying attitudes of the men who joined them. While Ingalls poured out his disgust and sorrow in bitter diary entries, Torke described his experiences in letters to his wife filled with pious encouragement, expressions of affection, homely advice about turnips and cattle, and an innocent, wide-eyed response to combat.

Ingalls began his diary upon arriving at Camp Randall, the state's mustering grounds in Madison. He complained particularly about his fellow draftees, many of whom were German immigrants. "I tell you this is a hard place, lots of dutchmen—Jabber, jabber all the time," he sighed. "I look around me" and ask, "can I stand it a year[?] O my heart almost fails me."[3] An uncomfortable three weeks in camp was followed by even more uncomfortable week of train travel to Virginia. Ingalls resented the casual cruelty and lack of consideration for the comfort or feelings of the new soldiers. They were under guard from the time they left Camp Randall—even when "tend[ing] to the calls of nature. How mean it makes one feel." By December 11 they were at Fortress Monroe, where, crowded into a "bull pen," they were exposed to the cold and rain, and ignored except for the guards that still watched their every move. When one of the draftees got too close to a pen of Confederate prisoners, a rebel stabbed him.[4]

Ingalls was appalled by the squalid conditions in camp. At one point two thousand men waited in line for meager rations—next to the latrines. "You cannot imagine the stench that is there & all on an empty stomach." Finally, after a short train trip and a long march through vast fields of tents and ruined homes, they reached the Sixth in late December.[5]

Predictably, none of the officers had any interest in granting Ingalls' request to be assigned to a non-combat role. Indeed, when he met with the regimental adjutant and another officer, they "called me everything that they could turn their toung to & swore

that if they could. . . they would hang me."[6]

Ingalls gave up and began learning how to be a soldier. The newcomers were punished for such violations as blowing their nose on dress parade. One of the draftees tried to get a medical discharge by pressing a brass button into a wound to keep it from healing, but he "got catched at it" and was "made to stand on a board for half a day" with "a paper pinned on his back stating his crime." Ingalls' last surviving entry ended in disgust: "I have to get me a hat with a bugle 6 & E & a feather." That would have shocked the original men of the Sixth, for whom that black hat and feather were symbols of courage and respect.[7]

Betraying none of the bitterness of Ingalls's diary entries, Gottlieb Torke's letters to his wife Elizabeth were loving and plain, even as they revealed a certain bewilderment with his surroundings. He reported on the long days and plain food, hard drilling and daily camp chores, the unfamiliar weather and sandy soil. He gave homely instructions for managing the farm, including advising his wife to "keep yourself away from the sheep that they don't butt you." He imagined his young children asleep in bed as he walked the midnight shift on guard duty. He hated missing Christmas, prayed for peace, and worried that Elizabeth might be working too hard. In mid-January he reported that the regiment was training "very hard now. . . As soon as something happens here at Petersburg, then we will have to go off to the war."[8]

They did, indeed, go "off to the war" when the Army of the Potomac began the climactic campaign in February 1865. Torke described the movements and battles through what must have been a terrifying haze. His first thoughts as he went into the fight on the Boydton Plank Road were of Elizabeth and of God: "I could think of you only a little. I directed my thoughts to the heavenly father above, to whom many thousand prayers were rising." When the shooting finally started, "we all looked at the world through tears, and I had given myself over completely to dear God." Clearly unfamiliar with military terminology Gottlieb captured a blur of fearful images and disorienting sounds:

It was a hard day for us, we were quite wet and freezing. We had to fight the Southerners . . . and had driven them back. . . . There we made a good trench where the bullets would always fly over our heads, and then when we had finished making the trench, we went out again against the Southerners [who] stayed in their trenches, and we stood in the woods. Then we lay down on the ground and fired at them. We had been firing a half-hour, then we sprang up again and ran back again in our trenches, as we wanted to draw the Southerners out of their trenches so that they would come near our trenches. And so we tried to decoy them but they wouldn't come, so then we went out again toward them. They were firing very much at us with cannons.

## Original Article

https://www.journalofthecivilwarera.org/2025/04/alternative-histories-integrating-drafted-men-into-the-military-narrative/

## Chicago Citations

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### SHORTENED FOOTNOTE

Marten, "Alternative Histories."

CHAPTER 14 · WEB ARTICLE W14.20

# Family Life during the Civil War

Amy Murrell Taylor

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| **CHAPTER / PROMPTS** | Chapter 14 \| 14.3, 14.5 |
| **ARGUMENT ROLES** | 14.3.3 Support; 14.5.1 Support; 14.5.3 Support |

## Excerpt · 685 words

White families in Virginia first confronted the war's impact with the enlistments of their male kin. Service in the Confederate Army pulled men away from their homes for years at a time and appeared to threaten their culturally prescribed duty to protect and provide for their families. Yet many soldiers reasoned that army service could still fulfill that duty by allowing a man to fight against the Union's threats to his family's livelihood and privilege. As one Virginia soldier put it, his duty in the war encompassed "the defense of our country, our liberty and the protection of our parents, wives, and children, and all that is dear to a man." More than 50 percent of the men who eventually enlisted from Virginia were heads of households who similarly tried to reconcile their family's interests with that of the Confederacy.

No matter how these white Virginians justified the absence of men, the separation took a toll on those left behind. Wives, daughters, sisters, and other female kin assumed much of the work normally pursued by men—managing plantations, harvesting crops, running businesses—while confronting the new strains of war on their own, such as inflation and slave resistance. These mounting pressures took a toll on women. "We felt like clinging to Walter and holding him back," wrote one Virginia woman in reaction to a family member's enlistment. "I was sick of war, sick of the butchery, the anguish."

Soldiers tried to sustain their role in family affairs through frequent letters home, but their correspondence proved an imperfect surrogate when the mail, disrupted by war, was slow in coming. Other women searched for ways of bringing their men home, either by filing a petition with the Confederate secretary of war for a man's exemption or by urging a soldier to desert the army. Such efforts were often unsuccessful, however, leaving most white families to wait until the war's end to rebuild their lives—something made even more difficult when death intervened and rendered a family's separation permanent.

Political divisions sometimes compounded the separations experienced by white families. Regions with high Unionist concentrations, such as western Virginia, witnessed the division of households on opposing sides of the war—pitting father against son, husband against wife, and even the oft-cited brother against brother. As one Virginian noted of his own family's division, "There are thousands of families in the same situation." These families included some of Virginia's most prominent Confederate leaders: Confederate general Thomas J. "Stonewall" Jackson became estranged from his Unionist sister, while J. E. B. Stuart, the famed Confederate cavalryman, urged his wife, Flora Stuart, to change their son's name so that he no longer bore the moniker of his Unionist father-in-law, Philip St. George Cooke.

Estrangement occurred, too, for Virginians whose loyalty did not transfer to the Confederacy after the state seceded in April 1861. Union general George H. Thomas was an enslaver from Southampton County whose family had been forced to escape into the woods during the Nat Turner uprising in 1831. But when he decided to remain in the United States Army in 1861, his family objected and cut off contact with him. He later reconciled with his brothers, but his sisters remained estranged from him until his death.

Such divisions were at once a source of fascination and lament for Virginians, as newspapers covered cases like that of Confederate Antonia Ford of Fairfax Court House who, after being arrested by Union authorities for spying, fell for one of *her* captors, Major Joseph Willard of the Union Army, and married him in 1864. (When Confederate spy Belle Boyd fell in love with and married one of her captors, Samuel W. Hardinge, he was arrested and thrown in jail.) Many of these families reconciled in practical ways as the war came to a close, providing one another with material support, but they found it harder to reunite emotionally. As Warner Thomson, a slaveholding Unionist living in the Shenandoah Valley, wrote of his estrangement from his Confederate sons, “My natural affection for my sons & love for my country cause a struggle in my mind—it is a painful one.”

## Original Article

https://encyclopediavirginia.org/entries/family-life-during-the-civil-war/

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### SHORTENED FOOTNOTE

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CHAPTER 14 · WEB ARTICLE W14.21

# South Side Railroad during the Civil War

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| PUBLICATION | December 7, 2020; updated May 17, 2022 |
| CHAPTER / PROMPTS | Chapter 14 \| 14.4, 14.1 |
| ARGUMENT ROLES | 14.4.3 Support; 14.1.1 Support |

## Excerpt · 371 words (complete article)

During the Union army's siege of Petersburg (June 15, 1864–April 2, 1865), the City Point portion of the railroad was of vital importance to Union general Ulysses S. Grant. Controlling the rail system gave Grant the dual benefit of quickly moving and supplying his own army to the south and east of Petersburg while simultaneously refusing the entrenched Confederates food, supplies, and reinforcements. On April 1, 1865, the Union general Philip H. Sheridan defeated Confederate forces under George E. Pickett in the Battle of Five Forks, forcing General Robert E. Lee to abandon efforts to save Petersburg and the Confederate capital at Richmond. Faced with starvation and devoid of fresh troops, Lee maneuvered his Army of Northern Virginia west toward Lynchburg. Grant, in close pursuit, followed just below Lee's bedraggled army, utilizing the route of the South Side Railroad. This tactic prevented the Confederate army from turning south and allowed Grant to intercept food supplies destined for the Confederate troops in the town of Burkeville, about sixty miles west of Petersburg.

Unable to turn south and forced into a series of long night marches, Lee's forces continued west, hoping to resupply in Farmville. Exhausted and starving, large gaps began to appear in the retreating Confederate column. Detachments of Grant's army caught up to the rear-most section of Lee's army on April 6, 1865, at Sailor's Creek. Lee lost nearly a quarter of his army in the ensuing engagements causing him to remark, "My God, has the army been dissolved?"

The next morning, retreating survivors crossed the South Side Railroad's High Bridge. An impressive, 2,400-foot-long structure, the bridge was built with almost four million tons of brick and twenty-one piers to span the Appomattox River valley at a height of 160 feet. As Lee's remnant army crossed into Farmville, they attempted to burn it as they went, thereby severely limiting Grant's pursuit. Union forces, however, were able to extinguish the fire before it destroyed the bridge and continued their chase along the route of the South Side Railroad. Unable to feed or reinforce his exhausted army, Lee was forced to surrender on April 9, 1865, at Appomattox Court House.

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## Original Article

https://encyclopediavirginia.org/entries/south-side-railroad-during-the-civil-war/

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**SHORTENED FOOTNOTE**

Feeney, "South Side Railroad."

CHAPTER 14 · WEB ARTICLE W14.22

# Guerrilla Warfare in Virginia during the Civil War

Daniel E. Sutherland

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| CHAPTER / PROMPTS | Chapter 14 \| 14.4, 14.1 |
| ARGUMENT ROLES | 14.4.1 Support; 14.1.2 Support |

## Excerpt · 948 words

Northwestern Virginia, which included what is now West Virginia, became the first part of the state to experience both types of guerrilla conflict: conflict aimed at outside invaders and conflict aimed at intimidating one's neighbors. The northwest was home to Virginia's largest concentration of Union sympathizers, and the struggle for political and economic control of its communities began in the spring of 1861. In places not immediately occupied by the Union army, these Unionists formed "guerrilla parties" to counter Confederate neighbors and defend, as one man put it, "our respective regions ... as well as ... the Union." Among the first rival bands, operating in a cluster of counties north of Charleston, were the Confederate Moccasin Rangers and the Unionist Snake Hunters. Family and kinship often bound together many members of these bands, thus turning community tussles into something like clan warfare.

In the meantime, in the absence of any substantial number of Confederate soldiers, Confederate guerrillas also did what they could to slow the Union advance. Union troops, for their part, were determined to protect Unionist civilians in the region, to control the Baltimore and Ohio Railroad, and to block Confederate raids into Ohio and Pennsylvania. A measure of their frustration in achieving these goals may be seen in the harsh retaliatory measures taken against Confederate guerrillas by late in June of 1861. George B. McClellan, the Union commander in the region, announced that "marauding parties" would be treated according to the "severest rules of military law." McClellan's successor, William S. Rosecrans, hoping to stop the "neighborhood and private wars," included civilian supporters of guerrillas in these proscriptions.

A standoff ensued in northwestern Virginia. Union troops became so desperate to control the rebels that they allowed Unionist guerrillas to arrest suspected enemies. They also organized Unionist volunteers into special counterguerrilla units. Company C, 11th (West) Virginia Infantry, for example, was assigned to break up the Moccasin Rangers. For their part, Confederate guerrillas, unable to hit military targets effectively, created chaos by destroying U.S. post offices and county courthouses, waylaying sheriffs and tax collectors, and threatening the operation of law courts.

Soon, even Confederate officials became alarmed by the unchecked nature of this contest. Virginia governor John Letcher had initially encouraged guerrilla resistance. According to Daniel Ruggles, a colonel in the provisional army, the "policy of the State" in May 1861 was "to make each house a citadel, and every rock and tree positions of defense." By March 1862, however, hoping to bring the independent guerrilla bands under government control, instilling discipline, and better organizing guerrilla resistance, Letcher had authorized the Virginia State Rangers. A few weeks later, Virginia's law became a model for the national Partisan Ranger Act, passed by the Confederate Congress, to control Confederate guerrillas across the South. No amount of legislation, however, at either the state or the national level, could check the spread and continuing violence of the guerrilla war.

### Confederate Virginia

Guerrillas also resisted the Union advance into central and eastern Virginia. The first reports of guerrilla fighting came from Alexandria and Hampton late in June 1861 and, around the same time, Turner Ashby began partisan operations in the Shenandoah Valley. Generally, though, the scope of guerrilla war in Confederate Virginia did not assume major importance until 1863 and 1864, when the Union army secured a permanent foothold south of the Rappahannock River. By then, the state's most famous band of sanctioned partisan rangers, John Singleton Mosby's 43rd Cavalry Battalion, had been formed. His men became such a dominant force in Fauquier, Loudoun, Fairfax, and Prince William counties that the region became known as "Mosby's Confederacy."

While the number of Unionists in Confederate Virginia was smaller than in the northwestern part of the state, fierce neighborhood wars could also be found there. Indeed, the bitterness of these contests only deepened as the war went on. "Just one thing after another seemed to fan the flame of the war spirit," explained a resident of southwestern Virginia. Another man in the same region declared, "People had grudges against some neighbor[s]. So they got together to steal and destroy the property of absent soldiers, and even to kill those whom they particularly hated."

Guerrilla warfare against the Union army came to a head in November 1864, when, following his successful Shenandoah Valley Campaign, Union general Philip H. Sheridan turned his attention to Mosby's Confederacy—Fauquier and Loudoun counties in northern Virginia. (Some accounts extend Mosby's reach to Fairfax and Prince William counties, as well.) Sheridan told his men not to destroy private homes, and he wanted no "personal violence" against civilians, but his troops burned thousands of haystacks and hundreds of buildings, confiscated crops, and seized hundreds of horses and cattle. It seemed harsh retribution to many Union soldiers, but at least one of them concluded, "There is no stopping this Infernal Guerrilla Warfare unless destroying [it] Root & Branch."

Just as the guerrilla war had begun before conventional military operations gained effectiveness, so, too, did it end after Robert E. Lee surrendered the Confederate Army of Northern Virginia at Appomattox on April 9, 1865. Unwilling even to use the word "surrender," Mosby did not "disband" his men until April 21, 1865. Jesse C. McNeill did not surrender the state's last company of partisan rangers until May 8.

The legacy of Confederate guerrilla resistance in Virginia proved to be mixed. It made a distinct contribution to Confederate defense of the state, but it also brought more violence to more communities than conventional warfare could have done. Ironically, by forcing the Union army to take harsh punitive measures against both Confederate guerrillas and their civilian supporters, it also heightened the savagery of the war and contributed to Confederate defeat.

## Original Article

https://encyclopediavirginia.org/entries/guerrilla-warfare-in-virginia-during-the-civil-war/

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#### SHORTENED FOOTNOTE

Sutherland, "Guerrilla Warfare in Virginia."

CHAPTER 14 · WEB ARTICLE W14.23

# The Future of Civil War Era Studies: Military History

Barton A. Myers

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| **PUBLICATION** | c. 2012 |
| **CHAPTER / PROMPTS** | Chapter 14 \| 14.4, 14.3 |
| **ARGUMENT ROLES** | 14.4.2 Support; 14.4.3 Support; 14.3.1 Support; 14.3.3 Support |

## Excerpt · 1,154 words

In April 2011, I spent three days walking Gettysburg National Military Park in the rain. This particular trip to the battlefield was an exciting opportunity for a historian to get out of the office and perhaps see the field in a new way, accompanied by seventy international officers, students from the U.S. Army's Combined Arms Center, in Fort Leavenworth, Kansas. These officers—from twenty-five countries, places as diverse as Great Britain, Pakistan, France, Mexico, and the Philippines, many with recent combat experience in faraway places like Chad, Columbia, and Afghanistan—were there for a few days of leadership and combat study at America's most prominent Civil War battlefield. As we marched the field, soaked to the bone, I spent a significant amount of time talking with a Nigerian military intelligence officer about Civil War history at Devil's Den. The more I reflected on this conversation and the entire trip, the more I thought about the formative impact that recent military history has had on Civil War historiography and will almost certainly continue to have in the near future. A variety of new subfields in Civil War military history have developed or regained prominence over the last decade and suggest a range of possibilities for innovative work.[1]

The field of military history within Civil War studies is probably the healthiest it has ever been in terms of the diversity and quality of the research published by major university presses. Publishers, even ones in financial distress, have continued to crave books addressing the intersection of war, culture, and society during the middle period of nineteenth-century U.S. history. Recent trends in the historiography collectively demonstrate the necessity of carefully reconsidering the traditional line between battlefield and home front that has long dominated and impeded creativity in Civil War military history. As we approach the midpoint of the sesquicentennial, recent work suggests that the future of military history will be scholarship that considers the military experience broadly, away from the symmetrical, conventional battlefield and places the soldiering experience in fuller context before, during, and after armed hostilities by large field armies.[2]

Just as the Vietnam War prompted historians of the 1970s and 1980s to ask new questions about the Confederacy's defeat, many scholars over the last decade, with an eye toward events in Afghanistan and Iraq, have turned their attention increasingly to two areas: occupation studies and guerrilla warfare. The most recent volumes in this field suggest a plethora of new creative angles for military historians. Daniel Sutherland's *A Savage Conflict* stands out as the most comprehensive study of guerrilla warfare. This book addresses Confederate irregulars, Unionist guerrilla bands, and U.S. Army counter-irregular efforts in regions as diverse as Arkansas, Iowa, and western Virginia. Ultimately, Sutherland argues that this savage conflict of guerrilla warfare was decisive in both prolonging the war by several months and increasing its devastation by sowing chaos in many parts of the Confederacy. This chaos convinced many loyal Confederates that their government could not protect them by 1864. The breadth of Sutherland's work opens doors for numerous local studies. Similarly, Judkin Browning's *Shifting Loyalties* (Carteret and Craven Counties in North Carolina), Robert McKenzie's *Lincolnites and Rebels* (Knoxville, Tennessee), Victoria Bynum's *The Long Shadow of the Civil War* (East Texas, Central North Carolina, and Piney Woods of Mississippi), and Michael D. Pierson's *The Mutiny at Fort Jackson* (New Orleans, Louisiana) point us in important new directions in the history of military occupation. Browning's study demonstrates the importance of examining the Union army's role in shaping and impacting loyalty among southerners by pushing southern unionists to convert to confirmed Confederates. McKenzie uses the community of Knoxville as an urban window into many dimensions of military occupation. While Bynum's work flips military occupation on its head by

examining Confederate military involvement in dissident regions of the South, Michael Pierson's book utilizes community-studies methodology and a focus on loyalty and ethnicity to examine the causes of a mutiny south of New Orleans in 1862.[3]

Guerrilla warfare has reemerged as a dominant area of military historiography, and the mapping of local guerrilla conflicts and armed resistance within the South will be a major project for military historians' energy and attention over the next few years. This project presents perhaps the single best possibility for adding new answers to the question of why the Confederacy was defeated. New digital databases and geographic information systems technology will enable the next generation of historians to begin this painstaking work. Where Gerald Linderman, James McPherson, Chandra Manning and others have given us brilliant studies of the reasons Civil War soldiers in large armies fought, we have no equivalent Confederacy-wide quantitative or broadly comparative studies of motivations for Confederate and unionist guerrillas. Military historians will work to fill that void.[4]

Operational, leadership, and battle history will continue to be a mainstay, but this subfield will also take on new angles, like counter-guerrilla warfare, smaller western theater battles, and engagements that mattered little or not at all to campaigns. Civil War historians have not produced even one major comparative study of American Civil War guerrillas in the context of irregulars worldwide and/or a general history of how irregulars and counter-irregulars planned raids and attacks. Until recently, the majority of guerrilla studies have tended toward biography of individual leaders like John Mosby and William C. Quantrill. For this reason, Daniel Sutherland's work is a refreshing departure in both its scope and the implications of his argument. Military historian Donald Stoker has recently produced a new assessment of strategy that plots a course for understanding the conflict by applying a twentieth-first-century conceptualization of military definitions to the Civil War. A study of military strategy that takes into careful consideration the limits of nineteenth-century military education and concepts would be an important work. Historians need to connect questions about Civil War military training to soldiers' experiences and utilize that information to help understand battlefield outcomes. Earl Hess's recent *The Rifle Musket in Civil War Combat* provides the single best example of what tactical and combat studies of our field should do. Riverine, brown-water warfare, and smaller naval engagements fought against the Confederate mosquito fleets remain an area of battle history understudied. A combat history of the Civil War's naval warriors that integrates the use of new military technologies during the period like those produced by Hess for the large land armies would also be a welcome addition. Battle histories written from the perspective of the private soldier, who was not privy to the larger strategic or even tactical challenges, may present opportunities for scholars. Sabotage, both during battle and surrounding campaigns, could be the focus of an excellent monograph. Soldiers in many battles were jaded, lost, disaffected, and nihilistic. Understanding the meaning of these topics should be our focus. So many of our battle histories present each engagement as a possible "turning point" or an important setback, and we need more military histories that address pointlessness, imbecility, futility, and frustration.[5]

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### SHORTENED FOOTNOTE

Myers, "Future of Civil War."

CHAPTER 14 · WEB ARTICLE W14.24

# Sherman's March to the Sea

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| CHAPTER / PROMPTS | Chapter 14 \| 14.4 |
| ARGUMENT ROLES | 14.4.1 Support; 14.4.2 Support |

## Excerpt · 600 words

The March to the Sea, the most destructive campaign against a civilian population during the Civil War (1861-65), began in Atlanta on November 15, 1864, and concluded in Savannah on December 21, 1864. Union general William T. Sherman abandoned his supply line and marched across Georgia to the Atlantic Ocean to prove to the Confederate population that its government could not protect the people from invaders. He practiced psychological warfare; he believed that by marching an army across the state he would demonstrate to the world that the Union had a power the Confederacy could not resist. “This may not be war,” he said, “but rather statesmanship.”

### Preparation

After Sherman’s forces captured Atlanta on September 2, 1864, Sherman spent several weeks making preparations for a change of base to the coast. He rejected the Union plan to move through Alabama to Mobile, pointing out that after Rear Admiral David G. Farragut closed Mobile Bay in August 1864, the Alabama port no longer held any military significance. Rather, he decided to proceed southeast toward Savannah or Charleston. He carefully studied census records to determine which route could provide food for his men and forage for his animals. Although U.S. president Abraham Lincoln was skeptical and did not want Sherman to move into enemy territory before the presidential election in November, Sherman persuaded his friend Lieutenant General Ulysses S. Grant that the campaign was possible in winter. Through Grant’s intervention Sherman finally gained permission, although he had to delay until after election day.

### Confederate Response

After General John Bell Hood abandoned Atlanta, he moved the Confederate Army of Tennessee outside the city to recuperate from the previous campaign. In early October he began a raid toward Chattanooga, Tennessee, in an effort to draw Sherman back over ground the two sides had fought for since May. But instead of tempting Sherman to battle, Hood turned his army west and marched into Alabama, abandoning Georgia to Union forces. Apparently, Hood hoped that if he invaded Tennessee, Sherman would be forced to follow. Sherman, however, had anticipated this strategy and had sent Major General George H. Thomas to Nashville to deal with Hood. With Georgia cleared of the Confederate army, Sherman, facing only scattered cavalry, was free to move south.

### The March

Sherman divided his approximately 60,000 troops into two roughly equal wings. The right wing was under Oliver O. Howard. Peter J. Osterhaus commanded the Fifteenth Corps, and Francis P. Blair Jr. commanded the Seventeenth Corps. The left wing was commanded by Henry W. Slocum, with the Fourteenth Corps under Jefferson C. Davis and the Twentieth Corps under Alpheus S. Williams. Judson Kilpatrick led the cavalry. Sherman had about 2,500 supply wagons and 600 ambulances. Before the army left Atlanta, the general issued an order outlining the rules of the march, but soldiers often ignored the restrictions on foraging.

The two wings advanced by separate routes, generally staying twenty miles to forty miles apart. The right wing headed for Macon, the left wing in the direction of Augusta, before the two commands turned and bypassed both cities. They now headed for the state capital at Milledgeville. Opposing Sherman's advance was Confederate cavalry, about 8,000 strong, under Major General Joseph Wheeler and various units of Georgia militia under Gustavus W. Smith. Although William J. Hardee had overall command in Georgia, with his headquarters at Savannah, neither he nor Governor Joseph E. Brown could do anything to stop Sherman's advance. Sherman's foragers quickly became known as "bummers" as they raided farms and plantations. On November 23 the state capital peacefully surrendered, and Sherman occupied the vacant governor's mansion and capitol building.

## Original Article

https://www.georgiaencyclopedia.org/articles/history-archaeology/shermans-march-to-the-sea/

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### SHORTENED FOOTNOTE

Bailey, "Sherman's March."

CHAPTER 14 · WEB ARTICLE W14.25

# Hard War in Virginia during the Civil War

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| PUBLICATION | December 7, 2020; updated August 26, 2024 |
| CHAPTER / PROMPTS | Chapter 14 \| 14.4 |
| ARGUMENT ROLES | 14.4.2 Support; 14.4.1 Support |

## Excerpt · 999 words

The term "hard war" was popularized by the historian Mark Grimsley in *The Hard Hand of War: Union Military Policy Toward Southern Civilians, 1861–1865* (1995); it was not a term popular during the Civil War. In fact, early in the war, the emphasis was on hard war's opposite: conciliation. United States president Abraham Lincoln and other Northern politicians were not convinced that secessionist sentiment was widespread in the South. Instead, they believed that the secession of Virginia and the other Confederate states had been driven by elite slave owners, or what they called the "slave-power conspiracy." These powerful and vocal secessionists distracted from what some Northerners believed to be a widespread but dormant Southern Unionism. A war strategy that resulted in unnecessary casualties or destruction of property would only alienate these Unionists and make peace more difficult to achieve. While politics were a concern behind the Union's initial "mild-war" strategy, so were legal complications provoked by the war. Confederate officials saw the conflict as being waged between two independent nations, but Union officials defined it as an internal insurrection. As such, they felt bound to treat Confederates as U.S. citizens and therefore deserving of certain rights under the U.S. Constitution, including the protection of their private property.

A strategy of conciliation only made sense in the context of Union battlefield victories. Winfield Scott, the Union general-in-chief at the war's beginning, devised his so-called Anaconda Plan with conciliation in mind. Union troops would take all necessary time to train and equip, and then mass in such numbers against Confederates that a *full*-scale battle would probably be unnecessary. "The South must be made to feel full respect for the power and *honor* of the North," a letter writer in the *New York Times* explained in 1861; "she must be humbled, but not debased by a forfeiture of self-respect." The problem was that this deliberative approach to the war clashed with a public sentiment that demanded that the Union army march on Richmond immediately.

The result was disaster at the First Battle of Manassas in July 1861, followed by the failure of the Peninsula Campaign and the Seven Days' Battles in the spring of 1862. Despite Union success in western Virginia, which motivated Unionists there, the strategy of conciliation was called into question. Meanwhile, guerrilla warfare in many areas—particularly Missouri—threatened the prevailing assumption that Confederate civilians would remain passive in the face of Union armies. For the time being, however, Union retaliation was limited.

### Move toward Hard War

The commander of the Army of the Potomac, Union general George B. McClellan, fought with restraint on the Peninsula and in the Seven Days' Battles, mindful of the possibilities of conciliation. But Lincoln wanted a more aggressive approach and brought John Pope east to Virginia and put him in charge of the new Army of Virginia. On July 18, 1862, he issued his General Orders No. 5, which directed his men to "subsist upon the country." His General Orders No. 7, issued later in the same month, held civilians who lived in vicinity of guerrilla attacks responsible for the damages those attacks incurred. This marked a clear shift away from McClellan and toward a new, hard-war strategy, provoking Confederate general Robert E. Lee famously to call Pope a "miscreant."

Ironically, it was a McClellan victory that sounded the death-knell for a conciliatory war strategy. Pope was trounced by Lee and Thomas J. "Stonewall" Jackson at the Second Battle of Manassas late in August 1862, and McClellan was restored to the primary command in the East. On September 17, he defeated Lee at the Battle of Antietam, forcing Lee out of Maryland and back into

Virginia. Soon after, Lincoln released the Preliminary Emancipation Proclamation, declaring that on January 1, 1863, enslaved African Americans in the Confederate states "shall be then, thenceforward, and forever free." By striking at the heart of the Confederate economy while seeming to confirm Confederate fears that he had always wanted to destroy their "peculiar institution," Lincoln ended any real opportunity for conciliation. The war would now need to be won by brute force.

In the meantime, Union officials were taking steps to articulate the legal boundaries of their armies' conduct. In 1862, Union general Henry W. Halleck, working in the War Department, consulted with Francis Lieber on issues ranging from how to handle guerrillas to how to treat prisoners of war. Lieber was a German-born political scientist at Columbia College in New York. Although critical of secession, he had lived and taught in South Carolina for two decades, and had even owned slaves. Lieber published *Guerrilla Parties Considered with Reference to the Laws and Usages of War* (1862) before working on a full-fledged code of war—the first of its kind in the world—published first as *A Code for the Government of Armies* (1863), and then revised the same year as *Instructions for the Government of the Armies of the United States in the Field*, issued by the War Department as General Orders No. 100. (Lieber referred to the work as the "old hundred.")

Lieber's code was adopted by Germany in 1870 and influenced the Hague Conventions of 1899 and 1907. It did not, however, prove adequate for the needs of Union troops in Virginia during the Civil War. Lieber argued for important restraints on armies in the field. For instance, officers must be held responsible for their actions, even when following orders, and armies should be prohibited from the "wanton destruction" of nonmilitary resources. Lieber's insistence that "military necessity" might excuse the very actions his code prohibited, however, made it a sometimes frustrating and ambiguous blueprint for military behavior.

Military necessity, Lieber wrote, "allows of all destruction of property, and obstruction of the ways and channels of traffic, travel, or communication, and of all withholding of sustenance or means of life from the enemy; [and] of the appropriation of whatever an enemy's country affords necessary for the subsistence and safety of the army." Rather than constrain hard war, such language helped to make it possible.

## Original Article

https://encyclopediavirginia.org/entries/hard-war-in-virginia-during-the-civil-war/

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**SHORTENED FOOTNOTE**

Murray, "Hard War in Virginia."

CHAPTER 14 · WEB ARTICLE W14.26

# Shenandoah Valley during the Civil War

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| CHAPTER / PROMPTS | Chapter 14 \| 14.4 |
| ARGUMENT ROLES | 14.4.1 Support; 14.4.2 Support |

## Excerpt · 868 words

Technically speaking, the Shenandoah Valley is the northern part of the Great Valley of Virginia, approximately a 140-mile corridor extending north from Rockbridge County to the Potomac River. The valley lies between the Blue Ridge Mountains on the east and the Alleghenies on the west, its breadth never wider than twenty-five miles. The forks of the Shenandoah River flow northward to join above Massanutten Mountain—a massive topographical feature that divides the Valley and dominates its landscape—and then move as one to a splendorous junction with the Potomac River at Harpers Ferry.

By 1860, and thanks in part to antebellum travel and adventure literature, plantation fiction, and romantic landscape art, the Shenandoah Valley was already a unique and "Southern" place in popular imagination. Its associations were arcadian: admirers called it a place of unrivaled beauty, pastoral tranquility, and plenteous abundance. Those associations were given vital force in the war's early years by the exploits of such Confederate heroes as Thomas J. "Stonewall" Jackson and Turner Ashby; in fact, one historian has suggested that the Valley possessed a revitalizing power for Confederate soldiers and civilians alike.

Despite its Confederate identity, however, the Shenandoah Valley was home to a substantial number of reluctant secessionists before the war, as well as a considerable population of Unionists, pacifists, and free blacks during the conflict. The divisions—which centered on political and economic factors, long-simmering intrastate jealously, and the uneven distribution of slavery in the region—make any generalization a tenuous one.

The Valley's fissures would eventually be manifested in several illuminating ways that not only called forth the contradictions in its idyllic identity, but paradoxically may have fed and energized them: an ongoing partisan war that occasionally devolved into brutish guerrilla warfare; the breakdown of key political and social institutions; a debilitating mistrust among erstwhile neighbors; and plethoric incidents of theft, arson, intimidation, and murder. Winchester, at the head of the Valley and the Shenandoah's most important town, was said to have changed hands more than seventy times. Indeed, the Valley's two northernmost counties, Berkeley and Jefferson—the former's seat, Martinsburg, was a bastion of Union sentiment; the latter, heavily Confederate and the self-proclaimed "Garden Spot of Virginia"—were detached in 1863 and subsequently shoe-horned into the new state of West Virginia.

### Military Significance

The geography of the Shenandoah Valley was a military mirror: the advantages it gave to one side were reflected in the advantages it offered the other. As the western flank of Union operations in

central Virginia, the Shenandoah provided the Union high command with a potential back-door route into Richmond, the Confederate capital, while it circumvented the obstacles that were Virginia's eastern rivers. Further, to hold the valley was to bottle up and contain the Confederate Army of Northern Virginia. (Broadening the map broadened the Valley's importance: it could be used as a staging area into Unionist east Tennessee, always a priority for Lincoln.)

Those advantages transposed Confederate ones. Because the Valley's direction is generally southwest to northeast, it pointed dagger-like at the North and especially at Washington, D.C., only sixty miles from Harpers Ferry. For the Confederates, to control it was to control a pressure point, a natural and physically protected invasion route northward. It was precisely this advantage that Jackson so aggressively seized in the Valley Campaign of 1862, in which his small army exploited the landscape

to flummox more than 60,000 Union troops, threaten invasion and the U.S. capital, and thereby harass and stall the Union effort to capture Richmond.

On two other notable occasions, the Gettysburg Campaign of 1863 and Jubal A. Early's raid on Washington in 1864, Confederates used the Valley to undertake offensive operations in the North. Further, as the so-called "Granary of the Confederacy"—the name suggests the increasingly powerful linkage between antebellum pastoral imagery and Confederate nationalism—the Shenandoah's abundance supplied wheat, corn, meat, and especially draft animals to the Confederate war effort.

Stymied by ill-starred commanders and an uncoordinated grand strategy, the Union high command was slow to use its advantages. Finally, and in part because the Shenandoah had become what one scholar called an "iconic Confederate place," the Union chose to take away enemy advantages rather than claim its own. This decision played out spasmodically, in stages, as the larger Valley Campaign of 1864 unfolded.

On May 15, 1864, a small Confederate force that included 257 cadets from the Virginia Military Institute in Lexington turned back the first Union offensive of the spring by defeating Union general Franz Sigel at the Battle of New Market. A second Union army under David Hunter succeeded in moving up the Valley all the way to Lexington, where on June 12 Hunter burned VMI as well as the home of former Virginia governor John Letcher.

Hunter, opposed in his front by a Confederate force under Early sent from Petersburg to stop him and from behind by ravenous partisans and guerrillas who disrupted his supply lines, chose to leave the valley and retreat into West Virginia. That movement reopened the Shenandoah Valley to Confederate control and made possible Early's raid on Washington in July. Early's movement, though unsustainable, brought to a head three summers of frustration in the Union high command and set the stage for a climatic, fiery autumn of holocaust.

## Original Article

https://encyclopediavirginia.org/entries/shenandoah-valley-during-the-civil-war/

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### SHORTENED FOOTNOTE

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CHAPTER 14 · WEB ARTICLE W14.27

# Richmond Bread Riot

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| **CHAPTER / PROMPTS** | Chapter 14 \| 14.5, 14.1 |
| **ARGUMENT ROLES** | 14.5.3 Support; 14.1.2 Support |

## Excerpt · 921 words

Richmond's population had swelled to more than 100,000 by the midpoint of the war. Overcrowding, high rents, and exorbitant costs for basic necessities increasingly affected all classes in the capital, but the burden fell especially hard on the working class—their wages could not keep pace with the inflationary spiral. The winter of 1863 was quite harsh in Richmond. Locals reported more than twenty measurable snow falls, with some storms dropping more than a foot of snow on the capital. Warmer temperatures turned the roads into quagmires that made the transport of food and fuel into the city virtually impossible.

In desperation, a group of women—workers in Confederate ordnance establishments and the wives of the Tredegar Iron Works laborers—met on April 1, 1863, at the Belvidere Hill Baptist Church located in the Oregon Hill neighborhood of the city. Led by Mary Jackson and Minerva Meredith, the women resolved to gather at Capitol Square the next day to seek a meeting with Virginia governor John L. Letcher to discuss their plight.

### The Riot

The women gathered at the equestrian statue of George Washington and made their way to the governor's mansion. Denied a meeting with Letcher, some of the women returned to the statue. Accounts of what happened next vary; some say Letcher did, in fact, meet with the women at the Washington monument. Dissatisfied with his response, the women marched out of Capitol Square and headed toward Ninth Street and in the direction of the city's business district. As the women walked, they attracted hundreds—some accounts say thousands—of followers.

Curious onlookers, such as Confederate War Department clerk J. B. Jones, asked some in the group what they were doing. Several eyewitnesses reported seeing a gaunt woman raise a skeleton of an arm and scream, "We celebrate our right to live! We are starving!" Others heard a chant of "Bread or blood!" The mob then began attacking government warehouses, grocery stores, and various mercantile establishments, seizing food, clothing, and wagons, as well as jewelry and other luxury goods. Some merchants resisted the rioters while others watched helplessly as the looters seized bacon, ham, flour, and shoes.

Mayor Joseph Mayo quickly arrived at Mayo Street (the street was not named for the mayor), where he literally read the Riot Act to the mob; he was ignored. Letcher appeared shortly thereafter, as did Confederate president Jefferson Davis. Again, accounts of who summoned the City Battalion and who threatened the mob with violence differ. Varina Davis wrote in her memoir of her husband that he pleaded with the rioters to disperse and then threatened to have an artillery unit open fire on the mob. Others assert it was Letcher who ordered city forces to fire on the group if it did not disperse in five minutes.

Tense moments passed, but the crowd did scatter. Local officials carried through with their threat to post cannon on key thoroughfares. That factor served to discourage another group that gathered on April 3, 1863. Fears of further disturbances led the commander of the Department of Richmond to order troops to augment forces under the provost marshal.

### Aftermath

The atmosphere in the capital remained jittery as the City Council met that afternoon. Although the riot was over in two hours, it had shocked locals. Many believed that the rioters did not "suffer real want," while others accused outside agitators of causing the fracas. Confederate secretary of war James A. Seddon implored the local press not to publish accounts of the disturbance for fear it would fuel Union propaganda and undermine morale at home. To some extent Seddon succeeded, but Union prisoners of war in Richmond reported what they saw and the *New York Times* ran a front-page article about the bread riot on April 8, 1863.

More than sixty men and women were arrested and tried in connection with the riot. Fines and prison terms were meted out, apparently in a rather capricious way. Those who appeared at their trials better dressed and perhaps more contrite received lesser punishments than others who were obviously members of the working class or the ringleaders of the mob.

The city fathers of Richmond also moved in the aftermath of the riot to insure there was no further breakdown of public order. The city had a long tradition of poor relief and the City Council resolved to expand its efforts in that area. Richmond's lawmakers were quick to distinguish between the "worthy poor," those who did not participate in the riot, and the "unworthy poor," those who did. Soon the city would operate special markets where the "meritorious poor" could obtain provisions and fuel at significantly reduced prices.

The bread riot in Richmond was not an isolated affair. People in the Confederate capital would read about similar revolts in Atlanta, Augusta, Columbus, and Macon, Georgia; in Salisbury and High Point, North Carolina; and in Mobile, Alabama. Local officials in those cities tackled the problem of poor relief in much the same way. But the stark reality was that people could not afford to buy food because prices in 1863 were almost ten times higher than they were in 1861. As one scholar has noted, a nation of farmers was, indeed, going hungry.

The situation would only grow worse as the Confederate transportation network broke down and as Union armies occupied more and more of the Confederacy's arable land. The bread riots of 1863 underscored how desperate the situation had become on the home front. They also highlighted the slow but steady demoralization that profoundly affected the Confederate cause.

## Original Article

https://encyclopediavirginia.org/entries/bread-riot-richmond/

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#### SHORTENED FOOTNOTE

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CHAPTER 14 · WEB ARTICLE W14.28

# Women during the Civil War

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| PUBLICATION | December 7, 2020; updated May 3, 2024 |
| CHAPTER / PROMPTS | Chapter 14 \| 14.5 |
| ARGUMENT ROLES | 14.5.1 Support; 14.5.3 Support |

## Excerpt · 1,019 words

War quickly permeated and transformed every aspect of life in the South in the spring of 1861. The Confederacy's leaders realized that they could only win the war with the full moral and material support of its women. As husbands and fathers departed for the battlefield and politicians and journalists urged civilians to do their patriotic duty, white women were confronted with the strange new expectation of demonstrating authority and civic involvement.

The exigencies of war encouraged white women to develop a political outlook and prove their patriotism, in contrast to the antebellum period when they were considered too delicate and pure to become entangled in the public world of politics. Many Confederate women sewed presentation flags for local regiments or became involved in organizations that sponsored every cause from aiding soldiers to supplying hospitals to arming gunboats. Others contributed through unofficial channels, such as making and sending food and clothing to enlisted men. Some vocalized their newfound political identities in letters to government officials, newspapers, and even their husbands. A few Southern women went as far as becoming spies or disguising themselves as men and enlisting in the army to demonstrate their patriotism.

During the antebellum period, for women to become involved in these sorts of activities would have been almost unthinkable, but during the war they were permitted, and even encouraged, to do so. Most white women exercised their newfound political power in ways that helped diminish the radical implications of their involvement, such as centering their attention on traditionally feminine concerns of food and family. Enslaved women, ironically, were motivated by the same concerns to rebel against the Confederate government by a variety of means, including running away.

Another, and perhaps more problematic, effect of the war required women to assume and exert power, a position for which they had been considered temperamentally unfit during the antebellum years. With traditional male authority figures absent from families and communities, women faced the difficult task of convincing themselves and the rest of Southern society to recognize their new authority and abilities. In many cases, women took over the management of shops, farms, and plantations. Black and white mothers struggled to provide shelter, nourishment, and safety for their families, and they faced additional challenges in disciplining their children without a father's assistance. Slaveholding women faced the additional challenge of supervising and providing for slaves. While some women enjoyed their new independence, the ever-increasing demands of the war drained the patriotism and self-confidence of many others.

### Work

The outbreak of war drastically depleted the civilian workforce. Women were the obvious replacements, and they filled positions previously held by men as well as those specially created by the demands of war. Motivated by everything from patriotism to poverty to a sense of vocation, many white women found themselves working outside the home and earning money for the first time in their lives. The Southern shortage of labor was so severe that even some black women, free and enslaved, found new opportunities to work for wages. The unpaid labor of enslaved women across the Confederacy also formed a critical component in supplying the war effort. The presence of so many women in the workplace intrinsically challenged the widely accepted doctrine of separate spheres—the male, public domain of politics and business, and the female, private world of household and family. This guaranteed that the workforce would never return to its prewar status and began a redefinition of women's place in American society.

Class and race played crucial roles in determining which Southern women were likely to seek work outside the home and what duties they would perform. Wealthy white women often had the privilege of volunteering, rather than working for wages, and they were frequently awarded positions of greater authority. Enslaved women represented the majority of Southern women workers. Immigrants, working class women, and free women of color constituted the majority of paid workers, primarily because they desperately needed a steady source of income. Black women, both enslaved and free, held positions subordinate to white women and generally performed the more unpleasant and physically demanding tasks.

Medical work was one of the most significant ways that Confederate women contributed to the war effort. Women rarely worked as nurses outside the home in the antebellum period, but numerous wartime factors, including the lack of available manpower and Confederate women's close proximity to battlefields, demanded their increased participation. Although the precise number of women in the South who volunteered or hired their services is unknown, thousands of black and white women nursed, cooked, cleaned, sewed, and did laundry for military hospitals during the war.

Most Confederate nurses were working class and enslaved women who endured the grisly and dangerous conditions. A relative minority of middle- or upper-class Southern women left their homes to become nurses. These women typically had the leisure to volunteer their services, usually temporarily at hospitals established in homes and churches. Some founded and operated hospitals, such as the celebrated "Captain" Sally Tompkins, who opened Robertson Hospital in the home of Judge John Robertson in the Confederate capital at Richmond, which had the lowest mortality rate of any military hospital during the Civil War. Of women who made nursing a profession, only those with the calmest stomachs were appointed to field hospitals by surgeons familiar with their skill and conduct under pressure. Most women, however, worked or volunteered in established military hospitals at military depots and near battlefields. In Virginia, where so much of the war was fought, there were many such opportunities, both temporary and for the duration of the war, for dedicated women to provide essential physical and psychological care to sick and wounded soldiers.

The most genteel and well-paid positions were reserved for middle- and upper-class white women. The Confederate government, particularly in Richmond, hired them to sign banknotes at the Treasury, sew uniforms for the Clothing Bureau, and sort letters at the post office. Schoolhouses and academies across the Confederacy hired them to nurture and instruct children and youths. Some were embarrassed to admit they needed a paycheck, while others reveled in a newfound sense of achievement and independence.

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https://encyclopediavirginia.org/entries/women-during-the-civil-war/

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CHAPTER 14 · WEB ARTICLE W14.29

# The Future of Civil War Era Studies: Northern Women

Judith Giesberg

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| PUBLICATION | c. 2012 |
| CHAPTER / PROMPTS | Chapter 14 \| 14.5 |
| ARGUMENT ROLES | 14.5.2 Support; 14.5.1 Support |

## Excerpt · 1,073 words

Readers and scholars interested in northern women's Civil War experiences can find no shortage of sophisticated and lively books published since Thavolia Glymph's essay.[1] A new crop of biographies of activists is a case in point. Elizabeth Cady Stanton and Lucretia Mott, both long neglected, now have fresh biographies that offer substantively new interpretations. Those of us who teach women's history will no longer feel compelled to defend Stanton's abolitionist credentials, now that Lori Ginzberg has shown that Stanton always pursued women's rights from a position of privilege.[2] She did not so much turn to racism during Reconstruction as give it full vent. Lucretia Mott, on the other hand, has suffered the opposite historiographic fate. Carol Faulkner seeks to give Mott, having languished long enough under the benign title "the gentle Quaker," dimensionality. Although Mott's character at times remains frustratingly elusive, Faulkner gives us a more complex woman who lived her egalitarian ideals and became increasingly impatient with those who did not. Despite Mott's lifelong commitment to women's rights, Faulkner implies that the racism and infighting among postwar feminists was too much for the widowed octogenarian, who refused to be part of it.[3] Where historians used to be trapped in Stanton's assessment of how the Civil War served as a springboard for women's rights, these new biographies of feminist icons show conclusively that, even at the top, there was no consensus about what group of northern women stood to benefit from the war's rights bonanza.

Beyond the influential group of middle-class white women who stood at the epicenter of rights activism, the last ten years have yielded biographies of women who straddled the line between home front and battlefield, starting with Harriet Tubman. Biographies by Jean Humez and Catherine Clinton fill out the details of Tubman's work during the war—including spying, training freedwomen, and leading a combat mission—that should have earned her a regular army pension, money that she might have used to support her postwar humanitarian efforts and that would have helped alleviate her poverty.[4] Both of these works move beyond the image of Tubman as an icon to recover something of her real experience of war.[5] Like Lucretia Mott and Anna Dickinson, about whom Matt Gallman has written, Tubman was a fierce critic of Lincoln; indeed, who wouldn't have wanted to be a fly on the wall watching her debate the merits of the president with Sojourner Truth, when the two met in Boston in summer 1864?[6] Among other things, Dickinson took aim at Lincoln for failing to consider the status of the freedpeople, and Tubman's tragic postwar struggle to support herself and the growing number of refugees who found their way to her home in Auburn, New York, is a testament to the limitations of Stanton's claim that women embraced the independence the war foisted on them. Even Mary Todd Lincoln resorted to begging—or rather, she deposed Elizabeth Keckley to beg for her in New York's African American community.[7]

The addition of Tubman has complicated scholars' tendency to focus on what Glymph called the "woman's war," work that seeks to document the extent of white women's participation in and measure the Civil War's impact on "white women's rights and white gender relations."[8] This trend began with celebratory works on northern women in 1865 and as a genre focused on exceptional women or at least those who left a substantive paper trail—biography tends toward this trend. For its limitations, interest in woman's war pushed scholars to take a closer look at the home front, even as they have struggled to define the term. Sectional ideologies and wartime nationalisms imagined women (and children) at the center of stable and protected home fronts, even as the exigencies of war demanded that women—and not men—become the home fronts' principal defenders. Shining new light on the Civil War's home fronts has had the unexpected consequence of making them slip out of sight, as

conditions at home become more connected to or at least reflective of conditions on the battlefield. This has been particularly the case in Stephanie McCurry's and Gregory Downs's excellent work on the Confederacy, but my own work on working-class white and African American women has revealed a northern home front far less stable than we thought.[9] As we dig deeper into the lives of the Civil War's civilians, discovering the many ways they fought the war in their everyday lives, we might reach a moment when we will begin to rethink the usefulness of the category.

In the meantime, scholarship has gone a long way toward complicating both the geographic and temporal boundaries of the war. As Margaret Creighton observed in her study of Gettysburg, women's war has a "longer chronology and a bigger field of engagement."[10] Lea VanderVelde's work on Harriet Scott, or *Mrs. Dred Scott,* beautifully illustrates Creighton's point. Likely born a slave in Pennsylvania and freed upon her marriage to Dred Scott in Minnesota, Harriet filed her own freedom suit in 1846, one for which she might have made a stronger claim for freedom.[11] The couple's two young daughters were technically free by birth—one having been born in free territory and the other to a free mother—but it was a tenuous freedom as long as their father was enslaved. VanderVelde shows convincingly that it was likely out of concern for Harriet's future and that of their two young daughters—Eliza and Lizzie—that the couple filed their suits, for by the time of the trial Dred was infirm and advanced in age (at fifty-one), while Harriet, at twenty-eight, and her two young children were potentially valuable to Dred's owner.[12] But because the couple's lawyers focused on Dred's claim to have resided briefly in a free territory, they made Roger Taney's job easier. When we take Harriet's story into account, *Dred Scott v. Sandford* becomes the story of "a black family negotiating the difficult channels of passage to freedom to preserve the family's integrity against the ravages of slavery."[13] Accompanying her master, Lawrence Taliaferro, an Indian agent in the upper Mississippi Valley, Harriet built a family in a series of military forts. She traveled a circuitous road to freedom, one that wove back and forth across the legal boundaries of slavery, crossing at odd points with her marriage. Women of color like Scott, who sued for her freedom, or the many more who escaped enjoyed a fragile freedom in the North, one contingent on local conditions and a rapidly shifting legal terrain.

## Original Article

https://www.journalofthecivilwarera.org/forum-the-future-of-civil-war-era-studies/the-future-of-civil-war-era-studies-northern-women/

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### SHORTENED FOOTNOTE

Giesberg, "Future of Civil War."

CHAPTER 14 · WEB ARTICLE W14.30

# Women's Rights and Reconstruction

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| **CHAPTER / PROMPTS** | Chapter 14 \| 14.5 |
| **ARGUMENT ROLES** | 14.5.1 Support; 14.5.2 Support |

## Excerpt · 1,015 words

When I was in graduate school, one of my professors warned me against studying women's suffrage. She told me I'd never get a job. Evidently because the choice made unflattering statements about my sensibilities as a historian: old-fashioned, myopically white, insufferably heroic, and mired in Whiggish progressivism. These expectations have marked woman suffrage scholarship (fairly and unfairly) to such a degree that the study of Reconstruction frequently overlooks the subject altogether. It simultaneously overlooks the larger women's movement of which suffrage was only a part.

Reconstruction witnessed the largest and most sophisticated expansion in women's rights organizing in the nation to that point. Yet most scholarship proceeds without fully recognizing or engaging this fact. Agendas grew exponentially during the postwar years, elaborated and espoused by increasingly massive numbers of women, numbers that quickly dwarfed antebellum organizing.

We can glimpse this vehemence and variegation in all sorts of places, including contemporaries' own observations. As Susan Cook, an Arkansas resident, wrote in her 1864 diary: "Mr. Higgins is passing the night with us; had quite a debate upon 'Woman's Rights,' that never ending theme."[1] Turning to the North, Mary Livermore noted just after the war: "In the course of the next ten or twelve years, the whole country was seething with interest in the questions that relate to women."[2] Scholars are also beginning to document this—both inadvertently, in passing references (often in places where you'd least expect), and deliberately, in focused studies about elements of this larger expansion. Yet so much basic recovery and careful analysis remains to be done. Women's rights movements—North and South, built around everything from bodily sovereignty to economic security—were absolutely integral to the history of Reconstruction. And their all-too-frequent absence in standard narratives is a sizeable hole in our larger understanding of the period.

This reality is missed, in part, because scholars still too often conflate women's rights with women's suffrage. Until recently, Ellen DuBois's 1978 *Feminism and Suffrage* was the only scholarly monograph about the suffrage movement during Reconstruction.[3] And DuBois closes in 1870, before the expansive women's rights ferment of the 1870s and just as a nationwide suffrage movement began taking shape. DuBois also focused on Elizabeth Cady Stanton and Susan B. Anthony, not the grassroots where most of the action actually took place. Because scholars continue to look to Stanton and Anthony to tell this story, we have yet to reckon with how regularly women's suffrage as well as other women's rights debates surfaced in the era's politics.[4]

Another stumbling block in incorporating women's rights agendas into our understanding has been the continued dominance of a Seneca Falls narrative in framing nineteenth-century women's rights, which draws attention northward, emphasizes the vote, and makes white women (particularly Stanton and Anthony) the epicenter of the story. Although we rarely think of Seneca Falls as a postwar narrative, it was. People did not tell this story until Reconstruction. Stanton and Anthony invented it in response to postwar organizing challenges, as the pair found themselves quickly engulfed and somewhat displaced by the outpouring of northern activism. Stanton and Anthony used this invented origin (first sketched tentatively, then more robustly) to try to focus activism on the pursuit of a federal woman suffrage amendment, their preferred approach.[5]

In the 1870s, as increasingly large numbers of women veered away from Stanton and Anthony's strategies for achieving the vote and also pursued other women's rights agendas, from free love to temperance, a Seneca Falls origin said, "follow us." The story,

as Stanton and Anthony told it, cast Stanton as the movement's originator and thereby argued that Stanton and Anthony's rivals were on the wrong side of history. Such an origin encouraged reverence and respect for women who were having a harder and harder time generating either. And it suggested that Stanton as well as Anthony represented the true path of feminism. The pair also used this story to elevate the vote as the supreme emblem of rights, clearly trying to persuade northern activists, spinning off in multiple directions, to narrow their agendas and follow this goal. Although the vote had been one among many demands in 1848, in their postwar telling, only the vote was featured.[6]

It would be decades before the story took firm root, but as historians repeat it, without knowing its history, we reinscribe its boundaries and unhelpfully collapse women's postwar organizing.[7] The eventual, and continued, dominance of this invented origin is surely one reason the scholarship continues to equate women's rights during Reconstruction with a story about Stanton, Anthony, the North, and a federal suffrage amendment (even though voting's advocacy took other forms). Here, the explosion in postwar memory studies, emphasizing the political work of invented narratives, needs to be brought into a more dynamic exchange with women's rights advocates' own robust memory projects, many of which remain unexcavated. At the same time, understanding the Reconstruction-era history behind a Seneca Falls origin story sharply underscores the need for an entirely new organizing narrative, one that can better accommodate the diversity of agendas, activists, and origins.

To date, some of the most sophisticated analyses of postwar women's rights' agitation exist in scholarship about the postwar South. Yet much of this scholarship remains unhelpfully segregated from a larger narrative about postwar women's rights, which is overly northern and overly white. Scholars have recovered black women active in the suffrage movement, and this has been important work.[8] But a much bigger task presents: namely, integrating the rich work on freedwomen's expansive and stepped-up claims on the state, and on their communities, into our broader understanding of postwar women's rights. Part of the problem here may be what Kate Masur has identified as Reconstruction scholarship's current emphasis on parsing definitions of "freedom" over those of "equality."[9] That orientation may be leading scholars to situate freed black women's activism in the history of race struggles (organized around "freedom"), rather than simultaneously identifying them as constituent parts of a larger, national women's rights narrative (alternately organized around "equality"). The long history of marking women as white, and then seeing their agendas as definitional, has powerfully contributed as well.

## Original Article

https://www.journalofthecivilwarera.org/forum-the-future-of-reconstruction-studies/womens-rights-and-reconstruction/

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### SHORTENED FOOTNOTE

Tetrault, "Women's Rights and Reconstruction."

CHAPTER 14 · WEB ARTICLE W14.31

# Female Nurses During the Civil War

Paige Gibbons Backus

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| **CHAPTER / PROMPTS** | Chapter 14 \| 14.5 |
| **ARGUMENT ROLES** | 14.5.1 Support |

## Excerpt · 1,197 words

On September 6, 1862, *Harper's Weekly* published a drawing titled "The Influence of Women". In the engraving, women fulfill many important roles for the war effort, from sewing shirts and knitting socks as part of the sanitary commission, to washing clothing for soldiers as camp aides, as well as acting as "sisters of charity" ministering to soldiers in the field hospitals and helping wounded soldiers write letters back home. Many of these women depict efforts to heal and care for soldiers. The Harper's Weekly picture shows the culmination of women's efforts to take a more active and public role in the medical field serving as nurses treating wounded soldiers during the Civil War.

Prior to the Civil War, there were very few female nurses who publicly practiced medicine. Privately women often took care of sick family members within the home, but most doctors were men and did not routinely use the help of nurses. One of the few aspects of public medicine that few women practiced in the 19 century was midwifery in which they helped other women bear a child. When the Civil War began, both the Confederate and Union medical departments preferred having men rather than female nurses work in hospitals. Medical officers did not think that women had the constitution and hardiness for the hard work and were willing to follow military etiquette. Logistically, officers not want to expend the effort to provide the separate accommodations that were thought necessary for women to stay at the hospitals. However, this changed during the first few months of the war as medical departments on both sides were unprepared for the number of wounded soldiers that needed treatment in the hospitals. For example, throughout April and May 1861 too few medical stewards (male nurses) were assigned to hospitals. As a result, soldiers recovering from a disease or minor injuries were often ordered to assist their fellow patients. One soldier recovering in a hospital who experience this system remarked:

*In the hospital, men lie on rotten straw…the nurses are convalescent soldiers, so nearly sick themselves that they ought to be in the wards, and from their very feebleness they are selfish and sometimes inhuman in their treatment of patients. If we could be sure of being half-way well cared for when we get sick or wounded, it would take away immensely from the horrors of army life.*

Having sick and wounded soldiers caring for others did not work well and as early as June 1861 private aid groups such as Sanitary Commissions and Relief Societies, as well as the military, started to recruit female nurses to work in the hospitals. One of the most famous women who helped recruit nurses over the course of the Civil War was Dorothea Dix, who was appointed as the Superintendent of Nurses for the Union Army in June 1861. Dorothea Dix helped set the standard of qualifications for women in the nursing corps.

In order for a woman to become a nurse, she had to be between the age of 35-50, be in good health, be of decent character or "plain looking", be able to commit to at least three months of service, and be able to follow regulations and the directions of supervisors. Dix even went so far as to say that women had to wear unhooped black or brown dresses, with no jewelry or cosmetics.

Women were able to join the war effort as nurses in a variety of ways. They could apply to join the nursing corps through the approval of sanitary commissions or superintendents such as Dorothea Dix, or they could be contract nurses hired on location based on need. In addition to white women, African American women worked in hospitals. Freed women were sometimes hired as contract nurses to both Confederate and Union hospitals, while some enslaved women were hired out to Confederate

hospitals by their enslavers. If a woman was assigned to work in a hospital, she completed a wide variety of tasks to care for and treat the wounded.

Similar to their pre-war experiences at home, women stepped into the domestic and caring aspects of the hospitals treating wounded soldiers. Not only did they provide medical care changing bandages and administering medicine, they also fed, clothed, and washed patients. In addition to providing physical care, they also offered mental care, comforting soldiers by writing letters, praying with them, and reading to them. Nurses also worked behind the scenes assisting with the management of supplies and operating the hospital kitchens and laundries. However, roles assigned to women often varied by race and class. Throughout the South, enslaved and free Black women were assigned more tedious positions such as cooks, laundresses, and chambermaids (cleaning bedpans and other messes). In many Union hospitals, the only patients they treated were African American soldiers, contrabands, and the other nurses while they were ill. Similar discrimination was seen in other Northern hospitals with lower-class and immigrant women being assigned the more menial roles in the hospitals.

The tasks for a nurse were both physically and mentally challenging. Most women never experienced a military hospital before and faced a steep learning curve once they encountered wounded soldiers. For some women, their first experiences were emotionally draining. Cornelia McDonald struggled on her first day working in a Winchester hospital after she stumbled over a pile of amputated limbs and was asked to clean a soldier's face wound. Another Virginian nurse, Sarah Pryor, even passed out on her first day. Amy Morris Bradley, who was aiding the wounded at Fair Oaks was told by a surgeon to stop crying. It was only then she realized "that tears must be choked back…ACTION was the watchword of the hour!". Not only where the sights of a hospital a struggle for nurses to overcome, the work was physically demanding as well.

Typically, nurses in hospitals were divided into shifts. At the Academy Hospital in Chattanooga, Tennessee nurses were divided into two shifts of twelve hours with "the first watch from 6 to 12, the 2d from 12 to 6 o'clk". During each one of these shifts, the floors were to be "scrubbed or dry-rubbed, and swept, bedding changed or arranged, and everything put in order between the hours of 5 ½ and 6 ½ o'clock in the morning, both watches assisting in this labor". During their shifts, nurses would make rounds to check in on their patients, feeding them, changing bandages, and administering medicines. It was during this time that some nurses could stop to talk with patients, write their letters, and provide comfort. Amanda Akin Stearns who worked at the Armory Hospital in Washington D.C, regularly worked an eighteen-hour day. She was "up at six, dispensed medicines, served breakfast, dispensed medicines, served dinner, wrote letters, dispensed medicine, served supper, and wrote letters". Sometimes nurses even made the rounds with the surgeons, assisting with medical procedures if needed. In an Indiana hospital, Elvira Powers was asked to help a surgeon probe a soldier's gangrenous arm. She later wrote in her diary, "It will be necessary to imbibe a little more of the heroic before I can be of much help during an operation" for she nearly fainted.

## Original Article

https://www.battlefields.org/learn/articles/female-nurses-during-civil-war

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### SHORTENED FOOTNOTE

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CHAPTER 14 · WEB ARTICLE W14.32

# Civil War Widows

Robert C. Kenzer

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| **CHAPTER / PROMPTS** | Chapter 14 \| 14.5 |
| **ARGUMENT ROLES** | 14.5.2 Support |

## Excerpt · 882 words

No single source documents all of Virginia's Civil War widows. Two records, however, allow scholars to identify many, if not most, of these women. The identity of 1,297 of these widows can be determined from the death claim records produced during the war. If a soldier who died was owed back pay by the Confederate government—which often was the case in the Confederate army—his widow could apply to receive it. Unfortunately many of the widows never filed for these payments because the war ended before their claims could be filled. In addition to the death claim records, beginning in 1888 the wives of Virginia's soldiers who had died during the war were authorized to file for a pension from the state government so long as they did not have an annual income exceeding $300, did not own personal property in excess of $1,000, and had not remarried. About 1,900 Virginia women successfully filed for such pensions from 1888 to 1899.

While it is impossible to list every Virginia Civil War widow, a profile of those who can be identified reveals many factors that shaped their wartime and postwar lives. The most outstanding characteristic of these widows was that the median length of their marriages before the war had been only six years and that they only had a median age of twenty-seven. Further indicative of their brief marriages before the war, the median number of children was only two. Finally, given their relative youth, it is not surprising that only one-third of them owned land before the war's outset. Hence, with the death of their soldier-husbands, these women were left with no or limited financial assets and likely did not have children old enough to provide labor to assist them.

Given their small monetary resources, Virginia widows faced difficult circumstances even while the war was still being waged. To aid these widows as well as the wives of soldiers who were still living, the Virginia General Assembly in 1863 instructed the county courts to provide these women and their children with food. The county governments did their best to accomplish this task, but surely were hindered by the lack of supplies and the concurrent inflation.

The most obvious question is whether these widows were able to find new husbands during and after the war. Using the names of widows found in the death claim records, it appears that slightly less than half of Virginia's Civil War widows remarried. Further, most who remarried did so either during the war or in its immediate aftermath. The most influential factor shaping whether war widows remarried was their age, with the youngest ones being most likely to marry again. Indeed, about three-fourths of those who were under the age of twenty when the war began found new husbands. Middle-aged widows were far less likely to remarry, but this largely can be explained by the fact that they were more likely to own property as well as to have adult children who could provide them with aid and labor. Hence, many widows who did not remarry did not do so by choice.

Widows who remarried were influenced by the shortage of men created by the war. Quite simply, it was difficult for widows to find husbands of the same demographic and class backgrounds as themselves. As a result, there was a significant increase in the share of women marrying significantly younger or older men than themselves. Specifically, the share of Virginia's Civil War widows marrying men ten or more years older than themselves more than doubled, and the share of those marrying men five or more years younger than themselves tripled in comparison to the numbers before the war.

Few of the widows who did not remarry appear to have taken gainful employment; only about 2 percent seem to have done so by 1870. Of course, given Virginia's overwhelmingly rural economy, there were few opportunities for women to work outside the home even if they had wanted to do so. Those who did find employment tended to work in traditionally female occupations such as dressmaking, weaving, and spinning cloth. Most women who did not remarry had relatives living nearby to help them in the period before their children reached adulthood and could assist them.

The amount of pension eligible widows received was fairly minimal at only $30 annually under the initial pension act. Despite the relatively small amount of compensation, about 1,300 Civil War widows filed for and received pensions during the first two years of the program. Significantly, Virginia's pension program differentiated between those Civil War widows whose husband had died during the conflict and those wives whose veteran husbands had died after the conflict. For example, under the 1900 pension act, the former group of women received $40 per year compared to only $25 for the latter. Still, even this larger sum was quite small when compared to the much more generous federal pension program aiding Union Civil War widows that began during the war and awarded sums approximately three times greater than in Virginia. While very few Virginia Civil War widows could survive on the small pensions they received, it surely would have been a welcome compensation to the sons, daughters, and other relatives with whom many of these increasingly elderly women often resided.

## Original Article

https://encyclopediavirginia.org/entries/civil-war-widows/

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### SHORTENED FOOTNOTE

Kenzer, "Civil War Widows."

CHAPTER 14 · WEB ARTICLE W14.33

# The Future of Civil War Era Studies: The Southern Home Front

Anne E. Marshall

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| **PUBLICATION** | c. 2012 |
| **CHAPTER / PROMPTS** | Chapter 14 \| 14.5 |
| **ARGUMENT ROLES** | 14.5.3 Support |

## Excerpt · 1,074 words

Most of us in the academic profession have had the opportunity to roll our eyes at yet another student-authored history paper that inevitably begins with the words "*Webster's Dictionary* defines [insert subject of paper here] as . . ." While I chide them for doing it, it strikes me that historians really ought to follow their students' lead and define their terms more precisely before engaging in academic dialogue. Take, for example, the common definitions of "home front" given by most online and printed dictionaries. They boil down to, rather simply, "the civilian population of a country at war." In light of this connotation, it appears that historians of the Civil War era are beginning to argue that there was no such thing as a southern home front and that any sort of easy distinction between military and civilian Civil War participants may not be useful or even valid anymore. A slew of Civil War historians, including Stephanie McCurry, LeeAnn Whites, Alecia P. Long, and Lesley A. Schwalm contend in very recent publications that groups of people (white and black free women or slaves, for example) historians traditionally considered "civilians" on the southern home front were actually full-fledged combatants.[1]

This is not, these historians assert both explicitly and implicitly, simply a matter of redefining combat to include any sort of civilian resistance to military authority. Nor is it a mere trick of postmodern historical interpretation to construe civilian actions as "weapons of the weak" or symbolic confrontation. Rather, these scholars demonstrate that people at the time—both the Federal and Confederate governments and military officials of both armies fighting in southern territory—considered many civilians to be combatants and spelled this out in both government and military policy. And, they argue, so too should modern historians. Their claims present both provocative opportunities and troubling challenges and seem to question whether there is really a point in distinguishing "home front" from "battlefield" in the South.

This mere redefinition of "civilian" and "home front" seems also to suggest that we scholars need to change the larger questions we ask about the war. Whereas we have previously asked how the war affected civilians, the findings of these historians signal that the bigger questions may be about how civilians affected the war. Take, for example, Stephanie McCurry's argument in *Confederate Reckoning* that the demands nonelite southern women made of the Confederate state forced it to recognize them as political beings and as a constituency to which it needed to respond. Historians have long considered women part of the pull factor in military desertion, holding them responsible for exerting claims on their husbands' labor, support, and protection and as a major cause of the "lack of will" Confederate deserters experienced. Until now, however, historians have largely considered this a domestic phenomenon, albeit one with monumental implications for military leaders, who had to compete with Confederate women's claims over southern manpower. With historians like McCurry illustrating how those women appealed directly to the Confederate government to assure them of a modicum of subsistence and physical safety in the face of oppressive conscription and tax policies, the relationships among citizenry (or, more aptly, as she points out, women who were defined by their lack of citizenship), military, and state grows more complicated. This scholarship is not the first to establish the impact female dissidents had on the Confederate government and military, but the forcefulness with which it argues the point and the manner in which it casts women as central actors in the struggle marks a departure from previous scholarship.[2]

Likewise, Civil War historians have long recognized that women on the southern home front affected the military capacity of the Confederacy and provided resistance to the enemy. But the sheer bulk of evidence arriving in works like *Occupied Women,* the

recent collection of essays edited by LeeAnn Whites and Alecia P. Long, shows that scholars have underestimated the extent to which the federal government recognized women's warfare as pervasive and effective and responded with military policy, such as Lieber's Code and Ambrose Burnside's General Orders No. 36, which directly targeted female insurgency. Both the federal and Confederate governments and military recognized the blurring between home front and battlefront and between the political and the private dimensions of civilian life.[3]

This new history opens up exciting new possibilities for viewing women's Civil War experience. Only a couple of decades ago, those discrete sections in the Civil War chapter of history textbooks on "Women and the War" and "Women on the Home Front"—you know, the ones almost always accompanied by an image of Clara Barton or a *Harper's* illustration of female munitions workers—were considered an interpretational victory after 130 years of historians failing to acknowledge women's role and experiences in the war. This new scholarship, however, indicates that we can no longer so easily partition women's experiences away from men's. It seems to render these textbook sections—and, by extension, the entire conceptual organization we have grafted onto the war—navely limited if not obsolete. The new scholarship, therefore, poses both an opportunity and a challenge to integrate women, rightfully and more accurately, into a mainstream Civil War experience in both our teaching and writing.[4]

In addition to the new gender-focused history, the recent proliferation of works on irregular warfare has also succeeded in obscuring distinctions between home and battlefront. Scholarship on guerrilla warfare has exploded in the past decade, with works by Daniel E. Sutherland, Victoria Bynum, and Robert R. Mackey, among others, demonstrating its pervasiveness and its role in shaping overall military strategy. Here, again, is where defining terms can both help and complicate what we know about the war. Since "guerrillas" and "irregulars" are by definition groups of combatants that often included civilians and most often targeted civilians, by its very nature irregular warfare transcended boundaries of home and battlefront. Recent Civil War histories duly emphasize the role of civilians as both the victims and perpetrators of localized combat. Southern women who provisioned and harbored guerrillas, as Union army officials recognized, were crucial to sustaining such conflict. But recent histories such as Mark Geiger's innovative investigation of financial fraud and irregular warfare in Missouri have revealed the many connections between civilians and irregular military action. Geiger, for example, shows how civilians underwrote the creation of state Confederate military ranks at the outset of the war and then turned to retaliatory guerrilla warfare when unionists maintained control of Missouri, causing their investments to go bust.[5]

## Original Article

https://www.journalofthecivilwarera.org/forum-the-future-of-civil-war-era-studies/the-future-of-civil-war-era-studies-the-southern-home-front/

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### SHORTENED FOOTNOTE

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CHAPTER 15 · WEB ARTICLE W15.1

# Reconstruction, Part IV: The End of Reconstruction and the Return of Democratic Control

Allen W. Trelease

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| PUBLICATION | 2006 |
| CHAPTER / PROMPTS | Chapter 15 \| 15.1, 15.5 |
| ARGUMENT ROLES | 15.1.2 Support; 15.1.1 Support; 15.5.2 Support |

## Excerpt · 456 words (complete article)

Conservative opposition took many forms during the Reconstruction period. In addition to legitimate political activity, Democrats frequently ostracized white Republicans and threatened economic sanctions against dependent black laborers who voted Republican. Intimidation and violence were more successful against Republican officials and voters of both races. This took the form of parading by extralegal military companies, rioting, and, most spectacularly, night riding in disguise by the KKK. In 1870, after the Klan virtually took over Alamance and Caswell Counties, Governor Holden declared a state of insurrection and sent in militia under Col. George W. Kirk. The resultant military occupation and arrests in the two counties have sometimes been called the "Kirk-Holden War," although no battles actually took place.

Whether in reaction to the militia campaign or the Republican political record, or because of the intimidation of black voters, Democrats captured control of the legislature in the fall of 1870. In apparent retribution for Holden's actions in the Kirk-Holden War, the new Democratic legislature, partially controlled by KKK members, impeached the governor for "high crimes and misdemeanors" and removed him from office. Holden was the first state governor in American history to be so treated. His successor, Republican lieutenant governor Tod R. Caldwell, was elected to a term in his own right in 1872. Following Caldwell's death two years later, Republican Curtis H. Brogden became the last Reconstruction governor of the state. Democrats regained the governorship with Zebulon B. Vance in 1876. Their domination for the next generation was assured by a series of constitutional amendments they pushed through in 1873 and 1875, offered in the name of white supremacy and small government. The most important amendment transferred control of county government from locally elected commissioners-who in some counties were black as well as Republican-to justices of the peace chosen by the legislature.

The oft-recited horrors of Reconstruction took two main forms in North Carolina and the South as a whole. Economic suffering was widespread, the result almost entirely of the ravages of the war. Reconstruction policy had comparatively little to do with this problem, except that higher taxation may have added to it. The second form of suffering, more psychological and political in nature, was that experienced by whites-especially the prewar ruling elite-when they found themselves replaced in power by people they regarded as social and racial inferiors. In truth, Reconstruction wrought only half a revolution. By the Compromise of 1877 and the withdrawal of federal troops from the South, conservative Democrats had reestablished most of their economic and social force. Before long an acquiescent North permitted them to regain political mastery as well. By disfranchising their opponents in the years that followed, they maintained power, with the exception of the Fusionist period, for almost a century.

## Original Article

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### SHORTENED FOOTNOTE

Trelease, "Reconstruction, Part IV."

CHAPTER 15 · WEB ARTICLE W15.2

# Reconstruction

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| **CHAPTER / PROMPTS** | Chapter 15 \| 15.1, 15.2 |
| **ARGUMENT ROLES** | 15.1.1 Support; 15.1.3 Support; 15.2.1 Support |

## Excerpt · 1,078 words

For nine years following the Civil War, Texas was in turmoil, as its people attempted to solve political, social, and economic problems produced by the war. Emancipation changed the labor system, and the end of slavery forced a redefinition of the relationship between Blacks and Whites. The change in labor and the costs of the war threatened to undermine the economic power of those who had dominated antebellum economic life, which was focused on the plantation. The weakening of the antebellum elite threatened not only their economic and social position but also their political power. In 1865 Texans confronted a situation in which new directions could be taken in economic development, political alignments, and social order. The period of Reconstruction presented the old order with a critical challenge.

One of the major forces that threatened change in the state was the United States Army. Federal troops began entering the state in late May 1865. Their commanders believed that their duty, at least in part, was to ensure loyal government and to protect the rights of the Blacks who were free as a result of the war. Gen. George A. Custer, stationed at Austin, expressed the military view when he recommended that the army retain control of the state until the government was "satisfied that a loyal sentiment prevails in at least a majority of the inhabitants." The military insistence upon loyalty threatened an indefinite loss of power among antebellum and wartime political leaders. Military views regarding the freedmen posed, at least in the minds of White Texans, a permanent disruption of their labor system and, subsequently, their entire economy. Their fears proved groundless, at least for the most part, for a variety of factors prevented the army from effecting all the change of which it seemed capable. Rapid demobilization reduced within a year the number of troops in the state from 51,000 to 3,000, and many of those who remained were on the frontier. The small size of the occupying army thus guaranteed its ineffectiveness. Still, various military commanders attempted to intervene in local politics. Turnover among them, however, prevented the development of a sustained policy in Texas. From May 1865 to March 1870 the command of forces in the state changed eight times. Of the commanders, Charles Griffin was the most active politically, but his career ended with his death in September 1867. His successor, Joseph J. Reynolds, was also politically active, though changes in command over him and his own indecisiveness and incompetence frustrated his forays into local politics. Wavering but domineering army policies ultimately provoked the local White population into an obstinate defense of prewar political power and control over the Black population.

The formation of the Bureau of Refugees, Freedmen, and Abandoned Lands (the Freedmen's Bureau) presented a further threat to prewar society. This agency began its operations in the state in September 1865 under the command of Maj. Gen. Edgar M. Gregory. The bureau was charged with overseeing all matters concerning refugees, freedmen, and abandoned lands, but its principal role was helping the new freedmen make the transition from slavery to freedom. Gregory, an abolitionist, interpreted his chief goal in the state as establishing a free labor system for the former slaves. Despite White fears, the course of Gregory and his principal successors, Joseph B. Kiddoo, Charles Griffin, and Joseph J. Reynolds, proved very conservative. Within a year Gregory's labor policies forced Blacks back to work on the state's farms and plantations, often where they had lived as slaves. He pressured them not only to stay where they were but to sign contracts to work for wages or on shares. With no ability to acquire land on their own, most complied. While planters complained publicly that free Black labor was not as good as slave, in private most found the new situation of tenantry acceptable. The indebtedness of tenants to landlords contained its own mechanisms for controlling the freedom of the labor force and pushed laborers into a form of debt peonage. Though the workers possessed freedom to search for the best conditions among local landowners, they had few choices other than to labor on some other person's land. Other aspects of the bureau's work were not as acceptable to Whites. They saw attempts to educate the freedmen

as potentially destructive to good order, although education in fact would have deprived planters of their workers by opening up new opportunities for them. They also criticized the intervention of agents and bureau courts in situations where bureau agents charged that Blacks were being treated unjustly. The bureau adjudicated matters ranging from violence to adherence to labor contracts. However, the challenge represented by bureau schools and courts was always more in appearance than reality. The schools did not receive the financial support necessary to serve the large Black population. The courts were inadequate for the protection of the freedmen and irritated the Whites brought before them. The bureau had little effect and, like the army, served to provoke Whites to even greater opposition.

Free Blacks provided a third challenge to the antebellum status quo, despite the limits imposed on their full freedom by the military, the bureau, and their peculiar economic conditions. Blacks from the war's end demonstrated their hopes that they could secure control over every aspect of their lives, including their labor, their families, and their social institutions. Further, they desired education and found support for that aspiration in the bureau's schools. In pressing for these elements of full freedom they encountered opposition from Whites who saw these goals as a threat to their own control over their labor force as well as their social position. In their efforts to maintain control over Blacks, Whites resorted to fraud against their workers, economic intimidation, and even violence. This White response prompted Blacks to demand protection in the law in order to guarantee their freedom. In the end, they also concluded that only through gaining the vote themselves could their freedom be assured. Their hopes were manifest publicly for one of the first times on March 10, 1866, when a group of freedmen gathered in Austin to address their concerns. In the meeting, delegates discussed demanding their right of suffrage and called upon the state government to assure that they would derive benefits from the state's public school lands. The March meeting led to the creation of the Austin Freedmen's Society whose members ultimately were among the founding Black members of the state's Republican party.

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### SHORTENED FOOTNOTE

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CHAPTER 15 · WEB ARTICLE W15.3

# Reconstruction

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| CHAPTER / PROMPTS | Chapter 15 \| 15.1, 15.2 |
| ARGUMENT ROLES | 15.1.2 Support; 15.1.1 Support; 15.2.1 Support |

## Excerpt · 984 words

Reconstruction was particularly divisive in Mississippi. Upper South states such as Tennessee, North Carolina, and Virginia, where former slaves comprised a minority of the population and white citizens had opposed secession until after the Civil War began, had relatively short and mild Reconstruction experiences. In the Deep South, however, where African Americans constituted a majority of the population and white leaders seceded before hostilities erupted, Reconstruction lasted much longer and was much more divisive. Mississippi, the second state to secede, epitomized this group. Reconstruction went through two phases and lasted for eleven years, revealing both the limitless possibilities and depressing realities of postwar America.

In May 1865 Pres. Andrew Johnson's requirements for readmission to the Union seemed simple: Mississippi had to annul its ordinance of secession and abolish slavery. Following Abraham Lincoln's policy, Johnson also requested that southern states consider enfranchising some black males, such as property owners or war veterans. Johnson appointed William L. Sharkey, a Union Whig, as provisional governor to oversee Reconstruction in Mississippi. The state constitutional convention, composed of seventy-one Whigs and eighteen Democrats, proved how unconquered white Mississippians were. Instead of annulling secession, the delegates repealed Mississippi's secession ordinance, implying that they retained the right to secede. Likewise, instead of abolishing slavery, they acknowledged that the institution was destroyed but refused to ratify the Thirteenth Amendment. They never considered black suffrage. Despite the delegates' defiance, Johnson accepted the new state constitution and scheduled state elections for October 1865. National politics influenced Johnson's decision: he wanted to complete Reconstruction before Congress convened in December and challenged his policies.

Johnson's leniency emboldened white Mississippians. Col. Samuel Thomas, the assistant commissioner of the Freedmen's Bureau who opened the bureau's office in Vicksburg, noticed white Mississippians' rebellious posture: "Wherever I go—the street, the shop, the house, or the steamboat—I hear the people talk in such a way as to indicate that they are yet unable to conceive of the Negro as possessing any rights at all." White men boasted to Thomas that blacks would "catch hell" after local whites reacquired political control. Whites spread false rumors that former slaves were planning a race war with the aid of the thirteen thousand US soldiers (most of them black) who occupied the state. Mississippi's population was 55 percent African American, and many whites believed that maintaining white supremacy was more important than promoting peace, economic progress, educational reform, or justice. In November 1865 this racism surfaced in Mississippi's Act to Confer Civil Rights on Freedmen, the misleading title of the state's Black Codes. Instead of embracing change, Mississippi legislators passed the first and most extreme postwar racial laws in an attempt to replicate slavery. The codes used vagrancy laws to control African Americans and punished them for any breach of Old South etiquette. Blacks could not be idle, disorderly, or use "insulting" gestures. Blacks could not own guns or preach the Gospel without a special license. Until they turned eighteen, black children were forced to work as "apprentices" for white planters, usually their former masters. Most blatant of all, the state penal codes simply replaced the word slave with freedman: all the crimes and penalties for slaves remained "in full force" for the emancipated.

The Black Codes not only limited African Americans' political power but also addressed the deeper economic struggle between former masters and freed slaves. Planters wanted to force blacks to work as they had during bondage. The former slaves had different goals: renting or owning land and self-sufficiency and independence from the old ways of plantation agriculture. In short, they wanted physical and economic distance from their terrible past. But whites seldom were willing to sell land to African Americans, even when they had saved up money to buy it. In parts of Mississippi, landowners who refused to sell property to

blacks for ten dollars an acre sold it to whites for half that price. Declining land prices and a failing cotton market then threatened white planters' livelihood. Economic recovery stalled because Mississippians depended almost exclusively on agriculture, and the state's transportation system was inadequate and wrecked by war. Planters who had withstood wartime destruction and postwar uncertainties faced spiraling debt. More than 150 planters near Natchez, one of the wealthiest cotton regions in the world, forfeited their land to pay debts or back taxes. Eventually, when neither whites nor blacks could achieve their economic aims, the sharecropping system developed.

Testimony from officials such as Thomas and the Black Codes convinced Congress that Mississippi and other states needed a more thorough approach. Beginning in 1867, Congressional or Radical Reconstruction ensued. In Mississippi this period contained great achievements and embarrassing failures. The state recognized the property rights of married women and established public education. One of the greatest successes was black participation in democracy, both as voters and officeholders. At least 226 black Mississippians held public office during Radical Reconstruction, far more than in Arkansas (46) or Tennessee (20), and among them were the first and only black US senators of this period, Hiram Rhoades Revels and Blanche K. Bruce.

But Radical Reconstruction infuriated southerners committed to white supremacy. As Republicans implemented political equality, terrorist groups used intimidation and violence to reverse progress. The foremost of these organizations was the Ku Klux Klan. Established in 1866, the Klan became a vicious paramilitary organization that promoted planters' interests and the Democratic Party. Klansmen targeted Republicans, "outspoken" blacks, and workers who challenged planter rule. In Monroe County, the Klan killed Jack Dupree, an African American who led a local Republican group and spoke his mind. Mississippi courts, black churches, and schools became frequent targets of racial violence. In Meridian three black leaders were arrested in 1871 for making "incendiary" speeches. During their trial, Klansmen shot up the courtroom, killing the Republican judge, all three defendants, and African Americans in the audience. The violence sparked a bloodbath in which white rioters murdered dozens of black leaders.

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https://mississippiencyclopedia.org/entries/reconstruction/

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**SHORTENED FOOTNOTE**

Phillips, "Reconstruction."

CHAPTER 15 · WEB ARTICLE W15.4

# Ulysses S. Grant: Domestic Affairs

Joan Waugh

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| **CHAPTER / PROMPTS** | Chapter 15 \| 15.1 |
| **ARGUMENT ROLES** | 15.1.1 Support; 15.1.2 Support; 15.1.3 Support |

## Excerpt · 956 words

When Ulysses S. Grant came into office, he sought to remain above politics. When he announced his first cabinet appointments, he dismayed Republican Party leaders who thought the President owed them cabinet positions for their support in the election. However, Grant kept his own counsel and balked at using his appointments for political leverage. He wanted to surround himself with people he could trust and to whom he could delegate responsibility. The result was a decidedly mixed cabinet. While he made some good selections, most notably Hamilton Fish as secretary of state, he made many mediocre appointments. His cabinet also had a high turnover rate. In addition, Grant was extremely loyal to those who had helped him or worked with him in the past; this loyalty prevented him from ruthlessly purging his administration of ineffective or corrupt politicians, and his administration was often noted for its scandals, although the President was never personally implicated in any of them.

### Reconstruction

Grant came into office during an incredibly difficult time in American history. The Civil War was over, and the country was grappling with how to rebuild and reunite in the war's aftermath. As President, Grant was determined to follow Lincoln's policy of reconciliation with the South rather than one of retribution or appeasement. He also wanted to make sure that the federal government preserved the sacrifices of the war by sustaining a strong Union while at the same time protecting the newly freed slaves and preventing former unreconstructed Confederates from regaining power in the South. Those goals proved difficult, if not impossible to reconcile.A majority of Americans—both Northerners and Southerners—rejected civil and political rights for blacks. Racism plagued much of American society, and although the North supported abolishing slavery to hasten the end of the war, many whites did not equate black freedom with racial equality. In this social climate, the President faced a unique challenge: How could he actively protect the rights of the newly freed slaves without alienating a large segment of the American public? In the beginning of his presidency, Grant continued the policies of congressional Reconstruction, and he used both the military and federal legislation to protect black citizens. He also wanted to help the Republican Party flourish in the South, a goal unattainable without black voters and at least a portion of the white voters. In his inaugural address, he urged the ratification of the Fifteenth Amendment, which would give citizens the right to vote regardless of race or previous servitude. He proudly signed off on the Amendment in 1870, declaring that it was "a measure of grander importance than any other one act of the kind from the foundation of our free government to the present day." Beginning in 1870, Congress passed a series of laws known collectively as the Enforcement Acts to help protect the right to vote. One of these was the Ku Klux Klan Act, which Grant signed in April 1871 to counter the rise of terrorist activity in the South. When white Southerners could not prevent blacks from voting legally, they terrorized them to try to keep them away from the polls. The President used South Carolina as an example to prove that the federal government would intervene in extreme cases of violence. In October 1871, he instituted martial law in nine counties in South Carolina and used federal troops to restore law and order in those areas. However, there were many examples when the President did not interfere in the South, especially when such intervention became increasingly unpopular in the North, threatening the Republican electoral majority. He did not always want the federal government to become the arbiter of state conflicts. He believed in a federal system in which the states maintained much of their autonomy separate from the federal government. So when conflicts arose in states such as Louisiana, Arkansas, Georgia, or Mississippi, Grant did not always intervene. He sometimes provided federal troops to maintain law and order but often refused to decide which state authority was paramount. Eventually much of the country, especially people in the North, lost interest in Reconstruction. White Southerners, who wanted the federal government to stay out of what they considered internal state affairs, were only too pleased with this development. The Panic of 1873 and the subsequent depression generated an even more heightened desire by Americans to focus on their own individual needs. Many were also disgusted by the corruption of Southern governments, both Democratic and Republican. This political climate did not augur well for Republicans. Already the Democrats had regained control of many Southern state governments, and the Republicans had little chance of reestablishing power in the South. But if they continued to push federal intervention in the South, they might lose votes in the North as well. Many Republicans, therefore, including those within the Grant administration, began to turn away from the South in order to maintain their strength in the North. Critics have assailed Grant's policy toward Reconstruction as either doing too much (by sending federal troops into Southern states) or by doing too little (not effectively protecting black rights). Grant wanted to meet the needs of the newly freed slaves and, at the same time, entice white Southerners into a Republican Party dedicated to creating jobs and solid businesses in the defeated region. However, it proved impossible for him to achieve these two competing goals. When he used federal troops or legislation to defend the rights of blacks, whites assailed him as a tyrant trampling states' rights. Yet it went against his personal and political goals to abandon the freed slaves and the Republican Party in the South. In the end, Grant had little chance to take his good intentions and make them into effective policy.

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https://millercenter.org/president/grant/domestic-affairs

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**SHORTENED FOOTNOTE**

Waugh, "Ulysses S. Grant."

CHAPTER 15 · WEB ARTICLE W15.5

# Ku Klux Klan in Virginia

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| **CHAPTER / PROMPTS** | Chapter 15 \| 15.1 |
| **ARGUMENT ROLES** | 15.1.2 Support; 15.1.1 Support |

## Excerpt · 611 words

The first Klan was born after the American Civil War (1861–1865) in the law office of Judge Thomas M. Jones in Pulaski, Tennessee, sometime between December 1865 and June 1866. It was founded by six Confederate veterans: James Crowe, Richard Reed, Calvin Jones (Thomas Jones's son), John Lester, Frank McCord, and John Kennedy. The Pulaski Six, as they came to be known, allegedly formed the organization for amusement and to break the boredom of their small town. However, as Reconstruction policies took effect between 1865 and 1877, allowing African Americans to become more active in southern political, economic, and social life, local cells of the Klan, called klaverns, formed throughout the south and took on a different role. According to historian Eric Foner, the Klan went from being an amusement activity to "a military force serving the interests of the Democratic party, the planter class, and all those who desired the restoration of white supremacy."

Although the first Klan was less centralized than the second, explains Foner, it effectively aimed "to destroy the Republican party's infrastructure, undermine the Reconstruction state, reestablish control of the black labor force, and restore racial subordination in every aspect of Southern life." To achieve these ends, Klansmen donned white-sheeted regalia that covered their bodies and masked their faces as they employed unseemly methods of intimidation, including rape, beating, murder, and lynching. Members of the so-called Invisible Empire relied upon secrecy and anonymity to avoid being caught and to create an environment of fear in which Blacks and pro-Reconstruction whites had to live under a constant threat of violence.

### The First Klan in Virginia

In Virginia the first Klan's life was brief. According to historian Allen W. Trelease, the Klan appeared in the Old Dominion in March 1868 and—with a few exceptions—disappeared by the end of April, just a month later. Its presence was not, however, without incident. Margaret Newbold Thorpe, a teacher at a freedmen's school outside of Williamsburg during this period, observed: The Ku Klux have been in our neighborhood, and we have received notice that they intend giving us a call [sic] … Their outrages and murders have become matters of history; one of the missionaries in this part of Va.—a New England man, a cripple, was dragged from his bed and over the ground to the woods and terribly beaten. The poor wife never left him, and took him back nearly dead. Klan-related violence also occurred in the town of Warrenton and Lee and Rockingham counties.

Virginia newspapers, in particular the Richmond *Daily Enquirer & Examiner*, helped to spread interest in the hooded order. In an editorial from March 26, 1868, the Daily Enquirer & Examiner lauds the Klan's objectives and describes it as an organization which is thoroughly loyal to the Federal constitution, but which will not permit the people of the South to become the victims of negro rule. It is purely defensive, and for the protection of the white race, and has been rendered necessary by the organization of thousands of secret negro leagues, whose members have been stimulated to carry out the work of disfranchisement of the whites by the promise of pillage and wholesale confiscation.

News of this nature helped the Klan garner support throughout the state. While estimates of statewide Klan membership are unknown, the *Daily Richmond Whig* claimed that Richmond alone counted 4,000 members. However, after reports of Klan violence in Virginia, newspapers—even the *Daily Enquirer & Examiner*—changed their tone and, according to Trelease, ridiculed the Klan as an organization that "no one in his right mind took seriously." With public support weakened, perhaps more so because the state was never truly under Republican control, the Klan's foothold in Virginia slipped.

## Original Article

https://encyclopediavirginia.org/entries/ku-klux-klan-in-virginia/

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### SHORTENED FOOTNOTE

Kneebone, "Ku Klux Klan."

CHAPTER 15 · WEB ARTICLE W15.6

# Ku Klux Klan in Alabama during the Reconstruction Era

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| **CHAPTER / PROMPTS** | Chapter 15 \| 15.1 |
| **ARGUMENT ROLES** | 15.1.2 Support; 15.1.1 Support |

## Excerpt · 1,037 words

The Ku Klux Klan was a secretive and violent organized group that first appeared in Alabama during Reconstruction and operated from 1867 until 1871. By today's standards and definitions, the early Klan would be considered a terrorist group, and its reign of terror helped define the history and memory of Reconstruction in Alabama. The Klan's name derived from the Greek word *kuklos*, which meant "band" or "circle." Thousands of Klansmen statewide used acts of intimidation and violence to oppose the expansion of civil liberties among freedpeople that took place during Reconstruction, to assert authority over black laborers, to defend white supremacy, and to eliminate the Republican Party. Many Klan members were also motivated by the mistaken idea that violence would restore the South to its plantation-era society, an ideology known as the Lost Cause.

Six Confederate veterans in Pulaski, Tennessee, organized the Ku Klux Klan in May or early June of 1866. According to legend, the men created the Klan because they were bored and reportedly entertained themselves by donning costumes and playing pranks on freedpeople. In 1867, the Klan evolved into a counterrevolutionary organization responding to the widespread social change begun by Congressional Reconstruction. The Klan selected former Confederate general Nathan Bedford Forrest to serve as its Grand Wizard, as the supreme leader was known. The organization spread quickly under Forrest's leadership; however, the Klan lacked a regional hierarchical chain of command. Although Klansmen bestowed titles of authority, such as Grand Dragon (state leader), Grand Cyclops (president), Grand Magi (vice-president), and Grand Turk (marshal), upon its leaders, local members were disconnected from state or regional leaders.

The Klan established a loosely affiliated network of local "dens" in northern Alabama within months after the order's creation. Historians are unsure about the precise number of Klansmen in Alabama. The group left no formal records and lack any known membership rolls; however, most historians estimate that in Alabama, at its peak, the organization had over 1,000 members and almost unanimous support among Democrats. The Alabama Klan existed in large numbers in counties located in the Tennessee River Valley, Piedmont, and Black Belt regions. Meanwhile, few Klan chapters existed in the Wiregrass, where the number of white Republican voters was larger and freedpeople represented a small percentage of the total population. The group's membership included white men of varying social classes as well as many Confederate veterans. For example, James H. Clanton, a lawyer and former Confederate general who lived in Montgomery, was Alabama's first Grand Dragon. Following Clanton's murder in 1871, John Tyler Morgan, an ex-Confederate general and a future six-term U.S. senator from Alabama, held the position of Grand Dragon for several years. General Edmund Pettus of Dallas County was the last person to hold that title during Reconstruction. Other prominent Klan leaders in Alabama included Ryland Randolph, editor of the Tuscaloosa newspaper *Independent Monitor*, public Klan figure, and Confederate veteran, and Episcopal Bishop of Alabama Hooker Wilmer, who served as the state Klan chaplain. Several other white supremacist groups also formed in Alabama that imitated but possessed no true relation to the Ku Klux Klan.

The Klan targeted freedpeople, white Republicans, northern missionaries, and teachers working in black schools. Groups rarely committed their terroristic acts during the day, preferring to operate in isolated, rural areas and generally at night, thus earning them the alternate name "nightriders." Klansmen would target a house and arrive under the cover of darkness and surround the building, knock down any locked doors, and drag their victims out into the yard. Klansmen would then commit various acts of physical and psychological torture that included whippings of men, women, and children and dragging their victims around

after the beatings. Disguised attackers routinely intimidated their victims by aiming loaded pistols at them. Very often, women in the household were subject to rape and other forms of violent and humiliating sexual abuse.

The Klan operated as the military wing of the Democratic Party in Alabama. Although few Democrats praised the Klan's tactics publicly, many of the party's leaders were Klansmen, and the party never repudiated the organization's brutality. The group's central objective was to halt the development of the Republican Party, and Klansmen accomplished this goal by physically assaulting and intimidating white and black party supporters. In Alabama, the rise of the Klan in 1868 led to an immediate and substantial decline in Republican voters. During the 1870 gubernatorial election, the Klan unleashed a wave of terror in such Republican-heavy counties as Greene and Sumter and kept thousands of potential voters away from the polls. With the Klan's support, Democratic Party candidate Robert B. Lindsay achieved a narrow victory (1,409 votes statewide) over his Republican opponent William H. Smith. That same year, the Klan also restored the Democratic Party to power in the state legislature and in turn sent Democrat George T. Goldthwaite to the U.S. Senate.

The Klan also opposed many of the social changes in Alabama that had resulted from emancipation, including the development of independent black schools and churches. Klansmen routinely forced out white northern schoolteachers sent to the state by organizations such as the American Missionary Association. They also burned numerous black schools and churches—both types of places where freedpeople held political meetings—in an effort to thwart the development of black educational, religious, and political aspirations.

Between 1868 and 1871, according to testimony gathered by a special investigation conducted by members of the U.S. Congress, Klansmen in Alabama committed more than 100 murders and thousands of acts of violence and intimidation. In July 1870, for example, Klansmen killed six people, including a schoolteacher, at Cross Plains, Calhoun County. Local freedpeople identified the murderers by name during a grand jury hearing, but the all-white jury refused to indict the killers, and in fact, few Klansmen were ever brought to justice. Klansmen and most Democrats referred to members of the Republican Party as "Black Republicans"—regardless of whether the person they were referring to was white or black. The Klan and other white southerners believed that the Republican Party was acting to serve the interests of freedpeople and northern radicals whose support for the expansion of civil liberties among freedpeople designed to humiliate and reduce the South to a permanent subordinate status within the nation.

## Original Article

https://encyclopediaofalabama.org/article/ku-klux-klan-in-alabama-during-the-reconstruction-era/

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### FULL FOOTNOTE

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### SHORTENED FOOTNOTE

Hébert, "Ku Klux Klan."

CHAPTER 15 · WEB ARTICLE W15.7

# Reconstruction in Alabama

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| **CHAPTER / PROMPTS** | Chapter 15 \| 15.1, 15.4 |
| **ARGUMENT ROLES** | 15.1.1 Support; 15.1.2 Support; 15.4.3 Support |

## Excerpt · 601 words (complete article)

Reconstruction is the general term for the process of political and social realignments and readjustments in the South after the Civil War and Emancipation, often described as lasting from 1865 to 1877, although in Alabama it ended earlier, in 1874. Historians generally divide the period into two phases: Presidential Reconstruction and Congressional Reconstruction. Presidential Reconstruction began in 1865, when federal troops in Alabama began overseeing Emancipation, under the auspices of the Bureau of Refugees, Freedmen, and Abandoned Lands (more commonly known as the Freedmen's Bureau) and its head, Gen. Wager T. Swayne.

Pres. Andrew Johnson set the initial policy, however, and he gave ex-Confederates latitude to reestablish race relations on the terms they supported. Despite the wishes of the Republican majority for protection of the civil rights for freedpeople and for barring the former elite from power, Johnson's policies mostly prevailed for nearly the first two years after the war. President Johnson opposed federally guaranteed civil rights protection or extending voting rights to freedmen. He also favored rapid pardons for ex-Confederate leaders and quick reintegration into the Union for the 11 states formerly in rebellion.

In 1867, the Republican-dominated Congress took control of the Reconstruction process and attempted to expand and protect the civil rights of the formerly enslaved. This phase has alternately been called Radical Reconstruction, Military Reconstruction, and its most all-encompassing name, Congressional Reconstruction. During the next eight years, Unionists, federal officials, former Confederates, and freedpeople struggled to define Alabama's political and social landscape. The federal government worked to rewrite Alabama's constitution, freedmen founded political and workers' rights organizations such as the Union League, and Democrats who favored states' rights and white supremacy responded with legal action and, sometimes, terrorism in the form of intimidation, violence, and murder by the Ku Klux Klan and other white supremacist groups.

In 1874, after several years of financial hardship, political intrigue, and continued maneuvering by Democrats, the ex-Confederate faction of Alabama regained the governor's office, with the election of George S. Houston. In the decades that followed, leading up to the 1901 Constitution, Alabama Democrats successfully overturned any expansion of voting rights for freedpeople and returned the state to the planters' preferred focus on low taxes and minimal government regulation. This period is known as "Redemption," so called because the white-supremacist Democrats who regained political power believed that the South had been "crucified" by federal tyranny and black rule and would now rise again to its former glory. The issues of black equality and suffrage that had been stirred in the Reconstruction Era simmered for decades in Alabama and elsewhere in the South until they boiled over in the civil rights struggles of the 1950s and 1960s. Alabama's experience with Reconstruction was broadly representative of the other southern states, and the outcome was equally dire for the civil rights of the freedpeople and their supporters.

Overall, Reconstruction in Alabama is a mixed legacy. Freedpeople took advantage of the post-Civil War era to secure access to the public school system and basic equality before the law. Although less assertive in civil rights demands than in other states, the freedpeople in Alabama challenged the racial hierarchy effectively, which explains the depth and persistence of violent opposition by ex-Confederates, white supremacists, and the Ku Klux Klan. The long-term result of Reconstruction was to strengthen the most reactionary aspects of southern society—vigilantism, states' rights militancy, and Democratic one-party rule—which became embodied in Jim Crow laws that pushed blacks out of Alabama and the South during the Great Migration. These factors set the stage for another confrontation with federal authority over civil rights nearly a century later.

## Original Article

https://encyclopediaofalabama.org/article/reconstruction-in-alabama/

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### SHORTENED FOOTNOTE

Fitzgerald, "Reconstruction in Alabama."

CHAPTER 15 · WEB ARTICLE W15.8

# The Civil War and State-Building: A Reconsideration

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| **PUBLICATION** | c. 2017 (forum on the future of Reconstruction studies) |
| **CHAPTER / PROMPTS** | Chapter 15 \| 15.1, 15.2 |
| **ARGUMENT ROLES** | 15.1.3 Qualify; 15.2.2 Qualify; 15.2.3 Support |

## Excerpt · 1,025 words

A favored way of interpreting American political development in the United States is to stress the revolutionary effects of the Civil War on the American nation and its state. In this view, the defeat of the Confederacy interred states' rights and concentrated power in the central government to an unprecedented degree. This central state, this "Yankee Leviathan," in the words of Richard Bensel, first focused on creating a legal and political environment in which capitalism could flourish. In the hands of the Populists and Progressives, this same central state then developed the political resolve and administrative capacity to remedy the multiple ills that an unbounded capitalism had generated. By the time of the New Deal, big government, conceived in the tradition of European social democracy, had tamed big capitalism.[1]

What this account leaves out is how deep remained the commitment in the North across the Civil War years to keep intact the government ordained by the Constitution. Many of the new powers assumed by the federal government during that time were justified by war emergency and thus understood to be legitimate only so long as wartime lasted. Even the major effort during the Radical Republican era to move beyond circumstances of emergency and change the conception of governance permanently via constitutional amendment altered the balance of power between the states and the central government less than is commonly thought. The Civil War and Reconstruction era, therefore, may not have constituted a sharp pivot in the history of the American state.[2]

To have some sense of the possibilities and limits of state power in the Civil War and after, we need some sense of government before the war. The point of departure must be what students of federalism have always insisted: that from the start, the United States was a federal republic, meaning that it divided authority between the central government and the governments of the states. This division was central to an overriding ambition to prevent any one institution of government from gaining too much power. But America's federal system went beyond a simple division of powers. It organized the two major divisions of government—the central state and the states—around different theories of power. A liberal theory animated and guided the central government. The fundamental principle of this theory was that citizens had rights that no government could take away except under the most extraordinary of circumstances; as a result, the powers of the central government had to be limited in clear and effective ways. Several features of the central government came to embody this aspiration: separating its powers into three independent branches, limiting the realm of federal authority to those activities specifically enumerated in the Constitution, and elaborating in the Bill of Rights a sphere of autonomy and security for the individual that the federal government would not be allowed to breach except under the most exceptional of circumstances.[3]

The power of the states derived from a different political principle—one that held the public good in higher esteem than private right. This principle called for a polity well regulated by government in which, as the legal historian William Novak has written, "no individual right, written or unwritten, natural or absolute," could be permitted to eclipse "the people's safety" or welfare. It resembled in part what scholars writing in the mid- to late twentieth century—figures such as J. G. A. Pocock, Quentin Skinner, Gordon Wood, and Mauricio Viroli—have called the ideology of republicanism. Like republicanism, this principle put its faith in the ability of responsible, virtuous citizens to determine and agree on the public interest, or salus populi, the people's welfare. This principle was not indifferent to individual rights, but it insisted that the enjoyment of personal freedom and individual

rights depended on the carefully regulated society that government would construct.[4]

This second principle of government endowed states with a scope of authority more capacious in many respects than that which inhered in the federal government itself. In truth, state governments possessed a staggering freedom of action. They had the power to direct internal transportation improvements; issue controls on capital and labor; build schools and libraries; and engage in town planning and supervise public health. They organized moral life. Rules governing marriage, drinking, narcotics, gambling, sexuality, theatergoing and the arts, and a community's disposition to the migrant poor were all subject to the control of the states. The powers of the states, gathered up into a doctrine that the courts began calling the "police power," could be deployed progressively, as, for example, in insisting that capitalist development be subjected to the people's welfare, and regressively, as, for instance, in legislating hierarchies grounded in race or gender into law. Slavery itself was understood to fall within the purview of states and their police power.[5]

The view of government power I have outlined here is different from the one that has become popular these last fifteen years. Driving this latter interpretation is a desire to free American historiography from another conception of political development that was once ascendant, namely that the state in nineteenth-century America was weak and inconsequential. Those who argue in the "strong state" vein have sought to show that the state in America was powerful, capacious, and consequential.[6] I have learned a great deal from this revisionist wave; indeed it is fair to say that I am a product of it. But this perspective, in the hands of some of its practitioners, has generated new conceptual blind spots. Terms such as "Leviathan" and "Hercules" are increasingly deployed to describe the power of the central state, even in the antebellum years, as though this were a state of immense power.[7] Gone from this interpretation is a sense of the central government as a liberal institution in the eighteenth-century sense of that term: as a government formally limited in its powers and barred from interfering with certain fundamental rights held by its citizens. Absent as well is a sense that two levels of government operated according to different principles. In this revisionist interpretation, the state is often conceived of as a unitary institution, with all its parts pulling in the same direction—toward greater power and control.[8]

## Original Article

https://www.journalofthecivilwarera.org/forum-the-future-of-reconstruction-studies/the-civil-war-and-state-building/

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### SHORTENED FOOTNOTE

Gerstle, "Civil War and State-Building."

CHAPTER 15 · WEB ARTICLE W15.9

# Fifteenth Amendment to the U.S. Constitution

Brent Tarter

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|---|---|
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| PUBLICATION | December 7, 2020; updated February 18, 2025 |
| CHAPTER / PROMPTS | Chapter 15 \| 15.2, 15.1 |
| ARGUMENT ROLES | 15.2.3 Qualify; 15.2.2 Qualify; 15.1.3 Qualify |

## Excerpt · 685 words

The Fifteenth Amendment contains two short sections. The first prohibits the government of the United States or of any state to deny any male citizen the right to vote "on account of race, color, or previous condition of servitude." The second section grants Congress enforcement power.

### Ratification

The defeat of the Confederacy and the abolition of slavery in 1865 left many unanswered questions about the newly freed population. Among those questions was whether they should be allowed to vote, then regarded as one of the essential rights of citizenship for American men. Very few states at the time allowed African American men to vote, but President Abraham Lincoln and some other national leaders came to believe that men who had fought in the United States Army and Navy during the war had earned that right of citizenship. As part of the overall plan that Republican Party leaders in Congress developed after the war to guarantee that freedom from slavery could become genuine freedom, not merely an absence of slavery, Congress submitted the proposed constitutional amendment to the states on February 26, 1869. It granted African American men the right to vote by prohibiting the states from denying the vote to any citizen because of race, skin color, or having once been held in slavery.

Because Virginia had been a Confederate state and had not yet been fully reinstated to the Union, no Virginians served in Congress when it submitted the amendment to the states. Following the end of the Civil War, the Senate and House of Representatives placed the states of the former Confederacy (except Tennessee but including Virginia, part of which had remained one of the United States during the war) under military rule and refused to seat any men elected to either house of Congress from those states.

### Constitutional Convention of 1867–1868

The disfranchisement of former Confederates was the most controversial part of the new constitution and it delayed the scheduled 1868 ratification referendum. Eventually, a group of men known as the Committee of Nine worked out a compromise with President Ulysses S. Grant that authorized separate voting on the section that disfranchised former Confederates. On July 6, 1869, in the second election in which African Americans voted in Virginia, the voters approved the new constitution and rejected the disfranchisement section. On that same day, voters elected statewide officers and members of a new assembly.

On the fourth day of its next session, the General Assembly ratified the Fifteenth Amendment, making Virginia the eighteenth state to do so. Both houses of the General Assembly ratified the Fourteenth and Fifteenth amendments on October 8, 1869. The vote on the Fifteenth Amendment was 132 to 0 in the House of Delegates and 40 to 2 in the Senate of Virginia. All twenty-one of the twenty-three African American members of the House of Delegates who were present voted for it; one of the six African American senators, Isaiah L. Lyons, voted against it. The Fifteenth Amendment became part of the U.S. Constitution on February 3, 1870, when the legislature of Iowa was the twenty-eighth state to ratify it.

Virginia's ratification of the Fourteenth and Fifteenth amendments and enfranchisement of African Americans in the new state constitution ended congressional Reconstruction in the state. Congress passed a bill that the president signed on January 26, 1870, permitting Virginia's senators and elected representatives to take their seats in Congress.

### Application

Many white Virginians disapproved of Black men voting. In 1876 a majority of Virginia's voters, who were white men, ratified a constitutional amendment requiring pre-payment of a poll tax for men who wished to vote. The tax reduced the number of African Americans who were able to vote during the remainder of the decade. At the end of the 1870s, a biracial coalition known as the Readjuster Party gained control of both houses of the General Assembly and two years later elected a governor. The Readjusters then repealed the poll tax. After Democrats regained control of the assembly and the governorship in the mid-1880s, they adopted new laws governing the conduct of elections that made it increasingly difficult for Black men to vote in Virginia.

## Original Article

https://encyclopediavirginia.org/entries/fifteenth-amendment-to-the-u-s-constitution/

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#### SHORTENED FOOTNOTE

Tarter, "Fifteenth Amendment."

CHAPTER 15 · WEB ARTICLE W15.10

# Reconstruction, Part III: Statewide Changes and Achievements during Reconstruction

Allen W. Trelease

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| **PUBLICATION** | 2006 |
| **CHAPTER / PROMPTS** | Chapter 15 \| 15.2 |
| **ARGUMENT ROLES** | 15.2.2 Support; 15.2.1 Support |

## Excerpt · 487 words (complete article)

Republicans dominated the elections of 1867 and the state constitutional convention that followed. The resulting Constitution of 1868 endured for more than a century, albeit with many amendments. It provided for universal manhood suffrage and basic legal rights for whites and blacks alike (complying with congressional mandates) and introduced locally elected county government and a public school system for both races. In April 1868 voters ratified the constitution and elected Republicans to all statewide offices, including Holden as governor and a Republican legislative majority. Blacks won no statewide offices but were elected to many local positions, especially in the east. Northerners were also elected to offices in predominantly black counties in the east, filling a partial vacuum of talent left by the legacy of slavery. Statewide and in most localities, especially in the west, the great majority of Republican officeholders were native whites (scalawags to their enemies).

In office, the Republicans compiled a notable and generally positive record of achievement. The new legislature ratified the Fourteenth Amendment, as Congress required. It elected to the U.S. Senate John Pool, of Elizabeth City, a recent Whig Party gubernatorial candidate, and Joseph C. Abbott, of Wilmington, a former Union army general. The legislature created (but did not adequately fund) the state's first public school system for blacks as well as for whites, adopted a progressive civil law code, reaffirmed the legal and political equality of the races and ratified the Fifteenth Amendment, established the state's first penitentiary, abolished flogging as a punishment for crime, took steps to alleviate economic distress, and dealt as best it could with Democratic terrorism operating through the Ku Klux Klan (KKK). The legislature was a more democratic body than any of its predecessors and, for many years after, its successors. On the other hand, it went beyond the limits of prudence and legality in voting money for railroad construction, most of which never took place; a year later the same legislators had second thoughts and withdrew most of the state aid. A few members took bribes in return for pro-railroad votes, the money emanating from a pair of promoters, George W. Swepson and Milton S. Littlefield. But North Carolina saw less corruption than many other states, North and South.

In terms of legislative voting, blacks and northerners compiled a more radical (or egalitarian) record than native white Republicans. All were more radical than the Conservative (Democratic) minority, but in North Carolina, as in the Upper South generally, radical egalitarianism never extended far beyond the ballot box. (Radical rule was more a Conservative campaign slogan than a reality.) Blacks remained poor, undereducated, and relatively dependent on whites. Few whites of either party favored racial integration; segregation remained the norm in the schools, on the railroads, and in most places of public accommodation. But in contrast to previous regimes, which had excluded blacks from most state institutions and services, Republicans made an effort to provide equal facilities.

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### SHORTENED FOOTNOTE

Trelease, "Reconstruction, Part III."

CHAPTER 15 · WEB ARTICLE W15.11

# Birthright Citizenship and Reconstruction's Unfinished Revolution

Martha S. Jones

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| **PUBLICATION** | c. 2017 (forum on the future of Reconstruction studies) |
| **CHAPTER / PROMPTS** | Chapter 15 \| 15.2 |
| **ARGUMENT ROLES** | 15.2.3 Support; 15.2.1 Support |

## Excerpt · 1,130 words

Reconstruction brought about a legal revolution that was unfinished at best.[1] Ratification of the Thirteenth, Fourteenth, and Fifteenth Amendments to the Constitution marked a sea change: slavery was abolished; equal protection to all citizens, regardless of race, color, or previous condition of servitude, was guaranteed; voting became the subject of constitutional oversight. These provisions marked an upending of the antebellum legal regime, even as scholars have disagreed about how thoroughgoing was this transformation.[2] Few would dispute that Reconstruction fundamentally reordered the nation's constitutional scheme by establishing new and far-reaching federal supremacy and laying the foundation for the culture of rights that was to follow. Since their ratification, the Reconstruction Amendments have proven to be both highly durable and hotly contested.

This essay examines birthright citizenship, among the most far-reaching and disputed of Reconstruction's legal legacies. The Fourteenth Amendment broke a silence present in the Constitution of 1787, providing: "All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States and of the state wherein they reside."[3] With this, birthright citizenship assumed a central role in arbitrating national belonging. The principle of jus soli—the right of the soil—had a long history in English common law.[4] Still, it penetrated widespread consciousness in the United States only after its constitutionalization in 1868.[5] Twenty-first-century Americans take for granted how birth liberally bestows citizenship on them and their children, even as much of the world limits the effect of jus soli principles.[6]

Birthright has always required careful interpretation and faced outright challenges. Today, poised to come before the U.S. Supreme Court is *Tuaua v. United States*.[7] Born in American Samoa, Lene Tuaua challenged his designation as a "non-citizen national," arguing that he is a U.S. citizen by virtue of birthright.[8] Historians of citizenship explain that despite their birth on U.S. soil, American Samoans have been denied the right to vote pursuant to racism rather than the Constitution.[9] Also on today's front burner is the status of the children born to undocumented aliens. Birth ties them to U.S. soil; still some scholars of citizenship argue that such children may be deemed beyond the privilege of birthright.[10] Legal historians have taken this debate from law reviews into the public square.[11] Their competing analyses turn on readings of the Fourteenth Amendment, making the scope and application of birthright citizenship a live question today.[12]

It has been so for nearly two hundred years. Indeed, it is difficult to point to any moment during the past two centuries when the principle of birthright citizenship was not the subject of debate. This essay suggests that the Reconstruction-era ratification of the Fourteenth Amendment, in this sense, is best understood as an important though not definitive moment in the history of birthright. The import and the limits of events in 1867–68 followed on the heels of antebellum debates over the status of free African Americans. And they were followed by continued uncertainty about birthright when, at the century's close, questions plagued the children of Chinese immigrants because their parents were ineligible for naturalization. The Fourteenth Amendment largely resolved the citizenship dilemma former slaves faced. It did less well for the U.S.-born children of immigrants who, in the 1890s and today, face questions about where they are situated along the nation's borders of belonging.[13]

The first debates over birthright citizenship predate the Reconstruction altogether. Antebellum lawmakers asked whether former slaves and their descendants were protected from arbitrary removal beyond the nation's geopolitical borders, and the

answer turned on views about birthright citizenship. It was a constitutional puzzle generated by colonization schemes and black laws that threatened to banish, exile, or otherwise remove free black Americans from the United States. The questions were made only more complex because, close to the ground, federal officials conducted business in contradictory fashion. The post office barred black mail carriers at the start of the nineteenth century, while customs officials issued seamen's protection certificates that proved their citizenship in foreign ports.[14] Were they citizens by birthright, free people of color might enjoy the privileges and immunities guaranteed by Article IV, Section 2 of the Constitution. Black activists and their allies built a claim grounded in jus soli. Birthright citizenship, it was argued, bestowed a right to place, a right to remain within the nation's political and geographic boundaries unmolested.[15]

Congress twice took up the puzzle of black Americans and birthright citizenship in the 1820s. On both occasions it fumbled. In 1821, a clause in the proposed Missouri state constitution mandated laws "to prevent free negroes and mulattoes from coming to and settling in the State, under any pretext whatsoever."[16] Congress asked whether a prohibition against the in-migration of free persons of color would violate the constitution by drawing an impermissible distinction between citizens of different states? The resulting debate stretched over many days with forceful advocates on both sides. Some said free black people were citizens: "If a person was not a slave or a foreigner—but born in the United States, and a free man, going into Missouri, he has the same rights as if born in Missouri." Others saw no conflict, the implication being that free black Americans were not, constitutionally speaking, citizens. In the end, Missouri was admitted pursuant to a constitution that retained the troubling language. Still, Congress admonished the state not to enact any law that would impair the rights of citizens from other states, including those of color.[17]

Five years later, in 1826, Congress returned to citizenship reaching a similarly ambiguous resolution. A free black New Yorker, Gilbert Horton, was detained in Washington, D.C., as a fugitive slave.[18] Threatened with sale as a slave to cover his jail fees, Horton was freed with the help of Governor DeWitt Clinton, who demanded his release as a citizen of New York. New York Congress member Aaron Ward placed Horton's circumstance before the House of Representatives, asking the Committee on the District of Columbia to inquire into and consider the repeal of "any law which authorizes the imprisonment of any free man of color, being a citizen of any of the United States, and his sale as an unclaimed slave, for gaol fees and other charges." What erupted was a "radical difference of opinion." Some lawmakers "claim[ed] as a matter of right, that black persons, held to be citizens of the United States, in the State of New York, should enjoy in every other state the same privilege." Others maintained, "We have the right to exclude free People of Color, to eject them and to limit their privileges, when we admit them to reside among us." The matter moved forward only by way of a murky compromise: Ward dropped his reference to free men of color as citizens. With that, the committee proceeded with its inquiry.[19]

## Original Article

https://www.journalofthecivilwarera.org/forum-the-future-of-reconstruction-studies/birthright-citizenship-reconstructions-unfinished-revolution/

## Chicago Citations

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### SHORTENED FOOTNOTE

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CHAPTER 15 · WEB ARTICLE W15.12

# Fourteenth Amendment to the U.S. Constitution

Brent Tarter

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| CHAPTER / PROMPTS | Chapter 15 \| 15.2 |
| ARGUMENT ROLES | 15.2.3 Support |

## Excerpt · 653 words

Of the three Reconstruction Amendments, the Fourteenth Amendment to the U.S. Constitution dealt most directly with the outcome of the Civil War and the condition of the freed people. It contains five sections. The first defined as American citizens all persons who were native-born residents of the United States, which made freed people citizens for the first time. That in effect overturned the Supreme Court's ruling in *Dred Scott v. Sandford* (1857) that stated that no descendants of people imported into the country as enslaved laborers could ever be American citizens. The first section also denied states the power to abridge the privileges and immunities of any person; to deprive any person of life, liberty, or property without due process of law; or to deny any person the equal protection of the laws.

The second section in effect repealed the Constitution's three-fifths clause of Article I, Section 2, Paragraph 3, which counted three-fifths of enslaved people in the apportionment of seats in the House of Representatives. The Fourteenth Amendment also authorized Congress to deny any state that deprived citizens of the right to vote in its legislative elections of a portion of its representation in Congress and of its allotted number of presidential electors. The third section denied the vote to men who served in the Confederate army or navy or had supported the rebellion if they had served in public office before the Civil War and had taken an oath to support the Constitution, but it allowed Congress by a two-thirds vote of both houses to remove individual disabilities. The fourth section invalidated all state debts incurred in support of the rebellion. And the fifth section granted Congress power to enforce all parts of the amendment by appropriate legislation.

### Ratification

The U.S. Senate passed the proposed amendment by the required two-thirds majority on June 8, 1866, and the House of Representatives passed it on June 13, 1866, which sent it to the states for ratification. No Virginians served in Congress when it submitted the amendment to the states. Following the end of the Civil War, the Senate and House of Representatives placed the states of the former Confederacy (except Tennessee but including Virginia, part of which had remained one of the United States during the war) under military rule and refused to seat any men elected to either house of Congress from those states.

On January 9, 1867, the members of both houses of the General Assembly, who had been elected in the autumn of 1865, voted against ratifying the amendment. All twenty-seven members of the Senate of Virginia who were in attendance that day voted against the amendment. The vote in the House of Delegates was 74 to 1. During the following days, fifteen delegates who were absent when the vote was taken asked to have their votes recorded against ratification.

On March 2, 1867, Congress required that the legislature of each state in the former Confederacy ratify the Fourteenth Amendment before its senators and elected representatives could be seated in Congress. That requirement remained in place even after the requisite number of states had ratified the amendment and it had become part of the U.S. Constitution. Ratification was completed on July 9, 1868, when the legislature of South Carolina became the twenty-eighth state to ratify it. On October 8, 1869, both houses of the General Assembly of Virginia ratified both the Fourteenth and Fifteenth amendments. The vote in the House of Delegates on the Fourteenth Amendment was 126 to 6 and in the Senate of Virginia 36 to 4. All twenty-one of the twenty-three African American members of the House of Delegates who were present voted for it; one of the six African American senators, Isaiah L. Lyons, voted against it.

Congress passed a bill that the president signed on January 26, 1870, permitting Virginia's senators and elected representatives to take their seats in Congress, which ended congressional Reconstruction in Virginia.

## Original Article

https://encyclopediavirginia.org/entries/fourteenth-amendment-to-the-u-s-constitution/

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### SHORTENED FOOTNOTE

Tarter, "Fourteenth Amendment."

CHAPTER 15 · WEB ARTICLE W15.13

# Reasons for Hope: Ketanji Brown Jackson, Civil War Era History, and the Supreme Court's Struggle over the Second Founding

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| PUBLICATION | July 21, 2026 |
| CHAPTER / PROMPTS | Chapter 15 \| 15.2 |
| ARGUMENT ROLES | 15.2.3 Support |

## Excerpt · 226 words

You didn't expect this. Part of a majority segment of a U.S. Supreme Court decision—that is, Justice Ketanji Brown Jackson's concurrence in the birthright citizenship case—builds upon and amplifies the writings of historians Eric Foner, Kate Masur, Ira Berlin, Isabel Wilkerson, Kenneth Stampp, David Blight, and Manisha Sinha. "The architects of the Second Founding," Jackson writes, did not think or pretend that race didn't matter."[1]

She deftly challenges the claims of dissenting Justices Clarence Thomas and Samuel Alito, who pretend that a "color-blind" Constitution provides no sanction for those who might try to uproot "racial caste." Following Foner, Jackson celebrates the "paradigm shift" encompassed in the Fourteenth Amendment that repudiated "the notion that there is a superior, dominant, ruling class of citizens." (She quoted the latter phrase from Justice John Marshall Harlan's spirited dissent in the infamous *Plessy* case.)

If 2029 brings about a change in national political leadership, it may be hoped that Jackson's concurrence points towards time when we historians may expect to see our work shaping new outlooks in the corridors of power. Jackson specifically saluted "trained historians" for helping her to see that "our Constitution stands firmly against caste and subordination."

Justice Jackson's concurrence appeared directly after Justice John Roberts' majority opinion, which offered a lengthy exegesis on the common law. A PDF version of the concurrence is also included below.

## Original Article

https://www.journalofthecivilwarera.org/2026/07/reasons-for-hope-kentanji-brown-jackson-civil-war-era-history-and-the-supreme-courts-struggle-over-the-second-founding/

## Chicago Citations

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### SHORTENED FOOTNOTE

Crofts, "Reasons for Hope."

CHAPTER 15 · WEB ARTICLE W15.14

# Reconstruction

Robert Tracy McKenzie

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|---|---|
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| **PUBLICATION** | October 8, 2017; updated March 1, 2018 |
| **CHAPTER / PROMPTS** | Chapter 15 \| 15.3, 15.1 |
| **ARGUMENT ROLES** | 15.3.2 Support; 15.1.1 Support |

## Excerpt · 1,172 words

In the immediate aftermath of Confederate defeat, northerners and southerners alike widely recognized two clear-cut consequences of the Federal victory in the Civil War. First, the Union had been preserved and the right of secession as a legitimate expression of state sovereignty had been forcibly repudiated. Second, slavery, which had flourished for nearly two and one-half centuries, was dead to rise no more. For both black and white Tennesseans, however, in the spring of 1865 the implications of these results were far from clear. Numerous questions remained unanswered. When and under what terms would the state be reintegrated into the political life of the reunited nation? What would be the legal and political implications for Tennesseans who had sided with the Confederacy and who were now branded as "traitors"? How, practically, would the devastation of the war and the disruption of emancipation affect the state's economy and its traditional patterns of race relations?

Such questions would be answered, gradually and imperfectly, during the period of "Reconstruction" that followed. Historians traditionally define Reconstruction as the period extending from the conclusion of the Civil War in 1865 to the final withdrawal of Federal troops from southern soil in early 1877. Although this chronological definition makes sense for the region as a whole (at least with regard to politics), it is arbitrary and often inappropriate when applied specifically to individual states. Such is certainly the case with regard to Tennessee. Many of the most crucial political questions raised by Confederate defeat were answered in the state long before 1877. For example, by the end of the 1860s the state had already regained full representation in the national Congress and repudiated fleeting Republican rule in the state legislature. Other crucial political issues, however, most notably the influence of the former slaves in state politics, would not be resolved until the early 1890s. Similarly, most of the major economic issues of the postwar era were not effectively resolved until near the end of the century. In particular, although it was undeniable that emancipation had initiated a major reorganization of agriculture across much the state, even as late as 1877 it was not yet certain what sort of new land and labor arrangements would come to predominate. In sum, to its very close the Reconstruction period was characterized by considerable uncertainty for Tennesseans of both races.

Of the numerous crucial questions facing Tennesseans after the war, the one concerning the state's reintegration into the Union was resolved the most rapidly. Immediately after the surrender of Confederate armies, radical Republicans in Congress such as Thaddeus Stevens and Charles Sumner lobbied for a punitive policy that would treat the ex-Confederate states as conquered enemies. President Andrew Johnson, on the other hand, prescribed a far more lenient policy in which the formerly disloyal states would be readmitted to Congress as soon as they had ratified the Thirteenth Amendment abolishing slavery, repudiated state debts accrued during the rebellion, and rescinded their original ordinances of secession. Like the other ex-Confederate states, Tennessee rapidly met these criteria and requested readmission to Congress in December 1865. At that point, however, the Republican majority in Congress refused to seat any Congressional delegation from the former Confederacy and eventually added one further prerequisite for readmission: ratification of the Fourteenth Amendment, which defined the former slaves as U.S. citizens and penalized any state that excluded them from the franchise. Unique among the ex-Confederate states, Tennessee rapidly ratified this amendment (in July 1866) and was thus readmitted to the Union before Congress imposed a more stringent reconstruction plan in March 1867. In a technical sense, Reconstruction in Tennessee had formally ended, only slightly more than one year after Lee's surrender at Appomattox.

Tennessee politics had not returned to normal, however, for the state continued to be dominated by a Republican minority that commanded the allegiance of, at most, one-third of the total population. Nonexistent in the state prior to 1865, the party had emerged as a political vehicle for Unionists and, consequently, always was strongest in staunchly Unionist East Tennessee. Aided by a wartime edict of Military Governor Andrew Johnson that disfranchised Confederate sympathizers, Tennessee Republicans swept into power in March 1865, controlling the general assembly as well as the governorship, which was claimed by the mercurial parson and newspaper publisher William G. Brownlow. For four years the Brownlow government worked assiduously to maintain Republican supremacy. In 1865 the legislature formally disfranchised ex-Confederates. Two years later it took the drastic step of awarding the franchise to former slaves to expand the ranks of potential Republican voters, and the following year it authorized the governor to declare martial law in individual counties in order to counter the growing influence of the Ku Klux Klan.

Despite such aggressive tactics, Republican rule in Tennessee was short-lived. Nearing the end of his second term as governor, Brownlow stepped down from office in February 1869 to accept a U.S. Senate seat and was replaced for the duration of his term by Senate Speaker Dewitt C. Senter, a conservative East Tennessee Unionist. Determined to win election in his own right and facing opposition from within his own party, Senter reached out for support from the state's Democrats by effectively setting aside the franchise law and allowing thousands of Confederate sympathizers to vote. Senter won the election, but conservative Democrats reclaimed control of the general assembly and "redeemed" the state from Republican rule. Although divisions within the Democratic Party would occasionally allow Republicans to challenge for state offices, after the election of 1869 Republican influence was largely limited to East Tennessee. Although without significant political power, Tennessee blacks statewide would continue to vote Republican in large numbers until the early 1890s, when they were effectively disfranchised by a combination of registration laws and poll taxes.

In the economic sphere, Tennesseans had to address both the immediate impact of the war's physical destruction and the long-term consequences of slavery's demise. Across the state, Confederate and Union veterans returned to their homes to find dilapidated buildings and fences, deteriorated soils, broken down work animals, and depleted food supplies. A congressional investigating committee conservatively estimated the state's non-slave property losses at approximately $89 million, or just under one-third of the total value of non-slave property in Tennessee when the war began. A recent statistical study suggests that the congressional figures actually substantially understated the war's devastating effects. In eight counties selected from across the state for intensive scrutiny, the median value of real estate per white farm household fell during the 1860s by from one-half to three-fifths. In addition, slaveholding families (representing roughly one-quarter of all free households in the state) suffered financial losses due to the emancipation of more than 275,000 slaves, valued by Congress at just under $100 million but easily worth three times that amount on the eve of the war. In a sense, emancipation did not constitute a true loss to the state, but rather a redistribution of wealth from slaveholders to former slaves, who now for the first time legally owned their own persons.

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https://tennesseeencyclopedia.net/entries/reconstruction/

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### SHORTENED FOOTNOTE

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CHAPTER 15 · WEB ARTICLE W15.15

# Vagrancy Act of 1866

Brent Tarter

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| PUBLICATION | December 7, 2020; updated February 18, 2025 |
| CHAPTER / PROMPTS | Chapter 15 \| 15.3, 15.4 |
| ARGUMENT ROLES | 15.3.1 Support; 15.4.1 Support |

## Excerpt · 869 words

Virginia laws and practices, derived in part from English precedent, had long distinguished vagrants, or vagabonds, from poor people in general. In legislation passed in 1785 and then revised two years later, the General Assembly established local boards to find paying work for poor people and provide minimal essential relief at public expense. Vagrants, defined as "not betaking themselves to honest occupations," were treated differently, however. As early as 1748, Virginia law had described vagrants as "idle and disorderly," and a 1776 revision authorized their arrest. Now the law prescribed apprehension and forced labor. And if a vagrant should attempt to flee, "he or they shall be dealt with in the same manner as other run away servants." Lawmakers worried that vagrants would become beggars or even thieves and, therefore, treated them as a threat to public safety.

At the end of the Civil War, white lawmakers similarly worried about the perhaps hundreds of thousands of African Americans who wandered the roads of Virginia. Many of them had just been freed from slavery, many were without homes or steady work, and many journeyed in search of relatives who had been dispersed by the slave trade. Their freedom overturned a centuries-long racial hierarchy and left many whites concerned about public safety and, more importantly, white social and political supremacy. By recalling old definitions of vagrancy—in fact, borrowing almost verbatim the definition found in a Pennsylvania law from 1836— the General Assembly found a convenient means of controlling these African Americans and subjecting them to punishments for unemployment or homelessness.

Not all white politicians considered freedpeople, in general, a nuisance. In a message to the General Assembly dated December 4, 1865, Governor Francis H. Pierpont, a Republican, explained that many formerly enslaved people worried that if they "remained with their old master they would be in danger of re-enslavement—hence they became roving." Pierpont noted that "where satisfactory wages are paid," African Americans often rendered "fair service," but that such situations were rare. For reasons of mutual distrust and, in many cases, ignorance of how the free-labor system even worked, early attempts between Black and white Virginians to enter into employment contracts had failed. Agents of the Bureau of Refugees, Freedmen, and Abandoned Lands, as well as civil authorities in Virginia, were well aware of the many problems that occurred, but did not adequately address them.

"To be free, labor must be voluntary," Pierpont told the assembly. "Every effort to enforce it by law, except as a punishment for crime and vagrancy, will result in failure. Idleness brings its own punishment. After the most mature consideration I have been able to give to the subject, I think there is very little positive legislation needed in regard to this class."

### The Law

On January 9, 1866, the House of Delegates passed the Act Providing for the Punishment of Vagrants, with the Senate of Virginia following suit six days later. The law passed in both houses by voice vote, leaving no record of which delegates and senators voted for or against it. There was little or no newspaper commentary, reports of legislators' speeches, or explanations for their votes. There is no record of whether Pierpont supported or opposed the legislation; either way, he did not have veto power.

The law's preamble states that "there hath lately been a great increase of idle and disorderly persons in some parts of this commonwealth," an implicit reference to the abolition of slavery, which had displaced much of the state's large population of African Americans. Nothing comparable had happened to any appreciable number of white Virginians, suggesting that the law was intended to apply mainly to formerly enslaved people. The preamble declares that if the state does not act, it "will be overrun

with dissolute and abandoned characters."

As a remedy, the law authorized justices of the peace and overseers of the poor to arrest vagrants and hire them out "for any term not exceeding three months" and "for the best wages that can be procured," all of which were to go "for the use of any of the vagrant or his family." However, if any people so employed should, "without sufficient cause," run away, then the law authorized harsh penalties. The vagrants were to be returned to their employers, for whom they would work for free, staying on an extra month and wearing balls and chains. If no employer would take them, they would be forced to work on public projects, also for free and still wearing balls and chains. Absent any suitable public projects, vagrants would be confined to jail and be fed only bread and water.

None of the law's various precedents included provisions for wearing a ball and chain. In this case, vagrants—specifically those who had fled forced labor and been recaptured—were treated comparably to convicted felons who were taken out to work on public projects or hired to private employers. Meanwhile, the way in which the law authorized mostly white men to hire out mostly Black vagrants to private employers almost certainly reminded freedpeople and others of the legal practice from slavery days: allowing counties and cities to require free African Americans who owed back taxes to be hired out as if they were enslaved.

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https://encyclopediavirginia.org/entries/vagrancy-act-of-1866/

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### SHORTENED FOOTNOTE

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CHAPTER 15 · WEB ARTICLE W15.16

# Sharecropping

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| **CHAPTER / PROMPTS** | Chapter 15 \| 15.3 |
| **ARGUMENT ROLES** | 15.3.3 Support; 15.3.1 Support |

## Excerpt · 535 words (complete article)

Sharecropping was the mode of labor that supported much of North Carolina's post-slavery plantation economy. During Reconstruction, this system of tenant farming offered both planters and laborers, African Americans as well as some poor whites, incentives over the gang labor that predominated during slavery. Planters, strapped for cash in a postbellum economy where money was scarce, offered laborers housing, a mule, tools, and seed to farm a small plot of the planter's land. In return, the sharecropper bought provisions on credit from the planter and reserved the sale and one-half to three-quarters of the crop for the planter. For laborers, sharecropping eliminated the pain and humiliation of gang labor and allowed freedmen to move their families out from direct supervision of white supervisors.

Despite the benefits some sharecroppers accrued from the system, planters profited more. Employers throughout the South constructed a form of sharecropping that contributed to the horrific poverty of African Americans in the region. Planters, faced with a severe labor shortage at the close of the Civil War, used sharecropping to develop a labor-repressive economy that enabled landowners to maintain economic and political dominance. Sharecropping contracts, designed for a year-long obligation, favored the rights of employers; and Freedmen's Bureau agents, ostensibly the freedmen's advocate, often encouraged freedmen to sign contracts in order to restore stability and order to otherwise chaotic economic conditions. North Carolina laws reinforced planter dominance over croppers. The law defined sharecropping as wage labor. Therefore, croppers were subjected to more managerial supervision than tenants who merely rented land from planters and provided their own supplies. Furthermore, crop lien legislation gave landlords control over the crops, which prevented croppers from selling their goods to merchants elsewhere for better prices.

Economic conditions worsened in the 1880s and 1890s as cotton prices plummeted from 18 cents a pound in 1868 to 5 cents a pound in 1894. North Carolina's poor economic infrastructure offered few forms of credit. The crop lien system intensified laborers' misery as sharecroppers, bound to planters and merchants, pledged their growing crops for food and supplies at interest rates that ranged from 25 percent to 100 percent. By the 1890s, many yeomen, tenants, and sharecroppers revolted against landholders by forming Farmers' Alliances, which established the Populist Party in the mid-1890s. Black and white yeomen, tenants, and croppers drew together to promote reform policies that included the Subtreasury Plan, a system of warehouses intended to store crops until market prices improved. Eventually, the Populist Party dissipated due to friction between leaders, who usually owned land, and rank-and-file tenants and sharecroppers.

Over time, sharecropping declined. New Deal policies and surges in the African American population reversed labor shortages, which enabled planters to turn back to a wage labor system. Programs such as the Agricultural Adjustment Act discouraged farming and released many sharecroppers into the already growing pool of unemployed laborers. Mechanical harvesters further reduced planters' needs for labor. Temporary wage labor proved cheaper than sharecropping contracts, which required year-round management. During World War II, African Americans began to migrate to northern cities for industrial jobs. As the United States embarked upon the postwar years, North Carolina, no longer in need of labor-repressive laws, developed wage labor policies in favor of industrial development.

## Original Article

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**SHORTENED FOOTNOTE**

Zipf, "Sharecropping."

CHAPTER 15 · WEB ARTICLE W15.17

# Sharecropping

Ronald L. F. Davis

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| PUBLICATION | July 11, 2017; updated April 15, 2018 |
| CHAPTER / PROMPTS | Chapter 15 \| 15.3 |
| ARGUMENT ROLES | 15.3.1 Support; 15.3.2 Support; 15.3.3 Support |

## Excerpt · 974 words

By 1900 a system of land tenancy and farming known as sharecropping had replaced slavery and yeoman farming as the main form of agriculture in Mississippi and the larger South. The vast majority of black agricultural workers in the Delta and other plantation areas in the state and region were paid a share of the crop as their wages or paid a smaller share of the crop to their landlords as rent. Those who worked as wage croppers typically received a half share of the crop at the end of the year, with all supplies, tools, and animals provided by the landlord or a furnishing merchant. These supplies were advanced against the worker's share of the crop. Share tenants, including landless white farmers in the nonplantation areas, usually owned mules and tools but still obtained supply advances from landlords and merchants, paying one-third of the crop as rent. Similar to the sharecropper, the share renters pledged their share of the crop in exchange for advances from the landlord or a merchant for supplies. These furnishing merchants charged high interest rates on the advances—from 25 to 65 percent, depending on the risk and on the lenders' unchallenged power to dictate the terms of credit. As a result, the vast majority of sharecroppers and tenant farmers ended the year hopelessly in debt to landlords and suppliers, entrapped in an economic box from which there was no easy exit.

This system of sharecropping did not emerge overnight. When the Civil War ended, southern landlords tried to establish a system of labor similar to slavery by promulgating the notorious Black Codes that bound the formerly enslaved to the land as a servile labor force controlled by the planter class, devoid of civil rights, and limited in their mobility as free laborers. This effort ran counter to the wishes of the former slaves as well as of many Radical Republicans, who believed that the plantations should be broken up and distributed to African Americans as family farms. When the federal government refused to endorse the distribution of plantation lands, blacks throughout the South tried to use their labor power to resist being returned to the plantation as agricultural laborers under the close supervision of their former owners. They insisted, often with the help of the Freedmen's Bureau and supportive Republican carpetbaggers, on working as farmers in family units relatively free from close supervision and on paying a share of the crop as rent. They preferred this arrangement over fixed wages paid at the end of the year, which they knew were liable to fraud and beyond their control.

Faced with an army of occupation and a vigilant black population, southern landowners had little choice but to accept the sharecropping arrangement as a temporary solution, often leasing their lands to northern speculators and merchants, who then contracted with African Americans to work the land as sharecroppers. The system also allowed landowners to get their land into production at a time when few had the cash or the credit to pay fixed wages on a weekly or monthly basis. But after the end of Reconstruction, the system left sharecroppers and tenants impoverished and deeply indebted to their suppliers and landlords, with all decisions about farming made by these merchants and landowners.

Part of the reason for this change in the character of sharecropping reflected the high crop yields that depressed prices and pressured landlords to use every means available to control the supply of labor and limit its cost. Landlords and furnishing merchants charged high interest rates not only to offset risks but to increase profits by extracting as much income from the workers as possible. As a result, few black farmers ended the crop year free from debt, and this debt prevented them from moving to find better terms of labor.

Although the larger economic context was important, sharecropping became firmly entrenched principally as a consequence of white landlords' and merchants' success in creating a political economy that enabled them to control the labor power of the

formerly enslaved and to eliminate all possibility of political reform of the system. They did so via the law, racial violence, and class politics. In Mississippi and much of the rest of the South, a series of laws and legal interpretations by the courts privileged merchants' and landlords' claims to crops—the crop lien—over claims by farmers; defined sharecroppers as wage hands rather than tenants; limited croppers' ability to contract or move while in debt; and protected creditors' claims for advances to make the crops. These legal mechanisms also disfranchised southern blacks, in cooperation with whites of every class, by imposing impediments to voter registration such as poll taxes, literacy tests, and residency requirements. The Mississippi Constitution of 1890, for example, essentially ended black suffrage in the state, thereby removing all possibility of political reforms that might have addressed the situation. Moreover, these laws complemented Jim Crow social behavior (virulent and violently enforced segregation and lynching) aimed at relegating all blacks to the status of an inferior caste of people without civil or economic rights.

Although sharecropping lasted until the middle of the twentieth century in Mississippi and elsewhere in the South, the Great Depression of the 1930s and the New Deal agriculture relief programs fundamentally undermined the system. New Deal subsidies to southern cotton planters designed to encourage crop reductions and achieve higher crop prices were seldom passed on to sharecroppers. Instead, landlords simply evicted croppers from the land, and the federal subsidy dollars were used to mechanize cotton picking and planting. In addition, minimum wage laws after World War II further motivated the owners of large-scale plantations to abandon what little sharecropping still existed and even to reduce the use of fixed-wage hands. By 1965, a century after the Civil War, few southern farmers or farmhands worked as sharecroppers or share tenants.

## Original Article

https://mississippiencyclopedia.org/entries/sharecropping/

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### SHORTENED FOOTNOTE

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CHAPTER 15 · WEB ARTICLE W15.18

# Political History

Thomas C. Holt

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| **CHAPTER / PROMPTS** | Chapter 15 \| 15.4, 15.1 |
| **ARGUMENT ROLES** | 15.4.3 Support; 15.4.2 Support; 15.1.1 Support |

## Excerpt · 1,018 words

Reading the title of this essay, a scholar of nineteenth-century American history might be forgiven the observation that a subject that scarcely registers in present scholarship is unlikely to have much of a "future." Indeed, a casual perusal of book reviews and articles in the two major American history journals over the past decade shows little evidence that the "politics of U.S. Reconstruction" has been exactly a hot topic recently.[1] I will argue that such a reading depends on a rather conventional, even narrow, definition of "politics," however, although admittedly even the more expansive notion found in recent Reconstruction historiography has only emerged during the last quarter century or so. For more than a century before that, Reconstruction studies had largely adopted a more conventional, ballot box–oriented approach to the subject. Indeed, the political history of Reconstruction in the latter sense had emerged even before federal troops began their withdrawal from southern barracks as part of the infamous compromise of 1877; a compromise that allowed the white South's so-called redemption by its erstwhile Confederate elite. The very rationale for that compromise was a "black" legend of the reconstruction process as one riven by political incompetence, corruption, and injustice to white southerners, which would remain dominant deep into the twentieth century.[2] Challenges to that mythology by the first generation of university-trained black historians in the 1920s and '30s, culminating with W. E. B. Du Bois's *Black Reconstruction* in 1935, were scarcely audible to white, mainstream historians before the mid–1960s.[3] It was then that Berkeley historian Kenneth Stampp published the first, broadly acknowledged revisionist account. The reason Stampp's reinterpretation resonated was that it shared the stage with what many have dubbed "the second Reconstruction," a political awakening of black southerners that confronted the nation with its unfinished business of achieving the "new birth of freedom" Lincoln had declared to be the Civil War's premise and legacy.

The two decades following Stampp's intervention witnessed a veritable deluge of deeply researched historical accounts of every facet of what Du Bois had called America's last best hope of reconstructing American democracy. Many of the earliest scholars of this second wave of revisionism were drawn especially to the roles black freedmen had played in the political developments of that era, motivated by a presumption that both the achievements and failures of their reforms required an honest appraisal of who they were, what they sought to accomplish, and what were the constraints they faced.[4] This second wave of revisionism culminated in 1988 with Eric Foner's *Reconstruction: America's Unfinished Revolution, 1863–1877*, a well-crafted mix of synthetic and original research, whose subtitle tellingly echoed Du Bois's of a half-century earlier.[5] Foner's remains the most recent broadly synthetic treatment of Reconstruction politics focused on its national as well as local levels. In both its chronological framing (from the Emancipation Proclamation of 1863 to the compromise of 1877) and its subject matter (the high politics of legislative maneuvering and voter mobilization), however, the book continued largely within the political paradigm of its predecessors chronologically and topically, even as in other respects it rewrote the script.[6]

At the same time, even in Foner's telling there were discernible cracks in the conventional *political* narrative, faintly reflecting yet a third revisionist wave already visible by the early 1980s. The revisionism of the late 1960s and 1970s had emerged in the shadow of the much more popular slavery studies, which by the early 1980s had begun to shape approaches to emancipation studies, as well. By its very nature, the work on slavery focused on the social relations of labor, labor exploitation, and diverse forms of resistance; all of which posed questions for the postemancipation era. Such preoccupations were reinforced by the comparative turn in slavery studies, which stimulated new insights and questions for studies of emancipation, as well. The typical comparative approach, with its one-on-one juxtapositions of labor systems, proved much less amenable to the political history of emancipation, however, given the considerable differences in the state systems involved.[7] This may well explain why,

notwithstanding the influence of the newly emergent labor history of emancipation, Foner's political narrative remained by comparison rather conventional.

The principal stimulus for the emerging labor history orientation of emancipation studies was the Freedmen and Southern Society Project at the University of Maryland, an initiative inspired by Herbert Gutman and guided for many years by its general editor, Ira Berlin, and subsequently by Leslie Rowland. The Maryland editors have created a massive archive of civilian and military records that give historians of Reconstruction unprecedented access to the details of black life and labor during and after the Civil War. After its inaugural volume in 1982, subsequent *Freedom* volumes would profoundly shape scholarship on Reconstruction, with their unprecedented insights into slave-master relations, slave family and kinship, and slave labor. Collectively they suggest a very different picture of what the transition to life, labor, and politics after emancipation had entailed.[8] Significantly, the first volume of the Maryland project, *The Black Military Experience*, and Foner's book were both dedicated to W. E. B. Du Bois, an acknowledgement of his belated influence on Reconstruction studies, especially the role ordinary black people played in shaping its course.[9]

Steven Hahn, who would serve as an editor of one of the Freedmen Project's later volumes, was among the first to exploit the insights the new archive revealed and in the process explicitly challenge the very nature of the "politics" we now study. Writing some fifteen years after Foner, Hahn mused that historians needed "to think much more deeply about the nature of politics and political practice, about how unfranchised and disfranchised people might conduct politics, and about the relationship between different arenas of political activity." Defining politics as "the deployment of power and cultural forms," Hahn argued that historians needed "a broad understanding of politics and the political that is relational and historical." Given that definition of the political, one could see that African Americans in the rural South developed a distinctive political culture, one enabling them to contribute to "the making of a new political nation [even as] they made themselves into a new people."[10]

## Original Article

https://www.journalofthecivilwarera.org/forum-the-future-of-reconstruction-studies/political-history/

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### SHORTENED FOOTNOTE

Holt, "Political History."

CHAPTER 15 · WEB ARTICLE W15.19

# African Americans and Politics in Virginia (1865–1902)

Brent Tarter

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| **CHAPTER / PROMPTS** | Chapter 15 \| 15.4, 15.2 |
| **ARGUMENT ROLES** | 15.4.3 Support; 15.2.1 Support |

## Excerpt · 711 words

African Americans were deeply involved in Virginia politics from the Civil War until the first years of the twentieth century. Prior to 1865, only adult white men were legally able to vote in Virginia. With the abolition of slavery, African American men began to fight for their full rights as citizens. In Norfolk, in May 1865, they cast votes for the first time. Though, local electoral boards refused to count them. The first election in which Black men voted and those votes were counted was for delegates to the Constitutional Convention of 1867–1868. They elected 24 Black representatives. Beginning in 1869, African Americans began to be elected to the General Assembly. Most ran as Republicans and later as members of the biracial Readjuster Party. Some black politicians were more radical than others, but they generally advocated for Black civil rights, free public schools, and a refinancing of the state's large antebellum debt. African American women were probably active behind the scenes, especially in campaigns supporting public schools. Formal black participation in Virginia politics after the Civil War peaked in 1881. The Readjusters swept statewide offices and took control of both houses of the assembly. In 1888, John Mercer Langston won a contested election for House of Representatives. He became the first African American from Virginia to serve in Congress and the only one prior to 1993. In the years that followed, however, white supremacist Democrats fought for control again. They passed various laws to reduce Black suffrage, which culminated in the Constitution of 1902 and a 50% decrease in the state's voters. African Americans largely did not participate again in formal state politics until after World War II (1939–1945).

### Attempted Black Suffrage in Norfolk

Before the Civil War was over, African Americans in Norfolk began discussing the legal and political effects of the abolition of slavery. The right to vote almost certainly was on their agenda. In February white residents of Norfolk who had remained loyal to the Union proposed to restore civilian city government. African Americans petitioned the president and the commanding officer of the U.S. Army to request that civilian government replace military government only on a "loyal and equal basis."

On April 4, 1865, the men in Norfolk founded the Colored Monitor Union Club. They demanded "the right of *universal* suffrage to *all* loyal men, without distinction of color, and to memorialize the Congress of the United States to allow the *colored* citizens the *equal* right of franchise with other citizens." At the same time, African Americans were organizing in Hampton, Williamsburg, and Richmond, Virginia.

The Black men of Norfolk went even further. City residents called for an election of one state senator and two members of the House of Delegates to represent the city. Norfolk's Black residents decided to vote in that election. More than 500 of them assembled in the Bute Street Methodist Church. Their number doubled before the end of the day. They sent small groups to polling places in the city to find out whether election officers would receive their votes.

Officials in three of the wards refused. But in the city's Second Ward, they agreed to record the votes of Black Norfolk men on separate sheets. In small groups, 354 men went to the Second Ward throughout the day and voted for white candidates who pledged to support African American suffrage. The 712 residents of the other three wards remained at the church and unanimously recorded their votes for the same candidates.

Without counting the votes of the Black men, the candidates for whom they voted finished a second in the three-way races for each of the seats in the assembly. Had the African American votes from the Second Ward been counted, those candidates would

have won the election easily. Had all of the 1,066 votes from Black men been counted, the candidates who pledged to support Black suffrage would have won by almost 900 votes.

On June 5, members of the Norfolk organization and other local Black citizens met at the Catharine Street Baptist Church. They created an “Address From the Colored Citizens of Norfolk, Va., to the People of the United States.” It was printed that autumn with a record of the creation of the union and the attempt of the men to vote in May.

## Original Article

https://encyclopediavirginia.org/entries/african-americans-and-politics-in-virginia-1865-1902/

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### SHORTENED FOOTNOTE

Tarter, "African Americans and Politics."

CHAPTER 15 · WEB ARTICLE W15.20

# Freedmen's Bureau in Alabama

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| CHAPTER / PROMPTS | Chapter 15 \| 15.4, 15.3 |
| ARGUMENT ROLES | 15.4.1 Support; 15.3.1 Support |

## Excerpt · 1,070 words (complete article)

The Bureau of Refugees, Freedmen, and Abandoned Lands (commonly referred to as the Freedmen's Bureau) was established by an act of Congress on March 3, 1865, to provide relief services for emancipated blacks and refugees in Alabama and other former Confederate states who were displaced in the aftermath of the Civil War. Under the direction of Brig. Gen. Wager Swayne of the Union Army, the bureau's many functions included helping Alabama's 439,000 freedpeople find employment, but it also established hospitals and schools, provided food and clothing, and supervised labor contracts between freedmen and planters. In addition, Swayne and other bureau officials tried to influence lawmakers to pass measures to improve the lives of former slaves and to register them to vote. Historians conclude that the bureau was successful in its relief and education efforts, including providing adequate healthcare, but it did not succeed in dealing with the labor problems that arose after the war, as racism hindered not only efforts to guarantee the rights of freedpeople and but also attempts to improve their economic status.

Swayne, who arrived in Alabama in July 1865, oversaw the bureau as assistant commissioner. The bureau was headquartered in Washington, D.C., with local offices in all former slave states, except Delaware. Assistant commissioners oversaw operations in the states with the help of various staff officers, who, in Alabama, were located in 12 field offices throughout the state. A Union veteran from Ohio, Swayne had previously participated in many of the war's campaigns. Economic and political circumstances in Alabama after the war led many residents to obtain help from the bureau. Poor weather conditions and insect pests led to crop failures through 1868. In response, the bureau issued full food rations to blacks and whites, Unionist and Confederate, and half rations to children under 14. In June 1866, for example, nearly 800,000 rations were issued to more than 33,000 Alabamians, the majority of whom were white, because of crop failures in that year and the previous year. Other relief organizations from outside the state, such as the National Freedmen's Relief Association, also provided food and clothing to African Americans. By the end of 1868, the bureau had closed down its food relief operations, however.

After slavery was abolished, Swayne and other state commissioners implemented a new labor system to maintain agricultural production. Emancipated blacks and planters entered into contracts, which, if for one month or more, were in written form and required approval from a bureau employee. Swayne hoped that blacks would be willing to return as laborers to the plantations. Those who did not would face arrest or be sent to work at the bureau-run home colonies. The bureau helped freedpeople negotiate and approve contracts as well as handled violations by employees and employers. It also forced healthy former slaves to work, or threatened them with vagrancy charges. The bureau also trained some African Americans whom it had confined to the colonies and helped them secure employment.

The bureau also attempted to provide freed blacks with an education. Swayne ordered subordinates to locate buildings, whether abandoned or controlled by the federal government, that could be used as schools. Owing to a lack of funds, the bureau accepted assistance from northern benevolent societies, which contributed resources to pay teachers and purchase books and members to instruct the freedmen. In northern Alabama, for instance, the Pittsburgh Freedmen's Aid Society supported nearly a dozen schools in Huntsville and Athens, and a similar society provided assistance to schools in Montgomery and Mobile.

The program initially seemed to make progress in educating freed blacks, but it was not without its problems. The number of students increased from 3,100 in October 1866 to nearly 10,000 by June 1867. Many southern whites supported education for freed blacks. They believed that they, not northern missionaries, should oversee black education and many wanted to prevent African Americans from obtaining equal social and political rights as well. Alabama governor Robert M. Patton told the state

legislature that it was necessary to control the schools in order to maintain white supremacy, and some whites relied upon violence and intimidation to achieve that goal. In early 1866, at least three churches holding classes were subject to arson attacks and vandals destroyed school furniture in Greenville. Two years later, a school in Randolph County was completely burned. In addition, some whites refused to house northern instructors, and bureaucratic problems, such as staff turnover and lack of knowledge about teachers' salaries, contributed to the confusion in operating this plan. By the middle of 1868, the bureau stopped paying teachers, and schools declined until the total number of students in 1870 was 2,100, as compared with 10,000 students during the 1866-1867 school year.

The bureau also established a health department through which many black Alabamians received medical assistance from 1865 until early 1869. Swayne believed that local civil authorities should actively participate in the care of its needy citizens, both white and black. Civil officials, however, thought that local governments should assist whites and that the bureau should care for members of the black community. The bureau assisted freed blacks who suffered from tuberculosis, yellow fever, and smallpox in general hospitals, smallpox hospitals, and in home colonies, whose purpose was to provide food and shelter to the needy. The latter facilities often housed some aged and infirm blacks and provided temporary shelter for those seeking employment. Facilities that supplied medical care in addition to food and clothing offered a variety of services from practicing physicians. The bureau organized a home colony at Garland in Butler County as a hospital that operated for about a year and a half in 1867 and 1868. After the bureau issued orders in September 1867 for the closing of its hospitals and colonies in Alabama, local officials in Butler County refused to operate the facility. Overall though, the bureau helped provide medical services to more than 17,000 individuals and at least made some effort to alleviate their suffering.

The Freedmen's Bureau operated in Alabama for five years, ending operations in 1870. During its tenure, the bureau did provide educational opportunities as well as food, clothing, and shelter to whites and blacks. The bureau could not solve all the problems generated in the aftermath of the Civil War, and it had its own internal complications as well. The larger problem of racism contributed to its difficulties in trying to help freedmen adjust to their new freedoms.

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https://encyclopediaofalabama.org/article/freedmens-bureau-in-alabama/

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### SHORTENED FOOTNOTE

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CHAPTER 15 · WEB ARTICLE W15.21

# Union League of Alabama

Michael W. Fitzgerald

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| CHAPTER / PROMPTS | Chapter 15 \| 15.4, 15.3 |
| ARGUMENT ROLES | 15.4.3 Support; 15.3.2 Support |

## Excerpt · 751 words (complete article)

The Union League, or Loyal League, was founded to promote the northern cause and the Republicans during the Civil War. In the Reconstruction Era, the league shifted its focus to securing the black vote for the Republican Party. In Alabama and other Southern states, the league, run locally by Freedmen's Bureau agents and various pro-Union groups, mobilized labor protests and promoted voter registration. The Union League helped create the Reconstruction movement, and it established a tradition of black voting for the Republicans that lasted well into the twentieth century.

The Union League originated in Ohio in 1862 as a northern patriotic organization backing the Lincoln administration. A secret society, directed by federal officials in Washington, its rituals included oaths to support candidates promoting the war effort and the Republican Party. Throughout the war, members distributed pro-Union literature, provided relief to soldiers, and recruited new troops. At war's end, the Republican government officials running the league turned their attention to the states of the former Confederacy, absorbing local networks of white draft resisters and anti-Confederate groups.

The Alabama Union League gained a substantial constituency in the northern hill country, in places such as St. Clair, Blount, and Fayette Counties. League branches sprang up in these areas when former draft resisters and native-born Union veterans found themselves a besieged minority after ex-Confederate soldiers returned to their homes. The league also provided a forum for opponents of Presidential Reconstruction, especially those inclined to organized self-defense, and played an integral role in the passage of military Reconstruction in 1867.

Many Union League members viewed freed blacks as potential allies prior to the imposition of military Reconstruction in March 1867. Therefore Congressional Republicans made appeals through the league to the newly enfranchised freedmen. Though white outsiders were the prominent organizers, local leadership was often African American. In Alabama, the Freedmen's Bureau under Union general Wager Swayne assisted the league's expansion, and the state secretary, John C. Keffer, ran the organization from the bureau's Montgomery office. This joint relationship resulted in an unusually powerful organizing effort throughout the state.

The Alabama Union League drew a large following in cities like Mobile, where public activities were safest. It had the most profound impact, however, in rural areas, where opponents found it difficult to discover or prevent nighttime meetings at secluded locations. Although this secrecy alarmed many white landowners, it also allowed freed blacks to discuss Reconstruction and its implications. Such newfound freedoms led to a massive politicization of rural freed blacks during the summer and fall of 1867, and tens of thousands flocked to league councils and similar local groups. League speakers offered instruction on the mechanics of voting, and the councils were generally effective in disseminating basic information. For freedmen, the main social concerns were plantation practices like gang labor, which was little different from slavery, and the Black Codes, laws that placed restrictions on almost every aspect of poor black farm workers' lives. The organization's Republican sponsors had narrow political goals, but many Alabama councils responded to agrarian grievances as well. Talk of land redistribution reportedly circulated freely in the leagues.

The resulting protests and social unrest among freedpeople contributed to disastrously poor harvests in the years after the war. Thus the extension of voting rights to blacks came at a crucial moment, as the centralized plantation system gave way to decentralized tenant farming—especially family-based "sharecropping." The league mobilized virtually the entire male black

population and thus contributed to the broader shift in agricultural practices.

In the early organization of Alabama's Republican party, the league also functioned as an informal caucus of the "Radicals," and its leaders were prominent in drafting the Reconstruction constitution of November 1867. However, in 1868, the terrorist Ku Klux Klan group and its offshoots effectively shut down the organization, assaulting or killing several prominent activists, including Daniel H. Bingham of Athens. In Sumter County alone, state representative George Houston and several other black league leaders were shot, and others, including representative Richard Burke, were killed. In all, at least 15 league activists met violent deaths between 1868 and 1871.

In this climate, the league's Republican sponsors concluded that the secret organization had served its purpose, and it was formally abolished in Alabama in 1869. Vestiges of the organization survived locally, and it continued as a paper organization at the national level for decades. Though transient, the Union League recruited vast numbers of freedmen into the Republican party, and it also fomented lasting changes in the plantation system in Alabama and elsewhere.

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https://encyclopediaofalabama.org/article/union-league-of-alabama/

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### SHORTENED FOOTNOTE

Fitzgerald, "Union League of Alabama."

CHAPTER 15 · WEB ARTICLE W15.22

# Freedmen's Bureau

**Cecil Harper, Jr.**

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| **CHAPTER / PROMPTS** | Chapter 15 \| 15.4 |
| **ARGUMENT ROLES** | 15.4.1 Support |

## Excerpt · 984 words

The Bureau of Refugees, Freedmen, and Abandoned Lands, commonly known as the Freedmen's Bureau, was established by Congress in March 1865 as a branch of the United States Army. It was to be a temporary agency. Its functions were to provide relief to the thousands of refugees, Black and White, who had been left homeless by the Civil War; to supervise affairs related to newly freed slaves in the southern states; and to administer all land abandoned by Confederates or confiscated from them during the war. Since the profits from administering the lands were to provide funds for the operation of the bureau, the bill establishing the agency did not appropriate money for it. President Andrew Johnson, however, returned most of the confiscated property to its owners, and Congress was forced to appropriate funds for the bureau's operations after the first year. Gen. Oliver Otis Howard was commissioner of the bureau throughout its existence. Under Howard was an extensive hierarchy of assistants and subassistants. Officers working with the bureau at the state level were headed by an assistant commissioner and included a superintendent of education, a traveling inspector, and, during the early months of the bureau's activities, a surgeon-in-chief.

The Freedmen's Bureau operated in Texas from late September 1865 until July 1870. During that time five men served as assistant commissioner: Edgar M. Gregory, from September 1865 until May 14, 1866; Joseph Kiddoo, until January 14, 1867; Charles Griffin, until his death on September 15, 1867; Joseph J. Reynolds, until January 1869; and Edward R. S. Canby, briefly, until he was replaced by Reynolds. In the beginning, at least, Howard regarded Texas as his most difficult sphere of operations. Much later in his *Autobiography* he recalled that the job of assistant commissioner for Texas, to which he was appointing Gregory, "seemed at the time...to be the post of greatest peril."

The men who served as assistant commissioners in Texas were convinced that the two keys to providing long-term protection for freedmen and promoting peace and goodwill were the establishment of a free agricultural labor system and the founding of good schools for the freedmen. They reasoned that once the planters realized that fair treatment and pay would motivate Blacks to work, then planters would offer those incentives, and freedmen would willingly work hard in their own best interest. Education would provide Blacks with the tools they needed to function effectively in a literate society. Although the five commissioners shared to some extent the racial views prevalent among most contemporary Americans, they insisted that the courts accord Blacks the same legal rights that Whites enjoyed. When, for example, a subassistant commissioner aided local authorities in disarming Blacks who were in town, Kiddoo ordered the agent to return the weapons unless the law also disarmed Whites.

For implementation of their objectives the assistant commissioners relied on the subassistant commissioners, who operated on the local level. The nature of their responsibilities made these local authorities powerful, at least theoretically. They were to monitor all legal cases involving Blacks and take control of the legal process if necessary to ensure justice to them. They were to supervise all labor contracts and void those that were signed by freedmen under duress or were patently unfair to the Black laborer. They were to do their utmost to protect Black lives and property and to aid in the apprehension of those who committed crimes against freedmen. They were to aid Blacks in organizing schools and ensure the safety of their teachers. They toured their respective districts urging freedmen to work hard and fulfill their contracts. Agents also tried to help Blacks to find relatives from whom they had been separated while slaves. Although not always successful, the bureau provided a network through which information about missing relatives could be circulated throughout the South.

From the beginning, the effort to build a truly effective organization in Texas was defeated by the size of the state, its poor transportation and communication facilities, and the hostility of most White Texans to the bureau's efforts. The bureau had only

limited resources at its disposal. Between September 1865 and May 1866, when he was relieved, Gregory placed subassistant commissioners in stations across East Texas. By May 1, 1866, he had established branches of the bureau in thirty counties, staffed by thirty-one subassistant commissioners. Kiddoo petitioned Howard for more military officers, but he was not successful in enlarging the bureau's operations. The number of subassistant commissioners varied from a high of thirty-four to a low of twenty-seven during his tenure. When Griffin took over in January 1867 the positions of assistant commissioner and commander of troops were combined, and thus he had greater control over the assignment of soldiers to bureau posts. By April 1867 Griffin had forty-nine agents in the field. At its largest, the bureau had fifty-nine subassistants and ten assistant subassistant commissioners. Each of the fifty-nine agents was responsible for a clearly defined district.

Though the increased number of agents did increase the amount of supervision bureau agents could provide on the local level, the number was still quite inadequate. In the first place, Griffin had ordered that every commander of troops in an area where no bureau existed act as an agent of the bureau. Therefore, some of the men officially designated as subassistant commissioners were stationed at places such as Fort Inge, Camp Verde, and Fort Belknap, where there were few or no freedmen. Second, the size and shape of the districts were determined by the ability of the bureau to provide protection to the agents rather than by the ability of the agents to fulfill their duties in their districts. Matthew Young, stationed at Belton in August 1867, for example, was responsible only for Bell County. Lt. Adam G. Malloy, on the other hand, stationed the same month at Marshall, was responsible for Harrison, Marion, Panola, Rusk, Davis, and Upshur counties.

## Original Article

https://www.tshaonline.org/handbook/entries/freedmens-bureau

## Chicago Citations

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### SHORTENED FOOTNOTE

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CHAPTER 15 · WEB ARTICLE W15.23

# Freedmen's Education in Virginia, 1861–1870

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| CHAPTER / PROMPTS | Chapter 15 \| 15.4 |
| ARGUMENT ROLES | 15.4.2 Support; 15.4.1 Support |

## Excerpt · 793 words

Virginia had long outlawed the education of its enslaved African Americans, passing increasingly oppressive legislation in the decades leading up to the Civil War. Educated enslaved people posed a dual threat to the state. First, they might read and embrace the American Revolution‘s expectation of human equality. Second, they contradicted one of the ideological foundations of slavery, the presumed intellectual incapacity of Africans and those of African descent and the consequent necessity for protection by a superior race. Those who supported slavery understood that ignorant people can be rendered tractable; knowledgeable people cannot easily be enslaved.

Although some Virginians had once supported the idea of education for Black people, by the nineteenth century, slave insurrections and rumors thereof had halted any movement toward increased literacy for the enslaved. The slave revolution in Haiti and Gabriel’s Conspiracy (1800), the thwarted plan by enslaved African Americans to seize Richmond and end slavery in Virginia led to legislation in Virginia in 1804 that outlawed nighttime “assemblages of slaves” and further laws in 1805 that prohibited the secular education of Black apprentices. In April 1831, five months prior to Nat Turner’s Rebellion, the General Assembly prohibited African Americans from assembling in schools for the purpose of education. Turner’s slave revolt in August spawned even greater efforts by whites to discourage Black education.

It was impossible to quash Black education entirely, of course. Free Black and enslaved people continued secretly to share what literacy they had. Clandestine schools operated in nearly every city and large town in the state. Some, in cities such as Alexandria and Hampton, were not even particularly secret. As long as the teachers and students were circumspect about their activities, authorities looked the other way. It is doubtful, however, that more than 5 to 10 percent of Virginia’s African Americans had access to literacy before the war.

### Freedmen’s Education, 1861–1865

Although historians often give credit to white northerners for educating freed people, within days of the beginning of the Civil War in Virginia, African Americans themselves established the first freely accessible schools for African Americans. As soon as Union forces secured their city, Alexandria teachers Mary Chase, Jane Crouch, and Anna Bell Davis, Black women who had once conducted classes in secret, began to teach openly. Sarah Gray opened another school in Alexandria during the summer. Mary Peake, long mistakenly credited as the first Black teacher to teach openly in Virginia, established a school in Hampton in September at the insistence of Black refugees fleeing from plantations to freedom on the Peninsula. African Americans were teaching in Norfolk, Fort Monroe, and Yorktown by October 1861. Sixteen of the first twenty-four teachers in Black schools in the first year of Black self-emancipation were African Americans. Only one of the eight Northern white teachers who taught in that first year remained in the schools for more than one year, while all but one of those sixteen Black teachers taught for multiple years. (Two, Crouch and Gray, taught continuously from 1861 through the 1870s; Gray continued to teach in Alexandria until shortly before her death in 1893.)

The number of schools and teachers increased greatly in the second year of the war, though open access to education for Black people remained limited to schools in Alexandria and the Peninsula until 1865. The number of northern teachers in Virginia grew rapidly after 1861. In 1862–1863, eighty-five teachers were active in Virginia’s Black schools, about sixty of whom were northerners, including five African American teachers. Three years later, after the war ended, more than 450 teachers taught

nearly 12,000 Black students in Virginia.

African Americans were not only the first primary school teachers in Virginia; they also founded and staffed the first secondary school in the state. Clement Robinson, a formerly enslaved person from Petersburg who had studied at Pennsylvania's Ashmun Institute, established the Beulah Normal and Theological School in 1862 in Alexandria, the first of the fourteen Black normal schools and high schools founded in Virginia before the end of Reconstruction.

Initial funding for Black schools in Virginia came from the freed people themselves, who, though usually impoverished refugees, managed to pay teachers. From 1862 until 1865, northern groups—both existing missionary societies and new, secular freedmen's aid societies—organized to send teachers to Virginia and other southern states, to provide minimal salaries, and to send material aid. Of the 450 teachers in Virginia by the spring of 1865, not quite one-third were supported by such secular groups as the New England Freedmen's Aid Society and the Pennsylvania Freedmen's Relief Association and one-half were sustained by northern religious groups such as the American Missionary Association, the American Baptist Home Mission Society, and various Quaker organizations. More than one-sixth of the teachers, particularly African American teachers from Virginia, taught independently of any external aid.

## Original Article

https://encyclopediavirginia.org/entries/freedmens-education-in-virginia-1861-1870/

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### SHORTENED FOOTNOTE

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CHAPTER 15 · WEB ARTICLE W15.24

# African American Churches in Virginia (1865–1900)

William E. Montgomery

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| CHAPTER / PROMPTS | Chapter 15 \| 15.4 |
| ARGUMENT ROLES | 15.4.2 Support; 15.4.3 Support |

## Excerpt · 829 words

In the years before and during the Civil War, enslaved people used religion as a means of preparing for freedom. Often allowed to attend segregated sections of white Protestant churches, they heard from white ministers the New Testament's promise of salvation. It was a lesson intended to pacify them with an "otherworldly" salvation rather than instill hope in earthly freedom. Enslaved preachers had a different vision, however. Speaking in darkened plantation quarters, more openly in religious meeting places known as "praise houses" (usually hidden away in secluded rural areas), and even in formal settings such as Petersburg's First Baptist Church and Richmond's First African Baptist Church, they taught Black people how to use genuine professions of faith in Christian salvation to camouflage simultaneous expressions of belief in imminent political freedom.

African American conceptions of Christianity provided a language for resisting slavery. In addition to seeing themselves in the Israelites who escaped Egypt, they read the Book of Revelation as narrating the apocalyptic end of one world and the inauguration of a new, more just one. African Americans often blended political and spiritual symbols, combining, for instance, the characters of Abraham Lincoln, Moses, and Jesus into one messianic persona, and celebrating the abolition of slavery as a day of Jubilee—a Hebrew concept that coupled freedom with the acquisition of land. In fact, African American communities frequently created Jubilee celebrations on the Fourth of July to commemorate the Declaration of Independence as a fulfillment of Old Testament prophecy.

### Convention of the Colored People of Virginia

Alienated from nearly all other institutions while enslaved, newly freed African Americans formed Christian churches or joined long-established ones. Making full use of educated clergymen, they found churches to be ideal locations to advance civil rights and create alliances with like-minded secular groups. As many as 80 percent of African Americans belonged to a church in postwar Virginia, most of them identifying as Baptist. A scant few African Americans in the state were Roman Catholic, with a Richmond parish placed under the direction of the Josephite Fathers of London, a society of Catholic priests and brothers devoted to caring for the spiritual and material needs of freedpeople in the United States. Nor were a significant number of African Americans non-Christian in the sense of identifying with or regularly attending Jewish synagogues or Muslim mosques.

These Christian churches became sites of protest against racist Virginia policies, including white reluctance to extend the franchise to Blacks after the state rejoined the Union. For example, several Christian ministers organized the Convention of the Colored People of Virginia in Alexandria in August 1865, drawing delegates from twenty-two mostly urban districts throughout the state. In speech after speech, leaders demanded equal rights with white citizens, including the right of suffrage.

The convention's rationale for equality cited Blacks' devotion to the nation's most fundamental republican principles—freedom and equality. Leaders argued that since the American Revolution (1775–1783), Blacks had taken up arms over and over again to defend or extend these ideals. And they believed their service during the Civil War made them—and not white secessionists—the most loyal citizens of the South. Speakers called for the full measure of freedom both as a just reward and because it was the only protection against the return of white tyranny. But their argument, above all, was spiritual, suggesting that freedom, as clearly revealed in Scripture, was God's will.

The Reverend John M. Brown, of Norfolk, expressed the delegates' conviction that justice required further and continued intervention by federal authority. Many white people in the state, Brown noted, "despise us simply because we are black, and, especially, because we have been made free by the power of the United States government, and … they will not be willing to accord to us, as freemen, that protection which all freemen must contend for, if they would be worthy of freedom." Brown added that "freedom was not of our making, yet we believe it was the intention, and is the will of God." In language taken directly from the Bible, another delegate noted how Black Virginians had "prayed [for] … this day when we can breathe the free air of an American citizen and worship the God of our fathers under our own vine and fig tree." The final declaration of rights issued by the convention called for the "immediate repeal of all laws operating against us as a separate class of people."

Such speeches were heard, at least by Republican politicians. In the 1866 midterm elections, they gained veto-proof majorities in both houses of Congress, authorized the Union Republican Congressional Committee to court freedpeople's vote, and enacted a series of Reconstruction Acts that replaced civilian with military governments in Virginia and every other former Confederate state except Tennessee. Starting in March 1867, Radical Republicans in Congress directed military commanders to enroll adult Black male voters for elections reconstituting state governments throughout the South. Most whites, meanwhile, were disfranchised. Radicals also drafted the Fourteenth Amendment to the U.S. Constitution, defining citizenship to include African Americans.

## Original Article

https://encyclopediavirginia.org/entries/african-american-churches-in-virginia-1865-1900/

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### SHORTENED FOOTNOTE

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CHAPTER 15 · WEB ARTICLE W15.25

# Union League

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| **PUBLICATION** | 2006; revised November 2022 |
| **CHAPTER / PROMPTS** | Chapter 15 \| 15.4 |
| **ARGUMENT ROLES** | 15.4.3 Support |

## Excerpt · 508 words (complete article)

The Union League of North Carolina was an affiliate of the Loyal League of America, which is believed to have been created in early 1862 by Judge James M. Edmunds of Philadelphia as a patriotic club directed by the Republican Party. Branches quickly formed in New York, Boston, and other cities, and by late 1862 these bodies had created a National Council of Leagues to assist the Republican Party in retaining voter support. The National Council took part in President Abraham Lincoln's reelection drive in 1864 and encouraged the growth of Unionist sentiment among middle and lower class southern whites who wished to return to the Union and among enslaved and free black people who could be weaned from assisting the Confederacy. In 1864 Loyal League organizers appeared in West Virginia, eastern Tennessee, and parts of coastal South Carolina and North Carolina, areas already controlled by Federal troops, to form local Union Leagues.

On 4 July 1865, 2,000 Union Leaguers marched in Raleigh's Independence Day celebration and cheered North Carolina provisional governor William W. Holden, who was known to look favorably on poor white and black concerns. Later that evening, Holden "enthusiastically" received league members and local freedmen at his home. The winter of 1866-67 heightened the political tempo as the national Republican Party swept the fall elections and gained control of Congress. By announcing its intention to grant blacks the vote as well as political and social equality, Congress effectively took over Reconstruction from President Andrew Johnson. In North Carolina, Holden, who had already begun to organize an independent political movement, committed to black equality in January 1867; two months later, after the announcement of Congressional Reconstruction, he launched a state Republican Party.

North Carolina Union Leaguers resisted party control and sought to rule the state organization through the leagues. Since the leagues were at least 80 percent black and represented nearly 40 percent of the state's population that was of African descent, its support was essential for victory. Yet Holden realized that success was equally contingent on a sizable turnout of whites who had difficulty accepting black equality. Accordingly, the governor moved carefully, but by the fall of 1867 he had merged blacks and whites into the state Republican Party, had himself elected as its chair, and reduced the leagues to a component of the party.

Holden worked tirelessly for the Republican Party during 1867 and 1868. New leagues were recruited and old ones strengthened until almost every midland and eastern county supported 2,000 or more leaguers. The Ku Klux Klan soon challenged Holden's efforts. It struck at the basis of his power-the Union Leagues and their leaders-vowing to remove the "dark savages and white ignoramuses wearing the oath of office." Their intimidation was so thorough that many leagues ceased to function and thousands of blacks failed to vote in November 1870. After impeachment charges were brought against him, Holden was tried and removed from office on 22 Mar. 1871. With his fall and the steady pressure of the Ku Klux Klan, the Union Leagues collapsed.

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https://www.ncpedia.org/union-league

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**SHORTENED FOOTNOTE**

Towles, "Union League."

CHAPTER 15 · WEB ARTICLE W15.26

# Did Rutherford B. Hayes End Reconstruction?

Thomas J. Culbertson

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|---|---|
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| **CHAPTER / PROMPTS** | Chapter 15 \| 15.5, 15.1 |
| **ARGUMENT ROLES** | 15.5.2 Support; 15.1.1 Support |

## Excerpt · 1,021 words

Thank for attending this annual event honoring our nation's presidents. It is my honor to follow more than twenty distinguished historians who have shared their thoughts on some aspect of the American presidency. I have taken on the daunting task of attempting to answer the question "Did Rutherford B. Hayes End Reconstruction?" It should not come as a surprise to you that I will not give you a definite answer. You can draw your own conclusions once I lay out the case as I see it. In preparing these remarks I have read works by many of our previous speakers Brooks Simpson, David Blight, Les Benedict, Ari Hoogenboom, Charles Calhoun, and Mark Summers, as well as by historians who could be future speakers Heather Cox Richardson, Andrew Slap, Eric Foner, William Gillette, Allen Guelzo, and Michael Fitzgerald.

Why did I choose this particular topic? In my twenty-four years working at the Hayes Center, the two hot button topics concerning President Hayes have been the Election of 1876 and the ending of Reconstruction. Several prior talks in this series were about the election. So, I will take a shot at the Reconstruction question. Most of us here tonight are predisposed to liking Rutherford Hayes. We work here, give tours here, are members here, or are fellow Buckeyes. We believe that Hayes was a decent man who did his best to serve his country. We are a bit defensive about him because historians have not treated him very well. That wasn't always the case.

From around 1900 until the 1950s, Hayes was praised as the man who reunited the nation and ended that awful period known as Reconstruction. He was hailed as the "statesman of reunion." In the first survey of historians rating the presidents done in 1948, Hayes was number 13 of 29 presidents. He held the same position in 1962. That was very respectable for a one-term president who didn't preside over a war. Since then, he has steadily declined - landing in the 33rd spot out of 42 in the latest C-SPAN poll.

Hayes' fall from grace coincides with a shift in the way Reconstruction is perceived. Until the 1960s, most Reconstruction scholars were disciples of Professor William Dunning who taught history at Columbia University in the late 1800s and early 1900s. He and his followers viewed Reconstruction as a period when Southern Whites were exploited by Blacks, Northern Whites, and pro-Reconstruction Whites. By the 1950s, the Dunning School's interpretation was replaced by the more accurate view that it was the Blacks and their supporters who were wronged.

The rating of presidents is a flawed process. Historians carry their own political biases and they tend to specialize in a very narrow time period. An historian specializing in the Revolution is generally not well informed about the World War I or the Depression. They fall back on what they learned in survey courses.

First let me make some pertinent comments about the life of Rutherford Hayes. He was a lifelong Ohioan, born and raised in Delaware, Ohio, by his widowed mother Sophia and her brother Sardis Birchard. Sardis introduced him to Whig politics. Rutherford's idols were Daniel Webster, an abolitionist, and Henry Clay, a slaveholder. At Kenyon College some of Rutherford's best friends were southern sons of slave owners. At college, he acted as peacemaker between the students from the North and South. At Harvard Law School his Constitutional Law professor Justice Joseph Story stressed the sanctity of the Constitution which permitted slavery. Rutherford, and Uncle Sardis, visited his best friend from Kenyon College, Guy Bryan, in Texas in 1849. The Bryans owned thousands of acres of land and dozens of slaves. Hayes wrote that he observed no "horrors" of slavery, but he had not changed his "Northern opinion" of slavery.

In 1852, Rutherford had the good fortune to marry Lucy Webb, an ardent abolitionist, who encouraged his anti-slavery activities. As a young lawyer in Cincinnati he helped defend runaway slaves on a pro bono basis. When the Civil War broke out in 1861, Lucy supported her thirty-eight-year-old husband's decision to join the military. From the start, Rutherford saw the war as a means of ending slavery. He wrote "I would prefer to go into it if I knew I was to be die or be killed in the course of it, than to live through and after it without taking any part in it." He was wounded five times in battle and rose to the rank of Brevet Major General.

His military service prompted Republicans in Cincinnati to nominate him to run for Congress in 1864. He won despite refusing to leave his soldiers to campaign. As a back-bench congressman Hayes aligned himself with the Radical Republicans doing battle with President Andrew Johnson over Reconstruction policies. He resigned his seat in Congress midway through his second term in order to run for Governor of Ohio in 1867. He vigorously campaigned for voters to ratify an amendment to the Ohio Constitution allowing Blacks to vote in state elections. While he barely won the governorship, the amendment failed by about 50,000 votes. The defeat was clear evidence of Northern attitudes about the status of Blacks. But, I'm getting ahead of the story.

What exactly was Reconstruction? That in itself is a complex question. After four years of war the South was in ruin. Hundreds of thousands of soldiers and civilians were dead, and there were four million newly freed people who needed to build lives. In political terms Reconstruction ideally would bring the eleven states that seceded back into the Union and secure legal and social equality for all citizens regardless of race. Some people, particularly Whites in the South, were content to stop at re-admission to the Union and to ignore the equality part. While Southerners could grudgingly accept the end of slavery, they could not embrace legal or social equality of former slaves. It was not only Southerners who believed that Blacks and other races were inferior to Whites. Even Abraham Lincoln advocated resettlement of Blacks to other countries because he doubted that the two races could coexist in peace.

## Original Article

https://www.rbhayes.org/hayes/did-rutherford-b.-hayes-end-reconstruction/

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### SHORTENED FOOTNOTE

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CHAPTER 15 · WEB ARTICLE W15.27

# Reconstruction in the South

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|---|---|
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| **PUBLICATION** | n.d. (forum on the future of Reconstruction studies) |
| **CHAPTER / PROMPTS** | Chapter 15 \| 15.5, 15.1 |
| **ARGUMENT ROLES** | 15.5.2 Support; 15.1.1 Support; 15.1.2 Support |

## Excerpt · 1,068 words

The study of the Reconstruction era in the South may appear free of the vexing problems of definition and chronology that beset many historical topics. On its face, Reconstruction was the discrete historical process of reintegrating the former Confederacy into the American nation. This process began as soon as the Union captured territory in the Confederacy (circa late 1861) and concluded with the compromise after the disputed election of 1876, which marked the restoration of home rule by southern whites. This chronology was conventional before Woodrow Wilson employed it in his *History of the American People* (1902); and even during the 1960s and 1970s, an especially fertile period for scholarship on Reconstruction, historians betrayed few reservations about either this definition or chronology of Reconstruction.

Like many keywords, with a nod to Raymond Williams, "Reconstruction" is a word (and concept) with a complicated history and layer upon layer of latent meanings. Some Democrats and white southerners, admittedly, preferred the term "Restoration," which conveyed a comforting image of an ordered and gentle process of sectional reincorporation. Many other contemporaries used "Reconstruction" to describe the process of reunification, but they seldom used it as a label for the epoch in which they lived. Thus, unlike many labels that subsequently were attached to historical periods—the antebellum era, for instance—Reconstruction was not an anachronism imposed by succeeding generations. However, the word now is routinely applied not only to the postbellum process of national restoration but also to the entire 1862–77 period.

This usage was consonant with the conventions of the teaching of American history, which until recently broke the nation's narrative up into tidy, bite-sized units. The nineteenth century was conveniently segmented into a series of roughly two-decade-long eras: the Early Republic, Jacksonian America, antebellum America, Civil War and Reconstruction, Gilded Age. Given the emphasis on political history and the prevalence of temporally discrete (rather than thematic) college history courses, these divisions were both reasonable and convenient. This periodization now is receding in the rear view of history, or so it seems, if present-day undergraduate course titles and academic job listings are valid indicators. Job ads now more commonly solicit applications from nineteenth-century specialists than, say, historians of the Jacksonian or Gilded Age United States.

As scholars shift their interests to the *longue durée* of the nineteenth century, Reconstruction necessarily loses much of its utility as a descriptor for the subjects and questions that scholars are interested in. For one, the temporal boundaries of "Reconstruction" almost certainly will be much more permeable in the future than they were during the twentieth century. The issues associated with the penetration of Union forces into the Confederacy, beginning in the fall of 1861, will remain central to any treatment of the destruction of slavery, restoration of federal authority, and the economic reintegration of the South. But the "rehearsal for Reconstruction," with due respect for Willie Lee Rose's enduring classic work, antedated the events in, for instance, the Sea Islands of South Carolina in late 1861 or eastern North Carolina in 1862.[1] Although admittedly marked by contradictions, experimentation, and confusion, the programs adopted and policies applied as early as November 1861 mark the early implementation of the reconstruction of the South.

The conceptual rehearsals for reconstruction antedated the Civil War itself. Even so-called moderate plans for southern reconstruction, such as that of President Lincoln, were audacious visions of social engineering. They presumed profound, far-reaching, and enduring transformations in southern institutions, culture, and behavior on a scale that borders on utopian. From whence did visionaries of a remade South derive their ideas of societal transformation and their optimism about the capacity of the South to be remade? What historical analogies did they draw between their vision for the South and previous or

contemporary events? Which societal transformations did they deem feasible? Which transformations infeasible?

We can cobble together a partial answer to these questions from existing scholarship, including important works by Eric Foner, Susan-Mary Grant, James Oakes, and Heather Cox Richardson.[2] But we await a comprehensive history of the ideas of social transformation that circulated in the mid-nineteenth-century United States and informed ideas about reforming the South. Such a history will reveal the various combinations of religious millennialism, "free labor" capitalism, sentimental moralism, political ideology, historical analogies, and old fashioned American hubris that informed plans for a new South.

The task at hand is not just locating the intellectual resources that provided the conceptual architecture for visions of a remade South but also tracing the evolution of those ideas across time. For example, the efforts of Illinois Republicans to "reconstruct" "Egypt" in southern Illinois during the late 1850s was a test of the capacity of expanding public education, market penetration (made possible by railroads), and political mobilization to reform a regional culture that was deeply pro-southern, anti-black, and Democratic. The attempted re-creation of Egypt was a dry run of methods that the Republicans envisioned applying to the South when their party gained the White House. Their plans, however, failed to transform the inhabitants of the region or to pry them away from the Democratic Party. Given the failure of the prewar and wartime efforts to reconstruct Egypt, we might wonder how Republicans were so sanguine that the purportedly inherent virtues of their program would appeal to white southerners.[3]

While the "reconstruction" of antebellum southern Illinois provides some insights into how Republicans imagined the reconstruction of the Slave South before the war dramatically altered the possibilities for intervention in southern affairs, the response to national and international events after the Civil War underscores the breadth of influences that contributed to the recalibration of possibilities of reconstruction. Growing fervor among American workers for the eight-hour workday and the tumult of the Paris Commune, for example, provoked anxiety among some northern champions of "reconstruction," such as E. L. Godkin of the *Nation*, that private property and individual liberty were increasingly threatened by the poor demanding cooperative economic action and redistribution of wealth. For skeptics of government activism, the folly of Reconstruction was an American counterpart to the Paris Commune—a dangerous threat to the foundations of civilization itself. Property rights, the natural ordering of society on the basis of innate talent and abilities, and the respect for order had all been subverted in the cause of naïve social and racial uplift. In response, these erstwhile reformers began their "retreat from Reconstruction" well before President Ulysses S. Grant's administration began its own retreat.[4]

## Original Article

https://www.journalofthecivilwarera.org/forum-the-future-of-reconstruction-studies/reconstruction-in-the-south/

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### SHORTENED FOOTNOTE

Brundage, "Reconstruction in the South."

CHAPTER 15 · WEB ARTICLE W15.28

# Conveying the 1876 Election to the Public in an Era of Diminishing Democratic Norms

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| CHAPTER / PROMPTS | Chapter 15 \| 15.5 |
| ARGUMENT ROLES | 15.5.3 Support; 15.5.1 Support |

## Excerpt · 1,134 words

At the Rutherford B. Hayes Presidential Library and Museums, we work to stay on top of the historiographical treatment of the 19 president. As you might expect, the controversial election of 1876 takes up the lion's share of our efforts. It is the best known aspect of Hayes's legacy, and its historiographical treatment matches its popularity with the public. The most prevalent question regarding this election, as you might guess, is did Hayes trade away Reconstruction to become president? This well-beaten path has been exhausted by many historical interpretations; relaying this information to the public can be difficult. On one hand, we do not want to be apologists seeking to absolve Hayes from the Reconstruction fallout. On the other, we do not want to feed any misconceived notions the public may bring about voting in modern politics, a concern that has been heightened since January 6, 2021.

Since so many visitors arrive with a belief that Hayes exchanged military troops in the South for the presidency, it surprises many to learn that if Black men were given unintimidated access to the polls Hayes would likely have won the election and the popular vote. Why would Black southerners vote for the man who (benefitting from hindsight) would betray them? The answer is obviously answered by the chronology of the events; but it becomes confusing to the public to then discuss how Republicans attempted to "right" the wrong of bulldozing throughout the South simply to give the game up a few months later. In other words, visitors may find it hypocritical for Republicans to fight against the bulldozing of Southern states to win an election, simply to hand White Southerners the political future of those states.

Perhaps the most sensational event recounted during the investigation into the 1876 returns involved a Black woman named Eliza Pinkston in Louisiana. Pinkston retold the story of an attack on her family by white men attempting to prevent her husband from voting. Having also been injured during the attack, her appearance created a stir. According to newspaper reports, her muscles around her heel had been cut so that her foot hung "useless." She still had a "gash across her face" and was "weak, and fainted." This was the result of her husband being dragged out of his house in the middle of the night, the white men stating, "You will vote no more —– Radical tickets here." After killing him, they returned to the home, attacked Eliza and took the baby beside her and "cut its throat from ear to ear," dispatching it in a pond.[1]

Recent historians have largely ignored this sensational story embedded within the 1876 election crisis, but earlier works describe the incident in detail. This is partly explained by the partisan nature upon which these earlier retellings were constructed. A. M. Gibson's 1885 work, *A Political Crime: The History of the Great Fraud* downplays Eliza's story saying "she embellished greatly the one she had been coached to tell." John Bigelow's 1895 biography of Samuel Tilden berated Eliza as a "disreputable negress, notorious in three States for mendacity and beastliness." A Democratic committee of House Representatives were sent down to Louisiana to investigate and proceeded to denigrate Pinkston as given to assaulting others, leaving her children to die, a "habitual abortionist," and sexually promiscuous. Paul Leland Haworth, who was more sympathetic to the Republican cause, argued that despite attempts to negate Pinkston's testimony through questioning her character, these politicians and historians "lose sight of the fact that the child was nevertheless killed … that [husband] Pinkston was shot seven times."[2]

The questionable testimony provided is likely the reason for the lack of coverage in subsequent historical narratives. Adam Fairclough, however, revives it in his recent work, *Bulldozed and Betrayed*. His retelling goes a step further and even points out that Democrats attempted to bring Pinkston in to recant her story in the midst of the later Potter Commission designed to

investigate the 1876 election. This part of the story, however, further complicates the narrative. Was Eliza now willing to recant her story because she was being further coerced by violent threats?[3]

Although all of the elements of her story cannot be verified or disproved today, it brings a lens for visitors at the Hayes Presidential to see a deeper understanding of how this election proceeded throughout the South. Here was a woman whose family was attacked by individuals, most likely connected with bulldozing efforts. Her story was brought before a committee seeking to throw out the results of an entire parish that statistically showed that bulldozing occurred. In that Ouachita Parish, 1,386 fewer votes were cast for Republicans than registered Republicans. In East Feliciana, despite 2,127 registered Republicans only one vote went to the Republican ticket. Having effectively overturned the necessary parishes to achieve a Republican victory, the Democratic side argued that the Republicans were resorting to extra-legal means to achieve *their* desired results.[4]

As far as the perceived bargain that emanated from the filibuster towards the end of the crisis, the Hayes Presidential points to other historians who can be independent evaluators of any last-minute, Wormley Hotel agreement. But the story of Eliza and the actions of both parties in the wake of the 1876 election opens a door to discuss issues in modern politics. Using Edward Foley's *Ballot Battles*, we can talk about the dangers of falling into *improper* means for the proper outcome. Since Democratic supporters bulldozed the South, and Republican operatives threw out returns to achieve their desired outcome, the answer does not lie here (both means cannot be viably justified if we desire truly impartial outcomes). Foley states that Republicans had "to act immorally . . . in order to vindicate a fundamental moral principle." Instead, Foley argues for "a well-designed impartial institution for the adjudication of the controversy [that] would have enabled the Republicans to prevail fair and square—rather than having their victory sullied by their need to dishonestly manipulate the count of valid ballots."[5]

As we discuss this controversial 1876 election with the public, we find it important not to defend improper means even if we might feel it led to a proper conclusion. In the case of Hayes and Tilden, both men were willing to accept the outcome of the election, even if they did not agree with the result. The events on January 6, 2021 showed what can happen if one candidate refuses to concede. As Foley points out about 1876, the nation has not come to terms with developing a proper mechanism for when democracy is challenged. While we at the Hayes Presidential do not have answers to this question, we can at least use our historical emphasis to discuss the important topic of ensuring the means of our voting process are as justified as the ends.

## Original Article

https://www.journalofthecivilwarera.org/2022/10/conveying-the-1876-election-to-the-public-in-an-era-of-diminishing-democratic-norms/

## Chicago Citations

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### SHORTENED FOOTNOTE

McLochlin, "Conveying the 1876 Election."

CHAPTER 15 · WEB ARTICLE W15.29

# Compromise of 1877

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| CHAPTER / PROMPTS | Chapter 15 \| 15.5 |
| ARGUMENT ROLES | 15.5.1 Support |

## Excerpt · 988 words

The 1876 election year ended with both the presidential race and Louisiana's gubernatorial election in dispute. Louisiana's role in what became known as the Compromise of 1877 secured the White House for Rutherford B. Hayes, installed Confederate veteran Francis T. Nicholls as Louisiana's governor, and ended federal occupation and Reconstruction in the state—along with any hope that African Americans would achieve equality under the law there in the coming decades.

The presidential campaign had pitted Hayes, Ohio's Republican governor, against Samuel Tilden, New York's Democratic governor. The campaigning was intense, as both candidates attempted to portray themselves as alternatives to the widespread corruption found in President Grant's administration. Tilden outpolled Hayes by 250,000 votes, but then, as now, the winner was decided by Electoral College votes, not the popular vote, and Tilden came up one vote short. The Democratic nominee received 184 electoral votes, one fewer than the majority required by the US Constitution; Hayes had received 165. Twenty other electoral votes were in dispute in South Carolina, Louisiana, and Florida, where the Republicans' Reconstruction governments still retained tenuous control over state governments. All three states submitted two sets of electoral ballots, one favoring each of the presidential contenders.

In Washington both Democrats and Republicans claimed victory. Under the Constitution, the ultimate solution rested with Congress, but neither the House of Representatives nor Senate could solve the problem. Democrats possessed a significant majority in the House, while Republicans controlled the Senate. The Twelfth Amendment instructed that "the President of the Senate shall, in the presence of the Senate and the House of Representatives, open all the certificates, and the votes shall be counted." The amendment failed, however, to offer a remedy for conflicting certificates from the states. Democrats claimed that sole responsibility lay with the House, and the Republicans argued for the Senate.

In January 1877 the situation remained deadlocked. As the bitterness between the two parties intensified, politicians in Washington begin to talk about using force to solve the problem. Democratic governors in fifteen states talked about mobilizing National Guard units to install Tilden as president. Republicans, on the other hand, looked to Grant to activate regular army units on behalf of Hayes. Eventually, cooler heads prevailed. On January 18, 1877, both parties agreed to the creation of an Electoral Commission to certify the contested votes. This commission was composed of five House members (three Democrats and two Republicans), five Senate members (three Republicans and two Democrats), and five justices from the US Supreme Court (two Democrats, two Republicans, and one independent).

To all concerned, it now appeared that the problem could be resolved. On January 25, however, Justice David B. Davis, the independent, resigned from the commission and accepted an offer from Illinois Republicans to run for their party's vacant Senate seat. Justice Joseph P. Bradley, a Republican appointee, filled his position. When, on February 8, 1877, Bradley confirmed Democratic suspicions by voting to certify Florida's election returns for Hayes, the political sparks flew. Democrats from Northern states began talking about instituting a filibuster to prevent the certification of the electoral votes. Under the Constitution, on March 3, 1877, if there was no certified presidential victor, the Speaker of the House of Representatives would become president.

Louisiana, meanwhile, had its own constitutional crisis brewing. Democratic Civil War hero Francis T. Nicholls had opposed Republican carpetbagger Stephen B. Packard in the 1876 governor's race, and both parties claimed a majority of votes and established governments. As the disputed presidential election was pondered in Washington, Louisiana Democrats—including

Nicholls supporters E. John Ellis and E. A. Burke—helped broker a deal that put their man in office in Baton Rouge, pulled federal troops out of Louisiana, and delivered the presidency to the Republican Hayes.

Meeting in secret at Wormley's Hotel in Washington, Northern Republicans and Southern Democrats hammered out an agreement on February 26, less than a week before the inauguration. As a result of this pact, often described as the Compromise of 1877, Southerners refused to back the filibuster efforts of Northern Democrats on Tilden's behalf, thus insuring the selection of Hayes as president. In return, Hayes and leading Republicans agreed to remove federal troops from the three "unreconstructed" states, appoint a Southerner to his cabinet, support the expenditure of increased federal funds on internal improvement in these three states, encourage the construction of a transcontinental railroad with a terminus in the South, and have the president visit the South.

Almost immediately upon taking office, President Hayes began the process of fulfilling these commitments. Federal troops were removed from Florida, Louisiana, and South Carolina, effectively ending Reconstruction in those states; David M. Key of Tennessee was appointed postmaster general; railroad men began planning the construction of a southern link to the Pacific Ocean; the president crossed the Potomac for a short tour; and Southern states, especially Louisiana, began receiving increased funding for local improvements. Withdrawal of the federal troops from Louisiana essentially negated Packard's claim to the governorship, which was based on votes from the newly enfranchised African American population.

Nicholls and other newly minted Southern Democratic governors, such as Wade Hampton in South Carolina and Richard Coke in Texas, came to be known as "Redeemer" governors because their rise to power, coinciding with the moderate Republican administration of President Hayes, snuffed out the influence of Radical Republicans and Reconstruction. The transition resulted in whites-only, one-party rule in Louisiana and across the South, which would remain in place for almost a century.

Conspicuously absent from the provisions of the Compromise of 1877, however, were safeguards for Southern freedmen. They were, in the words of Frederick Douglass, "left naked unto their enemies." Before agreeing to the compromise that put him in power, Governor Hayes preferred oral promises from Southern political leaders that the civil rights recently extended to African Americans in the Thirteenth, Fourteenth, and Fifteenth Amendments would be protected. The historical record reveals just how empty those promises were.

## Original Article

https://64parishes.org/entry/compromise-of-1877

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### SHORTENED FOOTNOTE

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CHAPTER 15 · WEB ARTICLE W15.30

# Rutherford B. Hayes: Domestic Affairs

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| CHAPTER / PROMPTS | Chapter 15 \| 15.5 |
| ARGUMENT ROLES | 15.5.2 Support; 15.5.1 Support |

## Excerpt · 1,066 words

Delivered on March 5—since March 4 was a Sunday—Rutherford B. Hayes's inaugural address tried to calm the nation and make clear his main policy concerns. According to the new President, "The fact that two great political parties have in this way settled a dispute in regard to which good men differ as to the facts and the law . . . is an occasion for general rejoicing." Above all, Hayes wished to heal the wounds left by the Civil War: "Let me assure my countrymen of the southern states that it is my earnest desire to regard and promote their truest interest, the interests of the white and of the colored people both and equally and to put forth my best efforts in behalf of a civil policy which will forever wipe out in our political affairs the color line and the distinction between North and South, to the end that we may have not merely a united North or a united South, but a united country."

Hayes wanted the South to have "wise, honest, and peaceful local self-government" but insisted that the interests of blacks and whites be guarded equally. Above all, that meant that southern states must obey the Reconstruction amendments guaranteeing civil and voting rights. Hayes emphasized that the schoolhouse, not the railroad station, was the key to political stability and to economic prosperity in the South and elsewhere. He therefore did not ask for railroad subsidies but did call for federal aid for education, observing that "universal suffrage should rest upon universal education."

In addition to the disputed election and the South, Hayes addressed the problem of the depressed economy by returning to the gold standard. As for the possibility of disputes with foreign powers, he embraced arbitration as Grant had with Great Britain in the 1871 Treaty of Washington. He also dealt with the problem of corruption by advocating a "thorough, radical, and complete" reform of the civil service. Although Hayes realized he was elected by the "zealous labors of a political party," he reminded himself, in his most memorable words, "that he serves his party best who serves his country best."

Although Republican members of Congress universally supported Hayes while the election was in dispute, several party leaders quickly became angered by his independence. In choosing his cabinet, Hayes ignored and offended leading Republican senators. He not only failed to appoint the political lieutenants of Blaine, Simon Cameron, and Roscoe Conkling, but he also named William M. Evarts (who challenged Conkling's control of New York Republicans) as secretary of state, Carl Schurz (who bolted the Republican Party to oppose Grant in 1872) as secretary of the interior, and David M. Key (who had been a Confederate and was a Democrat) as postmaster general. Hayes's appointment of Key was both a gesture of reconciliation and an attempt to attract white southern moderates to the Republican Party—a project that largely failed. Influential Republican Party leaders were enraged, but Hayes's demonstration that he was beholden to no one increased his credibility among reform-minded members of the GOP.

### End of Reconstruction

The most difficult problem facing the nation, however, could not be postponed. While in Congress, Hayes had supported the radical Reconstruction of the former Confederate states on the basis of universal male suffrage enforced by the military occupation of the South. As governor of Ohio, he had fought successfully for passage of the 15th Amendment, eliminating race as a qualification for voting. Initially, the Republican Party, supported by blacks and a few whites, dominated southern state governments.

Gradually, however, the Democratic Party, by playing the race card and resorting to terrorist violence (with the Ku Klux Klan playing a central role), gained control of state governments. By Election Day 1876, only Florida, Louisiana, and South Carolina

had Republican governments, and those were hanging on by a thread. But on December 14, 1876, the Florida Supreme Court reversed the work of the state returning board and allowed the Democrats to take control of Florida on January 1, 1877. By the time Hayes took office, Reconstruction had already ended in the entire South except in Louisiana and South Carolina, and in those states, extra-legal Democratic governments challenged the authority of the legitimate Republican governments. The Republican control was limited to small areas surrounding state houses in the capitals of New Orleans and Columbia, protected by small detachments of federal troops.

Reinforcing these Republican enclaves was not a viable option for Hayes even if he were so inclined. The 25,000-man U.S. Army was primarily deployed in the West in campaigns against Native Americans, and few troops were available. The Democratic House of Representatives had already refused to appropriate money to pay the Army as long as detachments protected Republican governments in the South. Hayes's mandate, to say the least, was shaky. All Democrats opposed military occupation, and a large number of Republicans—including Hayes—had come to the conclusion that rule by the bayonet was counterproductive. Most northern whites were preoccupied with the economic problems of unemployment and falling farm prices during the extended depression and were less concerned about violent acts of white southerners against blacks than they had been in the past. "

The main question that Hayes faced, then, was not whether the troops should be removed but when they would be removed. Hayes continued to be guided by what he said in his acceptance letter and reiterated in his inaugural address. He would be willing to remove the troops upholding Republican governments in Louisiana and South Carolina if leading Democrats in those states pledged to uphold the civil and voting rights of black and white Republicans. The Democratic governments made those pledges, Hayes removed the troops, leading a former attorney general in the Grant administration to to caustically comment that Hayes had rewarded “lawlessness by letting the lawless have their way.”

And then inevitably, white southerners soon broke their promises. Over the next two decades, southern blacks were systematically disfranchised through poll taxes, literacy tests, intimidation, and violence until virtually none could vote—a situation that persisted well into the 20th century. Hayes did protest—although, in the end ineffectually. He bitterly complained in his diary, for example, about the fraud, intimidation, and “violence of the most atrocious character” that white southerners used to win elections in 1878. And he used his presidential veto multiple times to try to preserve some element of federal oversight over African American voting.

## Original Article

https://millercenter.org/president/hayes/domestic-affairs

## Chicago Citations

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### SHORTENED FOOTNOTE

Johnston, "Rutherford B. Hayes."

CHAPTER 15 · WEB ARTICLE W15.31

# Rutherford B. Hayes: Campaigns and Elections

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| CHAPTER / PROMPTS | Chapter 15 \| 15.5 |
| ARGUMENT ROLES | 15.5.3 Support; 15.5.2 Support; 15.5.1 Support |

## Excerpt · 1,051 words

By 1875, the Republican Party was in trouble. A severe economic depression followed the Panic of 1873, and scandals in the Grant administration had tarnished the party's reputation. Falling crop prices and rising unemployment also worried the Republicans. Ohio Republicans turned to Hayes, their best vote-getter, to run against the incumbent Democratic governor. Once again, Hayes won a close race, with 5,544 votes out of almost 600,000 cast, and was immediately spoken of as a contender for the 1876 Republican presidential nomination.

As the favorite son of Ohio, Rutherford B. Hayes had much in his favor. Both regular and reform Republicans liked him. He was a war hero, had supported Radical Reconstruction legislation, and championed African American suffrage. He also came from a large swing state. His reputation for integrity was excellent, and his support of bipartisan boards of state institutions endeared him to reformers. Hayes ultimately, though, realized that his simple "availability" was his greatest strength. Distasteful to no one, he was the second choice among the supporters of the other leading candidates. Nevertheless, Hayes insisted on a united Ohio delegation—and at the same time did nothing to lessen his availability.

Moreover, the 1876 Republican convention was in Cincinnati, which teemed with Hayes supporters. "Availability" did work for Hayes. James G. Blaine, the frontrunner and the favorite of partisan Republicans, was tarnished by allegations of corruption; Oliver P. Morton, the favorite of Radicals, was in ill health; Benjamin H. Bristow, the favorite of reformers, was anathema to Grant; and Roscoe Conkling, the quintessential spoils politician, was unacceptable to reformers and to Blaine. In the end, none of these candidates could muster the votes of the majority of the convention. By the fifth ballot, Hayes had picked up votes; by the seventh, he had clinched the nomination.

The Republicans faced a very difficult campaign. The Democratic candidate, New York governor Samuel Jones Tilden, had strong reform credentials. He had helped bust the infamous Tweed Ring, a corrupt group of Democrats that had been running New York City for years, and then smashed the state's corrupt canal ring. In addition, Tilden was a superb political organizer, and the Democrats in the South were certain to use violence to keep black and white Republicans from voting. Finally, the Republicans had been in power for a long time and were hurt by scandals. Meanwhile, hard times gripped the economy. There was strong sentiment for throwing the ruling party out.

In that era, custom frowned upon overt campaigning by the presidential candidate. Beyond publishing an acceptance letter, candidates were not supposed to demean themselves by making such public appearances—the office should seek the man. Not only were candidates mute, national committees were virtually powerless. State and local party organizations, usually headed by senators and congressmen, conducted presidential campaigns. In his acceptance letter, Hayes called for a reform of the civil service and pledged to serve only one term, lest patronage be used to secure his reelection. (Indeed, he later supported a constitutional amendment limiting the President to a single six-year term.) He also backed the resumption of specie payments (return to the gold standard) as scheduled for 1879. Most importantly, Hayes was a supporter of honest and capable local government in the South, as long as it respected the constitutional rights of all citizens.

### The Disputed Election of 1876

The 1876 presidential election proved to be the longest, closest, most hostile, and most controversial—at least up to that time—in the history of the United States. Hayes knew it would be close and predicted that if he were defeated it would be "by crime—by bribery, & repeating [voters]" in the North and by "violence and intimidation" in the South. The issues seemed so acute that the rate of voting among whites was the highest in the nation's history. And, for the first time, voters throughout the nation all cast their ballots on the same day—the Tuesday after the first Monday in November. Early returns on the telegraph from both Ohio and New York showed Tilden in the lead, and Hayes went to bed convinced he had lost.

The next day, however, Hayes learned that he had carried the California, Oregon, and Nevada; the added Republican electoral votes of the brand-new state of Colorado (admitted on August 1) also proved crucial. Both parties claimed to have carried Florida, Louisiana, and South Carolina. Tilden had a plurality of 250,000 in the popular vote and was one electoral vote shy of the majority needed to win the presidency. But if Hayes carried Florida, Louisiana, and South Carolina, whose official votes would be determined by Republican-controlled "returning," or canvassing, boards, he would win the presidency by one electoral vote. In those states, as well as in the rest of the South, intimidation and violence kept black voters from the polls. With good reason, Republicans asserted that had their votes been counted, Hayes would have carried the three disputed states as well as other southern states.

Citing intimidation, and greased by bribery, the returning election boards in the disputed states invalidated enough Democratic votes for Hayes and the Republican Party to emerge victorious. A further complication arose in Oregon: Hayes carried the state, but one of his electors was a federal office holder and therefore could not be an elector. He resigned his job after the election, but the Democratic governor of that state certified a Democratic elector in his place.

When electors met in state capitals to vote for President on December 6, 1876, separate Republican and Democratic electors met in Florida, Louisiana, South Carolina, and Oregon, and cast conflicting votes. These were forwarded to Washington to be counted by the presiding officer of the Senate, Republican Thomas W. Ferry, in the presence of both houses of Congress. Ardent Republicans claimed that Ferry had the right to decide which votes to count, but Democrats insisted that the joint session with its Democratic majority must decide.

Congress resolved this impasse with a compromise (incidentally, the only important compromise in the disputed election). The Electoral Commission Act passed in January 1877. The Act established a commission of five senators (three Republicans, two Democrats), five representatives (three Democrats, two Republicans), and five Supreme Court justices (two Republicans, two Democrats, and one political independent, Justice David Davis) that would decide which votes to count and thus resolve the election.

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https://millercenter.org/president/hayes/campaigns-and-elections

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**SHORTENED FOOTNOTE**

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